

SENATE No. 3228

Senate, July 24, 2026 -- Text of the Senate amendment to the House Bill relative to economic development in the commonwealth (House, No. 5576) (being the text of Senate document numbered 3178, printed as amended)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. To provide for certain unanticipated obligations of the commonwealth, to
2 provide for an alteration of purpose for current appropriations and to meet certain requirements
3 of law, the sums set forth in section 2A are hereby appropriated from the Education and
4 Transportation Fund established in section 2BBBBBB of chapter 29 of the General Laws unless
5 specifically designated otherwise in this act, for the several purposes and subject to the
6 conditions specified in this act and subject to the laws regulating the disbursement of public
7 funds for the fiscal year ending June 30, 2026. Except as otherwise provided, these sums shall be
8 made available through the fiscal year ending June 30, 2029.

9 SECTION 2A.

10 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

11 Office of the Secretary

12 1596-7066 For a bridge funding reserve to support public institutions of higher
13 education in the commonwealth to enable them to: (i) adapt to federal funding uncertainty or for
14 the loss or diminishment of federal research funding; (ii) encourage advancement of scientific

research, enhance employment opportunities and talent development; and (iii) enable participation in partnerships and joint ventures related to research and innovation; provided, that the funds shall be administered by the executive office for administration and finance, in consultation with the executive office of education, the executive office of labor and workforce development and the executive office of economic development; provided further, that funds may be expended as flexible funding support for public institutions of higher education in the commonwealth to fund direct and indirect costs of research to retain talent and preserve the pace of scientific discovery in the commonwealth; provided further, that funds may be expended as a talent retention and extension reserve to fund positions in research and teaching, including graduate, post doctorate and other early career research professionals, that would otherwise be unfunded due to reductions in federal indirect rates and to build a bridge to future funding levels and sources; provided further, that funds may be expended for research opportunities, partnerships and joint ventures to support research activity and employment and advance innovation and opportunity in the commonwealth including, but not limited to, opportunities related to advanced manufacturing and technology, agricultural science and technology, bioengineering and life sciences, civil engineering and advanced construction materials, climate and environmental science, ecology, education and child development, electronics, energy, fisheries and wildlife science and management, forestry science and management, marine science and technology, medical science and technology, meteorology and atmospheric science, nursing science, public health and applied health sciences and robotics; provided further, that prior to the receipt of funds from this item, public institutions of higher education shall submit a federal funding disruption mitigation plan to the executive office for administration and finance and the house and senate committees on ways and means, which shall include, but not be limited

to, the planned needs and projected expenditures for each fiscal year in which funds are made available under this item; provided further, that funds from this item shall be expended in a manner that prioritizes a public institution of higher education's loss or diminishment of federal research funding that will impact prospective research opportunities and the pace of discovery; provided further, that funds shall be further prioritized in a manner that provides bridge funding over multiple fiscal years in which funds are made available under this item; provided further, that funds shall be expended by public institutions of higher education in a manner that is consistent with the institutions' federal funding mitigation plan unless otherwise authorized by the secretary of administration and finance; and provided further, that the secretary of administration and finance may transfer funds from this item to other items as necessary

.....\$100,000,000

SECTION 3A. To provide for a program of community development, economic opportunities, support for local governments, increased industry innovation, job creation and the promotion of economic reinvestment through the funding of infrastructure improvements, the sums set forth in this section for the several purposes and subject to the conditions specified in this act, are hereby made available, subject to the laws regulating the disbursement of public funds. These sums shall be in addition to any amounts previously authorized and made available for the purposes of those items. The sums set forth in this section shall be made available until June 30, 2036.

MASSACHUSETTS CULTURAL COUNCIL

0640-0309 For a capital grant program to be administered by the Massachusetts cultural council to support individuals, businesses, nonprofit organizations, community groups

60 and other eligible applicants as determined by the council who are engaged in public arts,
61 performance, cultural and community programming that stimulates downtown areas, commercial
62 areas, cultural districts, gathering places and nightlife destinations and contributes to the cultural
63 and economic vitality of cities and towns; provided, that the council may award grants to cities
64 and towns which intend to contract with individuals, businesses, nonprofit organizations,
65 community groups and other eligible entities for projects which support art, performance,
66 cultural and community programming in downtown areas, commercial areas, cultural districts,
67 gathering places and nightlife destinations \$1,000,000

68 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

69 Office of the Secretary

70 7002-8046 For the growth capital division of the Massachusetts Development Finance
71 Agency established in section 2 of chapter 23G of the General Laws for a program to provide
72 matching grants to community development financial institutions certified by the United States
73 Treasury or community development corporations certified under chapter 40H of the General
74 Laws to leverage federal or private investment for the purpose of making loans to small
75 businesses; provided, that such grants shall prioritize socially or economically disadvantaged
76 businesses, which may include, but shall not be limited to, minority-owned, women-owned,
77 worker-owned, veteran-owned or immigrant-owned small businesses that have historically faced
78 obstacles to accessing capital; and provided further, that not less than \$10,000,000 shall be
79 expended to The Massachusetts Business Development Corporation for the Massachusetts
80 Capital Access program to support loans to eligible businesses for start up costs, equipment
81 purchases, real estate acquisitions and other business expenses.....\$20,000,000

7002-8079 For a capital grant program to be administered by the executive office of economic development to provide grants to private businesses that are constructing or expanding commercial, industrial or manufacturing facilities in the commonwealth, which may include, but shall not be limited to: (i) the construction or expansion of facilities in a manner that eliminates or minimizes the use of fossil-fuel heating and cooling equipment, or incorporates other decarbonization measures that would not otherwise be incorporated into the facility design; (ii) the integration of design features that make a facility more resilient to the impacts of climate change, where such design features would not otherwise be economically feasible; and (iii) capital investments that support the creation of a significant number of new jobs in the commonwealth; provided, that the secretary of economic development shall issue program guidelines around the administration of the program which may include the administration of the program through a contract with the Massachusetts Development Finance Agency established in section 2 of chapter 23G of the General Laws or any other appropriate quasi-governmental agency; and provided further, that grants shall be awarded in a manner that promotes geographic equity.....\$25,000,000

7002-8080 For a grant program to be administered by the executive office of economic development to support the development and application of artificial intelligence technologies in strategically important sectors of the state’s economy including, but not limited to, life sciences, healthcare, advanced manufacturing, climatetech, quantum, defense technology, transportation and robotics; provided, that grants may be awarded from this item to public entities, non-profit entities and private businesses; and provided further, that, at the discretion of the secretary of economic development, grant funding may be administered by the Massachusetts Technology Park Corporation, the Massachusetts Life Sciences Center, the Massachusetts

105 Technology Development Corporation or the Massachusetts Clean Energy Technology
 106 Center.....\$75,000,000

107 7002-8081 For a capital grant program to be administered by the executive office of
 108 economic development to support the construction, fit-out and improvement of 1 or more sites
 109 where early stage and high growth business ventures are encouraged to establish operations in
 110 the commonwealth; provided, that the executive office may contract with the Massachusetts
 111 Development Finance Agency established in section 2 of chapter 23G of the General Laws, or
 112 any other state authority as defined in section 1 of chapter 29 of the General Laws, to administer
 113 the grants or other financial assistance from this item; and provided further, that grants shall be
 114 awarded in a manner that promotes geographic equity.....\$20,000,000

115 7002-8082 For a grant program to be administered by the executive office of
 116 economic development to invest in capital assets or public infrastructure that promote economic
 117 growth, job creation and talent recruitment and retention in the defense sector, including to
 118 support innovation in defense related technologies such as artificial intelligence, cybersecurity,
 119 robotics and autonomous systems, semiconductors and microelectronics, biosecurity and
 120 advanced manufacturing; provided, that grants from this item may be awarded to public and
 121 private entities as determined by the executive office; and provided further, that, at the discretion
 122 of the secretary of economic development, grant funding may be administered by the
 123 Massachusetts Technology Park Corporation, the Massachusetts Life Sciences Center, the
 124 Massachusetts Technology Development Corporation, the Massachusetts Development Finance
 125 Agency or the Massachusetts Clean Energy Technology Center.....\$100,000,000

126 7002-8083 For a grant program to be administered by the executive office of
127 economic development to support food science, agricultural enterprises, resilient and sustainable
128 food innovation, food and agricultural technology and related sectors; provided, that the
129 executive office may contract with the Massachusetts Development Finance Agency established
130 in section 2 of chapter 23G of the General Laws, or any other state authority as defined in section
131 1 of chapter 29 of the General Laws, to administer the grants from this item; and provided
132 further, that grants shall be awarded in a manner that promotes geographic
133 equity.....\$15,000,000

134 7002-8084 For a competitive program to be administered by the Massachusetts
135 Technology Park Corporation established in section 3 of chapter 40J of the General Laws to
136 provide capital grants to support research and development of robotics technology including, but
137 not limited to, robotics incubation, testing, training, workforce development, research and
138 development and commercialization activities; provided, that grants may be awarded to nonprofit
139 entities, public or private universities or private business entities.....\$25,000,000

140 7002-8085 For a grant program to cities, towns, regional organizations whose
141 membership is exclusively composed of municipal governments, municipal redevelopment
142 authorities or agencies or quasi-governmental agencies to support economic development in the
143 commonwealth including, but not limited to, support for the vitality, activation, improvement
144 and competitiveness of downtowns, main streets, business districts, town centers, commercial
145 corridors, cultural districts and other walkable mixed-use areas; provided, that the executive
146 office of economic development shall establish program requirements through regulations or
147 policy guidelines; provided further, that grants shall be awarded in a manner that promotes
148 geographic equity; and provided further, that not less than \$2,500,000 shall be expended for a

149 grant program to cities and towns to convert vacant retail spaces and storefronts into spaces to
150 provide entrepreneurs with the opportunity to pilot retail concepts through temporary pop-up
151 stores\$27,500,000

152 7002-8086 For a capital grant program to be administered by the executive office of
153 economic development to enhance the arts, culture and the creative economy in the
154 commonwealth including, but not limited to, grants to cities and towns for public realm and
155 streetscape improvements that enhance downtown vibrancy, rehabilitation of historic districts,
156 wayfinding and signage to support cultural institutions, improvements to public gathering and
157 performance spaces and permanent public art installations; provided, that the executive office
158 may contract with the Massachusetts Development Finance Agency established in section 2 of
159 chapter 23G of the General Laws, Massachusetts Cultural Council, or any other state authority as
160 defined in section 1 of chapter 29 of the General Laws, to administer the grants from this item;
161 and provided further, that grants shall be awarded in a manner that promotes geographic equity;
162 provided further, that not less than \$5,000,000 shall be expended as grants to farm businesses,
163 nonprofit organizations, municipalities and regional tourism councils to enhance
164 agritourism-related cultural and promotional activities in the commonwealth including, but not
165 limited to: (i) barn paintings and agricultural murals created by local artists; (ii) wayfinding,
166 signage and other marketing materials promoting agritourism destinations; (iii) infrastructure and
167 programming that enhances the visibility, viability and visitor experience of farms, farmers
168 markets, farm stands, community gardens, agricultural fairs and other community-based
169 agricultural enterprises; and (iv) public art, cultural installations and promotional initiatives that
170 strengthen local agricultural identity and encourage residents and visitors to visit agricultural
171 sites and purchase local agricultural products; provided further, that the executive office of

172 economic development shall coordinate with the department of agricultural resources to develop
173 and administer the grants\$30,000,000

174 7002-8087 For local economic development grants; provided, that not less than
175 \$5,000,000 shall be expended for the planning, design, engineering, site preparation,
176 construction, accessibility improvements and related infrastructure necessary for the
177 development of the Palmer Passenger rail stop, including associated parking, pedestrian access,
178 utility improvements and other capital improvements necessary to support the implementation of
179 the Palmer Passenger Rail in Phase I of the Compass Rail initiative; provided further, that the
180 funds shall be used to improve regional passenger rail connectivity, expand mobility and
181 transportation options, promote economic development in western and central Massachusetts and
182 position the Palmer Passenger Rail Stop as a key hub within the west-east passenger rail
183 network; provided further, that not less than \$2,500,000 shall be expended to the executive office
184 of housing and livable communities to create a pilot program to aid in the development and
185 construction of permanently affordable home ownership; provided further, that funds may only
186 be used to fund the creation of permanently affordable homeownership units, which may include,
187 but shall not be limited to, units within a mixed use development; provided further, that funds
188 expended for the program may only be used on permanently affordable homeownership units
189 affordable to low and moderate income households whose income is not less than 60 per cent or
190 more than 120 per cent of the area median income; provided further, that funds expended from
191 the program shall only be used to fund projects that have 1 to 25 housing units; provided further,
192 that not less than \$3,250,000 shall be expended for the design, engineering and construction of a
193 municipal parking garage deck on the town of Bridgewater's municipal parking lot located off of
194 Central square behind the retired fire station and on School street, situated within a federally

195 designated opportunity zone, to support local downtown revitalization and economic
196 development; provided further, that not less than \$1,000,000 shall be expended to the city of
197 Springfield for the Springfield Housing Strategy to fund pre-development work on city-owned
198 properties in the city of Springfield that are slated for multi-family housing; provided further,
199 that not less than \$500,000 shall be expended for a carpentry pre-apprenticeship program that is
200 open to persons in the city of Boston with a criminal record and which is operated in partnership
201 with the North Atlantic States Regional Council of Carpenters and local community-based
202 organizations and nonprofit organizations, which shall include, but not be limited to, hands-on
203 trades training, participant stipends, tools and safety equipment, personalized mentorship,
204 industry-recognized certifications and employment-readiness services for persons 18 years of age
205 or older; provided further, that not less than \$1,000,000 shall be expended to The Home for Little
206 Wanderers, Inc. for the renovation and creation of the Rev. Dr. Michael E. Haynes Community
207 Room to support community engagement, civic dialogue, youth and family programming and
208 neighborhood partnership initiatives; provided further, that not less than \$5,000,000 shall be
209 expended to the Massachusetts Development Financing Agency established in section 2 of
210 chapter 23G of the General Laws for the development of the Devens Innovation and Technology
211 Center zoning district which shall include, but not be limited to, housing or mixed-use site
212 development; provided further, that not less than \$1,000,000 shall be expended to the city of
213 Revere for the Resilient Bennington Street and Fredericks Park Project to address regional flood
214 risks in the cities of Revere and Boston; provided further, that not less than \$2,500,000 shall be
215 expended for the Leto Fund Inc. for the purposes of establishing the Boston Legacy Performance
216 Center in the city of Brockton to support regional sports development and tourism and for the
217 training and usage of youth athletes from the Greater Brockton area; provided further, that the

Massachusetts international trade office shall convene a working group to study the feasibility and recommend actions necessary to plan, coordinate and host a set or tournament of international soccer matches within the commonwealth; provided further, that the membership of the working group shall include: the executive director of the Massachusetts international trade office; the executive director of the Massachusetts office of travel and tourism or their designee; the secretary of administration and finance or their designee; the secretary of transportation or their designee; the secretary of public safety and security or their designee; the commissioner of public health or their designee; the colonel of state police or their designee; the general manager of the Massachusetts Bay Transportation Authority or their designee; 1 member of the senate, appointed by the senate president; 1 member of the house of representatives, appointed by the speaker of the house of representatives; a representative of the New England Revolution; a representative of the Boston Legacy Football Club; a representative of the host municipality, after said municipality is determined; a representative of a youth soccer organization; and a member appointed by the governor, who possesses relevant expertise in international sports partnerships, event management, transportation or public safety; provided further, that the working group shall meet not less than quarterly and members shall serve without compensation; provided further, that the working group shall: (i) determine the appropriate scope and scale of hosting an international soccer tournament in the commonwealth; (ii) evaluate prospective dates, venues and operational needs for hosting matches, including, but not limited to, the creation of an appropriate operational framework, if recommended; (iii) determine and coordinate with representatives of participating countries, including, but not limited to, the United States of America, Scotland and nations with a significant diaspora in the commonwealth; (iv) assess and develop recommendations for transportation, including commuter rail and roadway management,

public safety emergency preparedness and public health; (v) identify costs and potential funding sources; (vi) determine the economic and cultural benefit to the commonwealth as a result of coordinating and hosting an international soccer tournament; and (vii) consult with municipal officials, local business partners and relevant community and regional organizations in the planning process; provided further, that not later than 12 months following the effective date of this act, the working group shall submit a report of its findings and recommendations to the secretary of economic development, the secretary of administration and finance, the house and senate committees on ways and means, the joint committee on economic development and emerging technologies and the joint committee on tourism, arts and cultural development; provided further, that the report shall include proposed timelines, operational frameworks, financial projections and any legislative or regulatory actions necessary for implementation; provided further, that not less than \$500,000 shall be expended to The Birthplace Foundation, Inc. to support the planning, design, site preparation, infrastructure improvements and capital investments necessary to advance the development of a premier basketball destination in the city of Springfield to promote tourism and support community programming for local youth; provided further, that not less than \$800,000 shall be expended to the executive office of energy and environmental affairs to conduct a study and analysis of all wastewater treatment plants and collection systems that are licensed to discharge wastewater into the Merrimack river, through a permit issued pursuant to the National Pollutant Discharge Elimination System or otherwise; provided further, that the study shall consider for each permitted facility: (i) the amount of allowable discharge of treated effluent into the river and the municipalities it serves; (ii) the amount, if any, of combined stormwater overflow discharge allowed and, for the preceding 5 years, the actual number and quantity of such discharges, the number of times and amounts by

which such discharges exceeded permitted parameters and any fines, fees or other penalties associated with such excess discharges; (iii) any applicable administrative consent orders or other statutory or regulatory measures compelling remedial action, a description of each such action and the status of compliance with such orders or measures; (iv) the age and state of repair of each facility and its components, including collection, treatment and discharge elements; (v) any current projects underway, planned or projected to be necessary to achieve a state of good repair and to prevent combined stormwater overflows, with estimated costs and timelines for each such project; (vi) existing and potential funding sources to meet the costs of each such project; (vii) a comprehensive plan to achieve, to the maximum extent feasible, a state of good repair and prevent combined stormwater overflows, from permitted facilities discharging into the river; and (viii) identification of technologies and equipment necessary for the timely monitoring of pollutant discharges into the river; provided further, that the executive office of energy and environmental affairs shall submit the study and analysis, together with any legislative, statutory, regulatory and policy recommendations, with the clerks of the house and senate, the house and senate committees on ways and means, the joint committee on environment and natural resources and the joint committee on economic development and emerging technologies not later than 18 months after the effective date of this act; provided further, that not less than \$1,000,000 shall be expended to providers of public water suppliers in the watersheds of the Ipswich, Parker and Essex rivers for projects to increase the supply, distribution and conservation of drinking water to improve and maintain the health of the rivers and ensure adequate and sustainable drinking water supplies to support housing and economic growth; provided further, that not less than \$500,000 shall be expended to United South End Settlements for classroom renovations to support its high-quality early education and economic mobility programming; provided further,

287 that not less than \$1,000,000 shall be expended to Inquilinos Boricuas en Acción, Inc. for
288 upgrades to its community center, La CASA: The Center for Arts, Self-determination, and
289 Activism, to support youth programming, evidence-based education and financial empowerment
290 services; provided further, that not less than \$500,000 shall be expended to St. Mary's Center for
291 Women and Children, Inc. in the city of Boston for shelter renovation and construction; provided
292 further, that not less than \$500,000 shall be expended to the Boys and Girls Clubs of Dorchester,
293 Inc. for The Colonel Daniel Marr Clubhouse in the city of Boston to modernize infrastructure to
294 allow for full inclusion and physical accessibility; provided further, that not less than \$1,000,000
295 shall be expended to the Cape Verdean Association of Boston Inc. for the design, construction
296 and acquisition of a community center to support its community programming; provided further,
297 \$500,000 shall be expended to the Easter Seals Massachusetts, Inc. for the MassAbility Assistive
298 Technology Independent Living Program and Assistive Technology Regional Centers to provide
299 training and to purchase equipment for people with disabilities, veterans and older adults to help
300 them live, work and learn independently; provided further, that not less than \$1,000,000 shall be
301 expended to The Boston Home, Inc. for infrastructure improvements at their wheelchair
302 enhancement center to support on-site repairs and modifications for power wheelchairs; provided
303 further, that not less than \$1,000,000 shall be expended to the city of Boston for the design and
304 renovation of Madison Park Technical Vocational high school; provided further, that not less
305 than \$250,000 shall be expended to Bristol County Agricultural high school for the costs
306 associated with the development of an agricultural workforce development pilot program to
307 serve students, adult learners and employers across southeastern Massachusetts; provided further,
308 that not less than \$5,000,000 shall be expended for economic development projects in the towns
309 of Cohasset, Duxbury, Hingham, Hull, Marshfield, Norwell and Scituate and in the city known

310 as the town of Weymouth; provided further, that not less than \$5,000,000 shall be expended to
311 the Commonwealth Zoological Corporation established in section 2 of chapter 92B of the
312 General Laws for costs associated with the preparation of plans, studies and specifications,
313 repairs, construction, renovations, improvements, maintenance, asset management and
314 demolition and other capital improvements, including those necessary for the operation of
315 facilities operated by Zoo New England, including the Franklin Park Zoo and the Walter D.
316 Stone Memorial Zoo ; provided further, that not less than \$500,000 shall be expended to the
317 Massachusetts Department of Transportation to conduct a feasibility study of all options for rail
318 rapid transit service through Nubian square and Grove Hall and along the Blue Hill avenue
319 corridor in the Roxbury, Dorchester and Mattapan sections of the city of Boston, including
320 potential connections between Ruggles station and Mattapan square; provided further, that the
321 study shall include, but not be limited to, an evaluation of light rail, heavy rail and other rail
322 rapid transit alternatives, potential routes, termini and station locations, projected ridership,
323 capital and operating costs, potential federal, state, local and private funding sources,
324 environmental and community impacts, housing displacement and gentrification impacts and
325 recommendations for implementation and future project development; provided further, that not
326 less than \$1,000,000 shall be expended for heat pump conversion at the Margarita Muñiz
327 Academy in the Jamaica Plain section of the city of Boston provided further, that not less than
328 \$750,000 shall be expended to the town of Abington for purposes including, but not limited to,
329 costs associated with economic development projects; provided further, that not less than
330 \$250,000 shall be expended to the city known as the town of Braintree for purposes including,
331 but not limited to, costs associated with economic development projects; provided further, that
332 not less than \$750,000 shall be expended to the town of Hanover for purposes including, but not

333 limited to, costs associated with economic development projects; provided further, that not less
334 than \$500,000 shall be expended to the town of Holbrook for purposes including, but not limited
335 to, costs associated with economic development projects; provided further, that not less than
336 \$2,000,000 shall be expended to the city of Quincy for purposes including, but not limited to,
337 costs associated with economic development projects; provided further, that not less than
338 \$750,000 shall be expended to the town of Rockland for purposes including, but not limited to,
339 costs associated with economic development projects ; provided further, that not less than
340 \$5,000,000 shall be expended to the Massachusetts Bay Transportation Authority for the design
341 and construction of accessible stations with dual-sided platforms at the Auburndale and West
342 Newton commuter rail stations in the city of Newton; provided further, that not less than
343 \$100,000 shall be expended to the Brookline Community Development Corporation for the
344 rehabilitation and deep energy retrofit of its affordable housing property at 1017 Beacon street in
345 the town of Brookline ; provided further, that not less than \$250,000 shall be expended to
346 Friends of North Leverett Sawmill, Inc. to aid in the restoration of the historic Slarrow mill ;
347 provided further, that not less than \$4,750,000 shall be expended for capital expenses associated
348 with the redevelopment of the former Wilson's department store and Putnam building in the city
349 of Greenfield into a mixed-use development; provided further, that not less than \$5,000,000 shall
350 be expended for capital improvements to modernize and improve the DCU Center Arena and
351 Convention Center in the city of Worcester; provided further, that not less than \$750,000 shall be
352 expended for the town of Great Barrington for the purpose of renovating the Housatonic
353 community center; provided further, that not less than \$250,000 shall be expended to Lenox
354 Land Trust, Inc. for the purpose of restoring access to the Hallowell meadow recreational area;
355 provided further, that not less than \$250,000 shall be expended for the Frank R. Stiles Post No.

356 125, The American Legion, Inc. in the city of North Adams for renovations and improvements to
357 its building to support local community and veterans programming; provided further, that not
358 less than \$250,000 shall be expended for the office of community development in the city of
359 North Adams for the redevelopment project located at the former site of the Notre Dame church;
360 provided further, that not less than \$250,000 shall be expended for the Williams-Boltwood
361 House Trust, Inc. in the town of Goshen for the complete restoration of the site of the historic
362 Williams-Boltwood House; provided further, that not less than \$500,000 shall be expended to
363 Sterling and Francine Clark Art Institute for costs associated with the Aso O. Tavitian wing
364 expansion project; provided further, that not less than \$500,000 shall be expended for Berkshire
365 theatre group for the purpose of the Playhouse restoration project in the town of Stockbridge;
366 provided further, that not less than \$1,083,000 shall be expended for the Massachusetts Food
367 Trust Program established in section 65 of chapter 23A of the General Laws for expanded access
368 to groceries in the city of Worcester; provided further, that not less than \$500,000 shall be
369 expended for the Holyoke Redevelopment Authority for mixed-use development, affordable and
370 market-rate housing projects its urban renewal plan on Newton street and High street; provided
371 further, that not less than \$750,000 shall be expended for the city known as the town of West
372 Springfield for a redevelopment and feasibility study of municipally-owned property near the
373 downtown central business district; provided further, that not less than \$250,000 shall be
374 expended for the Pittsfield Municipal Airport Commission for the development of the Berkshire
375 Aviation & Aerospace Pathway; provided further, that not less than \$1,200,000 shall be
376 expended for the city known as the town of Agawam for the Downtown Ramah Circle
377 Infrastructure Project; provided further, that not less than \$1,000,000 shall be expended for
378 Westfield state university for the establishment of an immersive learning center for public safety

379 professionals; provided further, that not less than \$500,000 shall be expended for the city of
380 Chicopee for improvements to community playgrounds and parks; provided further, that not less
381 than \$350,000 shall be expended for the city of Westfield for urban planning and roadway
382 improvements on Elm street, Orange street and Turnpike Industrial Park road; provided further,
383 that not less than \$700,000 shall be expended for the Massachusetts Veterans Memorial
384 Cemetery in the town of Agawam for land expansion; provided further, that not less than
385 \$5,000,000 shall be expended to support economic development and housing in the Watertown
386 square section of the city of Watertown; provided further, that not less than \$250,000 shall be
387 expended to further economic development in the town of Auburn; provided further, that not less
388 than \$250,000 shall be expended to further economic development in the town of Grafton;
389 provided further, that not less than \$250,000 shall be expended to further economic development
390 in the town of Millbury; provided further, that not less than \$250,000 shall be expended to
391 further economic development in the town of Shrewsbury; provided further, that not less than
392 \$250,000 shall be expended to further economic development in the town of Westborough;
393 provided further, that not less than \$935,000 shall be expended for UTEC, Inc. for equipment to
394 support its social enterprises, workforce development and supportive services, including, but not
395 limited to, its mattress recycling program; provided further, that not less than \$360,000 shall be
396 expended to the town of Dunstable for the replacement of the Joint Grass Brook culvert;
397 provided further, that not less than \$450,000 shall be expended to the town of Tyngsborough for
398 costs associated with a 2-year pilot program offering expanded bus service in the town of
399 Tyngsborough; provided further, that not less than \$250,000 shall be expended for a competitive
400 grant program administered by the Toxics Use Reduction Institute to strengthen the
401 competitiveness of Massachusetts small businesses and manufacturers through safer chemical

402 innovation; provided further, that not less than \$4,000,000 shall be expended to the town of
403 Dennis for renovation, reconstruction and improvements to Sesuit harbor and its support
404 facilities; provided further, that not less than \$255,000 shall be expended to the town of
405 Pepperell for the purchase of an ambulance; provided further, that not less than \$250,000 shall be
406 expended to the town of Dracut for costs associated with capping its landfill; provided further,
407 that not less than \$1,000,000 shall be expended to the town of Easton for the design and
408 construction of the Easton industrial park sewer project; provided further, that not less than
409 \$1,000,000 shall be expended for the city of Pittsfield and the Pittsfield Economic Development
410 Authority for the purpose of infrastructure, capital improvements and acquisitions related to the
411 development of an energy hub and economic development zone; provided further, that not less
412 than \$250,000 shall be expended for the town of Whately for infrastructure and capital site
413 improvements at the former Center School to facilitate the development and operation of an
414 economic development hub; provided further, that not less than \$250,000 shall be expended for
415 Piti Theatre Company, Inc. in the town of Charlemont for the purpose of development,
416 renovations, infrastructure and purchasing for their Bloom center construction project; provided
417 further, that not less than \$200,000 shall be expended to the town of West Boylston for local
418 infrastructure related to economic development projects; provided further, that not less than
419 \$200,000 shall be expended to the town of Northborough for local infrastructure related to
420 economic development projects; provided further, that not less than \$250,000 shall be expended
421 to the Blue Hills Observatory and Science Center, Inc.; provided further, that not less than
422 \$1,000,000 shall be expended to Worcester Center for Performing Arts, Inc. for infrastructure
423 improvements to the Hanover Theatre and Conservatory for the Performing Arts in the city of
424 Worcester; provided further, that not less than \$1,000,000 shall be expended to Family Health

425 Center of Worcester, Inc. for planning, engineering and infrastructure design of energy efficient
426 improvements to improve access to quality health care; provided further, that not less than
427 \$200,000 shall be expended to the town of Boylston for local infrastructure related to economic
428 development projects; provided further, that not less than \$200,000 shall be expended to the
429 town of Bolton for local infrastructure related to economic development projects; provided
430 further, that not less than \$200,000 shall be expended to the town of Berlin for local
431 infrastructure related to economic development projects; provided further, that not less than
432 \$500,000 shall be expended for the town of West Bridgewater to support development and
433 construction at War Memorial park; provided further, that not less than \$1,000,000 shall be
434 expended to the city of Boston for the design and renovation of the John D. O'Bryant School of
435 Mathematics and Science; provided further, that not less than \$3,000,000 shall be expended to
436 Senior Connection, Inc. for the purpose of developing the Grandfamilies housing village of
437 Worcester; provided further, that not less than \$725,000 shall be expended to the town of
438 Spencer for the purpose of demolition of certain buildings; provided further, that not less than
439 \$300,000 shall be expended to the town of Westminster for water infrastructure modernization
440 and per- and polyfluoroalkyl substance mitigation for residents and businesses; provided further,
441 that not less than \$300,000 shall be expended to the town of West Brookfield for improvements
442 and infrastructure upgrades to the town center and depot area; provided further, that not less than
443 \$300,000 shall be expended to the town of Sterling for upgrades and infrastructure improvements
444 to the downtown area; provided further, that not less than \$50,000 shall be expended to the town
445 of Rutland to support planning, analysis and implementation of an economic development plan;
446 provided further, that not less than \$500,000 shall be expended to the town of Ware for upgrades
447 and infrastructure improvements to the downtown area; provided further, that not less than

448 \$150,000 shall be expended to the town of Templeton for upgrades and infrastructure
449 improvements to the downtown area; provided further, that not less than \$500,000 shall be
450 expended for Community Health Center of Franklin County, Incorporated for equipment
451 acquisition and electronic health integration to ensure the continuation of essential pharmacy
452 services in the town of Shelburne; provided further, that not less than \$1,000,000 shall be
453 expended for an academic medical center in the city of Springfield to accelerate regional job
454 creation and economic development in western Massachusetts, secure critical capital
455 infrastructure, provide facility modernization and clinical capacity expansion related to the
456 acquisition of a community hospital in the city; provided further, that not less than \$1,000,000
457 shall be expended for the town of Maynard for water infrastructure improvements and other
458 related expenses; provided further, that not less than \$1,750,000 shall be expended for water
459 infrastructure in the town of Norfolk; provided further, that not less than \$1,500,000 shall be
460 expended for water infrastructure in the town of Sherborn; provided further, that not less than
461 \$1,750,000 shall be expended for water infrastructure in the town of Wrentham; provided
462 further, that not less than \$3,000,000 shall be expended to the city of Woburn for the design,
463 permitting and construction of a pedestrian bridge to Anderson regional transportation center in
464 the area of the New Boston street in the city of Woburn; provided further, that not less than
465 \$2,000,000 shall be expended to the town of Arlington for the reconstruction of the Edith M. Fox
466 library; provided further, that not less than \$1,500,000 shall be expended for the department of
467 conservation and recreation for the design, construction and installation of the Mass Central rail
468 trail in the town of Hudson and other related expenses; provided further, that not less than
469 \$1,500,000 shall be expended for the department of conservation and recreation for the design,
470 construction and installation of the Mass Central rail trail in the towns of Wayland and Sudbury

471 and other related expenses; provided further, that not less than \$1,000,000 shall be expended to
472 the Old Colony Planning Council for the purposes of designing and implementing a competitive
473 small business incubator grant program serving the Old Colony region and focusing on the
474 acquisition of physical space for business through purchase, lease or rent and other capital assets;
475 provided further, that not less than \$1,000,000 shall be expended to the city of Brockton for the
476 purposes of daylighting restoration of Trout brook, full restoration of Brook corridor and other
477 related public infrastructure at Brockton yards; provided further, that not less than \$100,000 shall
478 be expended to the town of Acushnet to support economic development alongside the
479 reconstructed South Main street corridor including, but not limited to commercial, industrial and
480 business development opportunities; provided further, that not less than \$2,450,000 shall be
481 expended to the town of Dartmouth to support housing production and economic development,
482 including, but not limited to, pump station upgrades and water interconnection to the city of Fall
483 River to diversify sources and bring down costs for ratepayers; provided further, that not less
484 than \$2,450,000 shall be expended to the town of Fairhaven for the planning, design, engineering
485 and construction of a public safety complex; provided further, that not less than \$2,000,000 shall
486 be expended to support the development of workforce housing in the town of Falmouth ;
487 provided further, that not less \$1,000,000 shall be expended to the town of Pembroke for water
488 quality and improvements; provided further, that not less than \$2,000,000 shall be expended to
489 support housing development in the towns of Bourne, Falmouth, Kingston, Mashpee, Sandwich,
490 Pembroke, Plymouth and Plympton; provided further, that not less than \$500,000 shall be
491 expended to the Dedham-Westwood water district for planning and capital infrastructure
492 improvements; provided further, that not less than \$1,500,000 shall be expended to Naismith
493 Memorial Basketball Hall of Fame, Inc. in the city of Springfield for capital improvements and

494 accessibility upgrades to support local tourism and community programming; provided further;
495 that not less than \$500,000 shall be expended to Springfield Symphony Orchestra for capital
496 improvements and accessibility upgrades to Springfield Symphony hall in the city of Springfield;
497 provided further, that not less than \$500,000 shall be expended to the town of Whitman to
498 support downtown revitalization and the town's economic development goals; provided further,
499 that not less than \$5,00,000 shall be expended for infrastructure improvements in the Arlington
500 neighborhood in the city of Methuen, including, but not limited to, drainage and sewage, road
501 pavement, engineering costs and business outreach; provided further, that not less than
502 \$2,000,000 shall be expended for the Pappas Rehabilitation Hospital for Children in the town of
503 Canton for immediate repairs, rehabilitation of existing infrastructure and upgrades to existing
504 facilities to hospital level care to allow for expanded admissions and ensure patient safety;
505 provided further, that not less than \$1,000,000 shall be expended to the Mansfield Municipal
506 Airport for upgrades to aircraft hangars that will result in additional revenue collection; provided
507 further, that not less than \$2,000,000 shall be expended as economic relief grants to be
508 administered by the executive office of economic development to businesses and nonprofits that
509 suffered a documented loss of revenue due to security restrictions, traffic management, parking
510 and transportation alterations, foot-traffic reductions and other local, state or federal regulations
511 and restrictions as a result of the commonwealth's hosting of Boston 2026 FIFA World Cup
512 matches; provided further, that priority shall be given to entities within the state highway route 1
513 corridor and within communities adjacent to Gillette Stadium in the town of Foxborough;
514 provided further, that the disbursement of funds shall be made in an expedited manner not later
515 than December 31, 2026; provided further, that not less than \$5,000,000 shall be expended to
516 support projects in the city of Lynn related to the South Harbor Implementation Plan, including,

517 but not limited to, street grid improvements; provided further, that not less than \$500,000 shall
518 be expended to the city of Newburyport for the design, construction and implementation of the
519 Market Landing park visitor center and restroom facility in the city of Newburyport; provided
520 further, that not less than \$250,000 shall be expended to the town of Manchester-by-the-Sea for
521 the planning, design and construction of a new harbormaster office and visitor center located at
522 Reed park; provided further, that not less than \$100,000 shall be expended to the town of Rowley
523 for well and other drinking water improvements; provided further, that not less than \$250,000
524 shall be expended to the town of Salisbury for infrastructure improvements at Salisbury beach
525 and the implementation of the phase III of the Salisbury Beach Public Realm plan; provided
526 further, that not less than \$200,000 shall be expended to the town of Rockport for the purchase of
527 a truck for the collection and cleaning of refuse; provided further, that not less than \$250,000
528 shall be expended to the town of Georgetown to assist in the expansion and connection of
529 municipal and school facilities in the dedicated fiber loop; provided further, that not less than
530 \$150,000 shall be expended to the town of Essex for improvements to the downtown community
531 greenspaces and thoroughfare; provided further, that not less than \$1,000,000 shall be expended
532 to the city of Gloucester for the design, construction and implementation of the Water Pollution
533 Control Facility Secondary Treatment Plant upgrades in the city of Gloucester; provided further,
534 that not less than \$500,000 shall be expended to Merrimack College for the planning, design and
535 development of the Lower Merrimack Valley Innovation District to support regional economic
536 development opportunities; provided further, that not less than \$250,000 shall be expended to the
537 town of Seekonk for economic development purposes; provided further, that not less than
538 \$250,000 shall be expended to the town of Dighton for economic development purposes;
539 provided further, that not less than \$250,000 shall be expended to the town of Berkley for

540 economic development purposes; provided further, that not less than \$500,000 shall be expended
541 to the town of Rehoboth for economic development purposes; provided further, that not less than
542 \$1,000,000 shall be expended to the city of Taunton for economic development, infrastructure,
543 public facilities, utility improvements, downtown revitalization, small business assistance or
544 related capital improvement purposes; provided further, that not less than \$750,000 shall be
545 expended to the town of Raynham for state highway route 138 corridor improvements; provided
546 further, that not less than \$800,000 shall be expended to the town of Middleborough for
547 economic development purposes; provided further, that not less than \$250,000 shall be expended
548 to the town of Carver for economic development purposes; provided further, that not less than
549 \$250,000 shall be expended to the town of Marion for economic development purposes;
550 provided further, that not less than \$450,000 shall be expended to the town of Wareham for
551 economic development purposes; provided further, that not less than \$2,500,000 shall be
552 expended to the city of Lowell for improvements to the Bridge street bridge over the Eastern
553 canal in the city of Lowell; provided further, that not less than \$2,500,000 shall be expended to
554 the city of Everett to replace and upgrade the aging and insufficient water, sewer and stormwater
555 systems underneath Beacham street in the city of Everett; provided further, that not less than
556 \$2,500,000 shall be expended to the city of Chelsea for the design, construction, cleanout and
557 redesign of the Market street culvert; provided further, that not less than \$5,000,000 shall be
558 expended to the department of conservation and recreation in consultation with the Friends of the
559 Middlesex Fells Reservation, Inc. for maintenance and improvements to the Middlesex Fells
560 reservation; provided further, that not less than \$4,000,000 shall be expended to the
561 Massachusetts Development Finance Agency, in collaboration with the town of Uxbridge, for the
562 redevelopment of historic mill building space for local economic growth in the town of

563 Uxbridge; provided further, that not less than \$1,000,000 shall be expended for expanding
564 sidewalk access along state highway route 140 in the town of Upton; provided further, that not
565 less than \$500,000 shall be expended for the Springfield Day Nursery Corporation in the city of
566 Springfield for construction of a family resource center and workforce development hub;
567 provided further, that not less than \$500,000 shall be expended to the Jamaica Plain
568 Neighborhood Development Corporation to promote access to safe and affordable housing;
569 provided further, that not less than \$500,000 shall be expended to the Southwest Boston
570 Community Development Corporation to assist with planning, programming and operations,
571 including, but not limited to, the creation and preservation of affordable housing, strengthening
572 the local economy of the neighborhood and the promotion of climate resiliency; provided further,
573 that not less than \$2,500,000 shall be expended to the city of Somerville for the Early Action
574 Acquisition Fund to increase affordable or mixed-income housing, including, but not limited to,
575 assistance to help developers acquire property; provided further, that not less than \$2,500,000
576 shall be expended for grants to the cities of Cambridge and Somerville for the design,
577 engineering, permitting and construction of green stormwater infrastructure projects exclusively
578 aimed at minimizing and ultimately eliminating combined sewer overflows into the Alewife
579 brook; provided further, that not less than \$250,000 shall be expended to the MassHire Norwood
580 Career Center to support and promote career advancement programs in the region; provided
581 further, that not less than \$250,000 shall be expended to the town of Walpole for the purposes of
582 purchasing new safety equipment and upgrading safety infrastructure; provided further, that not
583 less than \$500,000 shall be expended to the New England Aquarium Corporation for repairs and
584 infrastructure improvements to its plaza and the abutting area of the Boston harborwalk in order
585 to promote tourism, access, safety and continued economic development at Central wharf;

586 provided further, that not less than \$1,500,000 shall be expended to the Boston Housing
587 Authority for the development and management of a climatetech revolving loan fund to support
588 building decarbonization, energy efficiency and demand response investments at publicly-
589 assisted properties with funding priority to projects affected by the rollback of federal energy
590 efficiency or renewable energy incentives, loans or grants; provided further, that not less than
591 \$1,250,000 shall be expended to the town of Danvers for the purposes of design, permitting and
592 reconstruction of the Syzpkio bridge in the town of Danvers to connect the commercial corridors
593 of the town of Danvers and the cities of Peabody and Salem to state highway route 128; provided
594 further, that not less than \$1,250,000 shall be expended to the city of Beverly to renovate city
595 hall for infrastructure developments; provided further, that not less than \$1,250,000 shall be
596 expended to the city of Salem for improvements at the Salem Ferry Terminal including, but not
597 limited to, passenger services, expanded operational capacity, leasable office space, training and
598 event areas and security and information technology office infrastructure; provided further, that
599 not less than \$1,500,000 shall be expended to the executive office of housing and livable
600 communities for grants to local housing authorities and the vacant unit task force for vacant unit
601 turnover; provided further, that not less than \$1,000,000 shall be expended to the Neponset River
602 Regional Chamber of Commerce to support small businesses in the towns of Dedham, Norwood,
603 Westwood and Walpole; provided further, that not less than \$125,000 shall be expended to Hyde
604 Park Main Streets, Inc. for programs to support local businesses and promote local economic
605 development; provided further, that not less than \$125,000 shall be expended to Centre/South
606 Main Streets, Inc. for programs to support local businesses and promote local economic
607 development; provided further, that not less than \$125,000 shall be expended to Roslindale
608 Village Main Street, Inc. for programs to support local businesses and promote local economic

609 development; provided further, that not less than \$125,000 shall be expended to West Roxbury
610 Main Streets, Inc. for programs to support local businesses and promote local economic
611 development; provided further, that not less than \$600,000 shall be expended to the town of
612 Bedford for infrastructure upgrades and sidewalk improvements in the downtown area; provided
613 further, that not less than \$300,000 shall be expended to the town of Weston for the replacement
614 of aging water tanks; provided further, that not less than \$335,000 shall be expended to the
615 Charles River Museum of Industry and Innovation, Inc. for facility and accessibility upgrades to
616 support local tourism and promote the industrial history of the United States; provided further,
617 that not less than \$520,000 shall be expended to the city of Waltham for the historic restoration
618 of the interior and exterior of the blighted corn research laboratory building at the former farm
619 and field station owned by the University of Massachusetts for a museum, a learning lab and a
620 visitor center to honor Dr. Walton C. Galinat; provided further, that not less than \$520,000 shall
621 be expended to the city of Waltham for exterior and interior renovations to emergency shelter
622 and housing for low-income individuals at the former Elks Lodge property located at the
623 intersection of Lexington street and School street; provided further, that not less than \$600,000
624 shall be expended to the town of Chelmsford for sidewalk installation and drainage upgrades
625 along the Main street corridor from Groton road to School street; provided further, that not less
626 than \$300,000 shall be expended to the town of Weston for the Winter street culvert repair
627 project; provided further, that not less than \$600,000 shall be expended to the town of Carlisle
628 for walkability improvements to the Carlisle town center; provided further, that not less than
629 \$600,000 shall be expended to the town of Concord for infrastructure improvements at the
630 Kenneth Dunn square intersection and the Pail Factory bridge; provided further, that not less
631 than \$600,000 shall be expended to the town of Lexington for safety improvements on Adams

632 street and along Massachusetts avenue; provided further, that not less than \$300,000 shall be
633 expended for the New England Historic Genealogical Society for infrastructure and safety
634 improvements, including, but not limited, to spaces dedicated to the 10 Million Names Project to
635 research genealogical records of the 10 million people enslaved in the United States of America
636 between 1619 to 1865, inclusive; provided further, that not less than \$200,000 shall be expended
637 to Bold Skin Babe Cosmetology Institute Inc to bridge gaps and increase access to education,
638 economic opportunity and entrepreneurship in the beauty and wellness industry through its
639 programs and offerings including, but not limited to, scholarships for low income students;
640 provided further, that not less than \$5,000,000 shall be expended for the Lawrence Municipal
641 Airport in the town of North Andover for the study, design and construction of airport
642 improvements including, but not limited to, ground-based facilities designed to support the use
643 of electric vertical takeoff and landing aircraft, costs associated with the relocation and
644 construction of a new maintenance building and other infrastructure improvements; provided
645 further, that not less than \$1,000,000 shall be expended to the city known as the town of
646 Winthrop for upgrades to the memorial gymnasium on Pauline street which may include, but
647 shall not be limited to, upgrades to the heating system, the windows and the gym floors; provided
648 further, that not less than \$500,000 shall be expended to the city of Revere for the planning,
649 development, establishment, operation and support of a regional food hub; provided further, that
650 not less than \$1,000,000 shall be expended to the town of Stow for the design, construction and
651 installation of the Sudbury road bridge and other related expenses; provided further, that not less
652 than \$1,250,000 shall be expended to the city of Peabody for the expansion of the Torigian
653 senior center in the city of Peabody; provided further, that not less than \$12,000,000 shall be
654 expended to the city of Framingham to support access to the Regional Justice Center and

655 downtown revitalization, which shall include funding for the design, purchase, construction or
656 rehabilitation of a downtown parking garage; provided further, that not less than \$250,000 shall
657 be expended to the town of Natick for the development and construction of a multi-use path
658 along state highway route 135 connecting to the West Natick commuter rail station; provided
659 further, that not less than \$2,500,000 shall be expended to the city of Haverhill for upgrades to
660 sewer treatment infrastructure; provided further, that not less than \$2,500,000 shall be expended
661 to the city of Haverhill to assist recovery efforts of the mill fire of April and May 2026; provided
662 further, that not less than \$500,000 shall be expended to Arc Landing Boston, Inc. to support a
663 catalyst fund to assist in the growth of the health care industry and increase access to health
664 care; provided further, that not less than \$1,000,000 shall be expended to the city of Fall River
665 for economic development and revitalization efforts in the Flint neighborhood and Pleasant street
666 corridor of the city; provided further, that not less than \$5,000,000 shall be expended to the town
667 of Lakeville for the redevelopment of the site of the former Lakeville state hospital; and provided
668 further, that not less than \$1,000,000 shall be expended to the town of Swansea for the
669 construction and installation of sewage lines\$221,983,000

670 7002-8088 For the University of Massachusetts at Lowell, for the center of excellence
671 in nuclear and fusion technology established in section 48 of chapter 75 of the General Laws to
672 fund the activities and research initiatives of the center and to provide grants and contracts
673 supporting nuclear fission and fusion research initiatives including, but not limited to, the
674 LIBRA ONE project as defined under said section 48 of said chapter 75; provided, that such
675 initiatives may include the design, construction and operation of experimental apparatus, the
676 procurement of specialized materials and equipment, personnel costs for researchers and
677 graduate students and associated administrative costs; and provided further, that the University

678 of Massachusetts at Lowell shall administer funds, including grants and contracts, in this item
679 and may enter into contracts with other public and private institutions of higher education to
680 carry out the objectives of the center..... \$5,000,000

681 EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES

682 7004-0096 For state financial assistance to be administered by the executive office of
683 housing and livable communities through a contract with the Massachusetts Housing Finance
684 Agency established in chapter 708 of the acts of 1966 in the form of grants, loans, subsidies,
685 credit enhancements and other financial assistance to support the acquisition, planning,
686 predevelopment, permitting, site preparation, construction, rehabilitation, redevelopment and
687 preservation of affordable and attainable year-round housing in municipalities designated as
688 seasonal communities pursuant to section 32 of chapter 23B of the General Laws; provided, that
689 eligible recipients shall include municipalities, municipal or regional year-round housing trust
690 funds, local or regional housing authorities and qualified nonprofit or for-profit housing
691 developers; provided further, that funds may be expended for infrastructure improvements
692 necessary to support such housing; provided further, that housing projects within projects that
693 receive financial assistance under this item shall be restricted to households with an income not
694 to exceed an amount to be determined by the secretary of housing and livable communities;
695 provided further, that the secretary may restrict housing to individuals who maintain primary
696 residence in a seasonal community for a period of not less than 10 months; and provided further,
697 that funds shall be distributed in a manner that promotes geographic equity among seasonal
698 communities \$10,000,000

699 SECTION 4. Chapter 2 of the General Laws is hereby amended by adding the following
700 section:-

701 Section 66. The Massachusetts National Guard museum in the city of Salem, established
702 pursuant to section 140 of chapter 33, shall be the official military museum of the
703 commonwealth.

704 SECTION 5. Subclause (w) of clause Twenty-sixth of section 7 of chapter 4 of the
705 General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the
706 figure “90K”, in line 273, the following words:- and photographs, video or other images and
707 other personal identifying information collected under chapter 90L.

708 SECTION 6. Said section 7 of said chapter 4 is hereby further amended by striking out
709 clause Sixtieth, as so appearing, and inserting in place thereof the following clause:-

710 Sixtieth, “Age of criminal majority”, the age of 19.

711 SECTION 7. Section 116 of chapter 6 of the General Laws, as so appearing, is hereby
712 amended by adding the following paragraph:-

713 The committee shall create and make available specialized training and continuing
714 education for officers who conduct death investigations on the identification and investigation of
715 deaths that may be related to domestic violence. The training shall include, but not be limited to:
716 (i) the identification and detection of staged crime scenes; (ii) the engagement of
717 multidisciplinary teams in the investigation of deaths preceded by domestic violence; and (iii)
718 indicators of domestic homicide in suspicious death cases including, but not limited to: (A)
719 sudden or untimely death; (B) a history of domestic violence against the decedent including, but

720 not limited to, coercive control, strangulation, suffocation or other life-threatening behavior; (C)
721 evidence that the decedent's death followed the decedent or their intimate partner ending, or
722 intending to end, their relationship; (D) death in the decedent's home or place of residence; (E)
723 an appearance of death due to suicide or accident at the scene; (F) discovery of the decedent's
724 body by a current or former intimate partner; (G) evidence that the abuser, a child of the abuser
725 or a child of the decedent was the last person to see the decedent alive; (H) evidence that the
726 abuser had control of the scene of death before the arrival of law enforcement; and (I) evidence
727 of tampering with the scene of death.

728 SECTION 7A. Section 167 of said chapter 6, as so appearing, is hereby amended by
729 striking out, in line 38, 40 and 41, the figure "18" and inserting in place thereof, in each instance,
730 the following words:- "criminal majority".

731 SECTION 8. Section 204 of said chapter 6, as so appearing, is hereby amended by
732 striking out, in lines 20 to 21, the words "but shall not serve for longer than 8 consecutive years".

733 SECTION 9. Section 16I of chapter 6A of the General Laws, as so appearing, is hereby
734 amended by striking out, in line 13, the words "housing and".

735 SECTION 10. Said section 16I of said chapter 6A, as so appearing, is hereby further
736 amended by striking out, in line 20, the word "community" and inserting in place thereof the
737 following word:- economic.

738 SECTION 11. Section 18 3/4 of said chapter 6A, as so appearing, is hereby amended by
739 adding the following paragraph:-

(16) The secretary shall ensure that each agency and board within the executive office and every house of correction and jail provide to the commissioner of probation all information that is necessary to automate record sealing pursuant to sections 100A to 100B, inclusive, of chapter 276.

SECTION 12. Chapter 7 of the General Laws is hereby amended by inserting after section 4T the following section:-

Section 4U. Notwithstanding any general or special law to the contrary, the secretary, in consultation with the deputy commissioner of local services and the secretary of housing and livable communities, shall direct all departments, commissions, offices, boards, divisions, institutions and other agencies administering discretionary or competitive grant programs for which eligible recipients include municipalities or other public instrumentalities to establish a preference modifier for applicants or prospective recipients that have zoning or land use policies that encourage the production of housing sufficient to meet commonwealth housing goals as determined by the executive office of housing and livable communities; provided, however, that such policies may include, but shall not be limited to, as-of-right zoning capacity for multifamily housing that provides opportunity to build housing in appropriate areas, the elimination of parking minimums for residential use, the elimination of restrictive lot size requirements and wastewater and wetlands standards that do not exceed state health or environmental standards. A regional or other partnership of not less than 2 municipalities shall only be eligible for such preference modifier if the applicable requirements in all included municipalities are met. The executive office for administration and finance, in consultation with the executive office of energy and environmental affairs, the director of rural affairs and the executive office of housing and livable communities, shall issue guidelines to implement this section provided, however, that

the guidelines may vary in accordance with the regional plans pursuant to section 5 of chapter 40B; and provided further, that the executive office for administration and finance shall solicit and take into consideration feedback on the development of said guidelines at not less than 2 public hearings in geographically diverse areas of the commonwealth.

SECTION 13. Section 35FF of chapter 10 of the General Laws is hereby repealed.

SECTION 14. Section 3A of chapter 23A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of “gateway municipality” and inserting in place thereof the following definition:-

“Gateway municipality”, a municipality with: (i) a population of not less than 35,000 and not more than 250,000; (ii) a median household income below the commonwealth’s average median household income; and (iii) a rate of educational attainment of a bachelor’s degree or higher that is below the commonwealth’s average.

SECTION 15. Said section 3A of said chapter 23A, as so appearing, is hereby further amended by inserting after the definition of “retention project” the following definition:-

“Similarly situated community”, a municipality determined by the secretary of economic development to be similarly situated to the gateway municipalities; provided, however, that the municipality has either a median household income below the commonwealth’s average median household income or a rate of educational attainment of a bachelor’s degree or higher that is below the commonwealth’s average.

SECTION 16. Said chapter 23A is hereby further amended by inserting after section 3A the following section:-

Section 3A1/2. The executive office of economic development shall promulgate regulations to determine the communities that meet the definitions of gateway municipality and similarly situated community. The executive office shall publish and update an official list of gateway municipalities and similarly situated communities not more than once every 3 years. A community may petition the executive office to be deemed a gateway community; provided, however, that if the executive office accepts the petition, the executive office shall immediately update the official list of gateway municipalities.

SECTION 17. Section 5A of chapter 23B of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the first paragraph and inserting in place thereof the following paragraph:-

There shall be within the executive office a housing appeals committee which shall consist of 5 persons to be appointed by the secretary, 1 of whom shall be an officer or employee of the executive office or an agency or division within the executive office, and 2 persons to be appointed by the governor, 1 of whom shall be a current or recent member of a select board and 1 of whom shall be a current or recent member of a city council or similar governing body of a city. The members shall serve for terms of 2 years and the secretary shall designate the chairperson. No member of the committee shall receive compensation for such services but shall be reimbursed by the commonwealth for all reasonable expenses actually and necessarily incurred in the performance of their official duties. The committee shall hear all petitions for review filed under section 22 of chapter 40B and shall conduct hearings in accordance with rules and regulations established by the secretary; provided, however, that the committee may hear multiple petitions concurrently and any such petition shall be heard by at least 3 members, not

less than 2 of whom shall have been appointed by the secretary and at least 1 of whom shall have been appointed by the governor, as assigned by the chair.

SECTION 18. Said chapter 23B is hereby further amended by adding the following 2 sections:-

Section 37. (a) There is hereby established and set up on the books of the commonwealth a separate non-budgeted special revenue fund, to be known as the Engaging Neighborhoods, Organizations, Unions, Governments and Households Fund, which shall be administered by the executive office of housing and livable communities. The fund shall be credited with: (i) revenue from appropriations or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to, gifts, grants and donations and settlements received by the commonwealth that are designated to be credited to the fund; and (iii) interest earned on such revenues. Any unexpended balance in the fund at the end of a fiscal year shall remain available for expenditure in subsequent fiscal years and shall not revert to the General Fund. No expenditure shall be made from the fund that shall cause the fund to be in a deficit at any point.

(b) Monies in the fund shall be expended, without further appropriation, for the executive office to fund grants under subsection (c) and support partner organizations receiving grants with planning, operations and implementation of services. Monies in the fund may be used to provide direct or third-party administrative support to grantees, including technical assistance, capacity building and program evaluation.

(c) The executive office of housing and livable communities shall develop a grant program to support community-driven, place-based strategies and programs aimed at reducing

poverty and increasing community health, safety and well-being. The grant program shall support collaborative efforts to improve outcomes and opportunities for children and families living in the state's most distressed neighborhoods and to transform those communities by aligning housing and community development investments with access to a community-based continuum of high-quality education, services, enrichment and practices based on the best available evidence that will address needs from birth through college and career; and shall include, but not be limited to: (i) reducing concentrated poverty and expanding economic opportunity for people with low incomes; (ii) providing cradle-to-career access to high-quality education, training and care; (iii) connecting residents to jobs and in-demand occupations; (iv) enabling access to quality early education and care, affordable housing and health care, including reproductive, maternal, behavioral and mental health care; (v) providing support for vulnerable populations such as people with disabilities, justice-involved youth and adults, and families involved with the child welfare system; (vi) connecting individuals and families to appropriate benefits and support programs; and (vii) supporting students in attending and succeeding in K-12 school environments through the expansion of integrated student support services and enrichment programs. In developing and administering the grant program, the executive office may consult with individuals that have expertise as subject matter experts, providers or people with lived experience in a wide array of issues and areas that affect people in poverty.

(d) To be eligible for the grant program established under subsection (b), entities shall form place-based partnerships shall include, but shall not be limited to: (i) non-profit organizations; (ii) institutions of higher education; (iii) public schools; (iv) school districts; (v) municipalities; and (vi) community-based organizations.

850 (e) The executive office of housing and livable communities shall develop a transparent
851 and competitive process for the awarding of grants. The executive office shall prioritize
852 applicants serving communities that have experienced long-term economic distress, have
853 demonstrated a commitment to cross-sector collaboration and partnerships and show
854 demonstrated engagement with community stakeholders and people with lived experience in
855 their proposal.

856 (f) Grants shall be provided through the following tracks: (i) 1-year partnership
857 development grants, which shall establish the foundation for proposed place-based strategy; two-
858 year plan development grants, which shall use a formal partnership structure to conduct a shared
859 community needs assessment to develop comprehensive action plans; and (iii) 2-to-4-year
860 implementation grants, which shall launch approved action plans, leverage additional funding
861 streams, conduct progress monitoring and continuous quality improvement. Implementation
862 grants may be extended up to two years after the initial grant cycle provided accountability and
863 data supports grant extension.

864 (g) Annually, not later than October 1, the executive office of housing and livable
865 communities shall submit a report to the governor, the clerks of the senate and house of
866 representatives and the senate and house committees on ways and means on the administration of
867 the Engaging Neighborhoods, Organizations, Unions, Governments and Households Fund,
868 which shall include, but not be limited to: (i) grant recipients and amounts received; (ii) the
869 expenditures made from the fund; (iii) the anticipated funding obligation for the next fiscal year;
870 and (iv) summaries of funded projects. The report shall be made publicly available on the
871 executive office's website.

872 Section 38. There shall be an engaging neighborhoods, organizations, unions,
873 governments and households (ENOUGH) fund advisory committee, the function of which shall
874 be advisory to the executive office of housing and livable communities in connection with the
875 management, operation and awarding of the fund. The committee shall consist of the following
876 members: the secretary of housing and livable communities or a designee; the secretary of
877 health and human services or a designee; the secretary of education or a designee; the secretary
878 of economic development or a designee; the secretary of labor and workforce development or a
879 designee; the secretary of transportation or a designee; the commissioner of transitional
880 assistance or a designee; the president of the Massachusetts Development Finance Agency or a
881 designee; the director of rural affairs or a designee; 8 members to be appointed by the governor
882 who shall collectively have expertise as subject matter experts, providers or people with lived
883 experience in a wide array of issues and areas that affect people in poverty, including but not
884 limited to cash benefits and other income supports, tax credits and tax assistance, asset
885 development and wealth building, early education and out-of-school time, K-12 education
886 including vocational education, higher education, workforce development and skills training,
887 labor unions and apprenticeships, immigration and refugee settlement, housing and
888 homelessness, nutrition and food security, public health, maternal health and infant support, early
889 intervention, transportation, environmental justice, health care, behavioral and mental health
890 care, trauma-sensitive intervention and violence prevention, social services, child welfare, digital
891 equity, justice-involved and re-entry services, legal services, and services for special populations
892 such as children and adults with disabilities, the LGBTQIA+ community, veterans, elders, and
893 youth aging out of foster care. All members shall be appointed for a term of 5 years, may be
894 reappointed, and shall serve without compensation, but may be reimbursed from the fund for

895 ordinary and reasonable in-state travel expenses. The committee may meet as often as the
896 members may determine, but shall meet at least bi-annually, or at such other intervals as may be
897 established by the agency in order to advise the agency or such other qualified organization with
898 which the agency contracts, with respect to the fund and to make any advisory recommendations
899 with respect thereto to the agency. All grant applications recommended by the executive office
900 of housing and livable communities shall be reviewed and approved in consultation with the
901 advisory committee.

902 SECTION 19. The definition of “Cultural facility” in subsection (b) of section 42 of
903 chapter 23G of the General Laws, as appearing in the 2024 Official Edition, is hereby amended
904 by striking out the second and third sentences and inserting in place thereof the following
905 sentence:- The term cultural facility may include, but shall not be limited to, museums, historical
906 sites, zoos, aquariums, nature or science centers, theaters, concert halls, exhibition spaces,
907 classrooms and auditoriums suitable for presentation of performing or visual arts; provided,
908 however, that municipally-owned buildings, structures or sites shall have not less than 50 per
909 cent of their usable floor area or outside space dedicated to such use to qualify under this
910 definition.

911 SECTION 20. Section 5 of chapter 23I of the General Laws, as so appearing, is hereby
912 amended by striking out, in line 37, the figure “3F” and inserting in place thereof the following
913 figure:- 3C.

914 SECTION 21. Subsection (b) of said section 5 of said chapter 23I, as so appearing, is
915 hereby amended by adding the following 2 sentences:- The decision by the center to certify or
916 deny certification of a life sciences company and the decision to award or deny any incentives

pursuant to subsections (c) or (d) including, but not limited to, the amount of such award and any conditions or limitations on such authorization, shall be decisions that are at the sole discretion of the center. Such decision by the center shall be final and shall not be subject to administrative appeal or judicial review pursuant to chapter 30A or give rise to any other cause of action or legal or equitable claim or remedy.

SECTION 22. Said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out subsection (d) and inserting in place thereof the following subsection:-

(d)(1) There shall be a life sciences tax incentive program. The center, in consultation with the department, may authorize incentives, including incentives carried forward or refunded pursuant to subsections (m), (n) and (r) of section 6 of chapter 62, paragraph 17 of section 30 of chapter 63, the second time it appears, section 31M of said chapter 63, the second time it appears, paragraph 6 of subsection (f) of section 38 of said chapter 63, subsection (k) of section 38M of said chapter 63, section 38U of said chapter 63, section 38V of said chapter 63, section 38W of said chapter 63, section 38CC of said chapter 63, the second paragraph of subsection (c) of section 42B of said chapter 63 and subsection (xx) of section 6 of chapter 64H in a cumulative amount, including the current year cost of incentives allowed in previous years, that shall not exceed \$40,000,000 annually. The center may authorize incentives to a life sciences company that spans multiple years if the total amount of incentives due to be taken in any single calendar year does not exceed the applicable cap. The center shall determine the amount and type of any such incentive to authorize and the schedule on which those incentives may be claimed. The center may, in consultation with the department, limit any incentive to a specific dollar amount or time duration or in any other manner deemed appropriate by the department; provided, however, that the department shall only allocate any such incentives among commonwealth

940 certified life sciences companies pursuant to subsection (b) and shall award such tax incentives
941 pursuant to subsection (c).

942 The center shall provide an estimate to the secretary of administration and finance of the
943 tax cost of extending benefits to a proposed project before certification, as approved by the
944 commissioner of revenue, based on reasonable projections of project activities and costs. Tax
945 incentives shall not be available to a certified life sciences company unless expressly granted by
946 the secretary of administration and finance in writing.

947 (2) When authorizing incentives pursuant to subsection (d), the center shall require the
948 certified life sciences company to execute a written agreement setting forth the terms and
949 conditions on which the tax credits may be claimed. Such written agreement shall set forth the
950 company's permanent new or retained full-time employees, commitments over 1 or more years,
951 set forth a schedule on which the credits may be claimed and other such terms or conditions as
952 the center may in its discretion require. Such agreement may also, at the center's discretion, limit
953 or restrict the right of the certified life sciences company to carry unused tax credits forward to
954 subsequent tax years.

955 SECTION 23. Subsection (e) of said section 5 of said chapter 23I, as so appearing, is
956 hereby amended by striking out paragraphs (1) and (2) and inserting in place thereof the
957 following 2 paragraphs:-

958 (1) Certification granted pursuant to subsection (b) shall be valid starting with the tax
959 year in which certification is granted. Each certified life sciences company shall file an annual
960 report with the center certifying whether the company has achieved the job commitments, met
961 the specific targets established in the proposal pursuant to subclause (A) of clause (i) of

subsection (b) and other material obligations or representations set forth in the written agreement pursuant to paragraph (2) of subsection (d).

(2) The certification of a life sciences company may be revoked by the center after an investigation and determination that representations made by the certified life sciences company in its certification proposal or written agreement pursuant to paragraph (2) of subsection (d) are materially at variance with the conduct of the life sciences company after receiving certification; provided, however, that the center shall review the certified life sciences company at least annually; provided further, that the center shall have the discretion to determine whether the material variance shall result in revocation of a project certification, taking into account: (i) the conduct of the certified life sciences company subsequent to the project certification; (ii) the extent to which the material variance is the result of unforeseen conditions that are outside the control of the certified life sciences company; and (iii) other considerations as the center shall establish by policy. If center revokes certification of a life sciences company, the center shall provide its reasons for the decision in writing to the secretary of administration and finance, the commissioner of revenue and the clerks of the house of representatives and the senate, who shall forward the same to the house and senate committees on ways and means, the joint committee on revenue and the joint committee on economic development and emerging technologies. The center shall post these reasons on the internet for public access.

SECTION 24. Said subsection (e) of said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out paragraph (4) and inserting in place thereof the following 2 paragraphs:-

(4) In connection with an award of refundable jobs credits pursuant to subsection (r) of section 6 of chapter 62 or section 38CC of chapter 63, if the center finds that the certified life sciences company is in material variance with the terms of the written agreement entered into under paragraph (2) of subsection (d), the center may rescind tax credits awarded but not yet claimed and request that the department recapture tax credits already claimed. The center may provide the company with reasonable opportunity to cure the material variance and rescind or recapture tax credits in proportion to the company's compliance, as determined by the center. Tax credits shall be rescinded or recaptured by sending a written notice to the certified life sciences company and the department. Where applicable, the department shall recapture tax credits in accordance with subsection (r) of section 6 of chapter 62 or section 38CC of chapter 63.

(5) Nothing in this subsection shall limit any legal remedies available to the commonwealth against any certified life sciences company.

SECTION 25. Said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out, in lines 149 and 150, the word "independent".

SECTION 26. Section 1 of chapter 23J of the General Laws, as so appearing, is hereby amended by striking out the definition of "Fund" and inserting in place thereof the following definition:-

"Fund", the Climatetech Investment Fund established in section 15.

SECTION 27. Said section 1 of said chapter 23J, as so appearing, is hereby further amended by striking out the definition of "Trust fund."

1004 SECTION 28. Section 2 of said chapter 23J, as so appearing, is hereby amended by
1005 striking out, in lines 13 to 15, inclusive, the words “, in collaboration with the Massachusetts
1006 Renewable Energy Trust Fund established in section 4E of chapter 40J, in” and inserting in place
1007 thereof the following word:- in.

1008 SECTION 29. Subsection (e) of said section 2 of said chapter 23J, as so appearing, is
1009 hereby amended by striking out the second paragraph.

1010 SECTION 30. Section 3 of said chapter 23J, as so appearing, is hereby amended by
1011 striking out, in lines 65 and 66, the words “Massachusetts Alternative and Clean Energy
1012 Investment Trust Fund” and inserting in place thereof the following word:- fund.

1013 SECTION 31. Subsection (a) of said section 3 of said chapter 23J, as so appearing, is
1014 hereby amended by striking out paragraph (26).

1015 SECTION 32. Said subsection (a) of said section 3 of said chapter 23J, as so appearing, is
1016 hereby further amended by striking out paragraph (31).

1017 SECTION 33. Section 5 of said chapter 23J, as so appearing, is hereby amended by
1018 striking out, in lines 16 to 19, inclusive, the words “and the trust fund over the previous fiscal
1019 year, the ability of the fund to meet the requirements in section 35FF of chapter 10 and the
1020 ability of the trust fund to meet the requirements in section 9” and inserting in place thereof the
1021 following words:- over the previous fiscal year, the ability of the fund to meet the requirements
1022 in section 15.

1023 SECTION 34. Section 9 of said chapter 23J is hereby repealed.

1024 SECTION 35. Section 11 of said chapter 23J, as appearing in the 2024 Official Edition, is
1025 hereby amended by striking out, in lines 2 and 3, the words “the fund and the trust fund” and
1026 inserting in place thereof the following words:- any trust funds administered by the center under
1027 this chapter.

1028 SECTION 36. Section 15 of said chapter 23J, as so appearing, is hereby amended by
1029 striking out, in line 6, the words “and (iii)” and inserting in place thereof the following words:-
1030 (iii) all amounts collected under section 20 of chapter 25; and (iv).

1031 SECTION 37. Subsection (b) of section 16 of said chapter 23J, as so appearing, is hereby
1032 amended by adding the following 2 sentences:- The decision by the center to certify or deny
1033 certification of a climatetech company and the decision to award or deny any incentives pursuant
1034 to subsection (d) including, but not limited to, the amount of such award and any conditions or
1035 limitations on such authorization shall be decisions that are in the sole discretion of the center.
1036 Such decision by the center shall be final and shall not be subject to administrative appeal or
1037 judicial review under chapter 30A and shall not give rise to any other cause of action or legal or
1038 equitable claim or remedy.

1039 SECTION 38. Subsection (c) of said section 16 of said chapter 23J, as so appearing, is
1040 hereby amended by striking out paragraph (1) and inserting in place thereof the following
1041 paragraph:-

1042 (1) Certification granted pursuant to subsection (b) shall be valid starting with the tax
1043 year in which certification is granted. Each certified climatetech company shall file an annual
1044 report with the center certifying whether the company has achieved the job commitments, met
1045 the specific targets established in the proposal pursuant to clause (i) of subsection (b) and, if not,

1046 detailing its progress towards those targets, and other material obligations or representations set
1047 forth in the written agreement pursuant to paragraph (3) of subsection (d).

1048 SECTION 39. Said section 16 of said chapter 23J, as so appearing, is hereby further
1049 amended by inserting after the word “proposal”, in line 56, the following words:- or written
1050 agreement pursuant to paragraph (3) of subsection (d).

1051 SECTION 40. Subsection (c) of said section 16 of said chapter 23J, as so appearing, is
1052 hereby amended by striking out paragraph (3) and inserting in place thereof the following 2
1053 paragraphs:-

1054 (3) In connection with an award of refundable jobs credits pursuant to subsection (hh) of
1055 section 6 of chapter 62 or section 38TT of chapter 63, if the center finds the certified climatetech
1056 company is in material noncompliance with the terms of the written agreement entered into
1057 under paragraph (3) of subsection (d) then the center may rescind tax credits awarded but not yet
1058 claimed, and request that the department recapture tax credits already claimed; provided,
1059 however, that the center may provide the certified climatetech company with reasonable
1060 opportunity to cure the material noncompliance and to rescind or recapture tax credits in
1061 proportion to the certified climatetech company’s compliance as determined by the center. Tax
1062 credits shall be rescinded or recaptured by sending a written notice to the certified climatetech
1063 company and the department. Where applicable, the department shall recapture tax credits in
1064 accordance with said subsection (hh) of said section 6 of said chapter 62 or said section 38TT of
1065 said chapter 63.

1066 (4) Nothing in this subsection shall limit any legal remedies available to the
1067 commonwealth against a certified climatetech company.

SECTION 41. Subsection (d) of said section 16 of said chapter 23J, as so appearing, is hereby amended by striking out paragraph (1) and inserting in place thereof the following paragraph:-

(1) The center, in consultation with the department of revenue, may authorize incentives, including those established in subsections (gg) and (hh) of section 6 of chapter 62, subsection (k) of section 38M of chapter 63, section 38RR of said chapter 63, section 38SS of said chapter 63, section 38TT of said chapter 63, the second paragraph of subsection (c) of section 42B of said chapter 63 and subsection (yy) of section 6 of chapter 64H, that shall not exceed \$30,000,000 annually. The center may authorize incentives to a certified climatetech company that spans multiple years if the total amount of incentives due to be taken in any single calendar year does not exceed the applicable cap; provided, however, that the center shall determine the amount and type of any such incentive authorized and the schedule on which such incentives may be claimed. The center, in consultation with the department of revenue, may limit the incentives to a specific dollar amount, for a specific period of time or in any other manner deemed appropriate by the department of revenue; provided, however, that the department of revenue shall only allocate the incentives among certified climatetech companies.

SECTION 42. Said subsection (d) of said section 16 of said chapter 23J, as so appearing, is hereby further amended by adding the following paragraph:-

(3) When authorizing incentives pursuant to this subsection, the center shall require the certified climatetech company to execute a written agreement setting forth the terms and conditions on which the tax credits may be claimed. Such written agreement shall set forth the certified climatetech company's permanent new or retained full time employees, commitments

over 1 or more years, set forth a schedule on which the credits may be claimed and other such terms or conditions as the center may in its discretion require; provided, however, that such agreement may, at the center's discretion, limit or restrict the right of the certified climatetech company to carry unused tax credits forward to subsequent tax years.

SECTION 43. Said chapter 23J is hereby further amended by adding the following section:-

Section 17. (a) Unless otherwise provided, the words used in this section shall have the meanings ascribed to them in section 1 of chapter 164.

(b) For purposes of this section, "gridtech solution" shall mean novel technologies, novel applications of technologies and other innovative approaches including, but not limited to, novel retail rate designs, distributed energy resource wiring configurations or customer energy solutions.

(c) There shall be a gridtech deployment advisory board, which shall be tasked with: (i) exploring opportunities for public-private partnerships to test or deploy at scale gridtech; (ii) facilitating connections between gridtech companies and relevant distribution companies; and (iii) identifying and proposing solutions to barriers in the existing practices of an electric company or the department of public utilities; provided, however, that such solutions are permissible under state law. The advisory board shall prioritize, where appropriate, the deployment of gridtech that reduce electric distribution and transmission grid costs and support achievement of the statewide greenhouse gas emissions limits and sublimits under chapter 21N.

(d) The board established pursuant to subsection (c) shall be comprised of the chief executive officer of the Massachusetts clean energy technology center, or their designee, the

1112 commissioner of energy resources, or their designee, the chair of public utilities, or their
1113 designee, the secretary of the executive office of economic development, or their designee, 1 of
1114 whom shall be a representative from the body established under chapter 40G, 1 of whom shall be
1115 a representative from each electric company 1 of whom shall be a representative from the
1116 Massachusetts Municipal Wholesale Electric Company, 1 of whom shall be a representative
1117 from a municipal electric distribution company or an organization that represents municipal
1118 electric distribution companies and 3 of whom representatives from organizations involved or
1119 familiar with the development, financing or implementation of gridtech solutions. The board
1120 shall be co-chaired by the chief executive officer of the Massachusetts clean energy technology
1121 center, or their designee, and a member of an electric company serving on the advisory board.
1122 All representatives shall, unless otherwise provided, be appointed by the chief executive officer
1123 of the Massachusetts clean energy technology center.

1124 (e) The electric companies shall file for review and approval with the department of
1125 public utilities any process approved by the board to review, on an expedited basis, requests for
1126 limited waivers of prior department orders that will alleviate gridtech deployment barriers.

1127 (f) The department shall approve any process filed under subsection (e) if it determines
1128 that such process is in the public interest, including but not limited to reducing electric grid costs
1129 and supporting achievement of the statewide greenhouse gas emissions limits and sublimits
1130 under chapter 21N.

1131 (g) Annually, the board shall identify barriers to the deployment of discrete gridtech
1132 technologies and applications in existing utility practices and orders issued by the department of
1133 public utilities and potential solutions to those barriers and, as applicable, limited waivers of

1134 department orders to alleviate the identified barriers. The electric companies shall seek approval
1135 from the department of any limited waivers identified and approved by the board so long as they
1136 are consistent with the process approved by the department under subsection (f).

1137 (h) Nothing in this section shall preclude members of the board from testing, funding or
1138 scaling gridtech solutions outside of the processes outlined in this section.

1139 SECTION 44. Section 20 of chapter 25 of the General Laws, as appearing in the 2024
1140 Official Edition, is hereby amended by striking out subsection (a) and inserting in place thereof
1141 the following subsection:-

1142 (a) The department shall require a mandatory charge of 0.5 mill per kilowatt-hour for all
1143 electricity consumers, except those served by a municipal lighting plant which does not supply
1144 generation service outside its own service territory or does not open its service territory to
1145 competition at the retail level. All revenues generated by the mandatory charge shall be
1146 deposited into and expended in a manner consistent with the requirements of the Climatetech
1147 Investment Fund, established under section 15 of chapter 23J.

1148 SECTION 45. Said section 20 of said chapter 25, as so appearing, is hereby further
1149 amended by striking out, in line 22, the words “Massachusetts Renewable Energy Trust” and
1150 inserting in place thereof the following words:- Climatetech Investment Fund.

1151 SECTION 46. Said section 20 of said chapter 25, as so appearing, is hereby further
1152 amended by inserting after the word “from”, in line 24, the following words:- revenues from
1153 mandatory charges held by.

1154 SECTION 47. Said section 20 of said chapter 25, as so appearing, is hereby further
1155 amended by striking out, in line 28, the word “collaborative” and inserting in place thereof the
1156 following words:- Massachusetts clean energy technology center.

1157 SECTION 48. Section 2EEEEEE of chapter 29 of the General Laws, as so appearing, is
1158 hereby amended by striking out, in line 73, the words “and (iii)” and inserting in place thereof
1159 the following words:- (iii) protecting the commonwealth from the elimination, reduction or
1160 material delay of federal funds upon a determination by the secretary that the elimination,
1161 reduction or material delay of such federal funds would materially impact public health, safety or
1162 welfare or the fiscal stability of the commonwealth or any of its political subdivisions, in
1163 accordance with guidance issued by the executive office for administration and finance; (iv)
1164 improving the financial stability of hospitals and community health centers in the commonwealth
1165 that provide health care to low-income, uninsured or underinsured residents, including by
1166 transferring any amounts in the fund to the Health Safety Net Trust Fund established in section
1167 66 of chapter 118E, in accordance with guidance issued by the executive office for
1168 administration and finance in consultation with the executive office of health and human
1169 services; (v) funding pay-as-you-go capital for any capital project or program up to the amount
1170 otherwise authorized by the general court for such project or program in chapter 238 of the acts
1171 of 2024, in accordance with guidance issued by the executive office for administration and
1172 finance; and (vi).

1173 SECTION 49. Said chapter 29 is hereby further amended by inserting after section
1174 2NNNNNN the following section:-

1175 Section 2000000. (a) There shall be established and set up on the books of the
1176 commonwealth a Crumbling Concrete Assistance Fund which shall be administered by the
1177 secretary of housing and livable communities. Amounts credited to the fund shall be expended,
1178 without further appropriation, to: (i) provide financial assistance to owners of residential real
1179 property for the repair or replacement of concrete foundations of such residential real property
1180 that have deteriorated due to the presence of pyrite or pyrrhotite; (ii) minimize negative fiscal
1181 impacts on municipalities in which such property is located; and (iii) reimburse owners of
1182 residential real property that present satisfactory evidence, as determined by the secretary, that
1183 said owners have paid for and replaced their concrete foundation that deteriorated due to the
1184 presence of pyrite or pyrrhotite prior to the establishment of the fund; provided, however, that
1185 the reimbursement shall not exceed the funding the owner would have received had they applied
1186 for financial assistance through the fund. The secretary shall seek to maximize available federal
1187 reimbursements for money spent from the fund.

1188 The fund shall be credited with: (i) appropriations or other money authorized by the
1189 general court and specifically designated to be credited to the fund; (ii) funds from public and
1190 private sources, including, but not limited to, gifts, grants, donations and settlements received by
1191 the commonwealth that are specifically designated to be credited to the fund; (iii) federal funds
1192 received under subsection (b); and (iv) interest earned on the assets of the fund. Any balance in
1193 the fund at the close of a fiscal year shall be available for expenditure in subsequent fiscal years
1194 and shall not be transferred to any other fund or revert to the General Fund.

1195 (b) The secretary of housing and livable communities may apply for, receive and deposit
1196 into the fund any federal funds, including, but not limited to, funds made available by the United
1197 States Department of Housing and Urban Development Section 108 Loan Guarantee program.

(c) Amounts issued from the fund to impacted homeowners for the repair or replacement of concrete foundations that have deteriorated due to the presence of pyrite or pyrrhotite shall be exempt from taxation under chapter 62.

(d) Annually, not later than June 1, the secretary of housing and livable communities shall report on the activities of the fund from the previous calendar year to the clerks of the senate and house of representatives, the senate and house committees on ways and means, the joint committee on environment and natural resources and the joint committee on housing.

(e) The secretary of housing and livable communities shall promulgate regulations or issue other guidance to set rules for the expenditure of the funds under this section.

SECTION 50. Chapter 30A of the General Laws is hereby amended by inserting after section 20 the following section:-

Section 20A. (a) For the purposes of this section, “adequate, alternative means of public access” shall mean measures that provide transparency and permit timely and effective public access to a hybrid public meeting of a public body, including, but not limited to, providing public access through telephone, internet or satellite enabled audio or video conferencing or any other technology that enables the public to clearly follow the proceedings of the meeting while the proceedings are occurring.

(b) A public body may allow remote participation by any member for any meeting of the public body; provided, however, that: (i) if any member participates remotely, all votes taken shall be recorded as roll call votes; (ii) in a meeting conducted with a quorum of members participating both in person and remotely, voice votes may be taken upon a motion of the chair and a 2/3 roll call vote in the affirmative of the members present in the meeting; (iii) all members

1220 of a public body participating in the meeting, whether in person or remotely, shall be clearly
1221 audible; and (iv) for any meeting conducted with remote participation, the public body shall
1222 ensure that any party entitled to or required to appear before it may participate remotely.

1223 (c) Members participating remotely in a meeting may vote and shall be considered
1224 present and in attendance for all purposes, including, but not limited to, for purposes of
1225 determining a quorum and for the purposes of section 23D of chapter 39.

1226 (d) For any meeting conducted with remote participation, the public body shall make
1227 provisions to ensure adequate, alternative means of public access to the deliberations of the
1228 public body for interested members of the public; provided, however, that documents used for
1229 any such meeting shall be made available to the public before or at the time of the meeting;
1230 provided further, that for any such meeting where real-time participation by members of the
1231 public is permitted by any general or special law, charter, ordinance or by-law, adequate,
1232 alternative means of public access shall be provided to permit such remote participation; and
1233 provided, further, that a public body shall offer its selected adequate, alternative means of public
1234 access to meetings with remote participation without subscription, toll or similar charge to the
1235 public.

1236 (e) The chief executive officer of a municipality shall develop, and the executive body of
1237 the municipality shall adopt standards and guidelines for remote participation prior to any
1238 meeting with remote participation held pursuant to this section; provided, however, that public
1239 bodies that are not a department or subdivision of a city or town shall adopt standards and
1240 guidelines for remote participation prior to any meeting with remote participation held pursuant
1241 to this section.

1242 SECTION 51. Section 23 of said chapter 30A, as appearing in the 2024 Official Edition,
1243 is hereby amended by striking out subsection (b) and inserting in place thereof the following
1244 subsection:-

1245 (b)(1) An individual may file a complaint with a public body alleging violation of the
1246 open meeting law; provided, however, that the complaint:

1247 (i) reasonably describes the circumstances constituting the alleged violation;

1248 (ii) is filed with the public body within 20 business days of the date of the alleged
1249 violation;

1250 (iii) includes the postal mail and, where available, the electronic contact information of
1251 the individual filing the complaint; and

1252 (iv) is signed by the individual filing the complaint either in ink or in compliance with
1253 chapter 110G.

1254 (2) Complaints shall be deemed received: (i) if filed by electronic mail, on the business
1255 day of submission if submitted by 4:00 p.m. or otherwise on the next business day; or (ii) 3 days
1256 after mailing via first class postal mail.

1257 (3) A public body must meet to review and respond to a complaint not later than 14
1258 business days after receipt thereof, confirm receipt of the complaint and identify any remedial
1259 actions taken or intended to be taken by the public body in response to the complaint; provided,
1260 however, that if a complainant files more than 12 complaints with the same public body within
1261 the same calendar year, or a complaint is otherwise unduly burdensome, the public body may file
1262 a petition with the attorney general seeking relief from the obligation to respond to the

1263 complaint. In determining whether to grant any such requested order requiring the public body to
1264 respond to the complaint, the attorney general may consider: (i) the previous record of
1265 compliance or non-compliance by the public body; (ii) the burden placed on the public body in
1266 responding to the complaint; (iii) any evidence of harassment or intimidation on the part of the
1267 complaints; (iv) the facts of the alleged violation; and (v) the number of complaints filed against
1268 the public body or other public bodies within the municipality. The attorney general may
1269 authorize an extension of time to the public body for the purpose of taking remedial action upon
1270 the written request showing good cause by the public body to grant the extension.

1271 (4) The public body shall, within 14 business days of receipt of a complaint, unless
1272 granted an extension of time pursuant to paragraph (3), send a copy of the complaint to the
1273 attorney general and notify the attorney general of any remedial action.

1274 (5) Any remedial action taken pursuant to paragraph (3) shall not be admissible as
1275 evidence against the public body in any subsequent administrative or judicial proceeding related
1276 to the alleged violation.

1277 SECTION 52. Said section 23 of said chapter 30A, as so appearing, is hereby further
1278 amended by inserting after the word “a”, in line 19, the following words:- petition for review of
1279 an open meeting law.

1280 SECTION 53. Chapter 39 of the General Laws is hereby amended by inserting after
1281 section 10A the following section:-

1282 Section 10B. (a) In a town having a representative town meeting form of government, the
1283 town moderator may request that the select board authorize remote participation for a town
1284 meeting. Such a request by the moderator to the select board shall be in writing and shall include,

but not be limited to: (i) the moderator's request to incorporate remote participation in 1 or more upcoming town meetings; (ii) the technology platform the moderator has identified for remote participation in town meeting; (iii) confirmation that the moderator has consulted with the local disability commission or coordinator for compliance with the federal Americans with Disabilities Act; and (iv) certification that: (A) the moderator has tested the remote participation method; and (B) the remote participation method satisfactorily enables the town meeting to be conducted in substantially the same manner as if the meeting occurred in-person and in accordance with the operational and functional requirements set forth in this section.

(b)(1) A decision to authorize remote participation for a town meeting shall be made by a select board not later than 10 business days prior to the town meeting or not later than 10 business days following receipt of a written request by the moderator, whichever is earlier.

(2) Not later than 3 business days following a decision to authorize remote participation for a town meeting, the select board shall issue adequate notice, pursuant to this paragraph, of a remote participation option to all town meeting members, known interested parties with business before the town meeting, and the public, consistent with applicable local rules and practices governing such notice; provided, however, that the notice shall include, but not be limited to, the date and time of the meeting and information necessary to request remote participation access, consistent with subsection (d); and provided further, that the notice shall be accompanied by the written request of the moderator submitted under subsection (a) and filed and posted in accordance with subsection (b) of section 10A of chapter 39.

(c) A remote participation method used by a town meeting for remote participation under this section shall: (i) strictly limit voting to only those confirmed by the town clerk to be eligible

1307 to vote at that meeting; provided, however, that each person deemed eligible to vote shall be
1308 provided with appropriate physical or technological participation credentials designed to allow
1309 remote participation of all eligible voters, establish regularity in administration and minimize
1310 inaccurate results or fraud; and (ii) enable:

1311 (A) the moderator, town meeting members, town officials and any other interested parties
1312 to identify and hear the moderator and each speaker recognized by the moderator, whether
1313 participating remotely or in person;

1314 (B) the moderator to determine whether a quorum is present;

1315 (C) a town meeting member, town official or other individual authorized to participate in
1316 the meeting to request recognition by the moderator without prior authorization, consistent with
1317 applicable town meeting rules, bylaws, ordinances, charter or special acts; provided, however,
1318 that to the extent technologically feasible, the request shall be visible or audible to the town
1319 meeting members and the public in real time and upon review of the recording of the town
1320 meeting proceedings, consistent with clause (H);

1321 (D) the moderator to determine when a town meeting member or other individual wishes
1322 to be recognized to speak, make a motion, raise a point of order or object to a request for
1323 unanimous consent, whether participating remotely or in person;

1324 (E) the moderator to recognize a town meeting member, town official or other individual
1325 to speak and to enable that person to speak, whether participating remotely or in person;

1326 (F) the moderator to conduct a recorded roll call vote; provided, however, that all roll call
1327 votes shall be kept with the minutes of the meeting and preserved in accordance with clause (H);

(G) any interested members of the public to access the meeting remotely for purposes of witnessing the deliberations and actions taken at the town meeting, consistent with applicable town meeting rules, bylaws, ordinances, charter or special acts; and

(H) the town meeting to be recorded; provided, however, that the recording shall be preserved and made publicly available on the town's website for not less than 90 days after the dissolution of the town meeting and until the official minutes of the meeting have been prepared by the town clerk.

(d) An individual seeking to participate remotely in a town meeting shall submit a remote participation request to the town clerk not less than 48 hours in advance of the meeting; provided, however, that upon receipt of the request and verification of the requester's eligibility to participate in the town meeting, in consultation with the town moderator as applicable, the town clerk shall provide appropriate remote participation credentials, instructions and materials.

SECTION 54. Subdivision (1) of section 4 of chapter 32 of the General Laws, as so appearing, is hereby amended by inserting after paragraph (g) the following paragraph:

(g 1/4) Any member in service of the teachers' retirement system or any teacher who is a member of the Boston retirement system who: (i) reduced the member's employment as a teacher from full-time service to part-time service for the primary purpose of child-rearing; (ii) subsequently returned to full-time employment as a teacher; and (iii) has completed not less than 20 years of creditable service prior to such purchase, may purchase full-time creditable service for the period or periods of such part-time service; provided, however, that: (1) not more than 5 years of full-time service may be purchased for such period or periods of part-time service; (2) the board may require such documentation as it deems necessary to establish eligibility under

this paragraph, including, but not limited to, birth certificates, adoption records or other evidence demonstrating that the reduction in employment was for the primary purpose of child-rearing; and (3) the purchase of full-time creditable service under this paragraph shall require payment by the member into the annuity savings fund of the relevant retirement system, in an amount equal to the difference between the regular deductions actually withheld from the member's regular compensation over the period of the member's part-time service and the amount that would have been withheld as regular deductions from the member's regular compensation for full-time employment over such period, plus buyback interest thereon, in 1 sum or in installments, upon such terms and conditions as the relevant retirement system may require.

SECTION 55. Chapter 33 of the General Laws is hereby amended by adding the following section:-

Section 140. There shall be a Massachusetts National Guard museum in the city of Salem, the birthplace of the national guard pursuant to section 60 of chapter 2.

SECTION 56. Section 24 of chapter 37 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 14, the figure "18" and inserting in place thereof the following words:- criminal majority.

SECTION 57. Section 8B of chapter 40 of the General Laws, as so appearing, is hereby amended by striking out the first, second and third sentences and inserting in place thereof the following 3 sentences:- A city, by ordinance, or a town, by by-law, may establish a council on aging for the purpose of coordinating or carrying out programs and delivering services designed to meet the needs of older adults, in coordination with programs of the executive office of aging and independence. A council established pursuant to this section shall submit an annual report to

1372 the city or town and shall send a copy thereof to the executive office of aging and independence.
1373 The executive office shall from time-to-time review and evaluate such reports and make
1374 recommendations as to any required or necessary changes in the local programs included in the
1375 reports. A council established pursuant to this section may appoint such staff and other
1376 employees as it may require; provided, however, that if the council is an advisory council, the
1377 director may appoint staff and other employees as it may require, consistent with municipal
1378 needs.

1379 SECTION 58. Section 8C of said chapter 40, as so appearing, is hereby amended by
1380 inserting after the word “thereof”, in line 72, the following words:- ; provided, however, that the
1381 commission shall retain a record of any such rules and regulations and any other applicable
1382 ordinance or by-law, subject to the provisions of section 7 of chapter 4, which denotes whether
1383 each such rule, regulation, ordinance or by-law is more restrictive than the requirements of
1384 section 40 of chapter 131 and any accompanying regulations promulgated by the department of
1385 environmental protection.

1386 SECTION 59. Section 21D of said chapter 40, as so appearing, is hereby amended by
1387 striking out, in line 44, the word “mailing” and inserting in place thereof the following word:-
1388 paying.

1389 SECTION 60. The fifth paragraph of said section 21D of said chapter 40, as so
1390 appearing, is hereby amended by inserting after the second sentence the following sentence:- A
1391 city or town may use an online payment mechanism or other electronic payment system or
1392 service as an alternative to payment by mail.

1393 SECTION 61. Section 54A of said chapter 40, as so appearing, is hereby amended by
1394 inserting after the word “timeframes”, in line 8, the following words:- in which the department
1395 is required to respond.

1396 SECTION 62. The first paragraph of said section 54A of said chapter 40, as so appearing,
1397 is hereby amended by inserting after the second sentence the following sentence:- “Said process
1398 shall allow a city, town or person to file such application for consent at any time up to 2 years
1399 prior to the submittal of an application for a building permit and no consent under this section
1400 shall be required for a permit to build a structure on a portion of land for which a previous
1401 consent or determination of inapplicability was previously issued.

1402 SECTION 63. Section 1A of chapter 40A of the General Laws, as so appearing, is hereby
1403 amended by inserting after the definition of “As of right” the following definition:-

1404 “Bulk and height of structures”, the articulation and roof lines of structures; provided,
1405 however, that performance standards governing bulk and height of structures may not be more
1406 restrictive than the dimensional requirements set forth by ordinance or by-law, nor require
1407 specific building materials; provided, however, that the word “articulation”, as used herein,
1408 refers to strategies to address building massing including, but not limited to, wall offsets, height
1409 variation, wall setbacks, accent lines, stepbacks or such other industry standard types of
1410 articulation as may be proposed by the petitioner.

1411 SECTION 64. Said section 1A of said chapter 40A, as so appearing, is hereby further
1412 amended by inserting after the definition of “Permit granting authority” the following definition:-

1413 “Site plan review”, the review and approval process under a municipality’s zoning
1414 ordinance or by-law that establishes criteria for the layout, safety and impacts of a proposed use

or development, including whether a proposed use of land or structures is in compliance with reasonable performance standards as defined in section 7A; provided, however, that “site plan review”, and the performance standards applicable thereto, in connection with any protected use pursuant to section 3 or any other section of this chapter, shall be limited to the extent required by the provisions of such section.

SECTION 65. Section 3 of said chapter 40A, as so appearing, is hereby amended by striking out, in lines 141 and 156, the words “, in a single-family residential zoning district”.

SECTION 66. Said section 3 of said chapter 40A, as so appearing, is hereby further amended by adding the following paragraph:-

No zoning ordinance or by-law shall prohibit, unreasonably restrict or require a special permit or other discretionary zoning approval for the use of land or structures for a single duplex, or the rental thereof, on a lot zoned for residential use upon which a single-family dwelling is permitted, lawfully existing or entitled to protection under section 6, including a pre-existing nonconforming lot; provided, however, that the use of land or structures for duplexes may be subject to design guidelines and may be subject to reasonable regulations, including, but not limited to, 310 CMR 15.000 et seq., if applicable, site plan review and regulations concerning dimensional setbacks and the bulk and height of structures, and may be subject to restrictions and prohibitions on the operation of short-term rentals pursuant to section 14 of chapter 64G and other applicable laws; provided further, that the use of land or structures for a duplex under this paragraph shall not require owner occupancy of either residential dwelling unit; provided further, that regulations concerning the height of a duplex do not limit height to less than 3 stories; provided further, that a local regulation, ordinance or by-law shall not be more restrictive of

1437 duplexes than of single-family dwellings and shall not, individually or cumulatively, render the
1438 development of a duplex physically or financially infeasible; and provided further, that a local
1439 regulation issued by a local board, department, commission or other similar entity that is more
1440 restrictive than state minimum requirements shall be presumed unreasonable unless it addresses a
1441 legitimate municipal interest that cannot be addressed by less restrictive means. For the purposes
1442 of this paragraph, “duplex” shall mean a building with 2 attached residential dwelling units,
1443 neither of which is an accessory dwelling unit. The executive office of housing and livable
1444 communities may issue guidelines or promulgate regulations to administer this paragraph.

1445 SECTION 67. Said chapter 40A is hereby further amended by inserting after section 3B
1446 the following section:-

1447 Section 3C. (a) As used in this section, the following words shall have the following
1448 meanings unless the context clearly requires otherwise:

1449 “Adaptive reuse”, the conversion of an existing structure from the use for which it was
1450 constructed to multi-family housing or mixed-use development by maintaining the elements of
1451 the structure and adapting such elements to the new use.

1452 “Board of appeals”, a municipal zoning board of appeals established pursuant to section
1453 12.

1454 “Bus station”, a location serving as a point of embarkation for any bus operated by a
1455 transit authority, including the Massachusetts Bay Transportation Authority Silver Line.

1456 “Commercial conversion”, the use of land or structures for the creation and operation of
1457 any of the following: (i) adaptive reuse; (ii) new construction of multi-family housing; and (iii)
1458 new construction of mixed-use development.

1459 “Commercial use”, the use of land or structures for non-residential uses including, but not
1460 limited to offices, retail, dining establishments and other similar uses as authorized by the
1461 executive office in consultation with the executive office of economic development.

1462 “Commercially-zoned lot”, a lot where zoning allows commercial use as-of-right or by
1463 special permit.

1464 “Commuter rail station”, any commuter rail station operated by a transit authority with
1465 year-round service with trains departing at regular time intervals, rather than intermittent,
1466 seasonal or event-based service.

1467 “Executive office”, the executive office of housing and livable communities.

1468 “Ferry terminal”, the location where passengers embark and disembark from a ferry
1469 service with year-round service with ferries departing at regular time intervals, rather than
1470 intermittent, seasonal or event-based service.

1471 “Financially infeasible”, a condition or requirement imposed by the board of appeals that
1472 adds unreasonable costs or unreasonably diminishes the economic feasibility of a commercial
1473 conversion.

1474 “Local board”, any local board or official, including, but not limited to, any board of
1475 survey, board of health, board of subdivision control appeals, planning board, conservation
1476 commission, historical commission, water, sewer or other commission or district, fire, police,

1477 traffic or other department, building inspector or similar official or board, city council or
1478 selectboard, regardless of their geographical jurisdiction or their source of authority, including
1479 boards established pursuant to any special law or general law, if they perform functions usually
1480 performed by locally created boards.

1481 “Local contribution”, an incentive provided by a city or town for commercial conversion
1482 on a commercially-zoned lot under subsection (c).

1483 “Subway station”, any of the stops along the rapid transit system of a transit authority,
1484 including the red line, green line, orange line or blue line of the Massachusetts Bay
1485 Transportation Authority and any extensions or additions to such lines.

1486 “Transit authority”, the Massachusetts Bay Transportation Authority established in
1487 section 2 of chapter 161A or any other local or regional transit authority established pursuant to
1488 section 3 of chapter 161B or section 14 of said chapter 161B.

1489 “Transit station”, a subway station, commuter rail station, ferry terminal or bus station.

1490 (b)(1) A city or town subject to this chapter may, pursuant to section 5, amend zoning to
1491 allow commercial conversion as of right on every commercially-zoned lot; provided, however,
1492 that a city or town that adopts as of right zoning under this section shall provide not less than 1
1493 adaptive reuse incentive pursuant to subsection (c); and provided further, that as of right zoning
1494 established pursuant to this section shall include, but not be limited to, for adaptive reuse,
1495 allowing: (i) existing building setbacks to remain and be considered lawfully nonconforming
1496 pursuant to section 6; provided, however, that a municipality may prohibit any additional
1497 encroachments into any nonconforming setback, unless otherwise required pursuant to clause (ii)
1498 or permitted by zoning; (ii) such development to exceed the existing footprint of the building to

1499 accommodate upgrades related to building code, fire code and utility requirements; and (iii) such
1500 development to exceed the maximum height of the existing zoning district if the structure in
1501 existence prior to the adaptive reuse exceeds the maximum height of the existing zoning district.
1502 Adaptive reuse for multi-family housing, new multi-family housing and new-construction of
1503 mixed-use developments shall be exempt from residential parking requirements that exceed 1
1504 parking space per residential dwelling unit; provided, however, that such commercial conversion
1505 projects on lots that are partially or entirely located within a 0.5 mile radius of a transit station
1506 shall be exempt from any residential parking requirements.

1507 A city or town may: (i) require that adequate infrastructure, including roads, water and
1508 sewage systems, shall be available to support commercial conversion; (ii) restrict development
1509 on lots where industrial and manufacturing uses are permitted and where such uses have a
1510 substantial and demonstrable likelihood of resulting in impacts that are incompatible with
1511 residential use, such as air, noise or odor; (iii) impose affordable housing requirements on
1512 commercial conversion through an inclusionary zoning ordinance or by-law to the extent that
1513 such affordable housing requirements require not more than 10 per cent of the residential units
1514 within a commercial conversion to be subject to such affordable housing requirements and that
1515 such affordable housing requirements do not limit eligibility to households with income of not
1516 more than 80 per cent area median income; provided, however, that the executive office, in its
1517 discretion, may approve a greater percentage of affordable units or greater affordability
1518 requirements for some or all of the affordable units upon request by a city or town as to an
1519 individual project in a form as may be designated by the executive office.

1520 Notwithstanding any special or general law, rule or regulation to the contrary, an adaptive
1521 reuse commercial conversion under this section shall comply with the base energy code of the

state building code; provided, however, that a municipality that has adopted the specialized stretch energy code pursuant to section 6 of chapter 25A may require any such adaptive reuse commercial conversion project to comply with the stretch energy code or the municipal opt-in specialized stretch energy code.

(2) Notwithstanding sections 5, 8 and 9, a city or town that has adopted zoning pursuant to paragraph (1) may establish a streamlined process for an applicant seeking commercial conversion of a commercially-zoned lot to submit a single application for approval of a commercial conversion to the board of appeals in lieu of separate applications to the applicable local boards; provided, however, that such process shall include, but not be limited to:

(i) notification by the board of appeals to each local board, as applicable, of the filing of an application under this paragraph by sending a copy thereof to such local boards for their recommendations on an application; provided, however, that within 30 days of receipt of the application, the board of appeals shall hold a public hearing in conformance with section 11; and

(ii) the ability of the board of appeals to request representatives of local boards to attend the hearing on an application.

Notwithstanding section 7, the board of appeals shall have the same power to issue permits or approvals as any local board or official authorized to act with respect to such application, including, but not limited to, the power to attach to said permit or approval conditions and requirements that are not financially infeasible. The board of appeals, in making a decision on an application, shall take into consideration the recommendations of the local boards and the testimony of any consultants, if applicable. The board of appeals shall render a decision within 60 days of receipt of an application; provided, however, that if a decision is not rendered

1544 within such time. unless the time has been extended by mutual agreement between the board of
1545 appeals and the applicant, the application shall be deemed to have been allowed and the permit
1546 or approval shall issue.

1547 (c) A city or town that adopts zoning pursuant to this section may provide any of the
1548 following local contributions: (i) a tax increment exemption for adaptive reuse pursuant to
1549 section 5P of chapter 59; (ii) a preference for commercial conversion projects for assistance
1550 under a municipal affordable housing trust fund established pursuant to section 55C of chapter
1551 44; (iv) a streamlined approval process pursuant to subparagraph (2) of subsection (b); or (v) any
1552 other local contributions as allowed by the executive office.

1553 (d) The executive office may establish additional incentives for cities and towns that
1554 adopt zoning and a local contribution pursuant to this section. Such incentives for cities and
1555 towns may include, but shall not be limited to, a preference for financial assistance pursuant to
1556 section 271/2 of chapter 23B, a preference for tax credits authorized pursuant to subsection (ee)
1557 of section 6 of chapter 62 and section 38OO of chapter 63 and other incentives identified by the
1558 executive office in consultation with the executive office of economic development and the
1559 executive office for administration and finance.

1560 (e) The executive office may, in consultation with the executive office of economic
1561 development, promulgate regulations for the implementation and administration of this section.

1562 (f) Any zoning adopted pursuant to paragraph (1) of subsection (b) may be repealed in
1563 accordance with section 5.

1564 SECTION 68. Section 5 of said chapter 40A, as appearing in the 2024 Official Edition, is
1565 hereby amended by inserting after the word “appeals”, in line 6, the following words:- , a mayor.

1566 SECTION 69. Said section 5 of said chapter 40A, as so appearing, is hereby further
1567 amended by striking out, in line 92, the words “or (c) open-space residential development” and
1568 inserting in place thereof the following words:- (c) open-space residential development; or (d)
1569 commercial conversion pursuant to section 3C.

1570 SECTION 70. Section 6 of said chapter 40A, as so appearing, is hereby amended by
1571 inserting after the word “to”, in line 13, the following words:- a structure used for commercial
1572 conversion pursuant to section 3C or.

1573 SECTION 71. Said section 6 of said chapter 40A, as so appearing, is hereby further
1574 amended by striking out, in lines 33 to 38, inclusive, the words “or site plan approval pursuant to
1575 the local ordinance or by-law shall conform to any subsequent amendment of the zoning
1576 ordinance or by-law or of any other local land use regulations unless the use or construction is
1577 commenced within a period of 3 years after the issuance of the special permit or site plan
1578 approval” and inserting in place thereof the following words:- , site plan approval pursuant to the
1579 local ordinance or by-law or a permit for commercial conversion issued pursuant to section 3C
1580 shall conform to any subsequent amendment of the zoning ordinance or by-law or of any other
1581 local land use regulations unless the use or construction is commenced within a period of 3 years
1582 after the issuance of the special permit, site plan approval or permit for commercial conversion.

1583 SECTION 72. Said chapter 40A is hereby further amended by inserting after section 7
1584 the following section:—

1585 Section 7A. (a) As used in this section, the following words shall have the following
1586 meanings unless the context clearly requires otherwise:

1587 “Designated authority”, the local municipal board, committee or officials designated in
1588 the zoning ordinance or by-law to conduct site plan review.

1589 “Performance standards”, reasonable, written municipal zoning regulations, published
1590 industry standards and best practices, applicable to site plans and relative to traffic circulation
1591 and safety, pedestrian safety and access, off-street parking and loading, emergency vehicle
1592 access, stormwater drainage, screening, bulk and height of structures, exterior lighting and
1593 storage or other outdoor service areas.

1594 (b) Substantive provisions of site plan review, including content of submission
1595 requirements and applicable performance standards, governing site plan review and approval by
1596 the designated authority or authorities shall be as set forth within a local ordinance or by-law
1597 adopted pursuant to section 5. Performance standards shall be reasonably definite and objective
1598 so that any applicant has knowledge of such standards prior to application submission. No
1599 zoning ordinance or by-law may include performance standards governing the aesthetics of
1600 structures; provided, however, that municipalities may establish uniform design guidelines. The
1601 designated authority may, where such action is in the public interest and not inconsistent with the
1602 intent and purpose of this section, waive strict compliance with the performance standards for
1603 site plan review. The designated authority may adopt, and from time to time amend, written
1604 procedural rules and regulations to implement the local site plan review ordinance or by-law,
1605 including provisions for the imposition of reasonable fees for the employment of outside
1606 consultants in the same manner as set forth in section 53G of chapter 44.

1607 (c) A zoning ordinance or by-law may establish applicability standards for projects that
1608 are subject to site plan review, which may include a category of projects that are subject to a

1609 minor or administrative site plan review process. The zoning ordinance or by-law may require a
1610 public hearing in accordance with section 11 for projects that meet or exceed specified thresholds
1611 under the zoning ordinance or by-law. The decision of the designated authority for a use allowed
1612 as of right, or for a use requiring a special permit but reviewed by a separate designated
1613 authority, shall require a simple majority vote of the designated authority and shall be made
1614 within the time limits prescribed by ordinance or by-law, not to exceed 90 days from the date of
1615 filing of a complete application or such extended time as may be agreed in writing by the
1616 petitioner. The submission and review process for a site plan required in connection with the
1617 issuance of a special permit, and subject to review by the same permit granting authority as the
1618 special permit application, shall be conducted with the review of the special permit application in
1619 a coordinated process and may require the same vote required for approval of a special permit.
1620 The ordinance or by-law may establish the designated authority to be the building commissioner,
1621 director of planning or other municipal official who coordinates administrative site plan review
1622 with other municipal employees, in which instance there shall be no vote requirement for site
1623 plan review. Any appeal from administrative site plan review shall be in accordance with section
1624 17 unless an ordinance or by-law first provides for an appeal to another public body of the
1625 municipality. In no instance shall the issuance or denial of a building permit be a prerequisite to
1626 filing a civil action under this section.

1627 (d) Site plan review may impose only those conditions that are necessary to ensure
1628 substantial compliance of the proposed use of land or structures with the requirements of the
1629 zoning ordinance or by-law; provided, however, that no condition may impose restrictions
1630 greater than those expressly regulated within the zoning ordinance or by-law and no conditions
1631 may be imposed regarding matters over which jurisdiction exclusively lies in another body

pursuant to any general or special law; and provided further, that any off-site conditions shall only address direct adverse impacts related to performance standards expressly governed by the zoning ordinance or by-law and which conditions are proportionate in both nature and extent to the impacts of the project on adjacent properties or adjacent roadways.

(e) A site plan application may be denied only on the grounds that the: (i) proposed site plan does not meet the specific requirements set forth in the zoning ordinance or by-law; or (ii) petitioner failed to submit the information and fees required by the zoning ordinance or by-law necessary for an adequate and timely review of the design of the proposed land or structures.

(f) The designated authority shall cause to be made a detailed record of its proceedings, indicating the vote of each member upon each question, or if a member is absent or fails to vote, indicating such fact, and setting forth clearly the reason for its decision and of its official actions, copies of all of which shall be filed within 14 days in the office of the city or town clerk and shall be deemed a public record, and notice of the decision shall be mailed forthwith to the petitioner and, if such site plan review required a public hearing pursuant to the zoning ordinance or by-law, to the parties in interest designated in section 11. Each such notice shall specify that appeals, if any, shall be made pursuant to section 17 and shall be filed within 20 days after the date of filing of such notice in the office of the city or town clerk. Failure by the designated authority to take final action within 90 days or extended time, if applicable, shall be deemed to be an approval of the site plan. The petitioner who seeks such approval by reason of the failure of the designated authority to act within such time prescribed, shall notify the city or town clerk, in writing within 14 days from the expiration of said 90 days or extended time, if applicable, of such approval. If site plan review required a public hearing, the petitioner shall send such notice to parties in interest designated in said section 11 by mail and each such notice shall specify that

appeals, if any, shall be made pursuant to said section 17 and shall be filed within 20 days after the date the city or town clerk received such written notice from the petitioner that the designated authority failed to act within the time prescribed. After the expiration of 20 days without notice of appeal pursuant to said section 17, or, if appeal has been taken, after receipt of certified records of the court in which such appeal is adjudicated, indicating that such approval has become final, the city or town clerk shall issue a certificate stating the date of approval, the fact that the designated authority failed to take final action and that the approval resulting from such failure has become final, and such certificate shall be forwarded to the petitioner.

(g) A site plan approval granted under this section shall lapse within a specified period of time, not less than 3 years from the date of the filing of such approval with the city or town clerk, if substantial use or construction has not yet begun, except as extended for good cause by the designated authority; provided, however, that the minimum period of 3 years may be increased to a longer period by ordinance or by-law. Such specified period shall not include time required to pursue or await the determination of an appeal under section 17 or to pursue or await the appeal of any other permit, license, determination or approval that are prerequisites to the issuance of a building permit.

SECTION 73. Said chapter 40A is hereby further amended by inserting after section 9A the following section:-

Section 9A 1/2. (a) As used in this section, “academic, research or medical facility” shall mean any building, structure or campus that is leased, owned, occupied or operated by:

(i) a public or private institution of higher education;

(ii) a hospital licensed by the commonwealth;

1677 (iii) a dental, medical, public health or scientific research institution; or

1678 (iv) a federal, state or local government agency that conducts or supports medical, health,
1679 biomedical or scientific research or provides health care services.

1680 (b) No establishment defined in section 9A shall be located within 500 square feet of an
1681 academic, research or medical facility.

1682 SECTION 74. The first paragraph of section 14 of said chapter 40A, as appearing in the
1683 2024 Official Edition, is hereby amended by adding the following clause:-

1684 (5) To hear and decide applications for commercial conversion upon which the board is
1685 empowered to act under paragraph (2) of subsection (b) of section 3C.

1686 SECTION 75. Section 15 of said chapter 40A, as so appearing, is hereby amended by
1687 striking out, in lines 36 and 37, the words “The board of appeals shall hold a hearing on any
1688 appeal, application or petition within sixty-five” and inserting in place thereof the following
1689 words:- Except as provided in clause (i) of paragraph (2) of subsection (b) of section 3C, the
1690 board of appeals shall hold a hearing on any appeal, application or petition within 65.

1691 SECTION 76. The fifth paragraph of said section 15 of said chapter 40A, as so
1692 appearing, is hereby amended by striking out the first 7 sentences and inserting in place thereof
1693 the following 7 sentences:- All hearings of the board of appeals shall be open to the public and
1694 shall be opened within 30 days of any petition or application. Any such hearing shall extend for
1695 not more than 60 days from the date the hearing is opened. The decision of the board shall be
1696 made within 100 days after the date of the filing of an appeal, application or petition, except in
1697 regard to permits for commercial conversion as provided for in clause (iv) of paragraph (2) of

subsection (b) of section 3C and special permits as provided for in section 9. The required time limits for a public hearing and said decision may be extended by written agreement between the applicant and the board of appeals. A copy of such agreement shall be filed in the office of the city or town clerk. Failure by the board to act within the times prescribed or extended time agreed upon, if applicable, shall be deemed to be the granting of the appeal, application or petition. The applicant who seeks such approval by reason of the failure of the board to act within the time prescribed shall notify the city or town clerk, in writing, within 14 days from the expiration of said period or extended time, if applicable, of such approval and that notice has been sent by the applicant to parties in interest.

SECTION 77. The fourth paragraph of section 4 of chapter 40G of the General Laws, as so appearing, is hereby amended by striking out clause (8) and inserting in place thereof the following clause:-

(8) the enterprise will report adequate financial data to the MTDC and provide the MTDC with sufficient control over the management of the enterprise in order to protect the investment of the MTDC including, in the discretion of the board, right of access to financial and other records of the enterprise.

SECTION 78. Said section 4 of said chapter 40G, as so appearing, is hereby further amended by striking out, in line 68, the words “(1) Not more than \$1,000,000” and inserting in place thereof the following words:- not more than \$2,000,000.

SECTION 79. Said section 4 of said chapter 40G, as so appearing, is hereby further amended by striking out, in line 69, the figure “\$2,000,000” and inserting in place thereof the following figure:- \$4,000,000.

1720 SECTION 80. The last paragraph of said section 4 of said chapter 40G, as so appearing,
1721 is hereby amended by striking out clause (2).

1722 SECTION 81. Section 6 of said chapter 40G, as so appearing, is hereby amended by
1723 striking out, in line 2, the word “ninety,” and inserting in place thereof the following figure:-
1724 120.

1725 SECTION 82. Said section 6 of said chapter 40G, as so appearing, is hereby further
1726 amended by striking out, in lines 5 to 7, inclusive, the words “and the number of persons hired as
1727 a result of the activities of the corporation who were recipients of programs provided for in
1728 chapter 115, 117A, or 118”.

1729 SECTION 83. Chapter 40J of the General Laws is hereby amended by striking out
1730 section 3, as so appearing, and inserting in place thereof the following section:-

1731 Section 3. There shall be a body, politic and corporate, to be known as the Massachusetts
1732 Technology Park Corporation. The corporation is hereby constituted a public instrumentality of
1733 the commonwealth, and the exercise by the corporation of the powers conferred in this chapter
1734 shall be deemed and held to be an essential governmental function. The corporation is hereby
1735 placed in the executive office of economic development but shall not be subject to the
1736 supervision or control of said department or of any board, bureau, department or other agency of
1737 the commonwealth, except as specifically provided in this chapter.

1738 The corporation shall be governed, and its corporate powers exercised, by a board of
1739 directors, which shall consist of the secretary of economic development or their designee, the
1740 secretary of administration and finance or their designee, the commissioner of higher education
1741 or their designee and 15 persons to be appointed by the governor, 2 of whom shall be appointed

1742 from a list of persons nominated by the president of the senate, 2 of whom shall be appointed
1743 from a list of persons nominated by the speaker of the house of representatives, 2 of whom shall
1744 be chief executive officers of post-secondary educational institutions or distinguished members
1745 of the engineering or scientific faculties of those institutions, or members of other appropriate
1746 faculties, and of those 2, at least 1 shall represent a public post-secondary educational institution
1747 and 6 of whom shall represent businesses concerned with any technology that may be subject to
1748 this chapter, and 2 of whom shall be recommended by the Massachusetts AFL-CIO. Each
1749 director appointed from the list of nominations provided by the president of the senate and the
1750 speaker of the house of representatives shall serve a term of 2 years to be coterminous with the
1751 legislative session of the general court. All other directors appointed by the governor shall serve
1752 for a term of 5 years and thereafter until the director's successor is appointed. A person
1753 appointed to fill a vacancy on the board shall be appointed in a like manner and shall serve for
1754 the unexpired term of the predecessor director. A director shall be eligible for reappointment. A
1755 director may be removed by the governor for cause. Nine directors shall constitute a quorum and
1756 the affirmative vote of a majority of the directors present and eligible to vote at a meeting shall
1757 be necessary for any action to be taken by the board. The directors shall serve without
1758 compensation, but each director shall be entitled to reimbursement for actual and necessary
1759 expenses incurred in the performance of official duties. The board shall meet not less than 4
1760 times each year and shall have final authority over the activities of the corporation.

1761 The secretary of economic development or their designee shall serve as chair. The board
1762 shall biennially elect from among its members a vice-chair and may designate a treasurer and a
1763 secretary, who need not be members of the board. The secretary of the board shall keep a record
1764 of the proceedings of the corporation and shall be the custodian of all books, documents and

1765 papers filed with the corporation and its official seal. The secretary of the board shall cause
1766 copies to be made of all minutes and other records and documents of the corporation and shall
1767 certify that such copies are true copies and all persons dealing with the corporation may rely
1768 upon such certification. The treasurer of the board shall be the chief financial and accounting
1769 officer of the corporation and shall be in charge of its funds, books of account and accounting
1770 records.

1771 The executive committee of the board shall consist of the chair and the vice-chair and not
1772 less than 3 directors elected biennially by the board from among its members, 1 of whom shall be
1773 a director representing a post-secondary educational institution and 1 of whom shall be a director
1774 from a business. The executive committee shall have all the powers of the board between
1775 meetings of the board, to be exercised in accordance with by-laws established by the board. The
1776 executive committee shall meet as often as considered necessary by the committee.

1777 An action required or permitted to be taken at a meeting of the directors may be taken
1778 without a meeting if all of the directors consent in writing to such action and such written
1779 consent is filed with the records of the minutes of the meetings of the board. Such consent shall
1780 be treated for all purposes as a vote at a meeting.

1781 Chapter 268A shall apply to all directors, officers and employees of the corporation
1782 except that the corporation may purchase from, sell to, borrow from, contract with or otherwise
1783 deal with an organization in which a director of the corporation is in any way interested or
1784 involved; provided, however, that such interest or involvement is disclosed in advance to the
1785 directors and recorded in the minutes of the proceedings of the corporation; and provided further,

1786 that no director having such an interest or involvement may participate in any decision relating to
1787 such organization.

1788 Neither the corporation nor its officers, directors, agents, employees, consultants or
1789 advisors shall be subject to sections 3B of chapter 7, sections 9A, 45, 46 and 52 of chapter 30,
1790 chapter 31, or sections 27 to 27E, inclusive, of chapter 149; provided, however, that in
1791 purchasing products or services, the corporation shall at all times follow generally accepted good
1792 business practices.

1793 All officers and employees of the corporation having access to its cash or negotiable
1794 securities shall give bond to the corporation at its expense, in such amount and with such surety
1795 as the board may prescribe. The persons required to give bond may be included in at least 1
1796 blanket or scheduled bonds.

1797 Directors and officers who are not regular, compensated employees of the corporation
1798 shall not be liable to the commonwealth, the corporation or any other person as a result of their
1799 activities, whether ministerial or discretionary, as such directors or officers except for willful
1800 dishonesty or intentional violations of law. The board of the corporation may purchase liability
1801 insurance for directors, officers and employees and may indemnify said persons against the
1802 claims of others.

1803 SECTION 84. Section 9 of chapter 40R of the General Laws, as so appearing, is hereby
1804 amended by striking out subsections (a) and (b) and inserting in place thereof the following 2
1805 subsections:-

1806 (a) The commonwealth shall pay from the trust fund or other funds from appropriations
1807 or other money authorized by the general court a zoning incentive payment, according to the
1808 following schedule:

1809	Projected Units of New Construction %	Payment
1810	Up to 20%	\$20,000
1811	21 to 100%	\$150,000
1812	101 to 200%	\$400,000
1813	201 to 500%	\$740,000
1814	501% or more	\$1,200,000

1815 Subject to any conditions imposed by the department as a condition of approving a smart
1816 growth zoning district or starter home zoning district, the zoning incentive payment shall be
1817 payable upon confirmation of approval of the district by the department. The projected
1818 percentage of units shall be based upon the zoning adopted in the smart growth zoning district or
1819 starter home zoning district.

1820 (b) The commonwealth shall pay from the trust fund or other funds from appropriations
1821 or other money authorized by the general court a 1-time density bonus payment to each city or
1822 town with an approved smart growth zoning district and a 1-time production bonus payment to
1823 each city or town with an approved starter home zoning district. Such payment shall be \$6,000
1824 for each housing unit of new construction created in the smart growth zoning district and \$6,000
1825 for each housing unit of new construction created in the starter home zoning district. The amount
1826 due shall be paid on a unit-by-unit basis in accordance with department regulations, upon

1827 submission by a city or town of proof of issuance of a building permit for a particular housing
1828 unit or units within the district.

1829 SECTION 85. Section 1 of chapter 40X of the General Laws, as so appearing, is hereby
1830 amended by striking out the definition of “Lead jurisdiction” and inserting in place thereof the
1831 following 2 definitions:-

1832 “Governing body”, the city council or board of aldermen in a city or the board of
1833 selectmen or town council in a town or the board of commissioners or executive body in a
1834 county.

1835 “Lead jurisdiction”, the city, town or county in which the tourism destination marketing
1836 district petition is filed.

1837 SECTION 86. Said section 1 of said chapter 40X, as so appearing, is hereby further
1838 amended by striking out the definition of “Municipal governing body.

1839 SECTION 87. Said section 1 of said chapter 40X, as so appearing, is hereby further
1840 amended by inserting after the word “municipality”, in line 29, the following words:- or county.

1841 SECTION 88. Section 2 of said chapter 40X, as so appearing, is hereby amended by
1842 striking out, in line 2, the word “municipal”.

1843 SECTION 89. Section 3 of said chapter 40X, as so appearing, is hereby amended by
1844 inserting after the word “municipality”, in line 4, the following words:- or county.

1845 SECTION 90. Said section 3 of said chapter 40X, as so appearing, is hereby further
1846 amended by striking out, in line 32, the words “or towns” and inserting in place thereof the
1847 following words:- , towns or counties.

1848 SECTION 91. Said section 3 of said chapter 40X, as so appearing, is hereby further
1849 amended by striking out, in line 36, the words “city or town’s” and inserting in place thereof the
1850 following words:- city, town or county’s.

1851 SECTION 92. Section 4 of said chapter 40X, as so appearing, is hereby amended by
1852 striking out, in lines 1, 19, 23, 38 and 101, the word “municipal”, each time it appears.

1853 SECTION 93. Said section 4 of said chapter 40X, as so appearing, is hereby further
1854 amended by striking out, in lines 13 and 14, and in lines 56 and 57, the words “municipality’s
1855 website” and inserting in place thereof, in each instance, the following words:- website of the
1856 city, town or county.

1857 SECTION 94. Said section 4 of said chapter 40X, as so appearing, is hereby further
1858 amended by striking out, in lines 31, 32 and 33, and in line 110, the words “local municipal”,
1859 each time they appear.

1860 SECTION 95. Section 5 of said chapter 40X, as so appearing, is hereby amended, by
1861 striking out, in line 16, the word “municipal”.

1862 SECTION 96. Section 7 of said chapter 40X, as so appearing, is hereby amended by
1863 striking out, in line 2, the word “municipal”.

1864 SECTION 97. Section 8 of said chapter 40X, as so appearing, is hereby amended by
1865 striking out, in line 1, and in lines 21 and 22, the word “municipal”, each time it appears.

1866 SECTION 98. Said section 8 of said chapter 40X, as so appearing, is hereby further
1867 amended by striking out, in line 7, the words “local municipal”.

1868 SECTION 99. Section 9 of said chapter 40X, as so appearing, is hereby amended by
1869 striking out, in lines 6, 14, 20 and 21, 23, 29 and 39, the word “municipal”, each time it appears.

1870 SECTION 100. Said section 9 of said chapter 40X, as so appearing, is hereby further
1871 amended by striking out, in line 12, the words “city or town’s local municipal”.

1872 SECTION 101. Section 10 of said chapter 40X, as so appearing, is hereby amended by
1873 striking out, in lines 3, 5, 15, 16, 17, 19, 23 and 30, the words “local municipal”, each time they
1874 appear.

1875 SECTION 102. Said section 10 of said chapter 40X, as so appearing, is hereby further
1876 amended by striking out, in line 36, the word “municipally”.

1877 SECTION 103. Said section 10 of said chapter 40X, as so appearing, is hereby further
1878 amended by inserting after the word “municipality”, in line 41, the following words:- or county.

1879 SECTION 104. Section 11 of said chapter 40X, as so appearing, is hereby amended by
1880 striking out, in lines 4 and 5, inclusive the words “local municipal”.

1881 SECTION 105. Section 56 of chapter 41 of the General Laws, as so appearing, is hereby
1882 amended by striking out the last sentence and inserting in place thereof the following sentence:-
1883 This section shall not prohibit payment to be made for: (i) school travel prior to the date of
1884 travel; (ii) software licenses, software maintenance agreements or online subscription services
1885 for school curriculum prior to the fiscal year in which services shall be rendered; or (iii)
1886 estimates issued by utilities for make-ready work to facilitate access to utility poles, conduits,
1887 ducts or rights-of way related to broadband infrastructure projects.

1888 SECTION 106. Section 98F of said chapter 41 is hereby amended by striking out, in line
1889 22, as so appearing, the words “18 years of age” and inserting in place thereof the following
1890 words:- the age of criminal majority.

1891 SECTION 107. Clause Forty-first C of section 5 of chapter 59 of the General Laws, as so
1892 appearing, is hereby amended by striking out the second sentence and inserting in place thereof
1893 the following sentence:- A city, by vote of its council and approval of its mayor, or a town, by
1894 vote of town meeting, may adjust the following factors contained in these provisions by: (i)
1895 reducing the requisite age of eligibility to any person age 65 years or older; (ii) increasing the
1896 sum contained in the first sentence from \$500 to \$1500; (iii) increasing the amounts contained in
1897 subclause (B) of the first sentence from \$13,000 and \$15,000, respectively, to, in both instances,
1898 not more than 50 per cent of the area median income, as adjusted for household size, as defined
1899 annually by the United States Department of Housing and Urban Development; provided,
1900 however, that the relevant year of the calculation shall be the most recent figure available as of
1901 July 1 of the start of the fiscal year to which the exemption is sought; (iv) increasing the amounts
1902 contained in subclause (C) of the first sentence from \$28,000 to not more than \$80,000 and from
1903 \$30,000 to not more than \$110,000; and (v) by excluding from the determination of whole estate
1904 not more than 3 dwelling units.

1905 SECTION 108. Said section 5 of said chapter 59 is hereby further amended by striking
1906 out, in line 1785, as so appearing, the figure “\$10,000” and inserting in place thereof the
1907 following figure:- \$30,000”.

1908 SECTION 109. Said chapter 59 is hereby further amended by inserting after section 50
1909 the following 2 sections:-

1910 Section 5P. (a) As used in this section, the following words shall have the following
1911 meanings unless the context clearly requires otherwise:

1912 “Adaptive reuse”, as defined in section 3C of chapter 40A.

1913 “Zoning”, as defined in section 1A of chapter 40A.

1914 (b) A city or town that adopts zoning pursuant to section 3C of chapter 40A, may adopt a
1915 tax increment exemption for an adaptive reuse project allowed as of right under such zoning. The
1916 exemption amount shall be not less than 10 per cent and not more than 100 per cent of the
1917 incremental value attributable to the residential portion of an adaptive reuse project allowed as of
1918 right under zoning established pursuant to said section 3C of said chapter 40A for a period of not
1919 less than 5 years and not more than 20 years. The legislative body of the city or town shall
1920 establish the percentage and term of the exemption, subject to the charter of the city or town and
1921 the approval of the executive office of housing and livable communities.

1922 (c) The executive office of housing and livable communities may promulgate regulations
1923 for the administration of this section.

1924 Section 5Q. A city or town that accepts this section may issue rebates to those taxpayers
1925 who received the residential exemption in the prior fiscal year; provided, however, that the city
1926 or town shall set asset, income or other thresholds to determine eligibility for said rebates. The
1927 city or town shall appropriate an amount to be used for such rebates; and provided further, that
1928 such rebates for each eligible taxpayer shall be in a uniform amount based on the amount
1929 appropriated and the estimated number of eligible taxpayers. The amount of the rebate shall be in
1930 addition to any exemptions allowed under this chapter. A taxpayer who seeks to qualify for the
1931 rebate shall, before the deadline established by city or town, file an application, on a form to be

1932 adopted by the board of assessors, with the supporting documentation of the applicant's income,
1933 assets and any other information as described in the application. The application shall be filed
1934 each year for which the applicant seeks the rebate.

1935 SECTION 110. Section 59 of said chapter 59, as appearing in the 2024 Official Edition,
1936 is hereby amended by striking out, in lines 4 and 5, the words "on or before" and inserting in
1937 place thereof the following words:- not more than 45 days after.

1938 SECTION 111. Section 17 of chapter 61A of the General Laws, as so appearing, is
1939 hereby amended by adding the following paragraph:-

1940 Notwithstanding the preceding paragraph, if the portion of land is contiguous land not
1941 actively devoted to agricultural or horticultural uses and is so separated to serve as the site of a
1942 renewable energy generating source, as defined in subsection (b) of section 11F of chapter 25A,
1943 the land so separated shall not be subject to the option to purchase under section 14 and liability
1944 for conveyance or roll-back taxes otherwise applicable at such time; provided, however, that
1945 such land so separated shall instead be subject to liability for 50 per cent of such otherwise
1946 applicable roll-back taxes, which shall be due and payable at the time it commences serving as
1947 the site of a renewable energy generating source. If the use of the land so separated as a
1948 renewable energy generating source permanently ceases, or does not commence, and the land so
1949 separated is sold for or converted to a use other than agricultural or horticultural, the land so
1950 separated shall become subject to the option to purchase and conveyance or roll-back taxes shall
1951 be assessed for the balance of the amount that would have been assessed at the time of the
1952 separation. The land so separated subject to this paragraph shall not exceed 10 per cent of the
1953 land valued, assessed and taxed under this chapter from which it was separated and not greater,

1954 in total, than 15 acres of the contiguous portion of such land not actively devoted to agricultural
1955 or horticultural uses.

1956 SECTION 112. Chapter 62 of the General Laws is hereby amended by inserting after
1957 section 5D the following 2 sections:-

1958 Section 5E. (a) For the purposes of this section, the following words shall have the
1959 following meanings unless the context clearly requires otherwise:-

1960 “Account holder”, an individual who establishes, individually or jointly with 1 or more
1961 individuals, a rental savings account.

1962 “Allowable costs”, a fee paid for renting a unit as a permanent residence in the
1963 commonwealth, limited to the amount of: (i) first and last month's rent; (ii) a security deposit
1964 equal to 1 month's rent; and (iii) the purchase and installation costs of a lock and key.

1965 “Eligible costs”, fees paid for renting a unit as a permanent residence in the
1966 commonwealth, limited to the amount of: (i) first and last month's rent; (ii) a security deposit
1967 equal to 1 month's rent; and (iii) the purchase and installation costs of a lock and key.

1968 “Financial institution”, any bank, trust company, savings institution, industrial loan
1969 association, consumer finance company, credit union, benefit association, insurance company,
1970 safe deposit company, money market mutual fund or similar entity authorized to do business in
1971 the commonwealth.

1972 “Qualified beneficiary”, an individual seeking to rent a unit as a permanent residence.

1973 (b) Beginning January 1, 2027, an individual may open an account with a financial
1974 institution and designate the account as a rental savings account to pay or reimburse a qualified
1975 beneficiary's eligible costs.

1976 (c) An account holder shall designate, not later than April 15 of the year following the tax
1977 year during which the account is established, a resident as the qualified beneficiary of the rental
1978 savings account. The account holder may designate themselves as the qualified beneficiary and
1979 may change the designated qualified beneficiary at any time; provided, however, there shall not
1980 be more than 1 qualified beneficiary at any time.

1981 (d) An individual may jointly own a rental savings account with another person if the
1982 joint account holders file a joint income tax return; provided, however, this requirement shall not
1983 apply if at least 1 person would not otherwise be required to make a return because their
1984 Massachusetts gross income did not exceed \$8,000.

1985 (e) An individual may be the account holder of more than 1 rental savings account;
1986 provided, however, that the account holder shall not have multiple accounts that designate the
1987 same qualified beneficiary.

1988 (f) An individual may be designated as the qualified beneficiary on more than 1 rental
1989 savings account.

1990 (g) Only cash and marketable securities shall comprise a rental savings account. Subject
1991 to the limitations of this section, persons other than the account holder may contribute funds to a
1992 rental savings account. There shall be no limitation on the amount of contributions that may be
1993 made to or retained in a rental savings account.

1994 (h) The funds held in a rental savings account shall not be used to pay expenses of
1995 administering the account; provided, however, that a service fee may be deducted from the
1996 account by the financial institution.

1997 (i) The account holder shall submit to the department of revenue: (1) detailed information
1998 regarding the rental savings account, including a list of transactions for the account during the
1999 tax year and the Form 1099 under the Internal Revenue Service requirements issued by the
2000 financial institution for such account with the account holder's Massachusetts income tax return
2001 on forms prepared by the department of revenue; and (2) a detailed accounting of the eligible
2002 costs toward which the account funds were applied, if there was a withdrawal from the account,
2003 and a statement of the amount of funds remaining in the account.

2004 (j) A financial institution shall not be required to: (1) designate an account as a rental
2005 savings account, or designate the qualified beneficiaries of an account, in the financial
2006 institution's account contracts or systems; (2) track the use of funds withdrawn from a rental
2007 savings account; (3) allocate funds in a rental savings account among joint account holders or
2008 multiple qualified beneficiaries; or (4) report any information to the department of revenue or
2009 other government agency that is not otherwise required by law.

2010 (k) A financial institution shall not be liable for: (1) determining or ensuring that an
2011 account satisfies the requirements to be a rental savings account; (2) determining or ensuring that
2012 funds in a rental savings account are used for eligible costs; or (3) reporting or remitting taxes or
2013 penalties related to the use of a rental savings account.

2014 (l) Except as otherwise provided in this section and subject to the limitations under this
2015 subsection, there shall be deducted from taxable income of an account holder, for Massachusetts

2016 income tax purposes: (1) the amount contributed to a rental savings account during each tax year,
2017 not to exceed \$15,000 for an account holder who files an individual tax return or \$30,000 for
2018 joint account holders; (2) the amount of earnings, including interest and other income on the
2019 principal, from the rental savings account during the tax year.

2020 (m) An account holder may claim the deduction and exclusion under subsection (k): (1)
2021 for a period not to exceed 15 years; (2) for an aggregate total amount of principal and earnings
2022 not to exceed \$50,000 during said 15-year period; and (3) only if the principal and earnings of
2023 the account remain in the account until a withdrawal is made for eligible costs related to the
2024 securing a rental intended as a permanent residence.

2025 (n) Any funds in a rental savings account not expended on eligible costs by December 31
2026 of the last year of the 15-year period under shall thereafter be included in the account holder's
2027 taxable income.

2028 (o) A person other than the account holder who deposits funds in a rental savings account
2029 shall not be entitled to the deduction and exclusion provided for under this section.

2030 (p) The deduction and exclusion from taxable income provided for by this section shall
2031 apply to any alternative bases for calculating taxable income for Massachusetts income tax
2032 purposes.

2033 (q) Except as otherwise authorized in this section, if the account holder withdraws any
2034 funds from a rental savings account for a purpose other than eligible costs for the securing a
2035 rental property to be used as a permanent residence: (1) such funds shall be included in the
2036 account holder's taxable income; and (2) the account holder shall pay a penalty to the department
2037 of revenue equal to the tax that would have been collected had the withdrawn funds been subject

to income tax. Such penalty shall not apply to funds withdrawn from an account that were: (i) withdrawn by reason of the account holder's death or disability; (ii) a disbursement of assets of the account pursuant to a filing for protection under the United States Bankruptcy Code, 11 U.S.C. § 101 et seq.; or (iii) a transfer of the funds from a rental savings account to a new rental savings account held by a different financial institution or the same financial institution.

(r) The department of revenue shall prepare forms for: (1) the designation of an account with a financial institution to serve as a first-time home buyer savings account; (2) the designation of a qualified beneficiary of a rental savings account; and (3) an account holder to annually submit to the department of revenue detailed information regarding the rental savings account, including but not limited to a list of transactions for the account during the tax year, and identifying any supporting documentation that is required to be maintained by the account holder.

Section 5F. (a) For the purposes of this section, the following words shall have the following meanings unless the context clearly requires otherwise:

"Account holder", an individual who establishes, individually or jointly with 1 or more other individuals, a first-time homebuyer savings account.

"Allowable closing costs", a disbursement listed on a settlement statement for the purchase of a single-family residence in the commonwealth by a qualified beneficiary.

"Eligible costs", the down payment and allowable closing costs for the purchase of a single-family residence in Massachusetts by a qualified beneficiary.

2058 “Financial institution”, any bank, trust company, savings institution, industrial loan
2059 association, consumer finance company, credit union, or any benefit association, insurance
2060 company, safe deposit company, money market mutual fund, or similar entity authorized to do
2061 business in the commonwealth.

2062 “First-time homebuyer”, an individual who resides in the commonwealth and has not
2063 owned or purchased, either individually or jointly, a single-family residence.

2064 “First-time home buyer savings account”, an account with a financial institution that an
2065 account holder designates as a first-time home buyer savings account on the account holder’s
2066 Massachusetts income tax return for tax year 2025 or any tax year thereafter, pursuant to this
2067 section for the purpose of paying or reimbursing eligible costs for the purchase of a single-family
2068 residence in the commonwealth by a qualified beneficiary.

2069 “Qualified beneficiary”, a first-time home buyer who is designated as the qualified
2070 beneficiary of an account designated by the account holder as a first-time home buyer savings
2071 account.

2072 “Settlement statement”, the statement of receipts and disbursements for a transaction
2073 related to real estate, including a statement prescribed under the Real Estate Settlement
2074 Procedures Act of 1974, 12 U.S.C. 2601 et seq., as amended, and regulations thereunder.

2075 “Single-family residence”, a single-family residence owned and occupied by a qualified
2076 beneficiary as the qualified beneficiary’s principal residence, which may include a manufactured
2077 home, trailer, mobile home, condominium unit, or cooperative.

2078 (b) Beginning January 1, 2028, any individual may open an account with a financial
2079 institution and designate the account, in its entirety, as a first-time home buyer savings account
2080 to be used to pay or reimburse a qualified beneficiary's eligible costs for the purchase of a
2081 single-family residence in the commonwealth.

2082 (c) An account holder must designate, no later than April 15 of the year following the tax
2083 year during which the account is established, a first-time home buyer as the qualified beneficiary
2084 of the first-time home buyer savings account. The account holder may designate themselves as
2085 the qualified beneficiary and may change the designated qualified beneficiary at any time
2086 provided, however, there shall not be more than 1 qualified beneficiary at any time.

2087 (d) An individual may jointly own a first-time home buyer savings account with another
2088 person if the joint account holders file a joint income tax return; provided, however, this
2089 requirement shall not apply if at least 1 person would not otherwise be required to make a return
2090 because their Massachusetts gross income did not exceed \$8,000.

2091 (e) An individual may be the account holder of more than one first-time home buyer
2092 savings account; provided, however, the account holder shall not have multiple accounts that
2093 designate the same qualified beneficiary.

2094 (f) An individual may be designated as the qualified beneficiary on more than 1 first-time
2095 home buyer savings account.

2096 (g) Only cash and marketable securities shall comprise a first-time home buyer savings
2097 account. Subject to the limitations of this section, persons other than the account holder may
2098 contribute funds to a first-time home buyer savings account. There shall be no limitation on the

2099 amount of contributions that may be made to or retained in a first-time home buyer savings
2100 account.

2101 (h) The funds held in a first-time home buyer savings account shall not be used to pay
2102 expenses of administering the account; provided, however, that a service fee may be deducted
2103 from the account by the financial institution in which the account is held.

2104 (i) The account holder shall submit the following to the department of revenue: (1)
2105 detailed information regarding the first-time home buyer savings account, including a list of
2106 transactions for the account during the tax year and the Form 1099 under the Internal Revenue
2107 Service requirements issued by the financial institution for such account with the account
2108 holder's Massachusetts income tax return on forms prepared by the department of revenue; and
2109 (2) a detailed account of the eligible costs toward which the account funds were applied, if there
2110 was a withdrawal from the account, and a statement of the amount of funds remaining in the
2111 account, if any.

2112 (j) A financial institution shall not be required to: (1) designate an account as a first-time
2113 home buyer savings account, or designate the qualified beneficiaries of an account, in the
2114 financial institution's account contracts or systems; (2) track the use of funds withdrawn from a
2115 first-time home buyer savings account; (3) allocate funds in a first-time home buyer savings
2116 account among joint account holders or multiple qualified beneficiaries; or (4) report any
2117 information to the department of revenue or any other governmental agency that is not otherwise
2118 required by law.

2119 (k) A financial institution is not responsible or liable for: (1) determining or ensuring that
2120 an account satisfies the requirements to be a first-time home buyer savings account; (2)

2121 determining or ensuring that funds in a first-time home buyer savings account are used for
2122 eligible costs; or (3) reporting or remitting taxes or penalties related to the use of a first-time
2123 home buyer savings account.

2124 (l) Except as otherwise provided in this section and subject to the limitations under this
2125 subsection, there shall be deducted from taxable income of an account holder, for Massachusetts
2126 income tax purposes: (1) the amount contributed to a first-time home buyer savings account
2127 during each tax year, not to exceed \$25,000 for an account holder who files an individual tax
2128 return or \$50,000 for joint account holders; and (2) the amount of earnings, including interest
2129 and other income on the principal, from the first-time home buyer savings account during the tax
2130 year.

2131 (m) An account holder may claim the deduction and exclusion under subsection (k): (1)
2132 for a period not to exceed 15 years; (2) for an aggregate total amount of principal and earnings,
2133 not to exceed \$250,000 during said 15-year period; and (3) only if the principal and earnings of
2134 the account remain in the account until a withdrawal is made for eligible costs related to the
2135 purchase of a single-family residence by a qualified beneficiary, except as otherwise provided in
2136 this section.

2137 (n) Any funds in a first-time home buyer savings account not expended on eligible costs
2138 by December 31 of the last year of the 15-year period shall thereafter be included in the account
2139 holder's taxable income.

2140 (o) A person other than the account holder who deposits funds in a first-time home buyer
2141 savings account shall not be entitled to the deduction and exclusion provided for under this
2142 section.

2143 (p) The deduction and exclusion from taxable income provided for by this section shall
2144 apply to any alternative bases for calculating taxable income for Massachusetts income tax
2145 purposes.

2146 (q) Except as otherwise authorized in this of this section, if the account holder withdraws
2147 any funds from a first-time home buyer savings account for a purpose other than eligible costs
2148 for the purchase of a single-family residence: (1) said shall be included in the account holder's
2149 taxable income; and (2) the account holder shall pay a penalty to the department of revenue equal
2150 to the tax that would have been collected had the withdrawn funds been subject to income tax.
2151 Such penalty shall not apply to funds withdrawn from an account that were: (i) withdrawn by
2152 reason of the account holder's death or disability; (ii) a disbursement of assets of the account
2153 pursuant to a filing for protection under the United States Bankruptcy Code, 11 U.S.C. § 101 et
2154 seq.; or (iii) a transfer of the funds from a first-time home buyer savings account to a new first-
2155 time home buyer savings account held by a different financial institution or the same financial
2156 institution.

2157 (r) The department of revenue shall prepare forms for: (1) the designation of an account
2158 with a financial institution to serve as a first-time home buyer savings account; (2) the
2159 designation of a qualified beneficiary of a first-time home buyer savings account; and (3) an
2160 account holder to annually submit to the department of revenue detailed information regarding
2161 the first-time home buyer savings account, including but not limited to a list of transactions for
2162 the account during the tax year, and identifying any supporting documentation that is required to
2163 be maintained by the account holder.

SECTION 113. Subsection (r) of section 6 of chapter 62 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out paragraph (1) and inserting in place thereof the following paragraph:-

(1) To the extent authorized by the life sciences tax incentive program established in section 5 of chapter 23I, a taxpayer may be allowed a refundable jobs credit against the tax liability imposed under this chapter in an amount and schedule determined by the Massachusetts Life Sciences Center, in consultation with the department. The credit allowed under this subsection shall be taken only after the taxpayer executes a contract under paragraph (2) of subsection (d) of section 5 of chapter 23I.

SECTION 114. Said section 6 of said chapter 62, as so appearing, is hereby further amended by striking out, in line 920, the figure “50” and inserting in place thereof the following figure:- 25.

SECTION 115. Subsection (r) of said section 6 of said chapter 62, as so appearing, is hereby amended by adding the following 2 paragraphs:-

(5) If the Massachusetts Life Sciences Center makes a determination to revoke a life sciences company pursuant to paragraph (4) of subsection (e) of section 5 of chapter 23I, a portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to the date of such determination shall be added back as additional tax due and shall be reported as such on the return of the taxpayer for the taxable period in which such determination is made. The amount of credits subject to recapture shall be proportionate to the life science company’s compliance, as determined by the Massachusetts Life Sciences Center as part of its revocation process and reported to the center and the department at the time certification is revoked.

2186 (6) Nothing in this subsection shall limit the authority of the commissioner to make an
2187 adjustment to a taxpayer's liability upon audit.

2188 SECTION 116. Said section 6 of said chapter 62, as so appearing, is hereby further
2189 amended by inserting after the word "facility", in line 1687, the following words:- in the case of
2190 an owner and not more than 50 per cent of the owner and tenant's combined total capital
2191 investment in a climatetech facility in the case of a tenant.

2192 SECTION 117. Said section 6 of said chapter 62, as so appearing, is hereby further
2193 amended by striking out, in line 1702, the words "has made a" and inserting in place thereof the
2194 following words:- and tenant have made a combined.

2195 SECTION 118. Subsection (hh) of said section 6 of said chapter 62, as so appearing, is
2196 hereby amended by striking out paragraph (1) and inserting in place thereof the following
2197 paragraph:-

2198 (1) A taxpayer, to the extent authorized by the climatetech tax incentive program
2199 established in section 16 of chapter 23J, may be allowed a refundable jobs credit against the tax
2200 liability imposed under this chapter in an amount and schedule determined by the Massachusetts
2201 clean energy technology center established in section 2 of said chapter 23J, in consultation with
2202 the department of revenue. The credit allowed under this section shall be taken only after the
2203 taxpayer executes a contract under paragraph (3) of subsection (d) of section 16 of chapter 23J.

2204 SECTION 119. Said subsection (hh) of said section 6 of said chapter 62, as so appearing,
2205 is hereby further amended by adding the following 2 paragraphs:-

2206 (6) If the Massachusetts clean energy technology center makes a determination to revoke
2207 the certification of a climatetech company pursuant to paragraph (2) of subsection (c) of section
2208 16 of chapter 23J, a portion of the tax credit otherwise allowed by this section and claimed by the
2209 taxpayer prior to the date of such determination shall be added back as additional tax due and
2210 shall be reported as such on the return of the taxpayer for the taxable period in which such
2211 determination is made. The amount of credits subject to recapture shall be proportionate to the
2212 certified climatetech company's compliance, as determined by the Massachusetts clean energy
2213 technology center as part of its revocation process and reported to the center and the department
2214 at the time certification is revoked.

2215 (7) Nothing in this subsection shall limit the authority of the commissioner to make an
2216 adjustment to a taxpayer's liability upon audit.

2217 SECTION 120. Section 6J of said chapter 62, as so appearing, is hereby amended by
2218 inserting after the word "criteria", in line 46, the following words:- , and there shall be a
2219 preference for projects that are adaptive reuse allowed as-of-right in commercially zoned districts
2220 pursuant to section 3C of chapter 40A.

2221 SECTION 121. Subsection (b) of section 21 of chapter 62C of the General Laws, as so
2222 appearing, is hereby amended by adding the following 3 clauses:-

2223 (32) the disclosure to the life sciences center established in section 3 of chapter 23I of
2224 return and wage reporting information of a life sciences company certified pursuant to subsection
2225 (b) of section 5 of chapter 23I, that is: (i) received by the commissioner pursuant to this chapter
2226 or chapter 62E; and (ii) necessary for the administration of the life sciences tax incentive
2227 program authorized by subsection (d) of section 5 of chapter 23I.

2228 (33) the disclosure to the clean energy technology center established in section 2 of
2229 chapter 23J of return and wage reporting information of a climatetech company certified
2230 pursuant to subsection (b) of section 16 of chapter 23J, that is: (i) received by the commissioner
2231 pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of the
2232 climatetech tax incentive program authorized by paragraph (1) of subsection (d) of section 16 of
2233 chapter 23J.

2234 (34) the disclosure to the clean energy technology center established in section 2 of
2235 chapter 23J of return and wage reporting information of an offshore wind company certified
2236 pursuant to subsection (b) of section 8A of chapter 23J, that is: (i) received by the commissioner
2237 pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of the offshore
2238 wind tax incentive program authorized by subsection (d) of section 8A of chapter 23J.

2239 SECTION 122. Section 6 of chapter 62F of the General Laws, as so appearing, is hereby
2240 amended by adding the following paragraph:-

2241 A credit under this section shall not be allowed if the department of revenue determines
2242 that the net state tax revenues in the fiscal year are less than 7.5 per cent of the total statewide
2243 personal income for the calendar year ending in the fiscal year as determined by the Bureau of
2244 Economic Analysis in the United States Department of Commerce.

2245 SECTION 123. The second paragraph of the definition of “Net income” in paragraph 4 of
2246 section 30 of chapter 63 of the General Laws, as amended by section 4 of chapter 65 of the acts
2247 of 2026, is hereby further amended by adding the following sentence:- For purposes of this
2248 paragraph, in the case of a taxpayer required to file a combined report pursuant to section 32B,
2249 where at least 1 member of the combined group is a marijuana establishment licensed pursuant to

chapter 94G or a medical marijuana establishment licensed pursuant to chapter 94I, amounts paid or incurred by any member of the combined group during the taxable year in carrying on the trade or business of such unitary business that would have been deductible under the Code, but for section 280E of said Code, shall be treated as amounts paid or incurred in carrying on such trade or business for purposes of this paragraph, without regard to whether the member that paid or incurred such amounts is the member that holds the license.

SECTION 124. Section 38R of said chapter 63, as appearing in the 2024 Official Edition, is hereby amended by inserting, after the word “criteria”, in line 45, the following words:- and there shall be a preference for projects that are adaptive reuse allowed as-of-right in commercially zoned districts pursuant to section 3C of chapter 40A.

SECTION 125. Section 38U of said chapter 63, as so appearing, is hereby amended by striking out, in lines 51 and 52, the words “neither credit allowed by section 31A nor section 31H is taken” and inserting in place thereof the following words:- the credit allowed by section 31H is not taken.

SECTION 126. Section 38CC of said chapter 63, as so appearing, is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) A taxpayer, to the extent authorized by the life sciences tax incentive program established in section 5 of chapter 23I, may be allowed a refundable jobs credit against the tax liability imposed under this chapter in an amount and schedule determined by the Massachusetts Life Sciences Center in consultation with the department. The credit allowed under this section shall be taken only after the taxpayer executes a contract under paragraph (2) of subsection (d) of section 5 of chapter 23I.

2272 SECTION 127. Said section 38CC of said chapter 63, as so appearing, is hereby further
2273 amended by striking out, in line 7, the figure “50” and inserting in place thereof the following
2274 figure:- 25.

2275 SECTION 128. Subsection (c) of said section 38CC of said chapter 63, as so appearing,
2276 is hereby amended by adding the following sentence:- If the taxpayer is subject to a minimum
2277 excise under this chapter, the amount of the credit allowed by this section shall not reduce the
2278 excise to an amount less than the minimum excise.

2279 SECTION 129. Said section 38CC of said chapter 63, as so appearing, is hereby further
2280 amended by striking out, in line 20, the figure “\$30,000,000” and inserting in place thereof the
2281 following figure:- \$40,000,000.

2282 SECTION 130. Said section 38CC of said chapter 63, as so appearing, is hereby further
2283 amended by adding the following 2 subsections:-

2284 (e) If the Massachusetts Life Sciences Center makes a determination to revoke the
2285 certification of a life sciences company pursuant to paragraph (4) of subsection (e) of section 5 of
2286 chapter 23I, a portion of the tax credit otherwise allowed by this section and claimed by the
2287 company prior to the date of such determination shall be added back as additional tax due and
2288 shall be reported as such on the return of the taxpayer for the taxable period in which such
2289 determination is made. The amount of credits subject to recapture shall be proportionate to the
2290 company’s compliance, as determined by the Massachusetts Life Sciences Center as part of its
2291 revocation process and reported to the corporation and the department at the time certification is
2292 revoked.

2293 (f) Nothing in this section shall limit the authority of the commissioner of revenue to
2294 make an adjustment to a corporation's liability upon audit.

2295 SECTION 131. Section 38RR of said chapter 63, as so appearing, is hereby amended by
2296 inserting after the word “facility”, in line 29, the following words:- in the case of an owner and
2297 not more than 50 per cent of the owner and tenant’s combined total capital investment in a
2298 climatetech facility in the case of a tenant.

2299 SECTION 132. Said section 38RR of said chapter 63, as so appearing, is hereby further
2300 amended by striking out, in lines 44 and 45, the words “owner’s total capital investment in the
2301 facility equals” and inserting in place thereof the following words:- owner and tenant have made
2302 a combined total capital investment in the facility that is.

2303 SECTION 133. Section 38TT of said chapter 63, as so appearing, is hereby amended by
2304 striking out subsection (a) and inserting in place thereof the following subsection:-

2305 (a) A taxpayer, to the extent authorized by the climatetech tax incentive program
2306 established in subsection (d) of section 16 of chapter 23J, may be allowed a refundable jobs
2307 credit against the tax liability imposed under this chapter in an amount and schedule as
2308 determined by the Massachusetts clean energy technology center established in section 2 of said
2309 chapter 23J, in consultation with the department of revenue. The credit allowed under this
2310 section shall be taken only after the taxpayer executes a contract pursuant to paragraph (3) of
2311 said subsection (d) of said section 16 of said chapter 23J.

2312 SECTION 134. Said section 38TT of said chapter 63, as so appearing, is hereby further
2313 amended by adding the following 2 subsections:-

2314 (e) If the Massachusetts clean energy technology center makes a determination to revoke
2315 the certification of a climatetech company pursuant to paragraph (2) of subsection (c) of section
2316 16 of chapter 23J, a portion of the tax credit otherwise allowed by this section and claimed by the
2317 taxpayer prior to the date of such determination shall be added back as additional tax due and
2318 shall be reported as such on the return of the taxpayer for the taxable period in which the
2319 determination to revoke the certification is made. The amount of credits subject to recapture shall
2320 be proportionate to the certified climatetech company's compliance, as determined by the
2321 Massachusetts clean energy technology center as part of its revocation process and reported to
2322 the corporation and the department at the time certification is revoked.

2323 (f) Nothing in this section shall limit the authority of the commissioner of revenue to
2324 make an adjustment to a corporation's liability upon audit.

2325 SECTION 135. Section 38UU of said chapter 63 is hereby repealed.

2326 SECTION 136. Paragraph (qq) of section 6 of chapter 64H of the General Laws, as
2327 appearing in the 2024 Official Edition, is hereby amended by striking out the first sentence and
2328 inserting in place thereof the following sentence:- Sales of gas, steam, electricity or heating fuel
2329 for use by any business that has not more than 10 employees and that had gross income of not
2330 more than \$2,000,000 for the preceding calendar year and that reasonably expects gross income
2331 of not more than \$2,000,000 for the current calendar year.

2332 SECTION 137. Section 2 of chapter 70B of the General Laws, as so appearing, is hereby
2333 amended by striking out, in lines 46 and 47, the words "and which meet the purposes of
2334 subsection (c) of section 9 of chapter 23J".

2335 SECTION 138. Chapter 75 of the General Laws is hereby amended by adding the
2336 following 2 sections:-

2337 Section 48. (a) As used in this section and section 49, the following words shall have the
2338 following meanings unless the context clearly requires otherwise:

2339 ”Center”, the center of excellence in nuclear and fusion technology established in
2340 subsection (b).

2341 “Fission energy technology”, technology related to the generation of energy through
2342 nuclear fission reactions including, but not limited to, reactor design, advanced and small
2343 modular reactor technologies, nuclear fuel cycle technologies, reactor materials and nuclear
2344 safety and security systems.

2345 “Fusion energy technology”, technology related to the generation of energy through
2346 nuclear fusion reactions including, but not limited to, plasma physics, superconducting magnet
2347 systems, tritium breeding and handling, inertial confinement fusion and fusion-fission hybrid
2348 systems.

2349 “LIBRA ONE project”, the tritium breeder blanket research program focused on the
2350 development of lithium-based tritium breeding systems for use in commercial fusion reactors.

2351 “PSFC”, the Plasma Science and Fusion Center at the Massachusetts Institute of
2352 Technology.

2353 “University”, the University of Massachusetts at Lowell.

2354 (b) There shall be within the university the center of excellence in nuclear fission energy
2355 technology and fusion energy technology. The center shall serve as the commonwealth’s primary

2356 institution for interdisciplinary research, workforce training and public-private collaboration in
2357 nuclear fission and fusion energy technology including, but not limited to, the LIBRA ONE
2358 project. The center shall be administered by the university, which may enter into contracts,
2359 subgrant agreements and other cooperative arrangements with other public and private
2360 institutions of higher education, national laboratories and research entities to carry out the
2361 objectives of the center. The center shall operate under the oversight of the university's board of
2362 trustees, which shall appoint an executive director.

2363 (c) The center shall:-

2364 (i) conduct basic and applied research in nuclear fission and fusion energy technology,
2365 including reactor science, plasma science, superconducting magnet engineering, tritium science,
2366 materials science and related fields;

2367 (ii) develop and operate laboratory facilities, experimental platforms and test beds for
2368 fission and fusion energy research including, but not limited to, the LIBRA ONE project;

2369 (iii) provide undergraduate, graduate and post-doctoral educational programs and
2370 workforce training in nuclear fission and fusion energy technology to support the
2371 commonwealth's nuclear energy sector;

2372 (iv) foster partnerships with private fission and fusion companies, national laboratories
2373 and other research universities in the commonwealth and nationwide;

2374 (v) support the commercialization of fission and fusion energy technologies developed at
2375 or in partnership with the center; and

2376 (vi) serve as a resource to state agencies on nuclear fission and fusion energy policy,
2377 regulation and economic development.

2378 (d) Annually, not later than September 1, the center shall submit a report detailing the
2379 center's activities, research programs, industry partnerships, workforce outcomes and financial
2380 status. The report shall be submitted to the governor and filed with the clerks of the senate and
2381 house of representatives.

2382 Section 49. (a) The university may enter into a contract or other agreement with the PSFC
2383 to carry out the LIBRA ONE project consistent with the objectives of the center established in
2384 section 48. An entity performing work under any such contract shall submit to the university a
2385 progress report detailing: (i) the use of prior-year grant funds; (ii) the current status of LIBRA
2386 ONE project milestones; (iii) the number of graduate students and post-doctoral researchers
2387 supported by the grant; and (iv) any publications, intellectual property filings or industry
2388 partnerships resulting from grant-funded work. The university shall transmit such progress
2389 reports to the executive office of economic development and may withhold further disbursement
2390 pending receipt and review of a satisfactory progress report.

2391 (b) Upon completion of the LIBRA ONE project or expiration of the grant term,
2392 whichever occurs first, the university shall submit a final report to the governor, the joint
2393 committee on economic development and emerging technologies and the senate and house
2394 committees on ways and means summarizing the scientific outcomes of the project, its
2395 implications for fission and fusion energy commercialization in the commonwealth and
2396 recommendations for future investment by the commonwealth in nuclear fission and fusion
2397 energy technologies.

2398 SECTION 139. The General Laws are hereby amended by inserting after chapter 80A the
2399 following chapter:-

2400 CHAPTER 80B

2401 RESIDENTIAL PROPERTY IMPROVEMENT FINANCING PROGRAM

2402 Section 1. As used in this chapter, the following words shall have the following meanings
2403 unless the context clearly requires otherwise:

2404 “Betterment assessment”, an assessment levied on qualifying residential property
2405 pursuant to chapter 80.

2406 “Municipality”, a city, town or county.

2407 “Program administrator”, a municipality or authorized legal entity operating a qualifying
2408 improvement financing program.

2409 “Property owner”, the owner or owners of record, excluding persons merely occupying
2410 the property.

2411 “Qualifying improvement”, permanent improvements to residential property including
2412 storm hardening, flood mitigation, energy efficiency, renewable energy, water conservation
2413 improvements, sewerage, roofing, repair and replacement of concrete foundations and other
2414 resiliency measures as further defined by regulation.

2415 “Qualifying improvement contractor”, a licensed or registered contractor who has been
2416 registered to participate by a program administrator to install or otherwise perform work to make
2417 qualifying improvements on residential property.

2418 “Residential property”, real property zoned residential or multifamily residential with
2419 four or fewer dwelling units.

2420 “Third-party administrator”, an entity under contract with a program administrator.

2421 Section 2. (a)(1) A municipality may, by a majority vote of the city or town council, by a
2422 majority vote of the board of selectmen or by resolution of its legislative body, as may be
2423 appropriate, authorize a residential property assessed clean energy program to finance qualifying
2424 improvements to residential property and shall assess, collect, remit and assign betterment
2425 assessments, in return for qualifying improvements for a benefitted property owner located
2426 within such municipality and for costs reasonably incurred in performing such acts. A program
2427 administrator may only offer a program for qualifying improvements to residential properties
2428 within a municipality that has adopted the program.

2429 (2) A municipality may enter into an interlocal agreement providing for a partnership
2430 between not less than 2 municipalities for the purpose of facilitating a program to finance
2431 qualifying improvements to residential property located within the jurisdiction of the
2432 municipalities that are party to the agreement.

2433 (3) A municipality may deauthorize a program administrator through repeal of the vote or
2434 the resolution adopted pursuant to paragraph (1). Any recorded financing agreements at the time
2435 of deauthorization shall continue, except as otherwise provided herein.

2436 (4) An authorized program administrator may contract with third-party administrators to
2437 implement the program as provided herein.

(5) An authorized program administrator may levy betterment assessments to facilitate repayment of financing qualifying improvements.

(6) Consistent with the requirements of chapter 80, betterment assessments levied pursuant to this section and the interest, fees and any penalties thereon shall constitute a lien against the qualifying residential property until they are paid, notwithstanding section 12 of chapter 80, and shall continue notwithstanding any alienation or conveyance of the qualifying residential property by the property owner to a new property owner. Betterment assessments shall have fixed interest rates based on market conditions and such rates shall not be capped by statutes or regulations intended to cover the interest rates of unsecured, credit-based finance options and shall not be limited by restrictions on other betterment financing. A new property owner shall take title to the qualifying residential property subject to the betterment assessment and related lien. The lien shall be levied and collected in the same manner as the property taxes of the participating municipality on real property, including, in the event of default or delinquency, with respect to any penalties, fees and lien priorities. Each lien may be continued, recorded and released upon repayment in full of the betterment assessment in the manner provided for property tax liens. If betterment assessments are paid in installments and any such installment is not paid when due, the betterment assessment lien may be foreclosed to the extent of any unpaid installment payments and any penalties, interest and fees related thereto.

(7) A program administrator may incur debt for the purpose of providing financing for qualifying improvements, which debt is payable from revenues received from the improved property or any other available revenue source authorized by law.

2459 (b) The owner of record of the residential property within the jurisdiction of an
2460 authorized program may apply to the authorized program administrator to finance a qualifying
2461 improvement. The program administrator shall only enter into a financing agreement with the
2462 property owner.

2463 Section 3. (a) Prior to entering into a financing agreement, the program administrator
2464 shall make each of the following findings based on a review of public records derived from a
2465 commercially accepted source and the property owner's statements, records and credit reports:
2466 (i) the total amount of any betterment assessment for a residential property under this section
2467 does not exceed 20 per cent of the fair market value of the property as determined by customary
2468 methods; (ii) the financing agreement does not utilize a negative amortization schedule, a balloon
2469 payment or prepayment fees or fines other than nominal administrative costs; (iii) the capitalized
2470 interest included in the original balance of the assessment financing agreement does not
2471 constitute negative amortization; (iv) all property taxes and any other assessments, including
2472 betterment assessments, levied on the same bill as the property taxes are current and have not
2473 been delinquent for the preceding 3 years, or the property owner's period of ownership,
2474 whichever is less; (v) there are no outstanding fines or fees related to zoning or code enforcement
2475 violations issued by a municipality, unless the qualifying improvement will remedy the zoning or
2476 code violation; (vi) there are no involuntary liens, including, but not limited to, construction liens
2477 on the residential property; (vii) no notices of default or other evidence of property based debt
2478 delinquency have been recorded or released during the preceding 3 years or the property owner's
2479 period of ownership, whichever is less; (viii) the property owner is current on all mortgage debt
2480 on the residential property; (ix) the property owner has not been subject to a bankruptcy
2481 proceeding within the last 5 years unless it was discharged or dismissed more than 2 years before

2482 the date on which the property owner applied for financing; (x) the residential property is not
2483 subject to an existing home equity conversion mortgage or reverse mortgage product; (xi) the
2484 term of the financing agreement does not exceed the weighted average useful life of the qualified
2485 improvements to which the greatest portion of funds disbursed under the assessment contract is
2486 attributable, not to exceed 30 years; (xii) the useful life of a qualifying improvement using
2487 established standards, including certification criteria from government agencies or nationally
2488 recognized standards and testing organizations; (xiii) the total estimated annual payment amount
2489 for all betterment assessments entered into under this section on the residential property does not
2490 exceed 10 per cent of the property owner's annual household income; and (xiv) the property
2491 owner's income has been confirmed using reasonable evidence and not relying solely on a
2492 property owner's statement.

2493 (b) A property owner and the program administrator may agree to include in the
2494 financing agreement provisions for allowing change orders necessary to complete the qualifying
2495 improvement. Any financing agreement or contract for qualifying improvements which includes
2496 such provisions shall meet the requirements of this paragraph. If a proposed change order on a
2497 qualifying improvement is expected to increase the original cost of the qualifying improvement
2498 by not less than 20 per cent or is expected to expand the scope of work for the qualifying
2499 improvement by more than 20 per cent, before the change order may be executed which would
2500 result in an increase in the amount financed through the program administrator for the qualifying
2501 improvement, the program administrator shall notify the property owner, provide an updated
2502 written disclosure form as described in subsection (d) to the property owner and obtain written
2503 approval of the change from the property owner.

2504 (c) A financing agreement shall not be entered into: (i) if the total cost of the qualifying
2505 improvement, including program fees and interest, is less than \$5,000; or (ii) for qualifying
2506 improvements in buildings or facilities under new construction or construction for which a
2507 certificate of occupancy or similar evidence of substantial completion of new construction or
2508 improvement has not been issued.

2509 (d) A financing agreement shall not be executed unless the program administrator first
2510 provides, including via electronic means, a written financing estimate and disclosure to the
2511 property owner which includes all of the following, each of which shall be individually
2512 acknowledged in writing by the property owner: (i) the estimated total amount to be financed,
2513 including the total and itemized cost of the qualifying improvement, program fees and
2514 capitalized interest; (ii) the estimated annual betterment assessment; (iii) the term of the
2515 financing agreement and the schedule for the betterment assessments; (iv) the interest charged
2516 and estimated annual percentage rate; (v) a description of the qualifying improvement; (vi) the
2517 total estimated annual costs that will be required to be paid under the assessment contract,
2518 including program fees; (vii) the total estimated average monthly equivalent amount of funds
2519 that would need to be saved in order to pay the annual costs of the betterment assessment,
2520 including program fees; (viii) the estimated due date of the first payment that includes the
2521 betterment assessment; (ix) a disclosure that the financing agreement may be canceled within 3
2522 business days after signing the financing agreement without any financial penalty for doing so;
2523 (x) a disclosure that the property owner may repay any remaining amount owed, at any time,
2524 without penalty or imposition of additional prepayment fees or fines other than nominal
2525 administrative costs; (xi) disclosure that if the property owner sells or refinances the residential
2526 property, the property owner may be required by a mortgage lender to pay off the full amount

2527 owed under each financing agreement under this section; (xii) a disclosure that the assessment
2528 will be collected along with the property owner's property taxes and will result in a lien on the
2529 property from the date the financing agreement is recorded; (xiii) a disclosure that potential
2530 utility or insurance savings are not guaranteed and will not reduce the assessment amount; and
2531 (xiv) a disclosure that failure to pay the assessment may result in penalties, fees, including
2532 attorney fees, court costs and the issuance of a tax certificate that could result in the property
2533 owner losing the property and a judgment against the property owner and may affect the property
2534 owner's credit rating.

2535 (e) Prior to the financing agreement being approved, the program administrator shall
2536 conduct an oral, recorded telephone call with the property owner during which the program
2537 administrator shall confirm each finding or disclosure required in this section.

2538 Section 4. Not less than 5 business days before entering into a financing agreement, the
2539 property owner shall provide to the holders or loan servicers of any existing mortgages
2540 encumbering or otherwise secured by the residential property a written notice of the owner's
2541 intent to enter into a financing agreement together with the maximum amount to be financed,
2542 including the amount of any fees and interest, and the maximum annual assessment necessary to
2543 repay the total. A verified copy or other proof of such notice shall be provided to the program
2544 administrator. A provision in any agreement between a mortgagor or other lienholder and a
2545 property owner, or otherwise now or hereafter binding upon a property owner, which allows for
2546 acceleration of payment of the mortgage, note or lien or other unilateral modification solely as a
2547 result of entering into a financing agreement as provided for in this section is unenforceable. This
2548 subsection shall not limit the authority of the holder or loan servicer to increase the required
2549 monthly escrow by an amount necessary to pay the annual assessment.

2550 Section 5. A property owner may cancel a financing agreement on a form established by
2551 the program administrator within 3 business days after signing the financing agreement without
2552 any financial penalty.

2553 Section 6. A financing agreement executed pursuant to this section, or a summary
2554 memorandum of such agreement, shall be submitted for recording in the appropriate public
2555 records of the municipality within which the residential property is located by the program
2556 administrator within 10 business days after execution of the agreement and the 3-day
2557 cancellation period. A notice of lien for the full amount of the financing shall may be recorded in
2558 the public records of the county where the property is located. Such lien is not enforceable in a
2559 manner that results in the acceleration of the remaining nondelinquent unpaid balance under the
2560 assessment financing agreement.

2561 Section 7. At or before the time a seller executes a contract for the sale of any residential
2562 property for which a betterment assessment has been levied under this section and has an unpaid
2563 balance due, the seller shall give the prospective purchaser a written disclosure statement in the
2564 following form, which shall be set forth in the contract or in a separate writing:

2565 “QUALIFYING IMPROVEMENTS.—The property being purchased is subject to an
2566 assessment on the property pursuant to chapter 80 of the Massachusetts General Laws. The
2567 assessment is for a qualifying improvement to the property and is not based on the value of the
2568 property. You are encouraged to contact the property appraiser’s office to learn more about this
2569 and other assessments that may be provided by law.”.

2570 Section 8. Before disbursing any funds to a qualifying improvement contractor for a
2571 qualifying improvement on residential property, the program administrator shall confirm that the

2572 applicable work or service has been completed by verifying, through a geolocation verification
2573 application, or as applicable, that the final permit for the qualifying improvement has been closed
2574 with all permit requirements satisfied or a certificate of occupancy or similar evidence of
2575 substantial completion of construction or improvement has been issued.

2576 Section 9. (a) A program administrator or its third-party administrator shall establish a
2577 process to register contractors for participation in a program authorized by a municipality
2578 pursuant to this chapter. A qualifying improvement contractor may only perform such work that
2579 the contractor is appropriately licensed, registered and permitted to conduct. At the time of
2580 application to participate and during participation in the program, contractors shall: (i) hold all
2581 necessary licenses or registrations for the work to be performed which are in good standing; (ii)
2582 comply with all applicable federal, state and local laws and regulations, including obtaining and
2583 maintaining any other permits, licenses or registrations required for engaging in business in the
2584 jurisdiction in which it operates and maintaining all state-required bond and insurance coverage;
2585 and (iii) file with the program administrator a written statement that the contractor will comply
2586 with applicable laws and rules and qualifying improvement program policies and procedures,
2587 including those on advertising and marketing.

2588 (b) A third-party administrator or a program administrator, either directly or through an
2589 affiliate, shall not be registered as a qualifying improvement contractor.

2590 (c) A program administrator shall establish and maintain: (i) a process to monitor
2591 qualifying improvement contractors for performance and compliance with requirements of the
2592 program and shall conduct regular reviews of qualifying improvement contractors to confirm that
2593 each qualifying improvement contractor is in good standing; and (ii) procedures for notice and

2594 imposition of penalties upon a finding of violation, which may consist of placement of the
2595 qualifying improvement contractor in a probationary status that places conditions for continued
2596 participation, suspension or termination from participation in the program.

2597 Section 10. (a) A program administrator may contract with third-party administrators to
2598 administer a program authorized by a municipality pursuant to this chapter on behalf of and at
2599 the discretion of the program administrator.

2600 (b) The third-party administrator shall be independent of the program administrator and
2601 have no conflicts of interest between managers or owners of the third-party administrator and
2602 program administrator managers, owners, officials, or employees with oversight over the
2603 contract. A program administrator, either directly or through an affiliate, shall not act as a third-
2604 party administrator for itself or for another program administrator.

2605 (c) The contract shall provide for the entity to administer the program according to the
2606 requirements set forth herein and the terms of the vote or resolution by which the municipality
2607 authorized the program; provided, however, that only the program administrator may levy or
2608 administer betterment assessments.

2609 The program administrator shall include in any contract with the third-party administrator
2610 the right to perform annual reviews of the administrator to confirm compliance with the
2611 requirements set forth herein, the terms of the vote or resolution by which the municipality
2612 authorized the program, and the contract with the program administrator.

2613 Section 11. (a) When communicating with a property owner, a program administrator,
2614 qualifying improvement contractor or third-party administrator shall not suggest or imply: (i) that
2615 a betterment assessment authorized under this chapter is a government assistance program; (ii)

that qualifying improvements are free or provided at no cost, or that the financing related to a betterment assessment authorized under this chapter is free or provided at no cost; or (iii) that the financing of a qualifying improvement using the program authorized pursuant to this chapter does not require repayment of the financial obligation.

(b) When communicating with a property owner, a program administrator, qualifying improvement contractor or third-party administrator shall not: (i) make any representation as to the tax deductibility of a betterment assessment; (ii) provide to a qualifying improvement contractor any information that discloses the amount of financing for which a property owner is eligible for qualifying improvements or the amount of equity in a residential property; (iii) advertise the availability of betterment assessments for, or solicit program participation on behalf of, the program administrator unless the contractor is registered by the program administrator to participate in the program and is in good standing with the program administrator; (iv) provide any payment, fee or kickback to a qualifying improvement contractor for referring property owners to the program administrator or third-party administrator; provided, however, that a program administrator or third-party administrator may provide information to a qualifying improvement contractor to facilitate the installation of a qualifying improvement for a property owner; (v) reimburse a qualifying improvement contractor for its expenses in advertising and marketing campaigns and materials; or (vi) provide any direct cash payment or other thing of material value to a property owner which is explicitly conditioned upon the property owner entering into a financing agreement; provided, however, that a program administrator or third-party administrator may offer programs or promotions on a nondiscriminatory basis that provide reduced fees or interest rates if the reduced fees or interest rates are reflected in the betterment assessments and are not provided to the property owner as cash consideration.

(c) A program administrator, qualifying improvement contractor or third-party administrator may encourage a property owner to seek the advice of a tax professional regarding tax matters related to assessments.

Section 12. (a) A recorded financing agreement shall not be removed from attachment to a residential property if the property owner fraudulently obtained funding pursuant to this chapter. A financing agreement shall not be enforced, and a recorded financing agreement may be removed from attachment to a residential property and deemed null and void, if: (i) the property owner applied for, accepted and canceled a financing agreement within the 3-business-day period pursuant to this chapter; provided, however, that a qualifying improvement contractor shall not begin work under a canceled contract; (ii) a person other than the property owner obtained the recorded financing agreement; provided, however, that the court may enter an order which holds a person personally liable for the debt; or (iii) the program administrator, third-party administrator or qualifying improvement contractor approved or obtained funding through fraudulent means and in violation of this chapter for qualifying improvements on the residential property.

(b) If a qualifying improvement contractor has initiated work on residential property under a contract deemed unenforceable under this section, the qualifying improvement contractor shall: (i) not receive compensation for that work under the financing agreement; (ii) restore the residential property to its original condition at no cost to the property owner; and (iii) immediately return any funds, property and other consideration given by the property owner. If the property owner provided any property and the qualifying improvement contractor does not or cannot return it, the qualifying improvement contractor shall immediately return the fair market value of the property or its value as designated in the contract, whichever is greater.

(c) If the qualifying improvement contractor has delivered chattel or fixtures to residential property pursuant to a contract deemed unenforceable under this section, the qualifying improvement contractor has 90 days after the date on which the contract was executed to retrieve the chattel or fixtures; provided, however, that: (i) the qualifying improvement contractor has fulfilled the requirements of subsections (a) and (b) of section 3; and (ii) the chattel and fixtures can be removed at the qualifying improvement contractor's expense without damaging the residential property.

(d) If a qualifying improvement contractor fails to comply with this section, the property owner may retain any chattel or fixtures provided pursuant to a contract deemed unenforceable under this section.

(e) A contract that is otherwise unenforceable under this section shall remain enforceable if the property owner waives the owner's right to cancel the contract or cancels the financing agreement pursuant to the provisions of this chapter, but allows the qualifying improvement contractor to proceed with the installation of the qualifying improvement.

Section 13. Each program administrator that is authorized to administer a program for financing qualifying improvements to residential property under this section shall post on its website an annual report within 45 days after the end of each fiscal year containing the following information from the previous year for each program authorized under the provisions of this chapter: (i) the number and types of qualifying improvements funded; and (ii) the aggregate, average and median dollar amounts of annual betterment assessments and the total number of betterment assessments collected pursuant to financing agreements for qualifying improvements.

2683 SECTION 140. Section 1 of chapter 90 of the General Laws, as appearing in the 2024
2684 Official Edition, is hereby amended by inserting after the definition of “Class 2 electric bicycle”
2685 the following definition:-

2686 “Class 3 electric bicycle”, an electric bicycle or tricycle equipped with a motor that
2687 provides assistance only when the rider is pedaling and that ceases to provide assistance when
2688 the bicycle reaches or exceeds the speed of 28 miles per hour.

2689 SECTION 141. Said section 1 of said chapter 90, as so appearing, is hereby further
2690 amended by inserting after the definition of “Cross-over mirror” the following definition:-

2691 “Cycle”, a powered or unpowered device with functional human-powered pedals or a
2692 device without human-powered pedals on which a rider is seated during operation, including
2693 bicycles as defined in section 1 of chapter 90E.

2694 SECTION 142. Said section 1 of said chapter 90, as so appearing, is hereby further
2695 amended by striking out, in line 104, the words “or a class 2 electric bicycle” and inserting in
2696 place thereof the following words:- , a class 2 electric bicycle or a class 3 electric bicycle;
2697 provided, however, that “electric bicycle” shall not include a motorized bicycle.

2698 SECTION 143. Said section 1 of said chapter 90, as so appearing, is hereby further
2699 amended by inserting after the definition of “Massachusetts license” the following definition:-

2700 “Micromobility device”, a small, lightweight transportation device intended for personal
2701 use as an alternative to motor vehicles for travel in public access areas, including ways and
2702 bikeways, and as may be further defined by regulations promulgated by the registrar; provided,

2703 however, that a “micromobility device” shall not include a motor vehicle, motorcycle, motorized
2704 bicycle or moped, low speed vehicle, limited use motorcycle or low speed motorcycle.

2705 SECTION 144. Said section 1 of said chapter 90, as so appearing, is hereby further
2706 amended by inserting after the definition of “Mobile telephone” the following definition:-

2707 “Mobility aid device”, a device used by a pedestrian with a mobility disability to assist
2708 with indoor and outdoor locomotion, including an electric personal assistive mobility device
2709 used by a vulnerable user, a group wheelchair, a mobility cart and other such devices.

2710 SECTION 145. Said section 1 of said chapter 90, as so appearing, is hereby further
2711 amended by striking out the definition of “Motorized bicycle” and inserting in place thereof the
2712 following definition:-

2713 “Motorized bicycle”, a pedal bicycle that has a helper motor or a nonpedal bicycle that:
2714 (i) has a motor with a cylinder capacity not exceeding 50 cubic centimeters or the hybrid or
2715 electric powered equivalent; (ii) has an automatic transmission; and (iii) is capable of a
2716 maximum speed of not more than 30 miles per hour; provided, however, that “motorized
2717 bicycle” shall not include an electric bicycle; and provided further, that “motorized bicycle shall
2718 include a moped.

2719 SECTION 146. Said section 1 of said chapter 90, as so appearing, is hereby further
2720 amended by striking out the definition of “Motorized scooter”.

2721 SECTION 147. Said section 1 of said chapter 90, as so appearing, is hereby further
2722 amended by inserting after the definition of “Motor vehicles” the following definition:-

2723 “Nationally recognized testing laboratory”, as defined in 29 C.F.R 1910.7.

2724 SECTION 148. Said section 1 of said chapter 90, as so appearing, is hereby further
2725 amended by inserting after the definition of “Police officer” the following definition:-

2726 “Powered micromobility device”, a micromobility device that has an onboard motor
2727 capable of delivering tractive power to the device as power-assist to human-powered propulsion
2728 or as sole propulsion or throttle including, but not limited to, electric scooters, skateboards,
2729 hoverboards and unicycles with onboard motors; provided, however, that “powered
2730 micromobility device” shall not include mobility aid devices.

2731 SECTION 149. Said section 1 of said chapter 90, as so appearing, is hereby further
2732 amended by inserting after the definition of “School pupil” the following definition:-

2733 “Scooter”, a powered or unpowered device without pedals where the rider can sit or stand
2734 on a footboard for typical operation.

2735 SECTION 150. Said section 1 of said chapter 90, as so appearing, is hereby further
2736 amended by inserting after the definition of “Semi-trailer unit” the following definition:-

2737 “Solely human-powered micromobility device”, a micromobility device propelled
2738 exclusively by human muscular effort that has no onboard motor capable of delivering tractive
2739 power to the device including, but not limited to, nonelectric bicycles, unpowered scooters,
2740 skateboards, longboards, unicycles, roller skates, inline skates and any such other unpowered
2741 micromobility devices; provided, however, that “solely human-powered micromobility device”
2742 shall not include mobility aid devices.

2743 SECTION 151. The first paragraph of section 1B of said chapter 90, as so appearing, is
2744 hereby amended by striking out the last sentence and inserting in place thereof the following 2

2745 sentences:- A motorized bicycle shall not be operated upon any way within the commonwealth
2746 without obtaining an annual registration and sticker or plate bearing a distinctive number, by an
2747 application as prescribed by the registrar. Motorized bicycles shall be excluded from operating
2748 on bike lanes and off-street recreational bicycle paths.

2749 SECTION 152. Said section 1B of said chapter 90, as so appearing, is hereby further
2750 amended by adding the following paragraph:-

2751 No motorized bicycle shall be registered under this section unless the application is
2752 accompanied by a certificate as defined in section 34A or unless the registrar is otherwise
2753 satisfied that the applicant and motorized bicycle have compulsory liability insurance.

2754 SECTION 153. Section 1C of said chapter 90, as so appearing, is hereby amended by
2755 striking out, in line 1, the words “and motorized scooters”.

2756 SECTION 154. Section 1E of said chapter 90 is hereby repealed.

2757 SECTION 155. Said chapter 90 is hereby further amended by inserting after section 2 the
2758 following section:-

2759 Section 21/2. (a) The registrar of motor vehicles may issue number or registration plates
2760 for motor vehicles or micromobility devices not otherwise defined in section 1; provided,
2761 however, that a motor vehicle or micromobility device shall not be eligible to be registered
2762 pursuant to chapter 90B.

2763 (b) The registrar, in consultation with the division of insurance, may promulgate
2764 regulations, including, but not limited to: (i) definitions for each type of motor vehicle or
2765 micromobility devices not otherwise defined in section 1; (ii) requirements for registration and

2766 operation; (iii) any restrictions for registration and operation; (iv) equipment requirements; (v)
2767 inspection requirements; and (vi) insurance required for such motor vehicles and micromobility
2768 devices.

2769 SECTION 156. Section 2F of said chapter 90, as appearing in the 2024 Official Edition,
2770 is hereby amended by striking out, in line 4, the figure “\$100,000” and inserting in place thereof
2771 the following figure:- \$50,000.

2772 SECTION 157. Section 8B of said chapter 90, as so appearing, is hereby amended by
2773 striking out, in line 20, the words “or motorized scooter”.

2774 SECTION 158. Section 17 of said chapter 90, as so appearing, is hereby amended by
2775 striking out, in lines 9 and 11, the words “for a distance of a quarter of a mile”, each time they
2776 appear.

2777 SECTION 159. Said section 17 of said chapter 90, as so appearing, is hereby further
2778 amended by striking out, in line 13, the words “for a distance of one-eighth of a mile”.

2779 SECTION 160. Said chapter 90 is hereby further amended by adding the following
2780 section:-

2781 Section 64. (a) For purposes of this section, the following words shall have the following
2782 meanings unless the context clearly requires otherwise:

2783 “Maximum designed speed tier classification system”, the system by which
2784 micromobility devices are categorized according to the maximum speed, measured in miles per
2785 hour, that the manufacturer designed the device to attain on a flat surface in normal conditions by
2786 an average rider.

2787 “Shared use path”, a path intended for transportation or recreational use that is designed
2788 for people of all ages and abilities on foot or using motorized or non-motorized micromobility
2789 devices and is physically separated from motorized vehicle traffic within a highway right-of-way
2790 or an independent right-of-way with few crossflows with motor vehicles.

2791 “Speed tier 0”, all unpowered micromobility devices and powered micromobility devices
2792 with a maximum manufacturer assisted or designed speed, whichever is higher, of not more than
2793 20 miles per hour, including, but not limited to, unpowered micromobility devices, class 1 and
2794 class 2 electric bicycles and mobility aid devices.

2795 “Speed tier 1”, a powered micromobility device with a maximum manufacturer assisted
2796 or designed speed, whichever is higher, of not less than 21 miles per hour and not more than 30
2797 miles per hour, including, but not limited to, class 3 electric bicycles.

2798 “Speed tier 2”, a powered micromobility device with a maximum manufacturer assisted
2799 or designed speed, whichever is higher, of not less than 31 miles per hour and not more than 40
2800 miles per hour; provided, however, that “speed tier 2” shall not include low speed vehicles,
2801 limited use motorcycles or low speed motorcycles.

2802 “Speed tier 3”, a powered micromobility device with a maximum manufacturer assisted
2803 or designed speed, whichever is higher, greater than 40 miles per hour.

2804 (b) Except as otherwise provided by state or federal law or by regulations of the registrar,
2805 powered micromobility devices sold, leased, rented or operated in the commonwealth shall have
2806 a minimum battery rating of UL 2271 or equivalent standard, as certified by a nationally
2807 recognized testing laboratory.

2808 (c) Except as otherwise provided by state or federal law or by regulations of the registrar,
2809 powered micromobility devices sold, leased, rented or operated in the commonwealth, except
2810 electric bicycles, shall have a minimum electrical system level rating of UL 2272 or equivalent
2811 standard, as certified by a nationally recognized testing laboratory. Electric bicycles sold, leased,
2812 rented or operated in the commonwealth shall have a minimum electrical system level rating of
2813 UL 2849 or equivalent standard, as certified by a nationally recognized testing laboratory.

2814 (d) Except as otherwise provided by state or federal law or by regulations of the registrar,
2815 motorized bicycles or mopeds powered by a lithium-ion battery sold, leased, rented or operated
2816 in the commonwealth shall have a minimum electrical system level rating UL 2850 or equivalent
2817 standard, as certified by a nationally recognized testing laboratory.

2818 (e)(1)(A) Except as otherwise required by state or federal law or by regulations of the
2819 registrar, speed tier 0 and speed tier 1 micromobility devices sold, leased, rented or operated in
2820 the commonwealth shall be equipped with lights, brakes and an audible warning that satisfy the
2821 requirements of section 11B of chapter 85 and federal requirements for bicycle reflectors and
2822 brakes established in 16 C.F.R. 1512.

2823 (B) Except as otherwise required by state or federal law or by regulations of the registrar,
2824 speed tier 2 and speed tier 3 micromobility devices sold, leased, rented or operated in the
2825 commonwealth shall be equipped with lights, brakes and a horn that satisfy the requirements for
2826 motor vehicles established in 49 C.F.R. 571.

2827 (2)(A) Except as otherwise provided by state or federal law or by regulations of the
2828 registrar, a person who is 16 years of age or younger who operates a speed tier 0 micromobility
2829 device, except for a mobility aid device, or is being carried as a passenger on such micromobility

2830 device on a public way, bicycle path or on any other public right-of-way shall wear a helmet.
2831 The helmet shall fit the person's head, shall be secured to the person's head by straps while the
2832 micromobility device is being operated and shall meet the standards for helmets established by
2833 the United States Consumer Product Safety Commission pursuant to 16 C.F.R. 1203. This
2834 subparagraph shall not apply to a passenger if the passenger is in an enclosed trailer or other
2835 device which adequately holds the passenger in place and protects the passenger's head from
2836 impact in a crash.

2837 (B) Except as otherwise provided by state or federal law or by regulations of the registrar,
2838 any person operating a speed tier 1, 2 or 3 micromobility device or riding as a passenger on a
2839 micromobility device shall wear protective headgear conforming with such minimum standards
2840 of construction and performance as the registrar may prescribe and no person operating such a
2841 micromobility device shall permit any other person to ride as a passenger on such micromobility
2842 device unless such passenger is wearing protective headgear. The registrar may, by regulation,
2843 vary any such requirement by speed tier, device type or circumstance of operation.

2844 (3) Except as otherwise required by state or federal law or by regulations of the registrar,
2845 no person who is not more than 16 years of age shall purchase, rent, lease or operate any
2846 micromobility device designated as a speed tier 1, speed tier 2 or speed tier 3 micromobility
2847 device; provided, however, that this restriction shall not apply to any such person operating a
2848 mobility aid device.

2849 (4) Except as otherwise required by state or federal law or by regulations of the registrar,
2850 no person who is not more than 14 years of age shall purchase, rent, lease or operate a powered
2851 micromobility device, motorized bicycle or moped designated as a speed tier 0, speed tier 1,

2852 speed tier 2 or speed tier 3 micromobility device; provided, however, that this restriction shall
2853 not apply to any such person operating a solely human-powered micromobility device,
2854 unpowered micromobility device or mobility aid device.

2855 (5) No person shall operate a micromobility device with more passengers than the device
2856 was designed to accommodate by the manufacturer, except as may be allowed by regulation.

2857 (6)(A) Except as otherwise provided by state or federal law or by regulations of the
2858 registrar, speed tier 0 micromobility devices and the operator of a speed tier 0 micromobility
2859 device shall be afforded all of the rights and privileges and shall be subject to all of the duties of
2860 the operator of a bicycle or duties related to a bicycle set forth in sections 11B and 11B1/2 of
2861 chapter 85 or any other general or special law, regulation or local ordinance.

2862 (B) Except as otherwise provided by state or federal law or by regulations of the registrar,
2863 speed tier 1 micromobility devices and the operator of such speed tier 1 micromobility device
2864 shall be afforded all of the rights and privileges and shall be subject to all of the duties of the
2865 operator of an electric bicycle or duties related to an electric bicycle set forth in section 11B3/4
2866 of chapter 85 or any other general or special law, regulation or local ordinance.

2867 (C) Except as otherwise provided by state or federal law or by regulations of the registrar,
2868 no person shall operate a speed tier 2 or speed tier 3 micromobility travel on sidewalks, bike
2869 lanes, bike paths, bike routes, separated micromobility lanes or shared use paths.

2870 (f) No person shall make any aftermarket modifications to a micromobility device,
2871 including aftermarket modifications made to the device's battery, to increase either the
2872 manufacturer-designed: (i) speed, range or propulsion power of a micromobility device; or (ii)
2873 passenger capacity of a micromobility device, except as may be allowed by regulation.

2874 (g) No micromobility device shall be sold, rented, leased or operated in the
2875 commonwealth if it does not satisfy the requirements of this section for the device's respective
2876 speed tier based on the device's maximum manufacturer assisted or designed speed, whichever is
2877 higher.

2878 (h) Micromobility devices shall be subject to all speed limits and speed restrictions for
2879 motor vehicles established by: (i) municipalities or the division of highways within the
2880 Massachusetts Department of Transportation pursuant to sections 17 and 18; (ii) regulations of
2881 the department under chapter 90E; or (iii) rules and regulations of the department of
2882 conservation. A violation of such speed limits and speed restrictions shall be subject to all civil
2883 and criminal fines applicable to the operation of a motor vehicle in violation of such speed limits
2884 and restrictions. Micromobility devices shall be subject to all civil and criminal fines and
2885 penalties applicable to the operation of a motor vehicle under sections 24 to 24R, inclusive, 24V
2886 and 25; provided, however, that administrative penalties shall not apply unless provided by
2887 regulations of the registrar. No micromobility device shall be subject to insurance requirements
2888 relative to said sections 24 to 24R, inclusive, 24V and 25 unless so provided by regulations
2889 promulgated by the registrar.

2890 (i) The registrar, in consultation with the division of insurance, may promulgate
2891 regulations establishing registration, licensure, insurance, fines and other requirements for
2892 micromobility devices necessary to promote public and roadway safety.

2893 SECTION 161. Chapter 90E of the General Laws is hereby amended by striking out
2894 section 1, as appearing in the 2024 Official Edition, and inserting in place thereof the following
2895 section:-

2896 Section 1. For the purposes of this chapter, the following words shall have the following
2897 meanings unless the context clearly requires otherwise:

2898 “Bicycle”, a 2-wheel nonmotor-powered vehicle.

2899 “Bicycle parking facility”, any facility for the temporary storage of bicycles or
2900 micromobility devices that allows the frame and the wheels of the bicycle or micromobility
2901 device to be locked so as to minimize the risk of theft and vandalism.

2902 “Bike lane”, a lane on a street restricted to bicycles and speed tier 0 or speed tier 1
2903 micromobility devices as defined in section 64 of chapter 90 and so designated by means of
2904 painted lines, pavement coloring or other appropriate markings; provided, however, that
2905 motorized bicycles shall not be permitted to use bike lanes.

2906 “Bike path”, a route for the exclusive use of bicycles and speed tier 0 or speed tier 1
2907 micromobility devices, separated by grade or other physical barrier from motor traffic; provided,
2908 however, that motorized bicycles shall not be permitted to use bike paths.

2909 “Bike route”, a roadway shared by bicycles, micromobility devices and other forms of
2910 transportation designated by the means of signs or pavement markings.

2911 “Bikeway”, bike paths, bike lanes and bike routes.

2912 “Commissioner”, the administrator for highways.

2913 “Department”, the division of highways.

2914 “Shared use path”, a path intended for transportation or recreational use that is designed
2915 for people of all ages and abilities on foot or using motorized or non-motorized micromobility

2916 devices and is physically separated from motorized vehicle traffic within a highway right-of-way
2917 or an independent right-of-way with few crossflows with motor vehicles.

2918 SECTION 162. Section 2 of said chapter 90E, as so appearing, is hereby amended by
2919 adding the following paragraph:-

2920 The maximum speed for micromobility devices as defined in section 1 of chapter 90 on
2921 shared use paths shall be 20 miles per hour unless otherwise provided by the municipality in
2922 which the shared use path is located. Nothing in this paragraph shall be construed as prohibiting
2923 or limiting a municipality from setting a maximum speed for a shared use path located within its
2924 boundaries.

2925 SECTION 163. The General Laws are hereby amended by inserting after chapter 90K the
2926 following chapter:-

2927 CHAPTER 90L.

2928 AUTOMATED ROAD SAFETY ENFORCEMENT PROGRAM.

2929 Section 1. For the purposes of this chapter, the following words shall have the following
2930 meanings unless the context clearly requires otherwise:

2931 “Automated road safety camera system”, an automated motor vehicle sensor device that
2932 produces digital photographs, video or other images of a motor vehicle that commits a speed
2933 camera enforceable violation at the location where the automated motor vehicle sensor device is
2934 installed.

2935 “Department”, the Massachusetts Department of Transportation.

2936 “Enforcing authority”, (i) the municipal entity designated by the city manager in a city
2937 with a Plan D or E form of government, the mayor in all other cities or the select board in a
2938 town; (ii) the department; or (iii) such other person, contractor or entity as the municipal entity or
2939 the department may designate to supervise and coordinate the administration of speed camera
2940 enforceable violations under this chapter.

2941 “Registrar”, the registrar of motor vehicles.

2942 “Secretary”, the secretary of transportation.

2943 “Social and racial equity”, efforts, policies, standards, processes and any other functions
2944 of government intended to ensure that patterns of discrimination against and disparities of race,
2945 ethnicity or socioeconomic status, whether intentional or unintentional, are neither reinforced nor
2946 perpetuated and to prevent the emergence and persistence of foreseeable future patterns of
2947 discrimination against or disparities of race, ethnicity or socioeconomic status.

2948 “Speed camera enforceable violation”, exceeding the posted speed limit in violation of
2949 section 17, section 17C, section 17D or section 18 of chapter 90, by: (i) 11 miles per hour or
2950 more in a school zone established by a city or town pursuant to section 2 of chapter 85, when a
2951 school zone speed limit is in effect; or (ii) 11 miles per hour or more in an active construction or
2952 work zone, or a designated safety zone established pursuant to section 18B of said chapter 90.

2953 Section 2. (a) There shall be within the division of highways an automated road safety
2954 enforcement program. The division shall establish by regulation the requirements, standards and
2955 processes for participation in the automated road safety enforcement program for municipalities
2956 and issue a procurement pursuant to which enforcing authorities may obtain road safety camera
2957 systems and other related services to implement speed camera enforcement of violations. An

2958 enforcing authority may install automated road safety camera systems as a means of promoting
2959 traffic safety. The automated road safety camera systems may be placed: (i) by a municipality
2960 along any school zone established by the city or town pursuant to section 2 of chapter 85; (ii) by
2961 a municipality along any safety zone established by the city or town as provided in section 18B
2962 of chapter 90; or (iii) by the department in any active construction or work zone.

2963 Nothing in this section shall be construed as limiting the authority of law enforcement to
2964 issue citations for speeding violations pursuant to section 2 of chapter 90C.

2965 (b) An enforcing authority shall not employ more than 1 automated road safety camera
2966 system per 5,000 residents as measured by using the most recent census data. Plans for locating
2967 automated road safety camera systems shall be approved by the select board in a town, or by the
2968 city council and the mayor in a city. Nothing in this paragraph shall limit the department from
2969 employing an automated road safety camera system in a construction or work zone, irrespective
2970 of the number of automated road safety camera systems in use in the city or town in which the
2971 work zone exists.

2972 (c) Annually, not later than December 1, a participating city or town shall transmit a
2973 report to the department detailing each automated road safety camera system located in the city
2974 or town during the previous fiscal year. The report shall be in the form and manner determined
2975 by the department and shall include, but not be limited to: (i) a list of the locations of the
2976 automated road safety camera system in the city or town; (ii) the number of fines and warnings
2977 issued for each separate location; (iii) the number of fines and warnings successfully contested
2978 for each separate location's speed camera enforceable violations; (iv) an analysis of speed and
2979 crash data at each separate location; and (v) a description of any other public safety impacts of

2980 the city or town's participation in the automated road safety enforcement program. The
2981 department shall post all reports received pursuant to this section on its website.

2982 Section 3. (a) The fines and warnings imposed for speed camera enforceable violations,
2983 as accrued in a 2-year look-back period, shall be: (i) a warning for a first violation; and (ii)
2984 either: (A) \$25 for a second or subsequent violation; or (B) \$100 for a second or subsequent
2985 violation of driving at a speed of 25 miles per hour or more over the posted speed limit;
2986 provided, however, that if subclause (B) applies, then the fine under subclause (A) shall not
2987 apply. Enforcing authorities shall be responsible for tracking subsequent violations to ascertain
2988 the appropriate fee under this section.

2989 (b) Except as provided in section 4, the registered owner of a motor vehicle shall be liable
2990 for the fine; provided, however, that a registered owner of a motor vehicle shall not be liable for
2991 the fine imposed under this program for a speed camera enforceable violation if the operator of
2992 the motor vehicle was issued a citation for the violation in accordance with section 2 of chapter
2993 90C.

2994 (c) A certificate, or a facsimile thereof, based upon inspection of photographs, video or
2995 other images and data produced by an automated road safety camera system and sworn to or
2996 affirmed by the enforcing authority shall be prima facie evidence of the facts contained therein.

2997 (d) Notice of a speed camera enforceable violation issued by an enforcing authority under
2998 the automated road safety enforcement program shall not be: (i) made part of the official record
2999 of the person upon whom such liability is imposed as provided in section 27 of chapter 90; or (ii)
3000 a conviction of a moving violation of the motor vehicle laws for the purpose of determining a
3001 surcharge on a motor vehicle premium pursuant to section 113B of chapter 175.

(e) An enforcing authority may hire and designate personnel as necessary or contract for services to implement the automated road safety enforcement program through the procurement conducted by the highway division provided in subsection (a) of section 2. Any such contract shall include a provision that all data collected from automated road safety camera systems is confidential and the exclusive property of the contracting enforcement authority, and shall prohibit the contractor from using, disclosing, selling or permitting access to data collected by an automated road safety camera system except as necessary to process speed camera enforceable violations and conduct reporting in accordance with this chapter.

(f)(1) The enforcing authority shall provide a notice of violation to the registered owner of a motor vehicle that is identified in photographs, video or other images produced by an automated road safety camera system as evidence of a speed camera enforceable violation pursuant to the automated road safety enforcement program. The notice shall include, but not be limited to: (i) a copy of the photographs produced by the automated road safety camera system and any other data showing the vehicle in the process of a speed camera enforceable violation; (ii) the registration number and state of issuance of the vehicle; (iii) the date, time and location of the alleged speed camera enforceable violation; (iv) the specific speed camera enforceable violation charged; (v) the speed limit and the actual speed of the vehicle; (vi) instructions for payment of the fine imposed pursuant to subsection (a); (vii) instructions on how to appeal the speed camera enforceable violation in writing and to obtain a hearing; and (viii) an affidavit form approved by the enforcing authority for the purposes of making a written appeal pursuant to subsection (i).

(2) In the case of a violation involving a motor vehicle registered in the commonwealth, the enforcing authority shall mail the notice of violation within 14 days of the violation to the

3025 address of the registered owner of the motor vehicle as listed in the records of the registrar. If a
3026 motor vehicle is registered under the laws of another state or country, the notice of violation shall
3027 be mailed within 21 days of the violation to the address of the registered owner as listed in the
3028 records of the official in the state or country that has charge of the registration of the motor
3029 vehicle. If the address is unavailable, it shall be sufficient for the enforcing authority to mail a
3030 notice of violation to the official in the state or country that has charge of the registration of the
3031 motor vehicle.

3032 (3) The notice of violation shall be sent by first class mail. A manual or automatic record
3033 of mailing processed by or on behalf of the enforcing authority in the ordinary course of business
3034 shall be prima facie evidence thereof and shall be admitted as evidence in any judicial or
3035 administrative proceeding as to the facts contained therein.

3036 (g) A registered owner of a motor vehicle shall not be liable for a speed camera
3037 enforceable violation under this program if the: (i) operator of the motor vehicle was operating
3038 an emergency vehicle; (ii) violation was necessary to allow the passage of an emergency vehicle;
3039 (iii) violation was incurred during a period of time in which the motor vehicle was reported to
3040 the police department of any state, city or town as having been stolen and had not been recovered
3041 before the time the violation occurred; (iv) operator of the motor vehicle was operating the motor
3042 vehicle under a rental or lease agreement and the registered owner of the motor vehicle is a rental
3043 or leasing company and has complied with section 4; (v) operator of the motor vehicle was
3044 issued a citation for the violation in accordance with section 2 of chapter 90C; or (vi) violation
3045 was necessary to comply with any other law or regulation governing the operation of a motor
3046 vehicle.

3047 (h) A registered owner of a motor vehicle to whom a notice of violation has been issued
3048 pursuant to this program may admit responsibility for the violation and pay the fine provided
3049 therein in accordance with the instructions in the notice of violation. Payment of the established
3050 fine shall operate as the final disposition of a speed camera enforceable violation; provided,
3051 however, that payment by a registered owner of a motor vehicle shall operate as the final
3052 disposition of the violation as to any other registered owner of the same motor vehicle for the
3053 same violation.

3054 (i) Not more than 60 days after notice of a speed camera enforceable violation is given
3055 pursuant to this chapter, a registered owner of a motor vehicle may contest responsibility for the
3056 violation in writing by mail or online. The registered owner shall provide the enforcing authority
3057 with a signed affidavit, in a form approved by the enforcing authority, stating the: (i) reason for
3058 disputing the violation; (ii) full legal name and address of the registered owner of the motor
3059 vehicle; and (iii) full legal name and address of the operator of the motor vehicle at the time the
3060 violation occurred. The registered owner may include signed statements from witnesses,
3061 including the names and addresses of witnesses, supporting the registered owner's defense. Not
3062 more than 21 days after receipt of the signed affidavit, the enforcing authority or the hearing
3063 officer shall send the decision of the hearing officer, including the reasons for the outcome, by
3064 first class mail to the registered owner. If the registered owner is found responsible for the
3065 violation, the registered owner shall pay the fine in the manner described in subsection (h) not
3066 more than 14 days after the issuance of the decision or request further judicial review pursuant to
3067 section 14 of chapter 30A.

3068 (j) In lieu of contesting responsibility for a violation in writing or online pursuant to
3069 subsection (i) and not more than 60 days after a violation under this program, a registered owner

3070 of the motor vehicle may request a hearing in accordance with the instructions in the notice of
3071 violation to contest responsibility for a speed camera enforceable violation. A hearing request
3072 shall be made in writing by mail or online. Upon receipt of a hearing request, the enforcing
3073 authority shall schedule the matter before a hearing officer. The hearing officer may be an
3074 employee of the enforcing authority or such other person as the enforcing authority may
3075 designate. Written notice of the date, time and place of the hearing shall be sent by first class
3076 mail to each registered owner of the motor vehicle. The hearing shall be informal, the rules of
3077 evidence shall not apply and the decision of the hearing officer shall be final subject to judicial
3078 review pursuant to section 14 of chapter 30A. Not more than 21 days after the hearing, the
3079 enforcing authority or the hearing officer shall send the decision of the hearing officer, including
3080 the reason for the outcome, by first class mail to the registered owner. If the registered owner is
3081 found to be responsible for the speed camera enforceable violation, the registered owner shall
3082 pay the fine in the manner described in subsection (h) not more than 14 days after the issuance of
3083 the decision or request further judicial review pursuant to said section 14 of said chapter 30A.

3084 (k) Subject to any limitations the department may impose by regulation or by agreement
3085 with the registrar, the enforcing authority may notify the registrar when a Massachusetts resident
3086 and registered owner of a motor vehicle to whom a notice of a speed camera enforceable
3087 violation has been issued: (i) fails to contest the responsibility for a violation pursuant to
3088 subsection (i) or subsection (j) and fails to pay the fine in the notice in accordance with
3089 subsection (h) within 60 days of the violation; or (ii) is found responsible for the violation and
3090 does not pay the fine in accordance with subsection (h) and the registrar shall not renew the
3091 vehicle's registration. The enforcing authority may, not later than 2 years after the initial fine
3092 issuance was made, transmit such notice of non-payment to the registrar, in such form and

3093 containing such information as required by the registrar; provided, however, that no notice shall
3094 be transmitted to the registrar under this section at a time when there is pending, before either the
3095 enforcing authority or a court, a duly filed appeal of the fine. Upon receipt of such notification of
3096 nonpayment the registrar shall place the matter on record and not renew the registration of the
3097 motor vehicle to which a notice of a speed camera enforceable violation has been issued to the
3098 registered owner, nor allow an exchange of the registration of such vehicle nor issue a new
3099 registration of such vehicle to the person to whom the unpaid fine was assessed until after notice
3100 from the enforcing authority that the matter has been disposed of in accordance with the
3101 requirements herein. Upon such notification of nonpayment to the registrar, an additional \$20
3102 charge payable to the registrar of motor vehicles shall be assessed against the registered owner of
3103 said vehicle to be collected by the enforcing authority to be transferred to the registry of motor
3104 vehicles as part of the non- renewal process. It shall be the duty of the enforcing authority to
3105 notify the registrar that such matters have been disposed of in accordance with the requirements
3106 herein; provided however, that a certified receipt of full and final payment from the enforcing
3107 authority shall also serve as a legal notice to the registrar that the matter has been resolved. The
3108 registrar shall approve such forms as they deem necessary to implement this section and said
3109 forms shall be printed and used by the enforcing authorities.

3110 Section 4. (a) Notwithstanding section 3, if the registered owner of a motor vehicle is a
3111 person or entity engaged in the business of leasing or renting motor vehicles and the motor
3112 vehicle was operated under a rental or lease agreement at the time of the speed camera
3113 enforceable violation, this section shall be applicable and the registered owner shall not be liable
3114 for any unpaid fines if the registered owner has complied with the requirements of this section.

3115 (b) The enforcing authority shall provide notice in writing of each speed camera
3116 enforceable violation to the registered owner of a motor vehicle if a motor vehicle owned by the
3117 registered owner is involved in a speed camera enforceable violation.

3118 (c) Not more than 45 days after the violation, the registered owner shall furnish to the
3119 enforcing authority, in writing, the name and address of the lessee or rentee of the motor vehicle
3120 at the time of the speed camera enforceable violation, the lessee's or rentee's driver's license
3121 number, the state that issued the driver's license and the lessee's or rentee's date of birth.

3122 (d) Upon receipt of the information required under subsection (c), the enforcing authority
3123 shall issue a notice of a speed camera enforceable violation to the lessee or rentee in the form
3124 prescribed by section 3 and the lessee or rentee shall be liable for the violation.

3125 (e) Subject to any limitations the department may impose by regulation or by agreement
3126 with the registrar, the enforcing authority may notify the registrar as provided in subsection (k)
3127 of section 3 if the lessee or rentee to whom a notice of violation has been issued: (i) fails to
3128 contest the responsibility for a speed camera enforceable violation pursuant to either subsection
3129 (i) or subsection (j) of section 3 and fails to pay the fine in the notice in accordance with
3130 subsection (h) of said section 3 within 90 days of the violation; or (ii) is found responsible for the
3131 violation and does not pay the fine in accordance with said subsection (h) of said section 3;
3132 provided, however, that if the vehicle owner furnished the information under subsection (c), such
3133 non-renewal shall only apply to the license or right to operate of the lessee or rentee and not the
3134 registration of the vehicle.

3135 Section 5. (a) An enforcing authority shall install a reasonable distance away from each
3136 road safety camera system an unobstructed sign notifying the public that an automated road
3137 safety camera system is in use.

3138 (b) An enforcing authority shall make a public announcement and conduct a public
3139 awareness campaign concerning its use of automated road safety camera systems beginning not
3140 less than 60 days before the first such automated road safety camera system is put into use;
3141 provided, however, that an enforcing authority may install but shall not activate automated road
3142 safety camera systems during the 60-day time period; provided further, that no further public
3143 awareness campaign shall be required for additional automated road safety camera systems that
3144 may be added in the participating city or town.

3145 Section 6. (a) The compensation paid to the manufacturer or vendor of an automated road
3146 safety camera system shall not be based on the number of speed camera enforceable violations
3147 issued or the revenue generated by the automated road safety camera system.

3148 (b) Not less than every 90 days, a city or town that adopts this chapter, or their designee,
3149 shall inspect the automated road safety camera system to verify that the automated road safety
3150 camera system is correctly calibrated. Not less than annually, an independent professional
3151 engineer registered in the commonwealth or an independent laboratory shall verify that the
3152 automated road safety camera system are correctly calibrated. Prior to the installation of an
3153 automated road safety camera system in a work zone, the department or their designee shall
3154 inspect the automated road safety camera system to verify that the automated road safety camera
3155 system is correctly calibrated.

3156 Section 7. (a) An automated road safety camera system shall only retain photographs,
3157 video or other images when a speed camera enforceable violation occurs. Photographs and video
3158 shall be destroyed not more than 48 hours after the final disposition of a speed camera
3159 enforceable violation.

3160 (b) A photograph, video or other image taken pursuant to this chapter shall not be
3161 discoverable in any judicial or administrative proceeding, other than in a proceeding held
3162 pursuant to this chapter, without a court order. A photograph or video taken pursuant to this
3163 chapter shall not be admissible in any judicial or administrative proceeding, other than in a
3164 proceeding to adjudicate liability for a violation of this chapter, without a court order. A court
3165 shall not order a release of a photograph or video taken pursuant to this chapter unless the
3166 photograph or video establishes or undermines a finding of a moving violation and the speed
3167 camera enforceable violation is material as to a finding of civil or criminal liability.

3168 (c) Photographs, video or other images and other personal identifying information
3169 collected pursuant to this chapter shall not be a public record under clause Twenty-sixth of
3170 section 7 of chapter 4 or chapter 66. Each enforcing authority shall maintain the confidentiality
3171 of all information including, but not limited to, photographs or other recorded images and credit
3172 and account data, relative to the registered vehicle or registered owner of the vehicle subject to a
3173 speed camera enforceable violation. Such information shall be used for enforcement purposes
3174 only with respect to speed camera enforceable violations under this chapter.

3175 (d) An automated road safety camera system shall not be utilized to take a frontal view
3176 photograph of a motor vehicle operator committing a speed camera enforceable violation or
3177 other occupants of the vehicle. A frontal view photograph of a motor vehicle committing a speed

3178 camera enforceable violation taken by an automated road safety camera system that captures the
3179 operator or occupants of the vehicle shall not be discoverable or admissible in any judicial or
3180 administrative proceeding and shall not be used as the basis for a speed camera enforceable
3181 violation under this chapter. To the extent practicable, additional efforts shall be made to ensure
3182 that photographs produced by an automated road safety camera system shall not be used to
3183 identify the vehicle operator, the passengers or the contents of the vehicle. The use of facial
3184 recognition technology in conjunction with an automated road safety camera system is
3185 prohibited.

3186 (e) A city or town or a manufacturer or vendor of an automated road safety camera
3187 system may not use, disclose, sell or permit access to data collected by an automated road safety
3188 camera system except as necessary to process speed camera enforceable violations and fulfill
3189 reporting requirements in accordance with this chapter.

3190 Section 8. An enforcing authority may recover costs reasonably related to the
3191 implementation and operation of an automated road safety camera system including, but not
3192 limited to, costs associated with: (i) purchasing, maintaining and operating the automated road
3193 safety camera system; (ii) issuing notices of speed camera enforceable violations; (iii) holding
3194 hearings for appeals of speed camera enforceable violations; (iv) notifying the registrar of a
3195 failure to pay a fine under this program; (v) fulfilling reporting requirements in accordance with
3196 this chapter; and (vi) collecting a fine; provided, however, that net revenues collected by
3197 participating cities and towns pursuant to this program shall be deposited in the Massachusetts
3198 Transportation Trust Fund established in section 4 of chapter 6C.

3199 Section 9. A city or town shall not implement this program unless the city or town has
3200 submitted a plan for the implementation of automated road safety camera systems to the
3201 department and the department has approved the plan. The plan submitted to the department
3202 shall include, but shall not be limited to, data and analysis of the traffic and safety history of the
3203 locations where automated road safety camera systems are proposed to be located, the discussion
3204 of social and racial equity impacts of the plan and steps the municipality shall take to ensure
3205 social and racial equity in the implementation of the plan.

3206 Nothing in this section shall limit the number of work zones in which the department may
3207 install automated road safety camera systems.

3208 SECTION 164. The General Laws are hereby amended by inserting after chapter 93L the
3209 following 2 chapters:-

3210 CHAPTER 93M.

3211 TRANSPARENCY IN FRONTIER ARTIFICIAL INTELLIGENCE ACT

3212 Section 1. As used in this chapter, the following words shall have the following meanings
3213 unless the context clearly requires otherwise:

3214 “Affiliate”, a person controlling, controlled by or under common control with a specified
3215 person, directly or indirectly, through 1 or more intermediaries.

3216 “Artificial intelligence model”, an engineered or machine-based system that varies in its
3217 level of autonomy and that can, for explicit or implicit objectives, infer from the input it receives
3218 how to generate outputs that can influence physical or virtual environments.

3219 “Catastrophic risk”, a foreseeable and material risk that a frontier developer’s
3220 development, storage, use or deployment of a frontier model will materially contribute to the
3221 death of, or serious injury to, not less than 50 people or not less than \$1,000,000,000 in damage
3222 to, or loss of, property arising from a single incident involving a frontier model that: (i) provides
3223 expert-level assistance in the creation or release of a chemical, biological, radiological or nuclear
3224 weapon; (ii) engages in conduct with no meaningful human oversight, intervention or
3225 supervision that is either a cyberattack or, if the conduct had been committed by a human, would
3226 constitute the crime of murder, assault, extortion or theft, including theft by false pretense; or
3227 (iii) evades the control of its frontier developer or user; provided, however, that “catastrophic
3228 risk” shall not include a foreseeable and material risk from: (A) information that a frontier model
3229 outputs if the information is otherwise publicly accessible in a substantially similar form from a
3230 source other than a foundation model; (B) lawful activity of the federal government; or (C) harm
3231 caused by a frontier model in combination with other software if the frontier model did not
3232 materially contribute to the harm.

3233 “Covered employee”, an employee responsible for assessing, managing or addressing risk
3234 of critical safety incidents.

3235 “Critical safety incident”, any: (i) unauthorized access to, modification of, inadvertent
3236 release of or exfiltration of, the model weights of a frontier model; (ii) harm resulting from the
3237 materialization of a catastrophic risk; (iii) loss of control of a frontier model that causes death or
3238 bodily injury or that demonstrates materially increased catastrophic risk; or (iv) instance where a
3239 frontier model that uses deceptive techniques against the frontier developer to subvert the
3240 controls or monitoring of its frontier developer outside of the context of an evaluation designed
3241 to elicit this behavior and in a manner that demonstrates materially increased catastrophic risk.

3242 “Deploy”, to make a frontier model available to a third party for use, modification,
3243 copying or combination with other software; provided, however, that “deploy” shall not include
3244 making a frontier model available to a third party for the primary purpose of developing or
3245 evaluating the frontier model.

3246 “Foundation model”, an artificial intelligence model that is: (i) trained on a broad data
3247 set; (ii) designed for generality of output; and (iii) adaptable to a wide range of distinctive tasks.

3248 “Frontier AI framework”, documented technical and organizational protocols to manage,
3249 assess and mitigate catastrophic risks.

3250 “Frontier developer”, a person who has trained, or initiated the training of, a frontier
3251 model for which the person has used, or intends to use, at least as much computing power to train
3252 the frontier model as would meet the technical specifications of a frontier model.

3253 “Frontier model”, a foundation model that has been trained using a quantity of computing
3254 power greater than 10^{26} integer or floating-point operations; provided, however, that the
3255 quantity of computing power shall include computing for the original training run and for any
3256 subsequent fine-tuning, reinforcement learning or other material modifications the developer
3257 applies to a preceding foundation model.

3258 “Large frontier developer”, a frontier developer that together with its affiliates
3259 collectively has annual gross revenues greater than \$500,000,000.

3260 “Model weight”, a numerical parameter in a frontier model that is adjusted through
3261 training and that helps determine how inputs are transformed into outputs.

3262 “Property”, tangible or intangible property.

3263 Section 2. (a) A large frontier developer shall write, implement, comply with and clearly
3264 and conspicuously publish on its internet website a frontier AI framework that applies to the
3265 large frontier developer’s frontier models and describes in detail how the large frontier developer
3266 handles:

3267 (i) incorporating national standards, international standards and industry-consensus best
3268 practices into its frontier AI framework;

3269 (ii) defining and assessing thresholds used by the large frontier developer to identify and
3270 assess whether a frontier model has capabilities that could pose a catastrophic risk, which may
3271 include multiple-tiered thresholds;

3272 (iii) applying mitigations to address the potential for catastrophic risks based on the
3273 results of assessments undertaken pursuant to clause (ii);

3274 (iv) assessing the ability of the large frontier developer’s frontier models to automate
3275 artificial intelligence research and development and any increased potential for catastrophic risks
3276 or challengers to risk monitoring, assessment or mitigation resulting from such ability;

3277 (v) reviewing assessments and adequacy of mitigations as part of the decision to deploy a
3278 frontier model or use it extensively internally;

3279 (vi) using third parties to assess the potential for catastrophic risks and the effectiveness
3280 of mitigations of catastrophic risks;

3281 (vii) revisiting and updating the frontier AI framework, including any criteria that trigger
3282 updates and how the large frontier developer determines when its frontier models are
3283 substantially modified enough to require disclosures required in subsection (c);

3284 (viii) cybersecurity practices to secure unreleased model weights from unauthorized
3285 modification or transfer by internal or external parties;

3286 (ix) identifying and responding to critical safety incidents;

3287 (x) instituting internal governance practices to ensure implementation of these processes;
3288 and

3289 (xi) assessing and managing catastrophic risk resulting from the internal use of its frontier
3290 models, including risks resulting from a frontier model circumventing oversight mechanisms.

3291 (b) A large frontier developer shall review and, as appropriate, update its frontier AI
3292 framework not less than annually; provided, however, that if a large frontier developer makes a
3293 material modification to its frontier AI framework, the developer shall clearly and conspicuously
3294 publish the modified frontier AI framework and a justification for such modification not less than
3295 30 days after such modification.

3296 (c)(1) Before, or concurrently with, deploying a new frontier model or a substantially
3297 modified version of an existing frontier model, a frontier developer shall clearly and
3298 conspicuously publish on its website a transparency report containing: (i) the website address of
3299 the frontier developer; (ii) a mechanism that enables a natural person to communicate with the
3300 frontier developer; (iii) the release date of the frontier model; (iv) the languages supported by the
3301 frontier model; (v) the modalities of output supported by the frontier model; (vi) the intended
3302 uses of the frontier model; and (vii) any generally applicable restrictions or conditions on uses of
3303 the frontier model.

3304 (2) Before, or concurrently with, deploying a new frontier model or a substantially
3305 modified version of an existing frontier model, a large frontier developer shall include in the
3306 transparency report required by paragraph (1) summaries of: (i) assessments of catastrophic risks
3307 from the frontier model conducted pursuant to the large frontier developer's frontier AI
3308 framework; (ii) the results of such assessments; (iii) the extent to which third-party evaluators
3309 were involved; and (iv) any other steps taken to fulfill the requirements of the frontier AI
3310 framework with respect to the frontier model.

3311 (3) A frontier developer that publishes the information described in paragraph (1) or (2)
3312 as part of a larger document, including a system card or model card, shall have satisfied the
3313 requirements of the applicable paragraph.

3314 (4) A frontier developer may make disclosures described in this subsection that are
3315 consistent with, or superior to, industry best practices.

3316 (c 1/2)(1) A large frontier developer shall clearly and conspicuously publish on its
3317 internet website a risk report that provides an overall assessment of the catastrophic risks posed
3318 by: (i) any frontier models the large frontier developer deploys externally; and (ii) any internally
3319 deployed frontier models with capabilities that materially exceed those of any frontier model that
3320 frontier developer has externally deployed.

3321 (2) A risk report that is required by paragraph (1) shall include, but not be limited to:

3322 (i) a summary of assessments of capabilities of the frontier models relevant to
3323 catastrophic risk, which shall address each type of catastrophic risk and describe any material
3324 changes to the capabilities of the frontier models relevant to each type of catastrophic risk since
3325 the most recently published risk report;

(ii) a description of the key threat models the large frontier developer tracks to identify potential catastrophic risks, how observed capabilities of those frontier models relate to each threat model and key mitigations that the large frontier developer has put in place to mitigate any such identified risks; and

(iii) an assessment of the residual level of each type of catastrophic risk posed by the frontier models after accounting for the mitigations implemented pursuant to clause (ii); provided, however, that the assessment shall provide sufficient information to demonstrate the evidence and reasoning behind the risk assessment and such information shall be sufficient to allow a reasonable person to reach a similar conclusion to that which the large frontier developer would reach in analyzing the level of risk posed by its frontier model.

(3) A large frontier developer shall renew and update the risk report required by paragraph (1) not less than every 180 days and include in each update a comparison of the assessed level of each type of catastrophic risk to the level assessed in the previously published risk report.

(d) A large frontier developer shall transmit to the attorney general a summary of any assessment of catastrophic risk resulting from internal use of its frontier models every 3 months or pursuant to another reasonable schedule as agreed to by the attorney general and large frontier developer.

(e)(1) A frontier developer shall not make a materially false or misleading statement about catastrophic risk from its frontier models or its management of catastrophic risk.

(2) A large frontier developer shall not make a materially false or misleading statement about its implementation of, or compliance with, its frontier AI framework.

(3) This subsection shall not apply to a statement that was made in good faith and was reasonable under the circumstances.

(f)(1) Upon publishing documents to comply with this section, the frontier developer may make redactions to those documents that are necessary to protect the frontier developer's trade secrets, the frontier developer's cybersecurity, public safety, or the national security of the United States or to comply with any federal or state law.

(2) If a frontier developer redacts information in a document pursuant to this subsection, the frontier developer shall describe the character and justification of the redaction in any published version of the document to the extent permitted by the concerns that justify redaction and shall retain the unredacted information for 5 years.

Section 3. (a) The attorney general shall establish a mechanism to be used by a frontier developer or a member of the public to report a critical safety incident that includes: (i) the date of the critical safety incident; (ii) the reasons the incident qualifies as a critical safety incident; (iii) a short and plain statement describing the critical safety incident; and (iv) whether the incident was associated with internal use of a frontier model.

(b)(1) The attorney general shall establish a mechanism to be used by a large frontier developer to confidentially submit summaries of any assessments of the potential for catastrophic risk resulting from internal use of its frontier models.

(2) The attorney general shall take all reasonable precautions to limit access to any reports related to internal use of frontier models to personnel authorized to access the information, in the attorney general's discretion, and to protect the reports from unauthorized access.

3370 (c)(1) A frontier developer shall report any critical safety incident pertaining to 1 or more
3371 of its frontier models to the attorney general within 15 days of discovering the critical safety
3372 incident; provided, however, that if a frontier developer discovers that a critical safety incident
3373 poses an imminent risk of death or serious physical injury, the frontier developer shall disclose
3374 that incident within 24 hours to an authority, including any law enforcement agency or public
3375 safety agency with jurisdiction, that is appropriate based on the nature of that incident and as
3376 required by law.

3377 (2) A frontier developer that discovers information about a critical safety incident after
3378 filing the initial report required by this subdivision may file an amended report at any time.

3379 (3) A frontier developer may report critical safety incidents pertaining to foundation
3380 models that are not frontier models.

3381 (d) The attorney general shall review critical safety incident reports submitted by frontier
3382 developers and may review reports submitted by members of the public.

3383 (e)(1) The attorney general may transmit reports of critical safety incidents, summaries of
3384 any assessments of catastrophic risk from internal use of frontier models and reports from
3385 covered employees to the general court, the governor or appropriate federal or state agencies.

3386 (2) The attorney general may consider any risks related to trade secrets, public safety,
3387 cybersecurity of a frontier developer, or national security when transmitting reports.

3388 (f) A report of a critical safety incident submitted to the attorney general pursuant to this
3389 section, a report of assessments of catastrophic risk from internal use and a covered employee
3390 report shall be exempt from clause Twenty-sixth of section 7 of chapter 4 and chapter 66.

3391 (g)(1) Annually, the attorney general shall produce a report with anonymized and
3392 aggregated information about critical safety incidents that have been reviewed by the attorney
3393 general since the preceding report.

3394 (2) The attorney general shall not include information in a report pursuant to this
3395 subsection that would compromise the trade secrets or cybersecurity of a frontier developer,
3396 public safety or the national security of the United States or that would be prohibited from
3397 disclosure by any federal or state law.

3398 (3) The attorney general shall submit the report to the clerks of the senate and house of
3399 representatives and to the governor.

3400 (h) For the purposes of subsection (i), the attorney general shall promulgate regulations
3401 designating federal laws, regulations or guidance documents that:

3402 (i) impose or state standards or requirements for critical safety incident reporting that are
3403 substantially equivalent to, or stricter than, those required by this section; provided, however,
3404 that such law, regulation or guidance shall not need to require critical safety incident reporting to
3405 the commonwealth; and (ii) is intended to assess, detect or mitigate the catastrophic risk.

3406 (i) (1) A frontier developer that intends to comply with this section by complying with
3407 the requirements of, or meeting the standards stated by, a federal law, regulation, or guidance
3408 document designated pursuant to subsection (h) shall declare its intent to do so to the attorney
3409 general.

3410 (2) After a frontier developer has declared its intent pursuant to paragraph (1), the frontier
3411 developer shall be deemed in compliance with this section to the extent that the frontier

3412 developer meets the standards of, or complies with the requirements imposed or stated by, the
3413 federal law, regulation, or guidance document designated pursuant to subsection (h) until the
3414 frontier developer declares the revocation of that intent to the attorney general or the attorney
3415 general revokes an applicable regulation pursuant to subdivision (j); provided, however, that
3416 failure by a frontier developer to meet the standards of, or comply with the requirements stated
3417 by, the federal law, regulation or guidance document designated pursuant to subsection (h) shall
3418 constitute a violation of this chapter.

3419 (j) The attorney general shall revoke a regulation adopted under subdivision (h) if the
3420 requirements of said subdivision (h) are no longer met by the designated federal law, regulation
3421 or guidance document.

3422 Section 3A. (a) A large frontier developer shall annually retain a third party to perform an
3423 independent audit of compliance with the requirements of section 2 except for subsection (c 1/2)
3424 of said section 2. The third party shall conduct audits consistent with generally accepted auditing
3425 standards and best practices and shall possess demonstrated competence to perform the audit,
3426 including experience employing or contracting with individuals who possess technical expertise
3427 in the safety of frontier models.

3428 (1) The third party shall be granted access to all materials reasonably necessary to comply
3429 with the third party's obligations under this section, including, but not limited to, all unredacted
3430 versions of materials published pursuant to this chapter. To protect the large frontier developer's
3431 trade secrets and confidential business information, cybersecurity, national security of the United
3432 States or public safety, a large frontier developer may impose reasonable security protocols on

3433 the third party, including, but not limited to, restrictions on note taking, copying, retaining, or
3434 removing materials, requirements for on-premises review and confidentiality requirements.

3435 (2) The third party shall produce a report that includes, but is not limited to:

3436 (i) a description of whether the large frontier developer has substantially complied with
3437 the requirements of section 2, except for subsection (c 1/2) of said section 2;

3438 (ii) when applicable, a description of material deviations from the requirements of section
3439 2, except for subsection (c 1/2) of said section 2, an explanation of any deviation and its rationale
3440 and any recommendations for how the developer can improve its policies and processes for
3441 ensuring compliance;

3442 (iii) a detailed assessment of the large frontier developer's internal controls, including its
3443 designation and empowerment of senior personnel responsible for such implementation by the
3444 large frontier developer, its employees and its contractors;

3445 (iv) a list of the third party's personnel involved in the audit;

3446 (v) the third party's procedures for managing conflicts of interest and any conflicts of
3447 interest of any personnel involved in the audit;

3448 (vi) the methodology of the audit and the nature of the information reviewed by the third
3449 party to conduct the audit; and

3450 (vii) the signature of the lead auditor certifying the results of the audit.

3451 (3) The large frontier developer shall retain an unredacted copy of the report for the
3452 duration of the frontier model's deployment plus 5 years.

(4) Not later than 30 days after receiving the audit report, the large frontier developer shall conspicuously publish on its website a high-level summary of the audit findings and a copy of the third party's report with redactions as provided in subsection (f) of section 2 and transmit a copy of the redacted report to the attorney general.

(b)(1) A large frontier developer shall engage at least 1 third party to conduct an independent evaluation of the developer's frontier models with respect to each category of catastrophic risk. A large frontier developer shall engage a third party to conduct its evaluation not more than 30 days after publishing each risk report under subsection (c 1/2) of section 2 and in any event shall conduct an independent evaluation not less than once every 120 days.

(2) An independent evaluation conducted pursuant to paragraph (1) shall include, but not be limited to:-

(i) an independent assessment of each type of catastrophic risk posed by the large frontier developer's frontier models, taking into account model capabilities, applicable threat models and the large frontier developer's safeguards;

(ii) an assessment of the ability of the large frontier developer's frontier models to automate artificial intelligence research and development and any increased potential for catastrophic risks or challenges to risk monitoring, assessment or mitigation resulting from such ability;

(iii) a review of the large frontier developer's most recent risk report published pursuant to subsection (c 1/2) of section 2 including an assessment of: (A) the adequacy and completeness of the information disclosed in the risk report; (B) the analytical rigor of the frontier developer's risk methodology; (C) the appropriateness and materiality of any redactions made to the publicly

3475 available version of the risk report; and (D) whether the third party disagrees with any of the
3476 report's claims, including the overall assessment of the level of risk for each catastrophic risk;

3477 (iv) a list of the third party's personnel involved in the evaluation;

3478 (v) the third party's procedures for managing conflicts of interest and any conflicts of
3479 interest of any personnel involved in the evaluation;

3480 (vi) the methodology of the evaluation and the nature of the information reviewed by the
3481 third party to conduct the evaluation; and

3482 (vii) the signature of the lead evaluator certifying the results of the evaluation.

3483 (3)(A) The third party shall be granted access to all materials reasonably necessary to
3484 comply with the evaluator's obligations under this section, including, but not limited to, all
3485 unredacted versions of materials published pursuant to this chapter and the large frontier
3486 developer's most capable frontier models.

3487 (B) The third party shall have the opportunity to ask relevant questions about the frontier
3488 developer's frontier models, likelihood of catastrophic risks and related safeguards and the large
3489 frontier developer shall provide reasonable responses.

3490 (C) To protect the frontier developer's trade secrets and confidential business
3491 information, cybersecurity, national security of the United States or public safety, a frontier
3492 developer may impose reasonable security protocols on the third party including, but not limited
3493 to, restrictions on note taking, copying, retaining or removing materials, requirements for on-
3494 premise review and confidentiality requirements.

(4) The third party shall publish a public version of its report not later than 30 days after delivering the report to the large frontier developer and the large frontier developer shall conspicuously publish a link to the report on its internet website. The public version may be redacted only as provided in subsection (f) of section 2.

(5) A large frontier developer may comply with this subsection by engaging multiple third parties focused on different categories of catastrophic risk or different aspects of the requirements of this subsection; provided, however, that: (i) collectively, the third parties perform all of the duties required by this subsection; (ii) each third party satisfies the independence and qualification requirements of this section; and (iii) each third party includes in its report a clear and specific statement of the scope of the assessment and the duties performed.

(c)(1)(A) A third party engaged under this section shall have no financial, operational or management dependence on the large frontier developer or any of the large frontier developer's affiliates and shall be otherwise free from the large frontier developer's control in reaching conclusions or making recommendations, including through contractual safeguards and conflict of interest policies.

(B) If no other source of funding has been established pursuant to clause (iii) of paragraph (1) of subsection (d), a large frontier developer may compensate the third party at reasonable market rates and shall not condition any payment or the amount of any payment on the results of the third party's audit or evaluation.

(2) Prior to accepting any engagement under this section, the third party shall certify in writing to the large frontier developer and the attorney general that the third party satisfies the independence requirements of this subsection. The certification shall include the third party's

3517 sources of funding and remuneration for the engagement, any other current or recent
3518 engagements with the large frontier developer or its affiliates and any other facts that could
3519 reasonably be expected to bear on the third party's independence.

3520 (d)(1) The attorney general, in consultation with academic institutions, nonprofit
3521 organizations and industry stakeholders, shall implement an independent evaluation ecosystem
3522 plan by: (i) developing and publishing standards for the qualification of qualified independent
3523 third party evaluators; (ii) exploring a licensing system to qualify third party evaluators; (iii)
3524 subject to government appropriation, providing government funding or arranging pooled funding
3525 to supplement other sources of evaluator funding; (iv) exploring the feasibility and benefits of
3526 licensing qualified independent evaluators to assess the adherence of artificial intelligence
3527 models to standards reflecting best practices for the prevention of personal injury, property
3528 damage and other harms that do not meet the definition of catastrophic risk, and reporting its
3529 findings and any recommendations regarding such licensing to the joint committee on advanced
3530 information technology, the internet and cybersecurity and the joint committee on economic
3531 development; and (v) providing resources and funding for nascent organizations seeking to
3532 become third party evaluators.

3533 (2) The attorney general may develop and publish a rating system for qualified third
3534 parties based on predefined criteria, including the rigor and quality of the evaluator's published
3535 reasoning and analysis, the thoroughness of the evaluator's methodology, the evaluator's track
3536 record of identifying material risks or deficiencies and stakeholder feedback, including from
3537 frontier developers, academic reviewers and the public.

3538 Section 4. (a) Annually, the attorney general shall assess recent evidence and
3539 developments relevant to the purposes of this chapter and shall make recommendations about
3540 whether and how to update any of the following definitions for the purposes of this chapter to
3541 ensure that they accurately reflect technological developments, scientific literature, and widely
3542 accepted national and international standards:

3543 (i) “Frontier model” so that it applies to foundation models at the frontier of artificial
3544 intelligence development.

3545 (ii) “Frontier developer” so that it applies to developers of frontier models who are
3546 themselves at the frontier of artificial intelligence development; and

3547 (iii) “Large frontier developer” so that it applies to well-resourced frontier developers.

3548 (b) In making recommendations pursuant to this section, the attorney general shall take
3549 into account:

3550 (i) similar thresholds used in international standards or federal law, guidance or
3551 regulations for the management of catastrophic risk;

3552 (ii) input from stakeholders, including academics, industry, the open-source community
3553 and governmental entities;

3554 (iii) the extent to which a person will be able to determine, before beginning to train or
3555 deploy a foundation model, whether that person will be subject to the definition as a frontier
3556 developer or as a large frontier developer with an aim toward allowing earlier determinations if
3557 feasible;

3558 (iv) the complexity of determining whether a person or foundation model is covered, with
3559 an aim toward allowing simpler determinations if feasible; and

3560 (v) the external verifiability of determining whether a person or foundation model is
3561 covered, with an aim toward definitions that are verifiable by parties other than the frontier
3562 developer; provided, however that the attorney general shall recommend alignment with a
3563 definition adopted in a federal law or regulation to the extent that it is consistent with the
3564 purposes of this chapter.

3565 (c) The attorney general shall submit a report with the recommendations and information
3566 compiled pursuant to subsection (a) to the clerks of the senate and house of representatives.

3567 (d) Annually, the attorney general shall produce a report with anonymized and
3568 aggregated information about reports from covered employees that have been reviewed by the
3569 attorney general since the preceding report. The attorney general shall not include information in
3570 a report pursuant to this subdivision that would compromise the trade secrets or cybersecurity of
3571 a frontier developer, confidentiality of a covered employee, public safety, or the national security
3572 of the United States or that would be prohibited by any federal or state law. The attorney general
3573 shall submit the report to the clerks of the senate and house of representatives and to the
3574 governor.

3575 Section 5. (a) A large frontier developer that fails to publish or transmit a compliant
3576 document required to be published or transmitted under this chapter, makes a statement in
3577 violation of this chapter, fails to report an incident as required by this chapter, or fails to comply
3578 with its own frontier AI framework shall be subject to a civil penalty of not more than
3579 \$1,000,000 for a first violation and not more than \$3,000,000 for subsequent violations.

(b) A civil penalty described in this section may only be recovered in a civil action brought by the attorney general.

Section 6. The loss of value of equity shall not constitute damage to or loss of property for the purposes of this chapter.

Section 7. (a) A frontier developer shall not make, adopt, enforce, or enter into a rule, regulation, policy or contract that prevents a covered employee from disclosing or retaliates against a covered employee for disclosing, information to the attorney general, a federal authority, a person with authority over the covered employee or another covered employee who has authority to investigate, discover or correct the reported issue, if the covered employee reasonably believes that the information discloses either: (i) the frontier developer's activities pose a specific and substantial danger to the public health or safety resulting from a catastrophic risk; or (ii) the frontier developer has violated this chapter.

(b) A frontier developer shall not: (i) enter into a contract that prevents a covered employee from making a disclosure protected under this chapter; or (ii) discriminate against any person that has made a disclosure under this chapter.

(c) A frontier developer shall provide a clear notice to all covered employees of their rights and responsibilities under this section, which may include but shall not be limited to: (i) permanently posting and displaying within any workplace maintained by the frontier developer a notice to all covered employees of their rights under this section, ensuring that any new covered employee, not later than 90 days after becoming a covered employee, receives equivalent notice and ensuring that any covered employee who works remotely periodically receives an equivalent notice; or (ii) at least once each year, providing written notice to each covered employee of the

3602 covered employee's rights under this section and ensuring that the notice is received and
3603 acknowledged by all of those covered employees.

3604 (d)(1) A large frontier developer shall provide a reasonable internal process through
3605 which a covered employee may, anonymously or named, disclose information to the large
3606 frontier developer of the covered employee reasonably believes that the information indicates
3607 that the large frontier developer's activities present a specific and substantial danger to the public
3608 health or safety resulting from a catastrophic risk or that the large frontier developer violated this
3609 chapter, which shall include a monthly update to a person who makes a disclosure under this
3610 chapter on the status of the large frontier developer's investigation of such disclosure and the
3611 actions taken by the large frontier developer in response to such disclosure.

3612 (2) Except as provided in subsection (b), the disclosures and responses of the process
3613 required by this subsection shall be shared with officers and directors of the large frontier
3614 developer at least once each quarter; provided, however, that if a covered employee has alleged
3615 wrongdoing by an officer or director of the large frontier developer in a disclosure or response,
3616 this paragraph shall not apply with respect to that officer or director.

3617 (e) The court may award reasonable attorney's fees and court costs to a plaintiff who
3618 brings a successful action for a violation of this section.

3619 (f) In a civil action brought pursuant to this section, once it has been demonstrated by a
3620 preponderance of the evidence that an activity proscribed by this section was a contributing
3621 factor in the alleged prohibited or adverse action against the covered employee, the frontier
3622 developer shall have the burden of proof to demonstrate by clear and convincing evidence that

3623 the alleged prohibited or adverse action would have occurred for legitimate, independent reasons
3624 even if the covered employee had not engaged in activities protected by this section.

3625 (g)(1) In a civil action brought pursuant to this section, a covered employee may petition
3626 the superior court in any county wherein the violation in question is alleged to have occurred, or
3627 wherein the person resides or transacts business, for appropriate temporary or preliminary
3628 injunctive relief.

3629 (2) Upon the filing of the petition for injunctive relief, the petitioner shall cause notice
3630 thereof to be served upon the frontier developer, and thereupon the court shall have jurisdiction
3631 to grant temporary injunctive relief as the court deems just and proper.

3632 (3) In addition to any harm resulting directly from a violation of this section, the court
3633 shall consider the chilling effect on other covered employees asserting their rights under this
3634 section in determining whether temporary injunctive relief is just and proper.

3635 (4) Appropriate injunctive relief shall be issued on a showing that reasonable cause exists
3636 to believe a violation has occurred.

3637 (5) An order authorizing temporary injunctive relief shall remain in effect until an
3638 administrative or judicial determination or citation has been issued, or until the completion of a
3639 review pursuant to paragraph (1) of subsection (d), whichever is longer, or at a certain time set
3640 by the court. Thereafter, a preliminary or permanent injunction may be issued if it is shown to be
3641 just and proper. Any temporary injunctive relief shall not prohibit a frontier developer from
3642 disciplining or terminating a covered employee for conduct that is unrelated to the claim of the
3643 retaliation.

3644 (h) Notwithstanding Massachusetts Rules of Civil Procedure, injunctive relief granted
3645 pursuant to this section shall not be stayed pending appeal.

3646 (j)(1) This section shall not impair or limit the applicability of any other applicable law.

3647 (2) The remedies provided by this section shall be cumulative to each other and the
3648 remedies or penalties available under all other general laws.

3649 Section 8. The attorney general may promulgate, amend or rescind regulations for the
3650 implementation, administration and enforcement of this chapter.

3651 CHAPTER 93N

3652 USE OF CHATBOTS BY COMMERCIAL ENTITIES

3653 Section 1. As used in this chapter, the following words shall have the following meanings
3654 unless the context clearly requires otherwise:-

3655 “Chatbot”, an automated program designed to simulate conversation with human users
3656 whether through the use of generative artificial intelligence or other similar technology;
3657 provided, however, that the program may use audio, visual or textual methods, or a combination
3658 thereof, to communicate with human users.

3659 Section 2. Any commercial entity deploying a chatbot shall clearly and conspicuously
3660 disclose to the person with whom the chatbot interacts that the person is interacting with a
3661 chatbot and not a human.

Section 3. In addition to any other remedies that may be available, a violation of this chapter shall be deemed to be an unfair method of competition and an unfair or deceptive act or practice in the conduct of trade or commerce in violation of section 2 of chapter 93A.

SECTION 165. Section 32H of chapter 94C of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 34 and 35, the words “18 years of age or older” and inserting in place thereof the following words:- who has attained the age of criminal majority.

SECTION 166. Said section 32H of said chapter 94C, as so appearing, is hereby further amended by striking out, in line 36, the figure “18” and inserting in place thereof the following words:- the age of criminal majority.

SECTION 167. Section 32M of said chapter 94C is hereby amended by striking out, in line 1, as so appearing, the word “eighteen” and inserting in place thereof the following words:- criminal majority.

SECTION 168. Said section 32M of said chapter 94C is hereby amended by striking out, in line 6, as so appearing, the figure “18” and inserting in place thereof the following words:- criminal majority.

SECTION 169. Section 36 of said chapter 94C, as so appearing, is hereby amended by striking out, in line 6 and 7, the words “his eighteenth birthday” and inserting in place thereof the following words:- the age of criminal majority.

SECTION 170. Subsection (a) of section 25C1/2 of chapter 111 of the General Laws, as so appearing, is hereby amended by adding the following paragraph:-

3683 (5) An acute care hospital that plans to establish or add: (i) acute psychiatric service beds
3684 including, but not limited to, inpatient, community based acute treatment, intensive community
3685 based acute treatment, partial hospitalization program and crisis stabilization services; or (ii)
3686 acute inpatient substance use disorder treatment service beds.

3687 SECTION 171. The General Laws are hereby amended by inserting after chapter 110H
3688 the following chapter:-

3689 CHAPTER 110I.

3690 FINANCIAL EXPLOITATION OF VULNERABLE ADULTS UNDER BROKER-
3691 DEALER RELATIONSHIP

3692 Section 1. As used in this section, the following words shall have the following meanings
3693 unless the context clearly requires otherwise:

3694 “Agent”, as defined in section 401 of said chapter 110A.

3695 “Broker-Dealer”, as defined in said section 401 of said chapter 110A.

3696 “Eligible adult”, a person 60 years of age or older or a person with a disability, as defined
3697 in section 1 of chapter 19C.

3698 “Financial exploitation”, (i) the wrongful or unauthorized taking, withholding,
3699 appropriation or use of money, assets or property of an eligible adult; or (ii) any act or omission
3700 taken by a person, including through the use of a power of attorney, guardianship or
3701 conservatorship of an eligible adult, to: (A) obtain control, through deception, intimidation
3702 unethical or dishonest conduct or undue influence, over the eligible adult’s money, assets or
3703 property to deprive the eligible adult of the ownership, use, benefit or possession of their money,

3704 assets or property; or (B) convert money, assets or property of the eligible adult to deprive such
3705 eligible adult of the ownership, use, benefit or possession of their money, assets or property.

3706 “Financial institution”, a: (i) bank, trust company, co-operative bank or savings bank, if
3707 organized or exists under the laws of the commonwealth or any other state or may transact
3708 business in the commonwealth, national bank, federal savings bank or federal savings and loan
3709 association; or (ii) credit union that is organized or exists under the laws of the commonwealth or
3710 any other state or federal credit union that may transact business in the commonwealth, as
3711 defined in section 1 of chapter 171.

3712 “Investment adviser”, as defined pursuant to said section 401 of said chapter 110A.

3713 “Investment adviser representative”, as defined pursuant to said section 401 of said
3714 chapter 110A.

3715 “Qualified investment individual”, (i) any agent, broker-dealer, investment adviser,
3716 investment-adviser representative, broker-dealer or person who serves in a compliance, investor
3717 protection or legal capacity for a broker-dealer or investment adviser; and (ii) employees eligible
3718 for immunity in accordance with 12 U.S.C. § 3423.

3719 “Relevant agency”, (i) the state secretary; (ii) the commission for the protection of
3720 persons with disabilities established in section 2 of chapter 19C, if the eligible adult is under the
3721 age of 60; (iii) the executive office of aging and independence, if the eligible adult is 60 years or
3722 older; or (iv) any third-party contractor designated by the state secretary, the commission for the
3723 protection of persons with disabilities or the office of aging and independence.

3724 Section 2. If a qualified investment individual reasonably believes that the financial
3725 exploitation of an eligible adult may have occurred, may have been attempted or is being
3726 attempted, the qualified investment individual shall promptly notify the relevant agency.

3727 Section 3. A qualified investment individual who, in good faith, and exercising
3728 reasonable care, did not materially aid the alleged financial exploitation and makes a disclosure
3729 of information pursuant to section 2 shall be immune from administrative or civil liability that
3730 might otherwise arise from such disclosure or for any failure to notify the customer of the
3731 disclosure.

3732 Section 4. A qualified investment individual who, in good faith and exercising reasonable
3733 care, believes that financial exploitation of an eligible adult may have occurred, may have been
3734 attempted or is being attempted, may disclose to any third party previously designated by the
3735 eligible adult or reasonably associated with the adult; provided, however, that a qualified
3736 investment individual shall not notify any designated third party that is suspected of the financial
3737 exploitation or other abuse of the eligible adult; provided, however, that a qualified individual or
3738 financial institution shall not notify any designated third party that is suspected of the financial
3739 exploitation or other abuse of the eligible adult.

3740 Section 5. A qualified investment individual who, in good faith, exercising reasonable
3741 care, complies with section 4 and does not materially aid the alleged financial exploitation shall
3742 be immune from any administrative or civil liability that might otherwise arise from such
3743 disclosure.

3744 Section 6. A financial institution may delay or stop a disbursement or transaction from an
3745 account of an eligible adult or an account on which an eligible adult is a beneficiary if a qualified

3746 investment individual: (i) has reasonable cause to believe that, after initiating an internal review
3747 of the requested disbursement or transaction and the suspected financial exploitation, that the
3748 requested disbursement or transaction may result in the financial exploitation of the eligible
3749 adult; (ii) provides written notification and reasoning of the delay to all parties authorized to
3750 transact business on the account not more than 5 business days after the delayed disbursement or
3751 transaction; provided however, that such notice is not required to such party that is reasonably
3752 believed to have engaged in suspected or attempted financial exploitation of the eligible adult;
3753 (iii) provides notification of such delay to the relevant agencies not more than 5 business days
3754 after the delayed disbursement or transaction; and (iv) continues their internal review of the
3755 suspected or attempted financial exploitation of the eligible adult, as necessary, and provides
3756 status updates, a statement of finding and final disposition of an investigation upon request to the
3757 agencies and to qualified individuals.

3758 Section 7. The authorization of any delay or stoppage of a disbursement or transaction
3759 pursuant to section 6 shall expire upon: (i) the determination by the financial institution or
3760 qualified investment individual that the disbursement or transaction will not result in the
3761 financial exploitation of the eligible adult; or (ii) 21 days from the date the financial institution or
3762 qualified investment individual delayed disbursement of the funds or a transaction, unless a
3763 relevant agency requests that the financial institution extend the delay, in which case the delay
3764 shall expire no more than 30 business days after the date on which the financial institution first
3765 delayed disbursement of the funds or a transaction, whichever occurs first.

3766 A court of competent jurisdiction may enter an order extending the delay of a
3767 disbursement of funds or transaction pursuant to this section, or may order other protective relief,
3768 upon the petition of the secretary of the commonwealth or relevant agency.

3769 Section 8. A court of competent jurisdiction may order a financial institution, or qualified
3770 investment individual to provide access to or copies of records that are relevant to the suspected
3771 or attempted financial exploitation of an eligible adult to a relevant agency or law enforcement
3772 pursuant to an investigation. Such records may include historical records and records pertaining
3773 to the most recent disbursement or transactions related to the suspected or attempted financial
3774 exploitation of an eligible adult; provided, however, that such records made available to agencies
3775 pursuant to this section shall not be considered public records as defined in chapter 66 and clause
3776 Twenty-sixth of section 7 of chapter 4.

3777 Section 9. A financial institution or qualified investment individual who, in good faith,
3778 exercising reasonable care, complies with this chapter and did not materially aid the alleged
3779 financial exploitation, shall be immune from any administrative or civil liability that might
3780 otherwise arise from such action.

3781 Section 10. Nothing in section 9 shall limit or shield, in any manner, a qualified
3782 individual from any administrative or civil liability, for materially aiding the financial
3783 exploitation of an eligible adult.

3784 Section 11. Nothing in this chapter shall limit or otherwise impede the authority of the
3785 secretary of the commonwealth from accessing or examining the books and records of a financial
3786 institution as otherwise provided by law or conducting any lawful investigation into potential
3787 violations of chapter 110A.

3788 SECTION 172. Chapter 111 of the General Laws is hereby amended by adding the
3789 following 2 sections:-

3790 Section 250. The commissioner of public health shall promulgate regulations for the
3791 annual health inspection of food trucks. The commissioner shall prescribe rules and regulations
3792 relative to inspection schedules, documentation of inspections, standards for acceptable
3793 cleanliness and the costs of such inspections.

3794 Section 251. (a) As used in this section, the following words shall have the following
3795 meanings unless the context clearly requires otherwise:-

3796 “AED”, as defined in section 12V1/2 of chapter 112.

3797 “Facility”, a public stadium, sports center or gymnasium used for an athletic or sporting
3798 event.

3799 (b) Subject to appropriation, a facility shall have at least 1 AED on the premises during
3800 any athletic or sporting events taking place at the facility. The operator of such facility shall
3801 make a good faith effort to identify readily available volunteers to serve as AED providers who
3802 are present at such facility during such athletic or sporting events.

3803 (c) The department of public health shall develop and implement a public information
3804 campaign to promote awareness of public access to AEDs and the importance of early access to
3805 defibrillation including, but not limited to: (i) educating the general public on AEDs; (ii)
3806 establishing online resources with AED training opportunities; and (iii) performing targeting
3807 outreach to populations who may lack access to information concerning AEDs.

3808 (d) A placard shall be installed at every facility entryway with a map of the location of
3809 any AED at such facility.

3810 (e) The department of public health shall promulgate regulations to implement this
3811 section.

3812 SECTION 173. Section 75 of chapter 112 of the General Laws, as appearing in the 2024
3813 Official Edition, is hereby amended by adding the following paragraph:-

3814 Notwithstanding any general or special law to the contrary, the board, upon the
3815 recommendation of the executive director or their designee, shall waive any requirement to
3816 complete an exam exclusively verifying proficiency in English if the applicant: (i) previously
3817 passed an English proficiency examination at any time; (ii) has obtained one or more nursing
3818 degrees in the United States, if the applicant was originally trained outside of the United States;
3819 or (iii) demonstrates English proficiency through another method deemed acceptable by the
3820 board. Nothing in this paragraph shall be construed to impede the board's authority to establish
3821 or conduct examinations which test the applicant's fitness to practice or to promulgate rules,
3822 regulations or guidelines pursuant to section 79. The board may not waive requirements for an
3823 exam verifying proficiency in English for applicants seeking licensure via the nurse licensure
3824 compact under chapter 112A.

3825 SECTION 174. Section 222 of said chapter 112, as so appearing, is hereby amended
3826 by adding the following subsection:-

3827 (e) Notwithstanding clauses (iii) and (iv) of subsection (d), an applicant shall be eligible
3828 for licensure as a home inspector without meeting the requirements of said clause (iii) or said
3829 clause (iv) of said subsection (d) if the applicant: (i) is a professional engineer licensed pursuant
3830 to sections 81D to 81T, inclusive; and (ii) has performed not less than 50 home inspections under
3831 the supervision of a licensed home inspector.

3832 SECTION 175. The General Laws are hereby amended by inserting after chapter 112A
3833 the following 3 chapters:-

3834 CHAPTER 112B.

3835 PSYCHOLOGY INTERJURISDICTIONAL COMPACT ACT

3836 Section 1. This act shall be known and may be cited as the Psychology Interjurisdictional
3837 Compact Act.

3838 Section 2. The governor of the commonwealth of Massachusetts, on behalf of this state,
3839 is hereby authorized to execute a compact in substantially the following form with any 1 or more
3840 of the states of the United States and the General Court hereby signifies in advance its approval
3841 and ratification of the compact.

3842 Section 3. (a) Whereas, states license psychologists, in order to protect the public through
3843 verification of education, training and experience and ensure accountability for professional
3844 practice; and

3845 Whereas, this compact is intended to regulate the day-to-day practice of telepsychology
3846 by psychologists across state boundaries in the performance of their psychological practice as
3847 assigned by an appropriate authority; and

3848 Whereas, this compact is intended to regulate the temporary in-person, face-to-face
3849 practice of psychology by psychologists across state boundaries for 30 days within a calendar
3850 year in the performance of their psychological practice as assigned by an appropriate authority;
3851 and

3852 Whereas, this compact is intended to authorize state psychology regulatory authorities to
3853 afford legal recognition, in a manner consistent with the terms of the compact, to psychologists
3854 licensed in another state; and

3855 Whereas, this compact recognizes that states have a vested interest in protecting the
3856 public's health and safety through their licensing and regulation of psychologists and that such
3857 state regulation will best protect public health and safety; and

3858 Whereas, this compact does not apply when a psychologist is licensed in both the home
3859 state and receiving states; and

3860 Whereas, this compact does not apply to permanent in-person, face-to-face practice, it
3861 does allow for authorization of temporary psychological practice.

3862 (b) Consistent with these principles, this compact is designed to achieve the following
3863 purposes and objectives: (i) increase public access to professional psychological services by
3864 allowing for telepsychological practice across state lines as well as temporary in-person, face-to-
3865 face services into a state which the psychologist is not licensed to practice psychology; (ii)
3866 enhance the states' ability to protect the public's health and safety, especially client, patient
3867 safety; (iii) encourage the cooperation of compact states in the areas of psychology licensure and
3868 regulation; (iv) facilitate the exchange of information between compact states regarding
3869 psychologist licensure, adverse actions and disciplinary history; (v) promote compliance with the
3870 laws governing psychological practice in each compact state; and (vi) invest all compact states
3871 with the authority to hold licensed psychologists accountable through the mutual recognition of
3872 compact state licenses.

3873 Section 4. As used in this chapter, the following words shall have the following meanings
3874 unless the context clearly requires otherwise:-

3875 “Adverse action”, any action taken by a state psychology regulatory authority which
3876 finds a violation of a statute or regulation that is identified by the state psychology regulatory
3877 authority as discipline and is a matter of public record.

3878 “Association of state and provincial psychology boards”, the recognized membership
3879 organization composed of state and provincial psychology regulatory authorities responsible for
3880 the licensure and registration of psychologists throughout the United States and Canada.

3881 “Authority to practice interjurisdictional telepsychology”, a licensed psychologist’s
3882 authority to practice telepsychology, within the limits authorized under this compact, in another
3883 compact state.

3884 “Bylaws”, bylaws established by the psychology interjurisdictional compact commission
3885 pursuant to section 12 for its governance or for directing and controlling its actions and conduct.

3886 “Client or patient”, the recipient of psychological services, whether psychological
3887 services are delivered in the context of healthcare, corporate, supervision or consulting services.

3888 “Commissioner”, the voting representative appointed by each state psychology regulatory
3889 authority pursuant to section 12.

3890 “Compact state”, a state that has enacted this compact legislation and which has not
3891 withdrawn pursuant to subsection (c) of section 15 or been terminated pursuant to subsection (b)
3892 of section 14.

3893 “Coordinated licensure information system” or “coordinated database”, an integrated
3894 process for collecting, storing and sharing information on psychologists' licensure and
3895 enforcement activities related to psychology licensure laws, which is administered by the
3896 recognized membership organization composed of state and provincial psychology regulatory
3897 authorities.

3898 “Confidentiality”, the principle that data or information is not made available or disclosed
3899 to unauthorized persons or processes.

3900 “Day”, any part of a day in which psychological work is performed.

3901 “Distant state”, the compact state where a psychologist is physically present (not through
3902 the use of telecommunications technologies), to provide temporary in-person, face-to-face
3903 psychological services.

3904 “E.Passport”, a certificate issued by the Association of State and Provincial Psychology
3905 Boards that promotes the standardization in the criteria of interjurisdictional telepsychology
3906 practice and facilitates the process for licensed psychologists to provide telepsychological
3907 services across state lines.

3908 “Executive board”, a group of directors elected or appointed to act on behalf of, and
3909 within the powers granted to them by, the commission.

3910 “Home state”, a compact state where a psychologist is licensed to practice psychology. If
3911 the psychologist is licensed in more than 1 compact state and is practicing under the
3912 Authorization to Practice Interjurisdictional Telepsychology, the home state is the compact state
3913 where the psychologist is physically present when the telepsychological services are delivered. If

3914 the psychologist is licensed in more than 1 compact state and is practicing under the temporary
3915 authorization to practice, the home state is any compact state where the psychologist is licensed.

3916 “Identity history summary”, a summary of information retained by the Federal Bureau of
3917 Investigation, or other designee with similar authority, in connection with arrests and, in some
3918 instances, federal employment, naturalization or military service.

3919 “In-person, face-to-face”, interactions in which the psychologist and the client are in the
3920 same physical space and which does not include interactions that may occur through the use of
3921 telecommunication technologies.

3922 “Interjurisdictional practice certificate” or “IPC”, a certificate issued by the Association
3923 of State and Provincial Psychology Boards that grants temporary authority to practice based on
3924 notification to the State Psychology Regulatory Authority of intention to practice temporarily,
3925 and verification of one's qualifications for such practice.

3926 “License”, authorization by a state psychology regulatory authority to engage in the
3927 independent practice of psychology, which would be unlawful without the authorization.

3928 “Noncompact state”, any state which is not at the time a compact state.

3929 “Psychologist”, an individual licensed for the independent practice of psychology.

3930 “Psychology interjurisdictional compact” or “PSYPACT”, an agreement among member
3931 states, established and governed by the PSYPACT commission, to facilitate the practice of
3932 telepsychology and the temporary in-person, face-to-face practice of psychology across state
3933 boundaries.

3934 “Psychology interjurisdictional compact commission” or “commission”, the national
3935 administration of which all compact states are members.

3936 “Receiving state”, a compact state where the client is physically located when the
3937 telepsychological services are delivered.

3938 “Rule”, a written statement by the Psychology Interjurisdictional Compact Commission
3939 promulgated pursuant to section 13 of the compact that is of general applicability, implements,
3940 interprets, or prescribes a policy or provision of the compact, or an organizational, procedural or
3941 practice requirement of the commission and has the force and effect of statutory law in a
3942 compact state, and includes the amendment, repeal or suspension of an existing rule.

3943 “Significant investigatory information”, investigative information that a state psychology
3944 regulatory authority, after a preliminary inquiry that includes notification and an opportunity to
3945 respond if required by state law, has reason to believe, if proven true, would indicate more than a
3946 violation of state statute or ethics code that would be considered more substantial than minor
3947 infraction; or investigative information that indicates that the psychologist represents an
3948 immediate threat to public health and safety regardless of whether the psychologist has been
3949 notified or had an opportunity to respond.

3950 “State”, a state, commonwealth, territory, or possession of the United States and the
3951 District of Columbia.

3952 “State psychology regulatory authority”, the board, office or other agency with the
3953 legislative mandate to license and regulate the practice of psychology.

3954 “Telepsychology”, the provision of psychological services using telecommunication
3955 technologies.

3956 “Temporary authorization to practice”, a licensed psychologist's authority to conduct
3957 temporary in- person, face-to-face practice, within the limits authorized under this compact, in
3958 another compact state.

3959 “Temporary in-person, face-to-face practice”, where a psychologist is physically present
3960 (not through the use of telecommunications technologies), in the distant state to provide for the
3961 practice of psychology for 30 days within a calendar year and based on notification to the distant
3962 state.

3963 Section 5. (a) The home state shall be a compact state where a psychologist is licensed to
3964 practice psychology.

3965 (b) A psychologist may hold 1 or more compact state licenses at a time. If the
3966 psychologist is licensed in more than 1 compact state, the home state is the compact state where
3967 the psychologist is physically present when the services are delivered as authorized by the
3968 authority to practice interjurisdictional telepsychology under the terms of this compact.

3969 (c) Any compact state may require a psychologist not previously licensed in a compact
3970 state to obtain and retain a license to be authorized to practice in the compact state under
3971 circumstances not authorized by the authority to practice interjurisdictional telepsychology under
3972 the terms of this compact.

3973 (d) Any compact state may require a psychologist to obtain and retain a license to be
3974 authorized to practice in a compact state under circumstances not authorized under a temporary
3975 authorization to practice under the terms of this compact.

3976 (e) A home state's license authorizes a psychologist to practice in a receiving state under
3977 the authority to practice interjurisdictional telepsychology only if the compact state: (i) currently
3978 requires the psychologist to hold an active E.Passport; (ii) has a mechanism in place for receiving
3979 and investigating complaints about licensed individuals; (iii) notifies the commission, in
3980 compliance with the terms herein, of any adverse action or significant investigatory information
3981 regarding a licensed individual; (iv) requires an identity history summary of all applicants at
3982 initial licensure, including the use of the results of fingerprints or other biometric data checks
3983 compliant with the requirements of the Federal Bureau of Investigation, or other designee with
3984 similar authority, no later than 10 years after activation of the compact; and (v) complies with the
3985 bylaws and rules of the commission.

3986 (f) A home state's license grants temporary authorization to practice to a psychologist in
3987 a distant state only if the compact state: (i) currently requires the psychologist to hold an active
3988 IPC; (ii) has a mechanism in place for receiving and investigating complaints about licensed
3989 individuals; (iii) notifies the commission, in compliance with the terms herein, of any adverse
3990 action or significant investigatory information regarding a licensed individual; (iv) requires an
3991 identity history summary of all applicants at initial licensure, including the use of the results of
3992 fingerprints or other biometric data checks compliant with the requirements of the Federal
3993 Bureau of Investigation, or other designee with similar authority, no later than 10 years after
3994 activation of the compact; and (v) complies with the bylaws and rules of the commission.

3995 Section 6. (a) Compact states shall recognize the right of a psychologist, licensed in a
3996 compact state pursuant to section 5, to practice telepsychology in other compact states in which
3997 the psychologist is not licensed, under the authority to practice interjurisdictional telepsychology
3998 as provided in the compact.

3999 (b) To exercise the authority to practice interjurisdictional telepsychology under the terms
4000 and provisions of this compact, a psychologist licensed to practice in a compact state must:

4001 (i) hold a graduate degree in psychology from an institute of higher education that was, at
4002 the time the degree was awarded: (A) regionally accredited by an accrediting body recognized by
4003 the United States Department of Education to grant graduate degrees, or authorized by Provincial
4004 Statute or Royal Charter to grant doctoral degrees; or (B) a foreign college or university deemed
4005 to be equivalent to (i)(A) above by a foreign credential evaluation service that is a member of the
4006 National Association of Credential Evaluation Services or by a recognized foreign credential
4007 evaluation service; and

4008 (ii) hold a graduate degree in psychology that meets the following criteria: (1) the
4009 program, wherever it may be administratively housed, must be clearly identified and labeled as a
4010 psychology program. Such a program must specify in pertinent institutional catalogues and
4011 brochures its intent to educate and train professional psychologists; (2) the psychology program
4012 must stand as a recognizable, coherent, organizational entity within the institution; (3) there must
4013 be a clear authority and primary responsibility for the core and specialty areas whether or not the
4014 program cuts across administrative lines; (4) the program must consist of an integrated,
4015 organized sequence of study; (5) there must be an identifiable psychology faculty sufficient in
4016 size and breadth to carry out its responsibilities; (6) the designated director of the program must

4017 be a psychologist and a member of the core faculty; (7) the program must have an identifiable
4018 body of students who are matriculated in that program for a degree; (8) the program must include
4019 supervised practicum, internship or field training appropriate to the practice of psychology; (9)
4020 the curriculum shall encompass a minimum of 3 academic years of full-time graduate study for
4021 doctoral degree and a minimum of 1 academic year of full-time graduate study for master's
4022 degree; and (10) the program includes an acceptable residency as defined by the Rules of the
4023 Commission;

4024 (iii) possess a current, full and unrestricted license to practice psychology in a home state
4025 which is a compact state;

4026 (iv) have no history of adverse action that violate the rules of the commission;

4027 (v) have no criminal record history reported on an identity history summary that violates
4028 the rules of the commission;

4029 (vi) possess a current, active E.Passport;

4030 (vii) provide attestations in regard to areas of intended practice, conformity with: (1)
4031 standards of practice, competence in telepsychology technology; (2) criminal background
4032 requirements; and (3) knowledge and adherence to legal requirements in the home and receiving
4033 states, and provide a release of information to allow for primary source verification in a manner
4034 specified by the commission; and

4035 (viii) meet other criteria as defined by the rules of the commission.

4036 (c) The home state maintains authority over the license of any psychologist practicing
4037 into a receiving state under the authority to practice interjurisdictional telepsychology.

4038 (d) A psychologist practicing into a receiving state under the authority to practice
4039 interjurisdictional telepsychology will be subject to the receiving state's scope of practice. A
4040 receiving state may, in accordance with that state's due process law, limit or revoke a
4041 psychologist's authority to practice interjurisdictional telepsychology in the receiving state and
4042 may take any other necessary actions under the receiving state's applicable law to protect the
4043 health and safety of the receiving state's citizens. If a receiving state takes action, the state shall
4044 promptly notify the home state and the commission.

4045 (e) If a psychologist's license in any home state, another compact state, or any authority
4046 to practice interjurisdictional telepsychology in any receiving state, is restricted, suspended or
4047 otherwise limited, the E.Passport shall be revoked and therefore the psychologist shall not be
4048 eligible to practice telepsychology in a compact state under authority to practice
4049 interjurisdictional telepsychology.

4050 Section 7. (a) Compact states shall also recognize the right of a psychologist, licensed in
4051 a compact state pursuant to section 5, to practice temporarily in other compact states in which the
4052 psychologist is not licensed, as provided in the compact.

4053 (b) To exercise the temporary authorization to practice under the terms and provisions of
4054 this compact, a psychologist licensed to practice in a compact state must:

4055 (i) hold a graduate degree in psychology from an institute of higher education that was, at
4056 the time the degree was awarded: (1) regionally accredited by an accrediting body recognized by
4057 the United States Department of Education to grant graduate degrees or authorized by Provincial
4058 Statute or Royal Charter to grant doctoral degrees; or (2) a foreign college or university deemed
4059 to be equivalent to (i)(1) above by a foreign credential evaluation service that is a member of the

4060 National Association of Credential Evaluation Services or by a recognized foreign credential
4061 evaluation service; and

4062 (ii) hold a graduate degree in psychology that meets the following criteria: (1) the
4063 program, wherever it may be administratively housed, must be clearly identified and labeled as a
4064 psychology program. Such a program must specify in pertinent institutional catalogs and
4065 brochures its intent to educate and train professional psychologists; (2) the psychology program
4066 must stand as a recognizable, coherent, organizational entity within the institution; (3) there must
4067 be a clear authority and primary responsibility for the core and specialty areas whether or not the
4068 program cuts across administrative lines; (4) the program must consist of an integrated,
4069 organized sequence of study; (5) there must be an identifiable psychology faculty sufficient in
4070 size and breadth to carry out its responsibilities; (6) the designated director of the program must
4071 be a psychologist and a member of the core faculty; (7) the program must have an identifiable
4072 body of students who are matriculated in that program for a degree; (8) the program must include
4073 supervised practicum, internship or field training appropriate to the practice of psychology; (9)
4074 the curriculum shall encompass a minimum of 3 academic years of full-time graduate study for
4075 doctoral degrees and a minimum of 1 academic year of full-time graduate study for master's
4076 degree; and (10) the program includes an acceptable residency as defined by the rules of the
4077 commission;

4078 (iii) possess a current, full and unrestricted license to practice psychology in a home state
4079 which is a compact state;

4080 (iv) have no history of adverse action that violate the rules of the commission;

4081 (v) have no criminal record history that violates the rules of the commission;

4082 (vi) possess a current, active IPC;

4083 (vii) provide attestations in regard to areas of intended practice and work experience and
4084 provide a release of information to allow for primary source verification in a manner specified by
4085 the commission; and

4086 (viii) meet other criteria as defined by the rules of the commission.

4087 (c) A psychologist practicing into a distant state under the temporary authorization to
4088 practice shall practice within the scope of practice authorized by the distant state.

4089 (d) A psychologist practicing into a distant state under the temporary authorization to
4090 practice will be subject to the distant state's authority and law. A distant state may, in accordance
4091 with that state's due process law, limit or revoke a psychologist's temporary authorization to
4092 practice in the distant state and may take any other necessary actions under the distant state's
4093 applicable law to protect the health and safety of the distant state's citizens. If a distant state
4094 takes action, the distant state shall promptly notify the home state and the commission.

4095 (e) If a psychologist's license in any home state, another compact state or any temporary
4096 authorization to practice in any distant state, is restricted, suspended or otherwise limited, the
4097 IPC shall be revoked and therefore the psychologist shall not be eligible to practice in a compact
4098 state under the temporary authorization to practice.

4099 Section 8. A psychologist may practice in a receiving state under authority to practice
4100 interjurisdictional telepsychology only in the performance of the scope of practice for
4101 psychology as assigned by an appropriate state psychology regulatory authority, as defined in the
4102 rules of the commission, and under the following circumstances: (a) the psychologist initiates a

4103 client contact in a home state by way of telecommunications technologies with a client in a
4104 receiving state; and (b) other conditions regarding telepsychology as determined by rules
4105 promulgated by the commission.

4106 Section 9. (a) A home state shall have the power to impose adverse action against a
4107 psychologist's license issued by the home state. A distant state shall have the power to take
4108 adverse action on a psychologist's temporary authorization to practice within that distant state.

4109 (b) A receiving state may take adverse action on a psychologist's authority to practice
4110 interjurisdictional telepsychology within that receiving state. A home state may take adverse
4111 action against a psychologist based on an adverse action taken by a distant state regarding
4112 temporary in-person, face-to-face practice.

4113 (c) If a home state takes adverse action against a psychologist's license, that
4114 psychologist's authority to practice interjurisdictional telepsychology is terminated and the
4115 E.Passport is revoked and such psychologist's temporary authorization to practice is terminated
4116 and the IPC is revoked. All home state disciplinary orders which impose adverse action shall be
4117 reported to the commission in accordance with the rules promulgated by the commission. A
4118 compact state shall report adverse actions in accordance with the rules of the commission. In the
4119 event discipline is reported on a psychologist, the psychologist will not be eligible for
4120 telepsychology or temporary in-person, face-to-face practice in accordance with the rules of the
4121 commission. Other actions may be imposed as determined by the rules promulgated by the
4122 commission.

4123 (d) A home state's psychology regulatory authority shall investigate and take appropriate
4124 action, with respect to reported inappropriate conduct engaged in, by a licensee which occurred

4125 in a receiving state as it would if such conduct had occurred by a licensee within the home state;
4126 provided, however, that the home state's law shall control in determining any adverse action
4127 against such psychologist's license.

4128 (e) A distant state's psychology regulatory authority shall investigate and take
4129 appropriate action with respect to reported inappropriate conduct engaged in by a psychologist
4130 practicing under temporary authorization to practice which occurred in that distant state as it
4131 would if such conduct had occurred by a licensee within the home state; provided, however, that
4132 such distant state's law shall control in determining any adverse action against a psychologist's
4133 temporary authorization to practice.

4134 (f) Nothing in this compact shall override a compact state's decision that a psychologist's
4135 participation in an alternative program may be used in lieu of adverse action and that such
4136 participation shall remain non-public if required by the compact state's law. Compact states must
4137 require psychologists who enter any alternative programs to not provide telepsychology services
4138 under the authority to practice interjurisdictional telepsychology or provide temporary
4139 psychological services under the temporary authorization to practice in any other compact state
4140 during the term of the alternative program.

4141 (g) No other judicial or administrative remedies shall be available to a psychologist in the
4142 event a compact state imposes an adverse action pursuant to subsection (c).

4143 Section 10. (a) In addition to any other powers granted under state law, a compact state's
4144 psychology regulatory authority shall have the authority under this compact to: (i) issue
4145 subpoenas, for both hearings and investigations, which require the attendance and testimony of
4146 witnesses and the production of evidence. Subpoenas issued by a compact state's psychology

4147 regulatory authority for the attendance and testimony of witnesses, or the production of evidence
4148 from another compact state shall be enforced in the latter state by any court of competent
4149 jurisdiction, according to that court's practice and procedure in considering subpoenas issued in
4150 its own proceedings. The issuing state psychology regulatory authority shall pay any witness
4151 fees, travel expenses, mileage and other fees required by the service statutes of the state where
4152 the witnesses or evidence are located; and (ii) issue cease and desist or injunctive relief orders to
4153 revoke a psychologist's authority to practice interjurisdictional telepsychology or temporary
4154 authorization to practice;

4155 (b) During the course of any investigation, a psychologist may not change his or her
4156 home state licensure. A home state psychology regulatory authority is authorized to complete
4157 any pending investigations of a psychologist and to take any actions appropriate under its law.
4158 The home state psychology regulatory authority shall promptly report the conclusions of such
4159 investigations to the commission. Once an investigation has been completed, and pending the
4160 outcome of said investigation, the psychologist may change his or her home state licensure. The
4161 commission shall promptly notify the new home state of any such decisions as provided in the
4162 rules of the commission. All information provided to the commission or distributed by compact
4163 states pursuant to the psychologist shall be confidential, filed under seal and used for
4164 investigatory or disciplinary matters. The commission may create additional rules for mandated
4165 or discretionary sharing of information by compact states.

4166 Section 11. (a) The commission shall provide for the development and maintenance of a
4167 coordinated licensure information system and reporting system containing licensure and
4168 disciplinary action information on all psychologists to whom this compact is applicable in all
4169 compact states as defined by the rules of the commission.

4170 (b) Notwithstanding any other provision of state law to the contrary, a compact state shall
4171 submit a uniform data set to the coordinated database on all licensees as required by the rules of
4172 the commission, including: (i) identifying information; (ii) licensure data; (iii) significant
4173 investigatory information; (iv) adverse actions against a psychologist's license; (v) an indicator
4174 that a psychologist's authority to practice interjurisdictional telepsychology or temporary
4175 authorization to practice is revoked; (vi) non-confidential information related to alternative
4176 program participation information; (vii) any denial of application for licensure and the reasons
4177 for such denial; and (viii) other information which may facilitate the administration of this
4178 compact, as determined by the rules of the commission.

4179 (c) The coordinated database administrator shall promptly notify all compact states of any
4180 adverse action taken against, or significant investigative information on, any licensee in a
4181 compact state.

4182 (d) Compact states reporting information to the coordinated database may designate
4183 information that may not be shared with the public without the express permission of the
4184 compact state reporting the information.

4185 (e) Any information submitted to the coordinated database that is subsequently required
4186 to be expunged by the law of the compact state reporting the information shall be removed from
4187 the coordinated database.

4188 Section 12. (a) The compact states hereby create and establish a joint public agency
4189 known as the Psychology Interjurisdictional Compact Commission. The commission is a body
4190 politic and an instrumentality of the compact states. Venue is proper and judicial proceedings by
4191 or against the commission shall be brought solely and exclusively in a court of competent

4192 jurisdiction where the principal office of the commission is located. The commission may waive
4193 venue and jurisdictional defenses to the extent it adopts or consents to participate in alternative
4194 dispute resolution proceedings. Nothing in this compact shall be construed to be a waiver of
4195 sovereign immunity.

4196 (b) The commission shall consist of 1 voting representative appointed by each compact
4197 state who shall serve as that state's commissioner. The state psychology regulatory authority
4198 shall appoint its delegate. This delegate shall be empowered to act on behalf of the compact state.
4199 This delegate shall be limited to: (i) executive director, executive secretary or similar executive;
4200 (ii) current member of the state psychology regulatory authority of a compact state; or (iii)
4201 designee empowered with the appropriate delegate authority to act on behalf of the compact
4202 state.

4203 (c) Any commissioner may be removed or suspended from office as provided by the law
4204 of the state from which the commissioner is appointed. Any vacancy occurring in the
4205 commission shall be filled in accordance with the laws of the compact state in which the vacancy
4206 exists. Each commissioner shall be entitled to 1 vote with regard to the promulgation of rules and
4207 creation of bylaws and shall otherwise have an opportunity to participate in the business and
4208 affairs of the commission. A commissioner shall vote in person or by such other means as
4209 provided in the bylaws. The bylaws may provide for commissioners' participation in meetings by
4210 telephone or other means of communication.

4211 (d) The commission shall meet not less than 1 time during each calendar year. Additional
4212 meetings shall be held as set forth in the bylaws. All meetings shall be open to the public and

4213 public notice of meetings shall be given in the same manner as required under the rulemaking
4214 provisions pursuant section 13.

4215 (e) The commission may convene in a closed, non-public meeting if the commission must
4216 discuss: (i) non-compliance of a compact state with its obligations under the compact; (ii) the
4217 employment, compensation, discipline or other personnel matters, practices or procedures related
4218 to specific employees or other matters related to the commission's internal personnel practices
4219 and procedures; (iii) current, threatened or reasonably anticipated litigation against the
4220 commission; (iv) negotiation of contracts for the purchase or sale of goods, services or real
4221 estate; (v) accusation against any person of a crime or formally censuring any person; (vi)
4222 disclosure of trade secrets or commercial or financial information which is privileged or
4223 confidential; (vii) disclosure of information of a personal nature where disclosure would
4224 constitute a clearly unwarranted invasion of personal privacy; (viii) disclosure of investigatory
4225 records compiled for law enforcement purposes; (ix) disclosure of information related to any
4226 investigatory reports prepared by or on behalf of or for use of the commission or other committee
4227 charged with responsibility for investigation or determination of compliance issues pursuant to
4228 the compact; or (x) matters specifically exempted from disclosure by federal and state statute.

4229 (f) If a meeting, or portion of a meeting, is closed pursuant to this provision, the
4230 commission's legal counsel or designee shall certify that the meeting may be closed and shall
4231 reference each relevant exempting provision. The commission shall keep minutes which fully
4232 and clearly describe all matters discussed in a meeting and shall provide a full and accurate
4233 summary of actions taken, of any person participating in the meeting, and the reasons therefore,
4234 including a description of the views expressed. All documents considered in connection with an
4235 action shall be identified in such minutes. All minutes and documents of a closed meeting shall

4236 remain under seal, subject to release only by a majority vote of the commission or order of a
4237 court of competent jurisdiction.

4238 (g) The commission shall, by a majority vote of the commissioners, prescribe bylaws and
4239 rules to govern its conduct as may be necessary or appropriate to carry out the purposes and
4240 exercise the powers of the compact, including, but not limited to: (1) establishing the fiscal year
4241 of the commission; (2) providing reasonable standards and procedures: (A) for the establishment
4242 and meetings of other committees; and (B) governing any general or specific delegation of any
4243 authority or function of the commission; (3) providing reasonable procedures for calling and
4244 conducting meetings of the commission, ensuring reasonable advance notice of all meetings and
4245 providing an opportunity for attendance of such meetings by interested parties, with enumerated
4246 exceptions designed to protect the public's interest, the privacy of individuals of such
4247 proceedings, and proprietary information, including trade secrets. The commission may meet in
4248 closed session only after a majority of the commissioners vote to close a meeting to the public in
4249 whole or in part. As soon as practicable, the commission must make public a copy of the vote to
4250 close the meeting revealing the vote of each commissioner with no proxy votes allowed; (4)
4251 establishing the titles, duties and authority and reasonable procedures for the election of the
4252 officers of the commission; (5) providing reasonable standards and procedures for the
4253 establishment of the personnel policies and programs of the commission. Notwithstanding any
4254 civil service or other similar law of any compact state, the bylaws shall exclusively govern the
4255 personnel policies and programs of the commission; (6) promulgating a code of ethics to address
4256 permissible and prohibited activities of commission members and employees; (7) providing a
4257 mechanism for concluding the operations of the Commission and the equitable disposition of any
4258 surplus funds that may exist after the termination of the compact after the payment or reserving

4259 of all of its debts and obligations; (8) publishing its bylaws in a convenient form and file a copy
4260 thereof and a copy of any amendment thereto, with the appropriate agency or officer in each of
4261 the compact states; (9) maintaining its financial records in accordance with the bylaws; and (10)
4262 meeting and taking such actions as are consistent with the provisions of this compact and the
4263 bylaws.

4264 (h) The commission shall have the following powers and authority: (1) to promulgate
4265 uniform rules to facilitate and coordinate implementation and administration of this compact.
4266 Such rules shall have the force and effect of law and shall be binding in all compact states; (2) to
4267 bring and prosecute legal proceedings or actions in the name of the commission; provided,
4268 however, that the standing of any state psychology regulatory authority or other regulatory body
4269 responsible for psychology licensure to sue or be sued under applicable law shall not be affected;
4270 (3) to purchase and maintain insurance and bonds; (4) to borrow, accept or contract for services
4271 of personnel, including, but not limited to, employees of a compact state; (5) to hire employees,
4272 elect or appoint officers, fix compensation, define duties, grant such individuals appropriate
4273 authority to carry out the purposes of the compact and to establish the commission's personnel
4274 policies and programs relating to conflicts of interest, qualifications of personnel and other
4275 related personnel matters; (6) to accept any and all appropriate donations and grants of money,
4276 equipment, supplies, materials and services, and to receive, utilize and dispose of the same;
4277 provided, however, that at all times the commission shall strive to avoid any appearance of
4278 impropriety or conflict of interest; (7) to lease, purchase, accept appropriate gifts or donations of,
4279 or otherwise to own, hold, improve or use, any property, real, personal or mixed; provided,
4280 however, that at all times the commission shall strive to avoid any appearance of impropriety; (8)
4281 to sell, convey, mortgage, pledge, lease, exchange, abandon or otherwise dispose of any property

real, personal or mixed; (9) to establish a budget and make expenditures; (10) to borrow money; (11) to appoint committees, including advisory committees comprised of members, state regulators, state legislators or their representatives and consumer representatives, and such other interested persons as may be designated in this compact and the bylaws; (12) to provide and receive information from, and to cooperate with, law enforcement agencies; (13) to adopt and use an official seal; and (14) to perform such other functions as may be necessary or appropriate to achieve the purposes of this compact consistent with the state regulation of psychology licensure, temporary in-person, face-to-face practice and telepsychology practice.

(i) The elected officers shall serve as the executive board, which shall have the power to act on behalf of the commission according to the terms of this compact. The executive board shall be comprised of: 5 voting members who are elected from the current membership of the commission by the commission; and 1 ex-officio, non-voting member from the recognized membership organization composed of state and provincial psychology regulatory authorities. The ex-officio member must have served as staff or member on a state psychology regulatory authority and will be selected by its respective organization. The commission may remove any member of the executive board in accordance with the bylaws. The executive board shall meet not less than annually.

(j) The executive board shall have the following duties and responsibilities: (i) recommend to the entire commission changes to the rules or bylaws, changes to this compact legislation, fees paid by compact states such as annual dues, and any other applicable fees; (ii) ensure compact administration services are appropriately provided, contractual or otherwise; (iii) prepare and recommend the budget; (iv) maintain financial records on behalf of the commission; (v) monitor compact compliance of member states and provide compliance reports to the

4305 commission; (vi) establish additional committees as necessary; and (vii) other duties as provided
4306 in rules or bylaws.

4307 (k) The commission shall pay, or provide for the payment of, the reasonable expenses of
4308 its establishment, organization and ongoing activities. The commission may accept any and all
4309 appropriate revenue sources, donations and grants of money, equipment, supplies, materials and
4310 services. The commission may levy on and collect an annual assessment from each compact state
4311 or impose fees on other parties to cover the cost of the operations and activities of the
4312 commission and its staff which must be in a total amount sufficient to cover its annual budget as
4313 approved each year for which revenue is not provided by other sources. The aggregate annual
4314 assessment amount shall be allocated based upon a formula to be determined by the commission
4315 which shall promulgate a rule binding upon all compact states. The commission shall not incur
4316 obligations of any kind prior to securing the funds adequate to meet the same nor shall the
4317 commission pledge the credit of any of the compact states, except by and with the authority of
4318 the compact state. The commission shall keep accurate accounts of all receipts and
4319 disbursements. The receipts and disbursements of the commission shall be subject to the audit
4320 and accounting procedures established under its bylaws. All receipts and disbursements of funds
4321 handled by the commission shall be audited annually by a certified or licensed public accountant
4322 and the report of the audit shall be included in and become part of the annual report of the
4323 commission.

4324 (l) (1) The members, officers, executive director, employees and representatives of the
4325 commission shall be immune from suit and liability, either personally or in their official capacity,
4326 for any claim for damage to or loss of property or personal injury or other civil liability caused
4327 by or arising out of any actual or alleged act, error or omission that occurred, or that the person

4328 against whom the claim is made had a reasonable basis for believing occurred within the scope
4329 of commission employment, duties or responsibilities; provided, however, that nothing in this
4330 paragraph shall be construed to protect any such person from suit or liability for any damage,
4331 loss, injury or liability caused by the intentional or willful or wanton misconduct of that person.

4332 (2) The commission shall defend any member, officer, executive director, employee or
4333 representative of the commission in any civil action seeking to impose liability arising out of any
4334 actual or alleged act, error or omission that occurred within the scope of commission
4335 employment, duties or responsibilities, or that the person against whom the claim is made had a
4336 reasonable basis for believing occurred within the scope of commission employment, duties or
4337 responsibilities; provided, however, that nothing herein shall be construed to prohibit that person
4338 from retaining his or her own counsel; and provided further, that the actual or alleged act, error
4339 or omission did not result from that person's intentional or willful or wanton misconduct.

4340 (3) The commission shall indemnify and hold harmless any member, officer, executive
4341 director, employee or representative of the commission for the amount of any settlement or
4342 judgment obtained against that person arising out of any actual or alleged act, error or omission
4343 that occurred within the scope of commission employment, duties or responsibilities, or that such
4344 person had a reasonable basis for believing occurred within the scope of commission
4345 employment, duties or responsibilities, provided that the actual or alleged act, error or omission
4346 did not result from the intentional or willful or wanton misconduct of that person.

4347 Section 13. (a) The commission shall exercise its rulemaking powers pursuant to the
4348 criteria set forth in this section and the rules adopted thereunder. Rules and amendments shall
4349 become binding as of the date specified in each rule or amendment.

4350 (b) If a majority of the legislatures of the compact states rejects a rule, by enactment of a
4351 statute or resolution in the same manner used to adopt the compact, then such rule shall have no
4352 further force and effect in any compact state.

4353 (c) Rules or amendments to the rules shall be adopted at a regular or special meeting of
4354 the commission.

4355 (d) Prior to promulgation and adoption of a final rule or rules by the commission, and at
4356 least 60 days in advance of the meeting at which the rule will be considered and voted upon, the
4357 commission shall file a notice of proposed rulemaking on the website of: (i) the commission; and
4358 (ii) each compact states' psychology regulatory authority or the publication in which each state
4359 would otherwise publish proposed rules.

4360 (e) The notice of proposed rulemaking shall include: (1) the proposed time, date and
4361 location of the meeting in which the rule will be considered and voted upon; (2) the text of the
4362 proposed rule or amendment and the reason for the proposed rule; (3) a request for comments on
4363 the proposed rule from any interested person; and (4) the manner in which interested persons
4364 may submit notice to the commission of their intention to attend the public hearing and any
4365 written comments.

4366 (f) Prior to adoption of a proposed rule, the commission shall allow persons to submit
4367 written data, facts, opinions and arguments, which shall be made available to the public.

4368 (g) The commission shall grant an opportunity for a public hearing before it adopts a rule
4369 or amendment if a hearing is requested by: (i) not less than 25 persons who submit comments
4370 independently of each other; (ii) a governmental subdivision or agency; or (iii) a duly appointed
4371 person in an association that has having not less than 25 members.

4372 (h) If a hearing is held on the proposed rule or amendment, the commission shall publish
4373 the place, time and date of the scheduled public hearing. All persons wishing to be heard at the
4374 hearing shall notify the executive director of the commission or other designated member in
4375 writing of their desire to appear and testify at the hearing not less than 5 business days before the
4376 scheduled date of the hearing. Hearings shall be conducted in a manner providing each person
4377 who wishes to comment a fair and reasonable opportunity to comment orally or in writing.

4378 (i) No transcript of the hearing is required, unless a written request for a transcript is
4379 made, in which case the person requesting the transcript shall bear the cost of producing the
4380 transcript. A recording may be made in lieu of a transcript under the same terms and conditions
4381 as a transcript. This subsection shall not preclude the commission from making a transcript or
4382 recording of the hearing if it so chooses.

4383 (j) Nothing in this section shall be construed as requiring a separate hearing on each rule.
4384 Rules may be grouped for the convenience of the commission at hearings required by this
4385 section.

4386 (k) Following the scheduled hearing date, or by the close of business on the scheduled
4387 hearing date if the hearing was not held, the commission shall consider all written and oral
4388 comments received.

4389 (l) The commission shall, by majority vote of all members, take final action on the
4390 proposed rule and shall determine the effective date of the rule, if any, based on the rulemaking
4391 record and the full text of the rule.

4392 (m) If no written notice of intent to attend the public hearing by interested parties is
4393 received, the commission may proceed with promulgation of the proposed rule without a public
4394 hearing.

4395 (n) Upon determination that an emergency exists, the commission may consider and
4396 adopt an emergency rule without prior notice, opportunity for comment, or hearing; provided,
4397 however, that the usual rulemaking procedures provided in the compact and in this section shall
4398 be retroactively applied to the rule as soon as reasonably possible, but in no event later than 90
4399 days after the effective date of the rule. For the purposes of this provision, an emergency rule is
4400 one that must be adopted immediately in order to: (1) meet an imminent threat to public health,
4401 safety or welfare; (2) prevent a loss of commission or compact state funds; (3) meet a deadline
4402 for the promulgation of an administrative rule that is established by federal law or rule; or (4)
4403 protect public health and safety.

4404 (o) The commission or an authorized committee of the commission may direct revisions
4405 to a previously adopted rule or amendment for purposes of correcting typographical errors, errors
4406 in format, errors in consistency or grammatical errors. Public notice of any revisions shall be
4407 posted on the website of the commission. The revision shall be subject to challenge by any
4408 person for a period of 30 days after posting. The revision may be challenged only on grounds
4409 that the revision results in a material change to a rule. A challenge shall be made in writing and
4410 delivered to the chair of the commission prior to the end of the notice period. If no challenge is
4411 made, the revision shall take effect without further action. If the revision is challenged, the
4412 revision may not take effect without the approval of the commission.

4413 Section 14. (a) The executive, legislative and judicial branches of state government in
4414 each compact state shall enforce this compact and take all actions necessary and appropriate to
4415 effectuate the compact's purposes and intent. The provisions of this compact and the rules
4416 promulgated hereunder shall have standing as statutory law. All courts shall take judicial notice
4417 of the compact and the rules in any judicial or administrative proceeding in a compact state
4418 pertaining to the subject matter of this compact which may affect the powers, responsibilities or
4419 actions of the commission. The commission shall be entitled to receive service of process in any
4420 such proceeding and shall have standing to intervene in such a proceeding for all purposes.
4421 Failure to provide service of process to the commission shall render a judgment or order void as
4422 to the commission, this compact or promulgated rules.

4423 (b) If the commission determines that a compact state has defaulted in the performance of
4424 its obligations or responsibilities under this compact or the promulgated rules, the commission
4425 shall: (i) provide written notice to the defaulting state and other compact states of the nature of
4426 the default, the proposed means of remedying the default or any other action to be taken by the
4427 commission; and (ii) provide remedial training and specific technical assistance regarding the
4428 default. If a state in default fails to remedy the default, the defaulting state may be terminated
4429 from the compact upon an affirmative vote of a majority of the compact states, and all rights,
4430 privileges and benefits conferred by this compact shall be terminated on the effective date of
4431 termination. A remedy of the default does not relieve the offending state of obligations or
4432 liabilities incurred during the period of default.

4433 (c) Termination of membership in the compact shall be imposed only after all other
4434 means of securing compliance have been exhausted. Notice of intent to suspend or terminate
4435 shall be submitted by the commission to the governor, the majority and minority leaders of the

4436 defaulting state's legislature and each of the compact states. A compact state which has been
4437 terminated is responsible for all assessments, obligations and liabilities incurred through the
4438 effective date of termination, including obligations which extend beyond the effective date of
4439 termination.

4440 (d) The commission shall not bear any costs incurred by the state which is found to be in
4441 default or which has been terminated from the compact, unless agreed upon in writing between
4442 the commission and the defaulting state. The defaulting state may appeal the action of the
4443 commission by petitioning the United States district court for the state or the federal district
4444 where the compact has its principal offices. The prevailing member shall be awarded all costs of
4445 such litigation, including reasonable attorney's fees.

4446 (e) Upon request by a compact state, the commission shall attempt to resolve disputes
4447 related to the compact which arise among compact states and between compact and non-compact
4448 states. The commission shall promulgate a rule providing for both mediation and binding dispute
4449 resolution for disputes that arise before the commission.

4450 (f) The commission, in the reasonable exercise of its discretion, shall enforce the
4451 provisions and rules of this compact.

4452 (g) By majority vote, the commission may initiate legal action in the United States
4453 district court for the state of Georgia or the federal district where the compact has its principal
4454 offices against a compact state in default to enforce compliance with the provisions of the
4455 compact and its promulgated rules and bylaws. The relief sought may include both injunctive
4456 relief and damages. In the event judicial enforcement is necessary, the prevailing member shall
4457 be awarded all costs of such litigation, including reasonable attorney's fees.

4458 (h) The remedies herein shall not be the exclusive remedies of the commission. The
4459 commission may pursue any other remedies available under federal or state law.

4460 Section 15. (a) The compact shall come into effect on the date on which the compact is
4461 enacted into law in the seventh compact state. The provisions which become effective at that
4462 time shall be limited to the powers granted to the commission relating to assembly and the
4463 promulgation of rules. Thereafter, the commission shall meet and exercise rulemaking powers
4464 necessary to the implementation and administration of the compact.

4465 (b) Any state which joins the compact subsequent to the commission's initial adoption of
4466 the rules shall be subject to the rules as they exist on the date on which the compact becomes law
4467 in that state. Any rule which has been previously adopted by the commission shall have the full
4468 force and effect of law on the day the compact becomes law in that state.

4469 (c) Any compact state may withdraw from this compact by enacting a statute repealing
4470 the same. A compact state's withdrawal shall not take effect until 6 months after enactment of the
4471 repealing statute. Withdrawal shall not affect the continuing requirement of the withdrawing
4472 state's psychology regulatory authority to comply with the investigative and adverse action
4473 reporting requirements of this act prior to the effective date of withdrawal.

4474 (d) Nothing contained in this compact shall be construed to invalidate or prevent any
4475 psychology licensure agreement or other cooperative arrangement between a compact state and a
4476 non-compact state which does not conflict with the provisions of this compact.

4477 (e) This compact may be amended by the compact states. No amendment to this compact
4478 shall become effective and binding upon any compact state until it is enacted into the law of all
4479 compact states.

4480 Section 16. This compact shall be liberally construed so as to effectuate the purposes
4481 thereof. If this compact shall be held contrary to the constitution of any state member thereto, the
4482 compact shall remain in full force and effect as to the remaining compact states.

4483 Section 17. The compact administrator who represents the commonwealth, as provided in
4484 the compact, shall not be entitled to any additional compensation for executing their duties and
4485 responsibilities as compact administrator but shall be entitled to reimbursement for reasonable
4486 expenses actually incurred in connection with his duties and responsibilities as compact
4487 administrator in the same manner as for expenses incurred in connection with other duties and
4488 responsibilities of his office or employment.

4489 Section 18. The executive director of the board of registration of psychologists or the
4490 board executive director's designee, shall be the administrator of the psychology
4491 interjurisdictional compact for the commonwealth.

4492 Section 19. The board of registration of psychologists may promulgate regulations as
4493 necessary to implement the provisions of this chapter.

4494 Section 20. The board of registration of psychologists may recover from a psychologist
4495 the costs of investigation and disposition of cases resulting in any adverse disciplinary action
4496 taken against a psychologist's authority to practice interjurisdictional telepsychology or
4497 temporary authorization to practice. Funds collected pursuant to this section shall be deposited in
4498 the Quality in Health Professions Trust Fund established pursuant to section 35X of chapter 10.

4499 Section 21. The board of registration of psychologists may take disciplinary action
4500 against a psychologist practicing in the commonwealth under the authority to practice
4501 interjurisdictional telepsychology or temporary authorization to practice under a license issued

4502 by a member state. The board's disciplinary action may be based on disciplinary action against
4503 the psychologist's license taken by that licensee's home state.

4504 Section 22. In reporting information to the coordinated licensure information system
4505 under section 11 of this chapter related to the Psychology Interjurisdictional Compact Act, the
4506 board of registration of psychologists may disclose personally identifiable information about the
4507 psychologist, including social security number.

4508 Section 23. This psychology interjurisdictional compact shall be subject to the applicable
4509 laws and regulations of the commonwealth, including chapters 13, 30A and 112 of the General
4510 Laws.

4511 CHAPTER 112C.

4512 SOCIAL WORK LICENSURE COMPACT

4513 Section 1. The purpose of this compact is to facilitate interstate practice of regulated
4514 social workers by improving public access to competent social work services. The compact
4515 preserves the regulatory authority of states to protect public health and safety through the current
4516 system of state licensure. This compact is designed to achieve the following objectives:

4517 (a) increase public access to social work services;

4518 (b) reduce overly burdensome and duplicative requirements associated with holding
4519 multiple licenses;

4520 (c) enhance the member states' ability to protect the public's health and safety;

4521 (d) encourage the cooperation of member states in regulating multistate practice;

4522 (e) promote mobility and address workforce shortages by eliminating the necessity for
4523 licenses in multiple states by providing for the mutual recognition of other member state
4524 licenses;

4525 (f) support military families;

4526 (g) facilitate the exchange of licensure and disciplinary information among member
4527 states;

4528 (h) authorize all member states to hold a regulated social worker accountable for abiding
4529 by a member state's laws, regulations and applicable professional standards in the member state
4530 in which the client is located at the time care is rendered; and

4531 (i) allow for the use of telehealth to facilitate increased access to regulated social work
4532 services.

4533 Section 2. As used in this chapter, unless the context requires otherwise, the following
4534 words shall have the following meanings:

4535 (a) "Active military member", any individual with full-time duty status in the active
4536 armed forces of the United States including members of the National Guard and Reserve.

4537 (b) "Adverse action", any administrative, civil, equitable or criminal action permitted by
4538 a state's laws which is imposed by a licensing authority or other authority against a regulated
4539 social worker, including actions against an individual's license or multistate authorization to
4540 practice such as revocation, suspension, probation, monitoring of the licensee, limitation on the
4541 licensee's practice or any other encumbrance on licensure affecting a regulated social worker's
4542 authorization to practice, including issuance of a cease and desist action.

4543 (c) “Alternative program”, a non-disciplinary monitoring or practice remediation process
4544 approved by a licensing authority to address practitioners with an impairment.

4545 (d) “Charter member states”, member states who have enacted legislation to adopt this
4546 compact where such legislation predates the effective date of this compact as described in section
4547 14.

4548 (e) “Compact Commission” or “Commission”, the government agency whose
4549 membership consists of all states that have enacted this compact, which is known as the Social
4550 Work Licensure Compact Commission, as described in section 10, and which shall operate as an
4551 instrumentality of the member states.

4552 (f) “Current significant investigative information”, (1) investigative information that a
4553 licensing authority, after a preliminary inquiry that includes notification and an opportunity for
4554 the regulated social worker to respond has reason to believe is not groundless and, if proved true,
4555 would indicate more than a minor infraction as may be defined by the commission; or (2)
4556 investigative information that indicates that the regulated social worker represents an immediate
4557 threat to public health and safety, as may be defined by the commission, regardless of whether
4558 the regulated social worker has been notified and has had an opportunity to respond.

4559 (g) “Data system”, a repository of information about licensees, including, continuing
4560 education, examination, licensure, current significant investigative information, disqualifying
4561 event, multistate licenses and adverse action information or other information as required by the
4562 commission.

4563 (h) “Disqualifying event”, any adverse action or incident which results in an
4564 encumbrance that disqualifies or makes the licensee ineligible to either obtain, retain or renew a
4565 multistate license.

4566 (i) “Domicile”, the jurisdiction in which the licensee resides and intends to remain
4567 indefinitely.

4568 (j) “Encumbrance”, a revocation or suspension of, or any limitation on, the full and
4569 unrestricted practice of social work licensed and regulated by a licensing authority.

4570 (k) “Executive committee”, a group of delegates elected or appointed to act on behalf of,
4571 and within the powers granted to them by, the compact and commission.

4572 (l) “Home state”, the member state that is the licensee’s primary domicile.

4573 (m) “Impairment”, a condition or conditions that may impair a practitioner’s ability to
4574 engage in full and unrestricted practice as a regulated social worker without some type of
4575 intervention and may include alcohol and drug dependence, mental health impairment and
4576 neurological or physical impairments.

4577 (n) “Licensee(s)”, an individual who currently holds a license from a state to practice as a
4578 regulated social worker.

4579 (o) “Licensing authority”, the board or agency of a member state, or equivalent, that is
4580 responsible for the licensing and regulation of regulated social workers.

4581 (p) “Member state”, a state, commonwealth, district or territory of the United States of
4582 America that has enacted this compact.

4583 (q) “Multistate authorization to practice”, a legally authorized privilege to practice, which
4584 is equivalent to a license, associated with a multistate license permitting the practice of social
4585 work in a remote state.

4586 (r) “Multistate license”, a license to practice as a regulated social worker issued by a
4587 home state licensing authority that authorizes the regulated social worker to practice in all
4588 member states under multistate authorization to practice.

4589 (s) “Qualifying national exam”, a national licensing examination approved by the
4590 commission.

4591 (t) “Regulated social worker”, any clinical, master’s or bachelor’s social worker licensed
4592 by a member state regardless of the title used by that member state.

4593 (u) “Remote state”, a member state other than the licensee’s home state.

4594 (v) “Rule(s)” or “Rule(s) of the commission”, a regulation or regulations duly
4595 promulgated by the commission, as authorized by the compact, that has the force of law.

4596 (w) “Single state license”, a social work license issued by any state that authorizes
4597 practice only within the issuing state and does not include multistate authorization to practice in
4598 any member state.

4599 (x) “Social work” or “Social work services”, the application of social work theory,
4600 knowledge, methods, ethics and the professional use of self to restore or enhance social,
4601 psychosocial or biopsychosocial functioning of individuals, couples, families, groups,
4602 organizations and communities through the care and services provided by a regulated social

4603 worker as set forth in the member state’s statutes and regulations in the state where the services
4604 are being provided.

4605 (y) “State”, any state, commonwealth, district or territory of the United States of America
4606 that regulates the practice of social work.

4607 (z) “Unencumbered license”, a license that authorizes a regulated social worker to engage
4608 in the full and unrestricted practice of social work.

4609 Section 3. (a) To be eligible to participate in the compact, a potential member state must
4610 currently meet all of the following criteria:

4611 (1) license and regulate the practice of social work at either the clinical, master’s or
4612 bachelor’s category;

4613 (2) require applicants for licensure to graduate from a program that is:

4614 (i) operated by a college or university recognized by the licensing authority;

4615 (ii) accredited, or in candidacy by an institution that subsequently becomes accredited, by
4616 an accrediting agency recognized by either:

4617 (A) the Council for Higher Education Accreditation, or its successor; or

4618 (B) the United States Department of Education; and

4619 (iii) corresponds to the licensure sought as outlined in section 4;

4620 (3) require applicants for clinical licensure to complete a period of supervised practice;

4621 and

4622 (4) have a mechanism in place for receiving, investigating and adjudicating complaints
4623 about licensees.

4624 (b) To maintain membership in the compact a member state shall:

4625 (1) require that applicants for a multistate license pass a qualifying national exam for the
4626 corresponding category of multistate license sought as outlined in section 4;

4627 (2) participate fully in the commission's data system, including using the commission's
4628 unique identifier as defined in rules;

4629 (3) notify the commission, in compliance with the terms of the compact and rules, of any
4630 adverse action or the availability of current significant investigative information regarding a
4631 licensee;

4632 (4) implement procedures for considering the criminal history records of applicants for a
4633 multistate license. Such procedures shall include the submission of fingerprints or other
4634 biometric-based information by applicants for the purpose of obtaining an applicant's criminal
4635 history record information from the Federal Bureau of Investigation and the agency responsible
4636 for retaining that state's criminal records;

4637 (5) comply with the rules of the commission;

4638 (6) require an applicant to obtain or retain a license in the home state and meet the home
4639 state's qualifications for licensure or renewal of licensure, as well as all other applicable home
4640 state laws;

4641 (7) authorize a licensee holding a multistate license in any member state to practice in
4642 accordance with the terms of the compact and rules of the commission; and

4643 (8) designate a delegate to participate in the commission meetings.

4644 (c) A member state meeting the requirements of subsections (a) and (b) of section 3 of
4645 this compact shall designate the categories of social work licensure that are eligible for issuance
4646 of a multistate license for applicants in such member state. To the extent that any member state
4647 does not meet the requirements for participation in the compact at any particular category of
4648 social work licensure, such member state may choose, but is not obligated to, issue a multistate
4649 license to applicants that otherwise meet the requirements of section 4 for issuance of a
4650 multistate license in such category or categories of licensure.

4651 (d) The home state may charge a fee for granting the multistate license.

4652 Section 4. (a) To be eligible for a multistate license under the terms and provisions of the
4653 compact, an applicant, regardless of category, must:

4654 (1) hold or be eligible for an active, unencumbered license in the home state;

4655 (2) pay any applicable fees, including any state fee, for the multistate license;

4656 (3) submit, in connection with an application for a multistate license, fingerprints or other
4657 biometric data for the purpose of obtaining criminal history record information from the Federal
4658 Bureau of Investigation and the agency responsible for retaining that state's criminal records;

4659 (4) notify the home state of any adverse action, encumbrance or restriction on any
4660 professional license taken by any member state or non-member state within 30 days from the
4661 date the action is taken;

4662 (5) meet any continuing competence requirements established by the home state; and

4663 (6) abide by the laws, regulations and applicable standards in the member state where the
4664 client is located at the time care is rendered.

4665 (b) An applicant for a clinical-category multistate license must meet all of the following
4666 requirements:

4667 (1) fulfill a competency requirement, which shall be satisfied by either:

4668 (i) passage of a clinical-category qualifying national exam; or

4669 (ii) licensure of the applicant in their home state at the clinical category, beginning prior
4670 to such time as a qualifying national exam was required by the home state and accompanied by a
4671 period of continuous social work licensure thereafter, all of which may be further governed by
4672 the rules of the commission; or

4673 (iii) the substantial equivalency of the foregoing competency requirements which the
4674 commission may determine by rule;

4675 (2) attain at least a master's degree in social work from a program that is:

4676 (i) operated by a college or university recognized by the licensing authority; and

4677 (ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting
4678 agency recognized by either:

4679 (A) the Council for Higher Education Accreditation or its successor; or

4680 (B) the United States Department of Education; and

4681 (3) fulfill a practice requirement, which shall be satisfied by demonstrating completion of
4682 either:

4683 (i) a period of postgraduate supervised clinical practice equal to a minimum of 3,000
4684 hours; or

4685 (ii) a minimum of 2 years of full-time postgraduate supervised clinical practice; or

4686 (iii) the substantial equivalency of the foregoing practice requirements which the
4687 commission may determine by rule.

4688 (c) An applicant for a master's-category multistate license must meet all of the following
4689 requirements:

4690 (1) fulfill a competency requirement, which shall be satisfied by either:

4691 (i) passage of a masters-category qualifying national exam;

4692 (ii) licensure of the applicant in their home state at the master's category, beginning prior
4693 to such time as a qualifying national exam was required by the home state at the master's
4694 category and accompanied by a continuous period of social work licensure thereafter, all of
4695 which may be further governed by the rules of the commission; or

4696 (iii) the substantial equivalency of the foregoing competency requirements which the
4697 commission may determine by rule; and

4698 (2) attain at least a master's degree in social work from a program that is:

4699 (i) operated by a college or university recognized by the licensing authority; and

4700 (ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting
4701 agency recognized by either:

4702 (A) the Council for Higher Education Accreditation or its successor; or

4703 (B) the United States Department of Education.

4704 (d) An applicant for a bachelor's-category multistate license must meet all of the
4705 following requirements:

4706 (1) fulfill a competency requirement, which shall be satisfied by either:

4707 (i) passage of a bachelor's-category qualifying national exam;

4708 (ii) licensure of the applicant in their home state at the bachelor's category, beginning
4709 prior to such time as a qualifying national exam was required by the home state and accompanied
4710 by a period of continuous social work licensure thereafter, all of which may be further governed
4711 by the rules of the commission; or

4712 (iii) the substantial equivalency of the foregoing competency requirements which the
4713 commission may determine by rule; and

4714 (2) attain at least a bachelor's degree in social work from a program that is:

4715 (i) operated by a college or university recognized by the licensing authority; and

4716 (ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting
4717 agency recognized by either:

4718 (A) the Council for Higher Education Accreditation or its successor; or

4719 (B) the United States Department of Education.

4720 (e) The multistate license for a regulated social worker is subject to the renewal
4721 requirements of the home state. The regulated social worker must maintain compliance with the
4722 requirements of subsection (a) of section 4 to be eligible to renew a multistate license.

4723 (f) The regulated social worker's services in a remote state are subject to that member
4724 state's regulatory authority. A remote state may, in accordance with due process and that
4725 member state's laws, remove a regulated social worker's multistate authorization to practice in
4726 the remote state for a specific period of time, impose fines, and take any other necessary actions
4727 to protect the health and safety of its citizens.

4728 (g) If a multistate license is encumbered, the regulated social worker's multistate
4729 authorization to practice shall be deactivated in all remote states until the multistate license is no
4730 longer encumbered.

4731 (h) If a multistate authorization to practice is encumbered in a remote state, the regulated
4732 social worker's multistate authorization to practice may be deactivated in that state until the
4733 multistate authorization to practice is no longer encumbered.

4734 Section 5. (a) Upon receipt of an application for multistate license, the home state
4735 licensing authority shall determine the applicant's eligibility for a multistate license in
4736 accordance with section 4 of this compact.

4737 (b) If such applicant is eligible pursuant to section 4 of this compact, the home state
4738 licensing authority shall issue a multistate license that authorizes the applicant or regulated social
4739 worker to practice in all member states under a multistate authorization to practice.

4740 (c) Upon issuance of a multistate license, the home state licensing authority shall
4741 designate whether the regulated social worker holds a multistate license in the bachelors, masters
4742 or clinical category of social work.

4743 (d) A multistate license issued by a home state to a resident in that state shall be
4744 recognized by all compact member states as authorizing social work practice under a multistate
4745 authorization to practice corresponding to each category of licensure regulated in each member
4746 state.

4747 Section 6. (a) Nothing in this compact, nor any rule of the commission, shall be construed
4748 to limit, restrict or in any way reduce the ability of a member state to enact and enforce laws,
4749 regulations or other rules related to the practice of social work in that state, where those laws,
4750 regulations or other rules are not inconsistent with the provisions of this compact.

4751 (b) Nothing in this compact shall affect the requirements established by a member state
4752 for the issuance of a single state license.

4753 (c) Nothing in this compact, nor any rule of the commission, shall be construed to limit,
4754 restrict or in any way reduce the ability of a member state to take adverse action against a
4755 licensee's single state license to practice social work in that state.

4756 (d) Nothing in this compact, nor any rule of the commission, shall be construed to limit,
4757 restrict or in any way reduce the ability of a remote state to take adverse action against a
4758 licensee's multistate authorization to practice in that state.

4759 (e) Nothing in this compact, nor any rule of the commission, shall be construed to limit,
4760 restrict or in any way reduce the ability of a licensee's home state to take adverse action against a
4761 licensee's multistate license based upon information provided by a remote state.

4762 Section 7. (a) A licensee can hold a multistate license, issued by their home state, in only
4763 1 member state at any given time.

4764 (b) If a licensee changes their home state by moving between 2 member states:

4765 (1) the licensee shall immediately apply for the reissuance of their multistate license in
4766 their new home state. The licensee shall pay all applicable fees and notify the prior home state in
4767 accordance with the rules of the commission.

4768 (2) upon receipt of an application to reissue a multistate license, the new home state shall
4769 verify that the multistate license is active, unencumbered and eligible for reissuance under the
4770 terms of the compact and the rules of the commission. The multistate license issued by the prior
4771 home state will be deactivated and all member states notified in accordance with the applicable
4772 rules adopted by the commission.

4773 (3) prior to the reissuance of the multistate license, the new home state shall conduct
4774 procedures for considering the criminal history records of the licensee. Such procedures shall
4775 include the submission of fingerprints or other biometric-based information by applicants for the
4776 purpose of obtaining an applicant's criminal history record information from the Federal Bureau
4777 of Investigation and the agency responsible for retaining that state's criminal records.

4778 (4) if required for initial licensure, the new home state may require completion of
4779 jurisprudence requirements in the new home state.

4780 (5) notwithstanding any other provision of this compact, if a licensee does not meet the
4781 requirements set forth in this compact for the reissuance of a multistate license by the new home
4782 state, then the licensee shall be subject to the new home state requirements for the issuance of a
4783 single state license in that state.

4784 (c) If a licensee changes their primary state of residence by moving from a member state
4785 to a non-member state, or from a non-member state to a member state, then the licensee shall be
4786 subject to the state requirements for the issuance of a single state license in the new home state.

4787 (d) Nothing in this compact shall interfere with a licensee's ability to hold a single state
4788 license in multiple states; provided, however, that for the purposes of this compact, a licensee
4789 shall have only 1 home state, and only 1 multistate license.

4790 (e) Nothing in this compact shall interfere with the requirements established by a member
4791 state for the issuance of a single state license.

4792 Section 8. (a) An active military member or their spouse shall designate a home state
4793 where the individual has a multistate license. The individual may retain their home state
4794 designation during the period the service member is on active duty.

4795 Section 9. (a) In addition to the other powers conferred by state law, a remote state shall
4796 have the authority, in accordance with existing state due process law, to:

4797 (1) take adverse action against a regulated social worker's multistate authorization to
4798 practice only within that member state and issue subpoenas for both hearings and investigations
4799 that require the attendance and testimony of witnesses as well as the production of evidence.

4800 Subpoenas issued by a licensing authority in a member state for the attendance and testimony of

4801 witnesses or the production of evidence from another member state shall be enforced in the latter
4802 state by any court of competent jurisdiction, according to the practice and procedure of that court
4803 applicable to subpoenas issued in proceedings pending before it. The issuing licensing authority
4804 shall pay any witness fees, travel expenses, mileage and other fees required by the service
4805 statutes of the state in which the witnesses or evidence are located.

4806 (2) only the home state shall have the power to take adverse action against a regulated
4807 social worker's multistate license.

4808 (b) For purposes of taking adverse action, the home state shall give the same priority and
4809 effect to reported conduct received from a member state as it would if the conduct had occurred
4810 within the home state. In so doing, the home state shall apply its own state laws to determine
4811 appropriate action.

4812 (c) The home state shall complete any pending investigations of a regulated social worker
4813 who changes their home state during the course of the investigations. The home state shall also
4814 have the authority to take appropriate action(s) and shall promptly report the conclusions of the
4815 investigations to the administrator of the data system. The administrator of the data system shall
4816 promptly notify the new home state of any adverse actions.

4817 (d) A member state, if otherwise permitted by state law, may recover from the affected
4818 regulated social worker the costs of investigations and dispositions of cases resulting from any
4819 adverse action taken against that regulated social worker.

4820 (e) A member state may take adverse action based on the factual findings of another
4821 member state; provided, that the member state follows its own procedures for taking the adverse
4822 action.

4823 (f) (1) In addition to the authority granted to a member state by its respective social work
4824 practice act or other applicable state law, any member state may participate with other member
4825 states in joint investigations of licensees.

4826 (2) Member states shall share any investigative, litigation or compliance materials in
4827 furtherance of any joint or individual investigation initiated under the compact.

4828 (g) If adverse action is taken by the home state against the multistate license of a
4829 regulated social worker, the regulated social worker's multistate authorization to practice in all
4830 other member states shall be deactivated until all encumbrances have been removed from the
4831 multistate license. All home state disciplinary orders that impose adverse action against the
4832 license of a regulated social worker shall include a statement that the regulated social worker's
4833 multistate authorization to practice is deactivated in all member states until all conditions of the
4834 decision, order or agreement are satisfied.

4835 (h) If a member state takes adverse action, it shall promptly notify the administrator of
4836 the data system. The administrator of the data system shall promptly notify the home state and all
4837 other member states of any adverse actions by remote states.

4838 (i) Nothing in this compact shall override a member state's decision that participation in
4839 an alternative program may be used in lieu of adverse action.

4840 (j) Nothing in this compact shall authorize a member state to demand the issuance of
4841 subpoenas for attendance and testimony of witnesses or the production of evidence from another
4842 member state for lawful actions within that member state.

4843 (k) Nothing in this compact shall authorize a member state to impose discipline against a
4844 regulated social worker who holds a multistate authorization to practice for lawful actions within
4845 another member state.

4846 Section 10. (a) The compact member states hereby create and establish a joint
4847 government agency whose membership consists of all member states that have enacted the
4848 compact known as the social work licensure compact commission. The commission is an
4849 instrumentality of the compact states acting jointly and not an instrumentality of any one state.
4850 The commission shall come into existence on or after the effective date of the compact as set
4851 forth in section 14.

4852 (b) (1) Each member state shall have and be limited to 1 delegate selected by that
4853 member state's state licensing authority.

4854 (2) The delegate shall be either:

4855 (i) a current member of the state licensing authority at the time of appointment, who is a
4856 regulated social worker or public member of the state licensing authority; or

4857 (ii) an administrator of the state licensing authority or their designee.

4858 (3) The commission shall by rule or bylaw establish a term of office for delegates and
4859 may by rule or bylaw establish term limits.

4860 (4) The commission may recommend removal or suspension of any delegate from office.

4861 (5) A member state's state licensing authority shall fill any vacancy of its delegate
4862 occurring on the commission within 60 days of the vacancy.

4863 (6) Each delegate shall be entitled to 1 vote on all matters before the commission
4864 requiring a vote by commission delegates.

4865 (7) A delegate shall vote in person or by such other means as provided in the bylaws. The
4866 bylaws may provide for delegates to meet by telecommunication, videoconference or other
4867 means of communication.

4868 (8) The commission shall meet at least once during each calendar year. Additional
4869 meetings may be held as set forth in the bylaws. The commission may meet by
4870 telecommunication, video conference or other similar electronic means.

4871 (c) The commission shall have the following powers:

4872 (1) establish the fiscal year of the commission;

4873 (2) establish code of conduct and conflict of interest policies;

4874 (3) establish and amend rules and bylaws;

4875 (4) maintain its financial records in accordance with the bylaws;

4876 (5) meet and take such actions as are consistent with the provisions of this compact, the
4877 commission's rules and the bylaws;

4878 (6) initiate and conclude legal proceedings or actions in the name of the commission;
4879 provided, that the standing of any state licensing board to sue or be sued under applicable law
4880 shall not be affected;

4881 (7) maintain and certify records and information provided to a member state as the
4882 authenticated business records of the commission and designate an agent to do so on the
4883 commission's behalf;

4884 (8) purchase and maintain insurance and bonds;

4885 (9) borrow, accept or contract for services of personnel, including, but not limited to,
4886 employees of a member state;

4887 (10) conduct an annual financial review;

4888 (11) hire employees, elect or appoint officers, fix compensation, define duties, grant such
4889 individuals appropriate authority to carry out the purposes of the compact and establish the
4890 commission's personnel policies and programs relating to conflicts of interest, qualifications of
4891 personnel and other related personnel matters;

4892 (12) assess and collect fees;

4893 (13) accept any and all appropriate gifts, donations, grants of money, other sources of
4894 revenue, equipment, supplies, materials and services and receive, utilize and dispose of the same;
4895 provided that at all times the commission shall avoid any appearance of impropriety or conflict
4896 of interest;

4897 (14) lease, purchase, retain, own, hold, improve or use any property, real, personal or
4898 mixed, or any undivided interest therein;

4899 (15) sell, convey, mortgage, pledge, lease, exchange, abandon or otherwise dispose of
4900 any property real, personal, or mixed;

4901 (16) establish a budget and make expenditures;

4902 (17) borrow money;

4903 (18) appoint committees, including standing committees, composed of members, state
4904 regulators, state legislators or their representatives, consumer representatives and such other
4905 interested persons as may be designated in this compact and the bylaws;

4906 (19) provide and receive information from, and cooperate with, law enforcement
4907 agencies;

4908 (20) establish and elect an executive committee, including a chair and a vice chair;

4909 (21) determine whether a state's adopted language is materially different from the model
4910 compact language such that the state would not qualify for participation in the compact; and

4911 (22) perform such other functions as may be necessary or appropriate to achieve the
4912 purposes of this compact.

4913 (d)(1) The executive committee shall have the power to act on behalf of the commission
4914 according to the terms of this compact. The powers, duties and responsibilities of the executive
4915 committee shall include:

4916 (i) oversee the day-to-day activities of the administration of the compact including
4917 enforcement and compliance with the provisions of the compact, its rules and bylaws and other
4918 such duties as deemed necessary;

4919 (ii) recommend to the commission changes to the rules or bylaws, changes to this
4920 compact legislation, fees charged to compact member states, fees charged to licensees and other
4921 fees;

4922 (iii) ensure compact administration services are appropriately provided, including by
4923 contract;

4924 (iv) prepare and recommend the budget;

4925 (v) maintain financial records on behalf of the commission;

4926 (vi) monitor compact compliance of member states and provide compliance reports to the
4927 commission;

4928 (vii) establish additional committees as necessary;

4929 (viii) exercise the powers and duties of the commission during the interim between
4930 commission meetings, except for adopting or amending rules, adopting or amending bylaws and
4931 exercising any other powers and duties expressly reserved to the commission by rule or bylaw;
4932 and

4933 (ix) other duties as provided in the rules or bylaws of the commission.

4934 (2) The executive committee shall be composed of up to 11 members:

4935 (i) the chair and vice chair of the commission shall be voting members of the executive
4936 committee; and

4937 (ii) the commission shall elect 5 voting members from the current membership of the
4938 commission.

4939 (iii) up to 4 ex-officio, nonvoting members from 4 recognized national social work
4940 organizations.

4941 (iv) the ex-officio members will be selected by their respective organizations.

4942 (3) The commission may remove any member of the executive committee as provided in
4943 the commission's bylaws.

4944 (4) The executive committee shall meet at least annually.

4945 (i) Executive committee meetings shall be open to the public, except that the executive
4946 committee may meet in a closed, nonpublic meeting as provided in paragraph (2) of subsection
4947 (f) below.

4948 (ii) The executive committee shall give 7 days' notice of its meetings, posted on its
4949 website and as determined to provide notice to persons with an interest in the business of the
4950 commission.

4951 (iii) The executive committee may hold a special meeting in accordance with clause (ii)
4952 or paragraph (1) of subsection (f) below.

4953 (e) The commission shall adopt and provide to the member states an annual report.

4954 (f)(1) All meetings shall be open to the public, except that the commission may meet in a
4955 closed, non-public meeting as provided in paragraph (2) of subsection (f).

4956 (i) Public notice for all meetings of the full commission of meetings shall be given in the
4957 same manner as required under the rulemaking provisions in section 12, except that the

4958 commission may hold a special meeting as provided in clause (ii) of paragraph (1) of subsection
4959 (f).

4960 (ii) The commission may hold a special meeting when it must meet to conduct emergency
4961 business by giving 48 hours' notice to all commissioners, on the commission's website, and
4962 other means as provided in the commission's rules. The commission's legal counsel shall certify
4963 that the commission's need to meet qualifies as an emergency.

4964 (2) The commission or the executive committee or other committees of the commission
4965 may convene in a closed, non-public meeting for the commission or executive committee or
4966 other committees of the commission to receive legal advice or to discuss:

4967 (i) non-compliance of a member state with its obligations under the compact;

4968 (ii) the employment, compensation, discipline or other matters, practices or procedures
4969 related to specific employees;

4970 (iii) current or threatened discipline of a licensee by the commission or by a member
4971 state's licensing authority;

4972 (iv) current, threatened, or reasonably anticipated litigation;

4973 (v) negotiation of contracts for the purchase, lease or sale of goods, services or real
4974 estate;

4975 (vi) accusing any person of a crime or formally censuring any person;

4976 (vii) trade secrets or commercial or financial information that is privileged or
4977 confidential;

4978 (viii) information of a personal nature where disclosure would constitute a clearly
4979 unwarranted invasion of personal privacy;

4980 (ix) investigative records compiled for law enforcement purposes;

4981 (x) information related to any investigative reports prepared by or on behalf of or for use
4982 of the commission or other committee charged with responsibility of investigation or
4983 determination of compliance issues pursuant to the compact;

4984 (xi) matters specifically exempted from disclosure by federal or member state law; or

4985 (xii) other matters as promulgated by the commission by rule.

4986 (3) If a meeting, or portion of a meeting, is closed, the presiding officer shall state that the
4987 meeting will be closed and reference each relevant exempting provision, and such reference shall
4988 be recorded in the minutes.

4989 (4) The commission shall keep minutes that fully and clearly describe all matters
4990 discussed in a meeting and shall provide a full and accurate summary of actions taken, and the
4991 reasons therefore, including a description of the views expressed. All documents considered in
4992 connection with an action shall be identified in such minutes. All minutes and documents of a
4993 closed meeting shall remain under seal, subject to release only by a majority vote of the
4994 commission or order of a court of competent jurisdiction.

4995 (g)(1) The commission shall pay, or provide for the payment of, the reasonable expenses
4996 of its establishment, organization, and ongoing activities.

4997 (2) The commission may accept any and all appropriate revenue sources as provided in
4998 paragraph (13) of subsection (c).

4999 (3) The commission may levy on and collect an annual assessment from each member
5000 state and impose fees on licensees of member states to whom it grants a multistate license to
5001 cover the cost of the operations and activities of the commission and its staff, which must be in a
5002 total amount sufficient to cover its annual budget as approved each year for which revenue is not
5003 provided by other sources. The aggregate annual assessment amount for member states shall be
5004 allocated based upon a formula that the commission shall promulgate by rule.

5005 (4) The commission shall not incur obligations of any kind prior to securing the funds
5006 adequate to meet the same; nor shall the commission pledge the credit of any of the member
5007 states, except by and with the authority of the member state.

5008 (5) The commission shall keep accurate accounts of all receipts and disbursements. The
5009 receipts and disbursements of the commission shall be subject to the financial review and
5010 accounting procedures established under its bylaws; provided, however, that all receipts and
5011 disbursements of funds handled by the commission shall be subject to an annual financial review
5012 by a certified or licensed public accountant, and the report of the financial review shall be
5013 included in and become part of the annual report of the commission.

5014 (h)(1) The members, officers, executive director, employees and representatives of the
5015 commission shall be immune from suit and liability, both personally and in their official
5016 capacity, for any claim for damage to or loss of property or personal injury or other civil liability
5017 caused by or arising out of any actual or alleged act, error or omission that occurred, or that the
5018 person against whom the claim is made had a reasonable basis for believing occurred within the
5019 scope of commission employment, duties or responsibilities; provided, however, that nothing in
5020 this paragraph shall be construed to protect any such person from suit or liability for any damage,

5021 loss, injury, or liability caused by the intentional or willful or wanton misconduct of that person.
5022 The procurement of insurance of any type by the commission shall not in any way compromise
5023 or limit the immunity granted hereunder.

5024 (2) The commission shall defend any member, officer, executive director, employee and
5025 representative of the commission in any civil action seeking to impose liability arising out of any
5026 actual or alleged act, error or omission that occurred within the scope of commission
5027 employment, duties or responsibilities, or as determined by the commission that the person
5028 against whom the claim is made had a reasonable basis for believing occurred within the scope
5029 of commission employment, duties, or responsibilities; provided, however, that nothing herein
5030 shall be construed to prohibit that person from retaining their own counsel at their own expense;
5031 and provided further, that the actual or alleged act, error or omission did not result from that
5032 person's intentional or willful or wanton misconduct.

5033 (3) The commission shall indemnify and hold harmless any member, officer, executive
5034 director, employee and representative of the commission for the amount of any settlement or
5035 judgment obtained against that person arising out of any actual or alleged act, error or omission
5036 that occurred within the scope of commission employment, duties or responsibilities, or that such
5037 person had a reasonable basis for believing occurred within the scope of commission
5038 employment, duties or responsibilities, provided that the actual or alleged act, error or omission
5039 did not result from the intentional or willful or wanton misconduct of that person.

5040 (4) Nothing herein shall be construed as a limitation on the liability of any licensee for
5041 professional malpractice or misconduct, which shall be governed solely by any other applicable
5042 state laws.

5043 (5) Nothing in this compact shall be interpreted to waive or otherwise abrogate a member
5044 state's state action immunity or state action affirmative defense with respect to antitrust claims
5045 under the Sherman Act, Clayton Act, or any other state or federal antitrust or anticompetitive law
5046 or regulation.

5047 (6) Nothing in this compact shall be construed to be a waiver of sovereign immunity by
5048 the member states or by the commission.

5049 Section 11. (a) The commission shall provide for the development, maintenance,
5050 operation and utilization of a coordinated data system.

5051 (b) The commission shall assign each applicant for a multistate license a unique
5052 identifier, as determined by the rules of the commission.

5053 (c) Notwithstanding any other provision of state law to the contrary, a member state shall
5054 submit a uniform data set to the data system on all individuals to whom this compact is
5055 applicable as required by the rules of the commission, including:

5056 (1) identifying information;

5057 (2) licensure data;

5058 (3) adverse actions against a license and information related thereto;

5059 (4) non-confidential information related to alternative program participation, the
5060 beginning and ending dates of such participation, and other information related to such
5061 participation not made confidential under member state law;

5062 (5) any denial of application for licensure and the reason(s) for such denial;

5063 (6) the presence of current significant investigative information; and

5064 (7) other information that may facilitate the administration of this compact or the
5065 protection of the public, as determined by the rules of the commission.

5066 (d) The records and information provided to a member state pursuant to this compact or
5067 through the data system, when certified by the commission or an agent thereof, shall constitute
5068 the authenticated business records of the commission, and shall be entitled to any associated
5069 hearsay exception in any relevant judicial, quasi-judicial or administrative proceedings in a
5070 member state.

5071 (e) Current significant investigative information pertaining to a licensee in any member
5072 state will only be available to other member states.

5073 (1) It is the responsibility of the member states to report any adverse action against a
5074 licensee and to monitor the database to determine whether adverse action has been taken against
5075 a licensee. Adverse action information pertaining to a licensee in any member state will be
5076 available to any other member state.

5077 (f) Member states contributing information to the data system may designate information
5078 that may not be shared with the public without the express permission of the contributing state.

5079 (g) Any information submitted to the data system that is subsequently expunged pursuant
5080 to federal law or the laws of the member state contributing the information shall be removed
5081 from the data system.

5082 Section 12. (a) The commission shall promulgate reasonable rules in order to effectively
5083 and efficiently implement and administer the purposes and provisions of the compact. A rule

5084 shall be invalid and have no force or effect only if a court of competent jurisdiction holds that the
5085 rule is invalid because the commission exercised its rulemaking authority in a manner that is
5086 beyond the scope and purposes of the compact, or the powers granted hereunder, or based upon
5087 another applicable standard of review.

5088 (b) The rules of the commission shall have the force of law in each member state;
5089 provided, however that where the rules of the commission conflict with the laws of the member
5090 state that establish the member state's laws, regulations and applicable standards that govern the
5091 practice of social work as held by a court of competent jurisdiction, the rules of the commission
5092 shall be ineffective in that state to the extent of the conflict.

5093 (c) The commission shall exercise its rulemaking powers pursuant to the criteria set forth
5094 in this section and the rules adopted thereunder. Rules shall become binding on the day following
5095 adoption or the date specified in the rule or amendment, whichever is later.

5096 (d) If a majority of the legislatures of the member states rejects a rule or portion of a rule,
5097 by enactment of a statute or resolution in the same manner used to adopt the compact within 4
5098 years of the date of adoption of the rule, then such rule shall have no further force and effect in
5099 any member state.

5100 (e) Rules shall be adopted at a regular or special meeting of the commission.

5101 (f) Prior to adoption of a proposed rule, the commission shall hold a public hearing and
5102 allow persons to provide oral and written comments, data, facts, opinions and arguments.

5103 (g) Prior to adoption of a proposed rule by the commission, and at least 30 days in
5104 advance of the meeting at which the commission will hold a public hearing on the proposed rule,
5105 the commission shall provide a notice of proposed rulemaking:

5106 (1) on the website of the commission or other publicly accessible platform;

5107 (2) to persons who have requested notice of the commission's notices of proposed
5108 rulemaking; and

5109 (3) in such other way(s) as the commission may by rule specify.

5110 (h) The notice of proposed rulemaking shall include:

5111 (1) the time, date and location of the public hearing at which the commission will hear
5112 public comments on the proposed rule and, if different, the time, date and location of the meeting
5113 where the commission will consider and vote on the proposed rule;

5114 (2) if the hearing is held via telecommunication, video conference or other electronic
5115 means, the commission shall include the mechanism for access to the hearing in the notice of
5116 proposed rulemaking;

5117 (3) the text of the proposed rule and the reason therefor;

5118 (4) a request for comments on the proposed rule from any interested person; and

5119 (5) the manner in which interested persons may submit written comments.

5120 (i) All hearings will be recorded. A copy of the recording and all written comments and
5121 documents received by the commission in response to the proposed rule shall be available to the
5122 public.

5123 (j) Nothing in this section shall be construed as requiring a separate hearing on each rule.
5124 Rules may be grouped for the convenience of the commission at hearings required by this
5125 section.

5126 (k) The commission shall, by majority vote of all members, take final action on the
5127 proposed rule based on the rulemaking record and the full text of the rule.

5128 (1) The commission may adopt changes to the proposed rule provided the changes do not
5129 enlarge the original purpose of the proposed rule.

5130 (2) The commission shall provide an explanation of the reasons for substantive changes
5131 made to the proposed rule as well as reasons for substantive changes not made that were
5132 recommended by commenters.

5133 (3) The commission shall determine a reasonable effective date for the rule. Except for an
5134 emergency as provided in subsection (l), the effective date of the rule shall be no sooner than 30
5135 days after issuing the notice that it adopted or amended the rule.

5136 (l) Upon determination that an emergency exists, the commission may consider and adopt
5137 an emergency rule with 48 hours' notice, with opportunity to comment, provided that the usual
5138 rulemaking procedures provided in the compact and in this section shall be retroactively applied
5139 to the rule as soon as reasonably possible, in no event later than 90 days after the effective date
5140 of the rule. For the purposes of this provision, an emergency rule is one that must be adopted
5141 immediately in order to:

5142 (1) meet an imminent threat to public health, safety, or welfare;

5143 (2) prevent a loss of commission or member state funds;

5144 (3) meet a deadline for the promulgation of a rule that is established by federal law or
5145 rule; or

5146 (4) protect public health and safety.

5147 (m) The commission or an authorized committee of the commission may direct revisions
5148 to a previously adopted rule for purposes of correcting typographical errors, errors in format,
5149 errors in consistency or grammatical errors. Public notice of any revisions shall be posted on the
5150 website of the commission. The revision shall be subject to challenge by any person for a period
5151 of 30 days after posting. The revision may be challenged only on grounds that the revision
5152 results in a material change to a rule. A challenge shall be made in writing and delivered to the
5153 commission prior to the end of the notice period. If no challenge is made, the revision will take
5154 effect without further action. If the revision is challenged, the revision may not take effect
5155 without the approval of the commission.

5156 (n) No member state's rulemaking requirements shall apply under this compact.

5157 Section 13. (a)(1) The executive and judicial branches of state government in each
5158 member state shall enforce this compact and take all actions necessary and appropriate to
5159 implement the compact.

5160 (2) Except as otherwise provided in this compact, venue is proper and judicial
5161 proceedings by or against the commission shall be brought solely and exclusively in a court of
5162 competent jurisdiction where the principal office of the commission is located. The commission
5163 may waive venue and jurisdictional defenses to the extent it adopts or consents to participate in
5164 alternative dispute resolution proceedings. Nothing herein shall affect or limit the selection or

5165 propriety of venue in any action against a licensee for professional malpractice, misconduct or
5166 any such similar matter.

5167 (3) The commission shall be entitled to receive service of process in any proceeding
5168 regarding the enforcement or interpretation of the compact and shall have standing to intervene
5169 in such a proceeding for all purposes. Failure to provide the commission service of process shall
5170 render a judgment or order void as to the commission, this compact or promulgated rules.

5171 (b)(1) If the commission determines that a member state has defaulted in the performance
5172 of its obligations or responsibilities under this compact or the promulgated rules, the commission
5173 shall provide written notice to the defaulting state. The notice of default shall describe the
5174 default, the proposed means of curing the default, and any other action that the commission may
5175 take, and shall offer training and specific technical assistance regarding the default.

5176 (2) The commission shall provide a copy of the notice of default to the other member
5177 states.

5178 (c) If a state in default fails to cure the default, the defaulting state may be terminated
5179 from the compact upon an affirmative vote of a majority of the delegates of the member states,
5180 and all rights, privileges and benefits conferred on that state by this compact may be terminated
5181 on the effective date of termination. A cure of the default does not relieve the offending state of
5182 obligations or liabilities incurred during the period of default.

5183 (d) Termination of membership in the compact shall be imposed only after all other
5184 means of securing compliance have been exhausted. Notice of intent to suspend or terminate
5185 shall be given by the commission to the governor, the majority and minority leaders of the

5186 defaulting state’s legislature, the defaulting state’s state licensing authority and each of the
5187 member states’ state licensing authority.

5188 (e) A state that has been terminated is responsible for all assessments, obligations and
5189 liabilities incurred through the effective date of termination, including obligations that extend
5190 beyond the effective date of termination.

5191 (f) Upon the termination of a state’s membership from this compact, that state shall
5192 immediately provide notice to all licensees within that state of such termination. The terminated
5193 state shall continue to recognize all licenses granted pursuant to this compact for a minimum of 6
5194 months after the date of said notice of termination.

5195 (g) The commission shall not bear any costs related to a state that is found to be in default
5196 or that has been terminated from the compact, unless agreed upon in writing between the
5197 commission and the defaulting state.

5198 (h) The defaulting state may appeal the action of the commission by petitioning the
5199 United States District Court for the District of Columbia or the federal district where the
5200 commission has its principal offices. The prevailing party shall be awarded all costs of such
5201 litigation, including reasonable attorney’s fees.

5202 (i)(1) Upon request by a member state, the commission shall attempt to resolve disputes
5203 related to the compact that arise among member states and between member and non-member
5204 states.

5205 (2) The commission shall promulgate a rule providing for both mediation and binding
5206 dispute resolution for disputes as appropriate.

(j)(1) By majority vote as provided by rule, the commission may initiate legal action against a member state in default in the United States District Court for the District of Columbia or the federal district where the commission has its principal offices to enforce compliance with the provisions of the compact and its promulgated rules. The relief sought may include both injunctive relief and damages. In the event judicial enforcement is necessary, the prevailing party shall be awarded all costs of such litigation, including reasonable attorney's fees. The remedies herein shall not be the exclusive remedies of the commission. The commission may pursue any other remedies available under federal or the defaulting member state's law.

(2) A member state may initiate legal action against the commission in the United States District Court for the District of Columbia or the federal district where the commission has its principal offices to enforce compliance with the provisions of the compact and its promulgated rules. The relief sought may include both injunctive relief and damages. In the event judicial enforcement is necessary, the prevailing party shall be awarded all costs of such litigation, including reasonable attorney's fees.

(3) No person other than a member state shall enforce this compact against the commission.

Section 14. (a) The compact shall come into effect on the date on which the compact statute is enacted into law in the seventh member state.

(1) On or after the effective date of the compact, the commission shall convene and review the enactment of each of the first seven member states ("charter member states") to determine if the statute enacted by each such charter member state is materially different than the model compact statute.

5229 (i) A charter member state whose enactment is found to be materially different from the
5230 model compact statute shall be entitled to the default process set forth in section 13.

5231 (ii) If any member state is later found to be in default, or is terminated or withdraws from
5232 the compact, the commission shall remain in existence and the compact shall remain in effect
5233 even if the number of member states should be less than 7.

5234 (2) Member states enacting the compact subsequent to the 7 initial charter member states
5235 shall be subject to the process set forth in paragraph (21) of subsection (c) of section 10 to
5236 determine if their enactments are materially different from the model compact statute and
5237 whether they qualify for participation in the compact.

5238 (3) All actions taken for the benefit of the commission or in furtherance of the purposes
5239 of the administration of the compact prior to the effective date of the compact or the commission
5240 coming into existence shall be considered to be actions of the commission unless specifically
5241 repudiated by the commission.

5242 (4) Any state that joins the compact subsequent to the commission's initial adoption of
5243 the rules and bylaws shall be subject to the rules and bylaws as they exist on the date on which
5244 the compact becomes law in that state. Any rule that has been previously adopted by the
5245 commission shall have the full force and effect of law on the day the compact becomes law in
5246 that state.

5247 (b) Any member state may withdraw from this compact by enacting a statute repealing
5248 the same.

5249 (1) A member state's withdrawal shall not take effect until 180 days after enactment of
5250 the repealing statute.

5251 (2) Withdrawal shall not affect the continuing requirement of the withdrawing state's
5252 licensing authority to comply with the investigative and adverse action reporting requirements of
5253 this compact prior to the effective date of withdrawal.

5254 (3) Upon the enactment of a statute withdrawing from this compact, a state shall
5255 immediately provide notice of such withdrawal to all licensees within that state. Notwithstanding
5256 any subsequent statutory enactment to the contrary, such withdrawing state shall continue to
5257 recognize all licenses granted pursuant to this compact for a minimum of 180 days after the date
5258 of such notice of withdrawal.

5259 (c) Nothing contained in this compact shall be construed to invalidate or prevent any
5260 licensure agreement or other cooperative arrangement between a member state and a non-
5261 member state that does not conflict with the provisions of this compact.

5262 (d) This compact may be amended by the member states. No amendment to this compact
5263 shall become effective and binding upon any member state until it is enacted into the laws of all
5264 member states.

5265 Section 15. (a) This compact and the commission's rulemaking authority shall be
5266 liberally construed so as to effectuate the purposes, and the implementation and administration of
5267 the compact. Provisions of the compact expressly authorizing or requiring the promulgation of
5268 rules shall not be construed to limit the commission's rulemaking authority solely for those
5269 purposes.

5270 (b) The provisions of this compact shall be severable and if any phrase, clause, sentence
5271 or provision of this compact is held by a court of competent jurisdiction to be contrary to the
5272 constitution of any member state, a state seeking participation in the compact, or of the United
5273 States, or the applicability thereof to any government, agency, person or circumstance is held to
5274 be unconstitutional by a court of competent jurisdiction, the validity of the remainder of this
5275 compact and the applicability thereof to any other government, agency, person or circumstance
5276 shall not be affected thereby.

5277 (c) Notwithstanding subsection (b) of this section, the commission may deny a state's
5278 participation in the compact or, in accordance with the requirements of subsection (b) of section
5279 13, terminate a member state's participation in the compact, if it determines that a constitutional
5280 requirement of a member state is a material departure from the compact. Otherwise, if this
5281 compact shall be held to be contrary to the constitution of any member state, the compact shall
5282 remain in full force and effect as to the remaining member states and in full force and effect as to
5283 the member state affected as to all severable matters.

5284 Section 16. (a) A licensee providing services in a remote state under a multistate
5285 authorization to practice shall adhere to the laws and regulations, including laws, regulations and
5286 applicable standards, of the remote state where the client is located at the time care is rendered.

5287 (b) Nothing herein shall prevent or inhibit the enforcement of any other law of a member
5288 state that is not inconsistent with the compact.

5289 (c) Any laws, statutes, regulations or other legal requirements in a member state in
5290 conflict with the compact are superseded to the extent of the conflict.

5291 (d) All permissible agreements between the commission and the member states are
5292 binding in accordance with their terms.

5293 CHAPTER 112D.

5294 PHYSICAL THERAPY LICENSURE COMPACT

5295 Section 1. The purpose of this compact is to facilitate interstate practice of physical
5296 therapy with the goal of improving public access to physical therapy services. The practice of
5297 physical therapy occurs in the state where the client is located at the time of the client encounter.
5298 The compact preserves the regulatory authority of states to protect public health and safety
5299 through the current system of state licensure.

5300 This compact is designed to achieve the following objectives: (a) increase public access
5301 to physical therapy services by providing for the mutual recognition of other member state
5302 licenses; (b) enhance the states' ability to protect the public's health and safety; (c) encourage the
5303 cooperation of member states in regulating multi-state physical therapy practice; (d)
5304 support spouses of relocating military members; (e) enhance the exchange of licensure,
5305 investigative and disciplinary information between member states; and (f) allow a remote state to
5306 hold a provider of services with a compact privilege in that state accountable to that state's
5307 practice standards.

5308 Section 2. As used in this chapter, the following words shall have the following meanings
5309 unless the context requires otherwise:

5310 “Active-Duty Military”, full-time duty status in the active uniformed service of the
5311 United States, including members of the National Guard and Reserve on active duty orders
5312 pursuant to 10 U.S.C. Section 1209 and 1211.

5313 “Adverse Action”, disciplinary action taken by a physical therapy licensing board based
5314 upon misconduct, unacceptable performance or a combination of both.

5315 ”Alternative Program”, a non-disciplinary monitoring or practice remediation process
5316 approved by a physical therapy licensing board. This includes, but is not limited to, substance
5317 abuse issues.

5318 “Compact privilege”, the authorization granted by a remote state to allow a licensee from
5319 another member state to practice as a physical therapist or work as a physical therapist assistant
5320 in the remote state under its laws and rules. The practice of physical therapy occurs in the
5321 member state where the client is located at the time of the patient/client encounter.

5322 “Continuing competence”, a requirement, as a condition of license renewal, to provide
5323 evidence of participation in or completion of, educational and professional activities relevant to
5324 practice or area of work.

5325 “Data system”, a repository of information about licensees, including examination,
5326 licensure, investigative, compact privilege and adverse action.

5327 “Encumbered license”, a license that a physical therapy licensing board has limited in any
5328 way.

5329 “Executive Board”, a group of directors elected or appointed to act on behalf of, and
5330 within the powers granted to them by, the commission.

5331 “Home state”, the member state that is the licensee’s primary state of residence.

5332 “Investigative information” information, records and documents received or generated by
5333 a physical therapy licensing board pursuant to an investigation.

5334 “Jurisprudence Requirement”, the assessment of an individual’s knowledge of the laws
5335 and rules governing the practice of physical therapy in a state.

5336 “Licensee”, an individual who currently holds an authorization from the state to practice
5337 as a physical therapist or to work as a physical therapist assistant.

5338 “Member state”, a state that has enacted the compact.

5339 “Party state”, any member state in which a licensee holds a current license or compact
5340 privilege or is applying for a license or compact privilege.

5341 “Physical therapist”, an individual who is licensed by a state to practice physical therapy.

5342 “Physical therapist assistant”, an individual who is licensed by a state and who assists the
5343 physical therapist in selected components of physical therapy.

5344 “Physical therapy”, the care and services provided by or under the direction and
5345 supervision of a licensed physical therapist.

5346 “Physical Therapy Compact Commission” or “Commission”, the national administrative
5347 body whose membership consists of all states that have enacted the compact.

5348 “Physical therapy licensing board” or “licensing board”, the agency of a state that is
5349 responsible for the licensing and regulation of physical therapists and physical therapist
5350 assistants.

5351 “Remote State”, a member state other than the home state, where a licensee is exercising
5352 or seeking to exercise the compact privilege.

5353 “Rule”, a regulation, principle or directive promulgated by the commission that has the
5354 force of law.

5355 “State”, any state, commonwealth, district or territory of the United States that regulates
5356 the practice of physical therapy.

5357 Section 3. (a) To participate in the compact, a state must: (i) participate fully in the
5358 commission’s data system, including using the commission’s unique identifier as defined in
5359 rules; (ii) have a mechanism in place for receiving and investigating complaints about licensees;
5360 (iii) notify the commission, in compliance with the terms of the compact and rules, of any
5361 adverse action or the availability of investigative information regarding a licensee; (iv) fully
5362 implement a criminal background check requirement, within a time frame established by rule, by
5363 receiving the results of the Federal Bureau of Investigation record search on criminal background
5364 checks and use the results in making licensure decisions in accordance with section 3; (v)
5365 comply with the rules of the commission; (vi) utilize a recognized national examination as a
5366 requirement for licensure pursuant to the rules of the commission; and (vii) have continuing
5367 competence requirements as a condition for license renewal.

5368 (b) Upon adoption of this statute, the member state shall have the authority to obtain
5369 biometric-based information from each physical therapy licensure applicant and submit this
5370 information to the Federal Bureau of Investigation for a criminal background check in
5371 accordance with 28 U.S.C. §534 and 42 U.S.C. §14616.

(c) A member state shall grant the compact privilege to a licensee holding a valid unencumbered license in another member state in accordance with the terms of the compact and rules.

(d) Member states may charge a fee for granting a compact privilege

Section 4. (a) To exercise the compact privilege under the terms and provisions of the compact, the licensee shall: (i) hold a license in the home state; (ii) have no encumbrance on any state license; (iii) be eligible for a compact privilege in any member state in accordance with subsections (d), (g) and (h); (iv) not received any adverse action against any license or compact privilege within the previous 2 years; (v) notify the commission that the licensee is seeking the compact privilege within a remote state or states; (vi) pay any applicable fees, including any state fee, for the compact privilege; (vii) meet any jurisprudence requirements established by the remote state or states in which the licensee is seeking a compact privilege; and (viii) report to the commission adverse action taken by any non-member state within 30 days from the date the adverse action is taken.

(b) The compact privilege is valid until the expiration date of the home state license. The licensee must comply with the requirements of this section to maintain the compact privilege in the remote state.

(c) A licensee providing physical therapy in a remote state under the compact privilege shall function within the laws and regulations of the remote state.

(d) A licensee providing physical therapy in a remote state is subject to that state's regulatory authority. A remote state may, in accordance with due process and that state's laws, remove a licensee's compact privilege in the remote state for a specific period of time, impose

5394 fines, or take any other necessary actions to protect the health and safety of its citizens. The
5395 licensee is not eligible for a compact privilege in any state until the specific time for removal has
5396 passed and all fines are paid.

5397 (e) If a home state license is encumbered, the licensee shall lose the compact privilege in
5398 any remote state until the following occur: (1) the home state license is no longer encumbered;
5399 and (2) 2 years have elapsed from the date of the adverse action.

5400 (f) Once an encumbered license in the home state is restored to good standing, the
5401 licensee must meet the requirements of subsection (a) to obtain a compact privilege in any
5402 remote state.

5403 (g) If a licensee's compact privilege in any remote state is removed, the individual shall
5404 lose the compact privilege in any remote state until the following occur: (A) the specific period
5405 of time for which the compact privilege was removed has ended; (B) all fines have been paid;
5406 and (C) 2 years have elapsed from the date of the adverse action. Once the requirements of this
5407 paragraph have been met, the license must meet the requirements in subsection (a) to obtain a
5408 compact privilege in a remote state.

5409 Section 5. A licensee who is active-duty military or is the spouse of an individual who is
5410 active-duty military may designate one of the following as the home state: (a) home of record;
5411 (b) permanent change of station; or (c) state of current residence if it is different than the
5412 permanent change of station state or home of record.

5413 Section 6. (a) A home state: (i) shall have exclusive power to impose adverse action
5414 against a license issued by the home state; and (ii) may take adverse action based on the

5415 investigative information of a remote state, so long as the home state follows its own procedures
5416 for imposing adverse action.

5417 (b) Nothing in this compact shall override a member state's decision that
5418 participation in an alternative program may be used in lieu of adverse action and that such
5419 participation shall remain non-public if required by the member state's laws. Member states must
5420 require licensees who enter any alternative programs in lieu of discipline to agree not to practice
5421 in any other member state during the term of the alternative program without prior authorization
5422 from such other member state.

5423 (c) Any member state may investigate actual or alleged violations of the statutes and rules
5424 authorizing the practice of physical therapy in any other member state in which a physical
5425 therapist or physical therapist assistant holds a license or compact privilege.

5426 (d) A remote state shall have the authority to: (A) take adverse actions as set forth in
5427 subsection (d) of section 4 against a licensee's compact privilege in the state; (B) issue
5428 subpoenas for both hearings and investigations that require the attendance and testimony of
5429 witnesses and the production of evidence. Subpoenas issued by a physical therapy licensing
5430 board in a party state for the attendance and testimony of witnesses or the production of evidence
5431 from another party state, shall be enforced in the latter state by any court of competent
5432 jurisdiction, according to the practice and procedure of that court applicable to subpoenas issued
5433 in proceedings pending before it. The issuing authority shall pay any witness fees, travel
5434 expenses, mileage and other fees required by the service statutes of the state where the witnesses
5435 or evidence are located; and (C) if otherwise permitted by state law, recover from the licensee

5436 the costs of investigations and disposition of cases resulting from any adverse action taken
5437 against that licensee.

5438 (e) In addition to the authority granted to a member state by its respective physical
5439 therapy practice act or other applicable state law, a member state may participate with other
5440 member states in joint investigations of licensees. Member states shall share any investigative,
5441 litigation or compliance materials in furtherance of any joint or individual investigation initiated
5442 under the compact.

5443 Section 7. (a) The compact member states hereby create and establish a joint public
5444 agency known as the Physical Therapy Compact Commission. The Commission is an
5445 instrumentality of the compact states. Venue is proper and judicial proceedings by or against the
5446 Commission shall be brought solely and exclusively in a court of competent jurisdiction where
5447 the principal office of the Commission is located. The Commission may waive venue and
5448 jurisdictional defenses to the extent it adopts or consents to participate in alternative dispute
5449 resolution proceedings. Nothing in this compact shall be construed to be a waiver of sovereign
5450 immunity.

5451 (b) Each member state shall have and be limited to 1 delegate selected by that member
5452 state's licensing board. Such delegate shall be a current member of the licensing board, who is a
5453 physical therapist, physical therapist assistant, public member or the board administrator. A
5454 delegate may be removed or suspended from office as provided by the law of the state from
5455 which the delegate is appointed. Each delegate shall be entitled to 1 vote with regard to the
5456 promulgation of rules and creation of bylaws and shall otherwise have an opportunity to
5457 participate in the business and affairs of the commission and delegates shall vote in person or by

5458 such other means as provided in the bylaws. The bylaws may provide for delegates' participation
5459 in meetings by telephone or other means of communication.

5460 (c) The member state board shall fill any vacancy occurring in the commission.

5461 (d) The commission shall meet at least once during each calendar year. Additional
5462 meetings shall be held as set forth in the bylaws.

5463 (e) The commission shall have the following powers and duties: (i) establish the fiscal
5464 year of the commission; (ii) establish bylaws; (iii) maintain its financial records in accordance
5465 with the bylaws; (iv) meet and take such actions as are consistent with the provisions of this
5466 compact and the bylaws; (v) promulgate uniform rules to facilitate and coordinate
5467 implementation and administration of this compact. The rules shall have the force and effect of
5468 law and shall be binding in all member states; (vi) bring and prosecute legal proceedings or
5469 actions in the name of the commission; provided, that the standing of any state physical therapy
5470 licensing board to sue or be sued under applicable law shall not be affected; (vii) purchase and
5471 maintain insurance and bonds; (viii) borrow, accept or contract for services of personnel,
5472 including, but not limited to, employees of a member state; (ix) hire employees, elect or appoint
5473 officers, fix compensation, define duties, grant such individuals appropriate authority to carry out
5474 the purposes of the compact, and to establish the commission's personnel policies and programs
5475 relating to conflicts of interest, qualifications of personnel and other related personnel matters;
5476 (x) accept all appropriate donations and grants of money, equipment, supplies, materials and
5477 services, and to receive, utilize and dispose of the same; provided, that at all times the
5478 commission shall avoid any appearance of impropriety or conflict of interest; (xi) lease,
5479 purchase, accept appropriate gifts or donations of, or otherwise to own, hold, improve or use, any

property, real, personal or mixed; provided, that at all times the commission shall avoid any appearance of impropriety; (xii) sell convey, mortgage, pledge, lease, exchange, abandon or otherwise dispose of any property real, personal or mixed; (xiii) establish a budget and make expenditures; (xiv) borrow money; (xv) appoint committees, including standing committees composed of members, state regulators, state legislators or their representatives, and consumer representatives, and such other interested persons as may be designated in this compact and the bylaws; (xvi) provide and receive information from, and cooperate with, law enforcement agencies; (xvii) establish and elect an executive board; and (xviii) perform such other functions as may be necessary or appropriate to achieve the purposes of this compact consistent with the state regulation of physical therapy licensure and practice.

(f) The executive board shall have the power to act on behalf of the commission according to the terms of this compact. The Executive Board shall be composed of: (A) 7 voting members who are elected by the commission from the current membership of the commission; (B) 1 ex-officio, nonvoting member from the recognized national physical therapy professional association; and (C) 1 ex-officio, nonvoting member from the recognized membership organization of the physical therapy licensing boards. The ex-officio members will be selected by their respective organizations. The commission may remove any member of the Executive Board as provided in bylaws. The executive board shall meet at least annually.

(g) The executive board shall have the following duties and responsibilities: (1) recommend to the entire commission changes to the rules or bylaws, changes to this compact legislation, fees paid by compact member states such as annual dues and any commission compact fee charged to licensees for the compact privilege; (2) ensure compact administration services are appropriately provided, contractual or otherwise; (3) prepare and recommend the

5503 budget; (4) maintain financial records on behalf of the commission; (5) monitor compact
5504 compliance of member states and provide compliance reports to the commission; (6) establish
5505 additional committees as necessary; and (7) other duties as provided in rules or bylaws.

5506 (h) All meetings shall be open to the public and public notice of meetings shall be given
5507 in the same manner as required under the rulemaking provisions pursuant to section 9.

5508 (i) The commission or the executive board or other committees of the commission may
5509 convene in a closed, non-public meeting if the commission or executive board or other
5510 committees of the Commission must discuss: (i) non-compliance of a member state with its
5511 obligations under the compact; (ii) the employment, compensation, discipline or other matters,
5512 practices or procedures related to specific employees or other matters related to the
5513 commission's internal personnel practices and procedures; (iii) current, threatened or reasonably
5514 anticipated litigation; (iv) negotiation of contracts for the purchase, lease or sale of goods,
5515 services or real estate; (v) accusing any person of a crime or formally censuring any person; (vi)
5516 disclosure of trade secrets or commercial or financial information that is privileged or
5517 confidential; (vii) disclosure of information of a personal nature where disclosure would
5518 constitute a clearly unwarranted invasion of personal privacy; (viii) disclosure of investigative
5519 records compiled for law enforcement purposes; (ix) disclosure of information related to any
5520 investigative reports prepared by or on behalf of or for use of the commission or other committee
5521 charged with responsibility of investigation or determination of compliance issues pursuant to
5522 the compact; or (x) matters specifically exempted from disclosure by federal or member state
5523 statute. If a meeting, or portion of a meeting, is closed pursuant to this provision, the
5524 commission's legal counsel or designee shall certify that the meeting may be closed and shall
5525 reference each relevant exempting provision. The commission shall keep minutes that fully and

5526 clearly describe all matters discussed in a meeting and shall provide a full and accurate summary
5527 of actions taken, and the reasons therefore, including a description of the views expressed. All
5528 documents considered in connection with an action shall be identified in such minutes. All
5529 minutes and documents of a closed meeting shall remain under seal, subject to release by a
5530 majority vote of the commission or order of a court of competent jurisdiction.

5531 (j) The commission shall pay, or provide for the payment of, the reasonable expenses of
5532 its establishment, organization and ongoing activities.

5533 (k) The commission may accept any and all appropriate revenue sources, donations and
5534 grants of money, equipment, supplies, materials and services.

5535 (l) The commission may levy on and collect an annual assessment from each
5536 member state or impose fees on other parties to cover the cost of the operations and activities of
5537 the commission and its staff, which must be in a total amount sufficient to cover its annual
5538 budget as approved each year for which revenue is not provided by other sources. The aggregate
5539 annual assessment amount shall be allocated based upon a formula to be determined by the
5540 commission, which shall promulgate a rule binding upon all member states.

5541 (m) The commission shall not incur obligations of any kind prior to securing the funds
5542 adequate to meet the same nor shall the commission pledge the credit of any of the member
5543 states, except by and with the authority of the member state.

5544 (n) The Commission shall keep accurate accounts of all receipts and disbursements. The
5545 receipts and disbursements of the Commission shall be subject to the audit and accounting
5546 procedures established under its bylaws; provided, however, that all receipts and disbursements
5547 of funds handled by the commission shall be audited yearly by a certified or licensed public

5548 accountant, and the report of the audit shall be included in and become part of the annual report
5549 of the commission.

5550 (o) The members, officers, executive director, employees and representatives of the
5551 commission shall be immune from suit and liability, either personally or in their official capacity,
5552 for any claim for damage to or loss of property or personal injury or other civil liability caused
5553 by or arising out of any actual or alleged act, error or omission that occurred, or that the person
5554 against whom the claim is made had a reasonable basis for believing occurred within the scope
5555 of commission employment, duties or responsibilities; provided, that nothing in this paragraph
5556 shall be construed to protect any such person from suit or liability for any damage, loss, injury or
5557 liability caused by the intentional or willful or wanton misconduct of that person.

5558 (p) The commission shall defend any member, officer, executive director, employee or
5559 representative of the commission in any civil action seeking to impose liability arising out of any
5560 actual or alleged act, error, or omission that occurred within the scope of commission
5561 employment, duties, or responsibilities or that the person against whom the claim is made had a
5562 reasonable basis for believing occurred within the scope of commission employment, duties or
5563 responsibilities; provided, that nothing herein shall be construed to prohibit that person from
5564 retaining his or her own counsel; and provided further, that the actual or alleged act, error or
5565 omission did not result from that person's intentional or willful or wanton misconduct.

5566 (q) The commission shall indemnify and hold harmless any member, officer, executive
5567 director, employee or representative of the commission for the amount of any settlement or
5568 judgment obtained against that person arising out of any actual or alleged act, error or omission
5569 that occurred within the scope of commission employment, duties or responsibilities, or that such

5570 person had a reasonable basis for believing occurred within the scope of commission
5571 employment, duties, or responsibilities; provided, that the actual or alleged act, error or omission
5572 did not result from the intentional or willful or wanton misconduct of that person.

5573 Section 8. (a) The Commission shall provide for the development, maintenance
5574 and utilization of a coordinated database and reporting system containing licensure, adverse
5575 action, and investigative information on all licensed individuals in member states.

5576 (b) Notwithstanding any other provision of state law to the contrary, a member state shall
5577 submit a uniform data set to the data system on all individuals to whom this compact is
5578 applicable as required by the rules of the commission, including: (i) identifying information; (ii)
5579 licensure data; (iii) adverse actions against a license or compact privilege; (iv) non-confidential
5580 information related to alternative program participation; (v) any denial of application for
5581 licensure, and the reason or reasons for such denial; and (vi) other information that may facilitate
5582 the administration of this compact, as determined by the rules of the commission.

5583 (c) Investigative information pertaining to a licensee in any member state will only be
5584 available to other party states.

5585 (d) The commission shall promptly notify all member states of any adverse action taken
5586 against a licensee or an individual applying for a license. Adverse action information pertaining
5587 to a licensee in any member state will be available to any other member state.

5588 (e) Member states contributing information to the data system may designate information
5589 that may not be shared with the public without the express permission of the contributing state.

5590 (f) Any information submitted to the data system that is subsequently required to
5591 be expunged by the laws of the member state contributing the information shall be removed from
5592 the data system.

5593 Section 9. (a) The commission shall exercise its rulemaking powers pursuant to
5594 the criteria set forth in this section and the rules adopted thereunder. Rules and amendments shall
5595 become binding as of the date specified in each rule or amendment.

5596 (b) If a majority of the legislatures of the member states rejects a rule, by enactment of a
5597 statute or resolution in the same manner used to adopt the compact within 4 years of the date of
5598 adoption of the rule, then such rule shall have no further force and effect in any member state.

5599 (c) Rules or amendments to the rules shall be adopted at a regular or special meeting of
5600 the commission.

5601 (d) Prior to promulgation and adoption of a final rule or rules by the commission, and at
5602 least 30 days in advance of the meeting at which the rule will be considered and voted upon, the
5603 commission shall file a notice of proposed rulemaking on the website of: (i) the commission or
5604 other publicly accessible platform; and (ii) each member state physical therapy licensing board
5605 or other publicly accessible platform or the publication in which each state would otherwise
5606 publish proposed rules.

5607 (e) The notice of proposed rulemaking shall include: (1) the proposed time, date
5608 and location of the meeting in which the rule will be considered and voted upon; (2) the text of
5609 the proposed rule or amendment and the reason for the proposed rule; (3) a request for comments
5610 on the proposed rule from any interested person; and (4) the manner in which interested persons

5611 may submit notice to the commission of their intention to attend the public hearing and any
5612 written comments.

5613 (f) Prior to adoption of a proposed rule, the commission shall allow persons to submit
5614 written data, facts, opinions and arguments, which shall be made available to the public.

5615 (g) The commission shall grant an opportunity for a public hearing before it adopts a rule
5616 or amendment if a hearing is requested by: (A) at least 25 persons; (B) a state or federal
5617 governmental subdivision or agency; or (C) an association having at 25 members.

5618 (h) If a hearing is held on the proposed rule or amendment, the commission shall publish
5619 the place, time and date of the scheduled public hearing. If the hearing is held via electronic
5620 means, the commission shall publish the mechanism for access to the electronic hearing. All
5621 persons wishing to be heard at the hearing shall notify the executive director of the commission
5622 or other designated member in writing of their desire to appear and testify at the hearing not less
5623 than 5 business days before the scheduled date of the hearing. Hearings shall be conducted in a
5624 manner providing each person who wishes to comment a fair and reasonable opportunity to
5625 comment orally or in writing. All hearings shall be recorded. A copy of the recording will be
5626 made available on request. Nothing in this section shall be construed as requiring a separate
5627 hearing on each rule. Rules may be grouped for the convenience of the commission at hearings
5628 required by this section.

5629 (i) Following the scheduled hearing date, or by the close of business on the scheduled
5630 hearing date if the hearing was not held, the commission shall consider all written and oral
5631 comments received.

(j) If no written notice of intent to attend the public hearing by interested parties is received, the commission may proceed with promulgation of the proposed rule without a public hearing.

(k) The commission shall, by majority vote of all members, take final action on the proposed rule and shall determine the effective date of the rule, if any, based on the rulemaking record and the full text of the rule.

(l) Upon determination that an emergency exists, the commission may consider and adopt an emergency rule without prior notice, opportunity for comment or hearing; provided, that the usual rulemaking procedures provided in the compact and in this section shall be retroactively applied to the rule as soon as reasonably possible, in no event later than 90 days after the effective date of the rule. For the purposes of this provision, an emergency rule is one that must be adopted immediately in order to: (i) meet an imminent threat to public health, safety or welfare; (ii) prevent a loss of commission or member state funds; (iii) meet a deadline for the promulgation of an administrative rule that is established by federal law or rule; or (iv) protect public health and safety.

(m) The commission or an authorized committee of the commission may direct revisions to a previously adopted rule or amendment for purposes of correcting typographical errors, errors in format, errors in consistency or grammatical errors. Public notice of any revisions shall be posted on the website of the commission. The revision shall be subject to challenge by any person for a period of 30 days after posting. The revision may be challenged only on grounds that the revision results in a material change to a rule. A challenge shall be made in writing and delivered to the chair of the commission prior to the end of the notice period. If no

challenge is made, the revision will take effect without further action. If the revision is challenged, the revision may not take effect without the approval of the commission.

Section 10. (a) The executive, legislative and judicial branches of state government in each member state shall enforce this compact and take all actions necessary and appropriate to effectuate the compact's purposes and intent. The provisions of this compact and the rules promulgated hereunder shall have standing as statutory law. All courts shall take judicial notice of the compact and the rules in any judicial or administrative proceeding in a member state pertaining to the subject matter of this compact which may affect the powers, responsibilities or actions of the commission. The commission shall be entitled to receive service of process in any such proceeding and shall have standing to intervene in such a proceeding for all purposes. Failure to provide service of process to the commission shall render a judgment or order void as to the commission, this compact or promulgated rules.

(b)(1) If the commission determines that a member state has defaulted in the performance of its obligations or responsibilities under this compact or the promulgated rules, the commission shall: (i) provide written notice to the defaulting state and other member states of the nature of the default, the proposed means of curing the default or any other action to be taken by the commission; and (ii) provide remedial training and specific technical assistance regarding the default.

(2) If a state in default fails to cure the default, the defaulting state may be terminated from the compact upon an affirmative vote of a majority of the member states, and all rights, privileges and benefits conferred by this compact may be terminated on the effective date

5675 of termination. A cure of the default does not relieve the offending state of obligations or
5676 liabilities incurred during the period of default.

5677 (3) Termination of membership in the compact shall be imposed only after all other
5678 means of securing compliance have been exhausted. Notice of intent to suspend or terminate
5679 shall be given by the commission to the governor, the majority and minority leaders of the
5680 defaulting state's legislature and each of the member states.

5681 (4) A state that has been terminated is responsible for all assessments, obligations, and
5682 liabilities incurred through the effective date of termination, including obligations that extend
5683 beyond the effective date of termination.

5684 (5) The commission shall not bear any costs related to a state that is found to be in default
5685 or that has been terminated from the compact, unless agreed upon in writing between the
5686 commission and the defaulting state.

5687 (6) The defaulting state may appeal the action of the commission by petitioning the U.S.
5688 District Court for the District of Columbia or the federal district where the Commission has its
5689 principal offices. The prevailing member shall be awarded all costs of such litigation, including
5690 reasonable attorney's fees.

5691 (c) Upon request by a member state, the commission shall attempt to resolve disputes
5692 related to the compact that arise among member states and between member and non-member
5693 states. The commission shall promulgate a rule providing for both mediation and binding dispute
5694 resolution for disputes as appropriate.

5695 (d) The commission, in the reasonable exercise of its discretion, shall enforce the
5696 provisions and rules of this compact.

5697 (e) By majority vote, the commission may initiate legal action in the United States
5698 District Court for the District of Columbia or the federal district where the commission has its
5699 principal offices against a member state in default to enforce compliance with the provisions of
5700 the compact and its promulgated rules and bylaws. The relief sought may include both injunctive
5701 relief and damages. In the event judicial enforcement is necessary, the prevailing member shall
5702 be awarded all costs of such litigation, including reasonable attorney's fees.

5703 (f) The remedies herein shall not be the exclusive remedies of the commission.
5704 The commission may pursue any other remedies available under federal or state law.

5705 Section 11. (a) The compact shall come into effect on the date on which the compact
5706 statute is enacted into law in the 10th member state. The provisions, which become effective at
5707 that time, shall be limited to the powers granted to the commission relating to assembly and the
5708 promulgation of rules. Thereafter, the commission shall meet and exercise rulemaking powers
5709 necessary to the implementation and administration of the compact.

5710 (b) Any state that joins the compact subsequent to the commission's initial adoption of
5711 the rules shall be subject to the rules as they exist on the date on which the compact becomes law
5712 in that state. Any rule that has been previously adopted by the commission shall have the full
5713 force and effect of law on the day the compact becomes law in that state.

5714 (c) Any member state may withdraw from this compact by enacting a statute repealing
5715 the same. A member state's withdrawal shall not take effect until 6 months after enactment of the
5716 repealing statute. Withdrawal shall not affect the continuing requirement of the withdrawing

5717 state's physical therapy licensing board to comply with the investigative and adverse action
5718 reporting requirements of this act prior to the effective date of withdrawal.

5719 (d) Nothing contained in this compact shall be construed to invalidate or prevent any
5720 physical therapy licensure agreement or other cooperative arrangement between a member state
5721 and a non-member state that does not conflict with the provisions of this compact.

5722 (e) This compact may be amended by the member states. No amendment to this
5723 compact shall become effective and binding upon any member state until it is enacted into the
5724 laws of all member states.

5725 Section 12. This compact shall be construed so as to effectuate the purposes thereof. The
5726 provisions of this compact shall be severable and if any phrase, clause, sentence or provision of
5727 this compact is declared to be contrary to the constitution of any party state or of the United
5728 States or the applicability thereof to any government, agency, person or circumstance is held
5729 invalid, the validity of the remainder of this compact and the applicability thereof to any
5730 government, agency, person or circumstance shall not be affected thereby. If this compact shall
5731 be held contrary to the constitution of any party state, the compact shall remain in full force and
5732 effect as to the remaining party states and in full force and effect as to the party state affected as
5733 to all severable matters.

5734

5735 SECTION 176. Section 52 of chapter 119 of the General Laws, as appearing in the 2024
5736 Official Edition, is hereby amended by striking out, in line 5," the words "and 18 years of age"
5737 and inserting in place thereof the following words:- years of age and the age of criminal
5738 majority.

5739 SECTION 177. Said section 52 of said chapter 119, as so appearing, is hereby further
5740 amended by striking out, in line 19, the figure “18” and inserting in place thereof the following
5741 words:- the age of criminal majority.

5742 SECTION 178. Section 54 of said chapter 119, as so appearing, is hereby amended by
5743 striking out, in line 2, the words “and 18 years of age” and inserting in place thereof the
5744 following words:- years of age and the age of criminal majority.

5745 SECTION 179. Said section 54 of said chapter 119, as so appearing, is hereby further
5746 amended by striking out, in line 21, the figure “18” and inserting in place thereof the following
5747 words:- the age of criminal majority.

5748 SECTION 180. Section 54B of said chapter 119, as so appearing, is hereby amended by
5749 striking out, in lines 2 and 24, the words “or 29D” and inserting in place thereof, in each
5750 instance, the following words:- “, 29D or 29E”.

5751 SECTION 181. Section 58 of said chapter 119, as so appearing, is hereby amended by
5752 striking out, in lines 8 to 12, inclusive, the words “may be imposed until such child reaches age
5753 eighteen or age nineteen in the case of a child whose case is disposed of after he has attained his
5754 eighteenth birthday or age 20 in the case of a child whose case is disposed of after he attains his
5755 nineteenth birthday” and inserting in place thereof the following words:- may, in the case of an
5756 offense that occurred prior to the child’s eighteenth birthday, be imposed until such child reaches
5757 age 18, or age 19 in the case of a child whose case is disposed of after the child has attained the
5758 child’s eighteenth, or age 20 in the case of a child whose case is disposed of after the child
5759 attains the child’s nineteenth birthday; provided, however, that in the case of an offense that
5760 occurred on or after the child’s eighteenth birthday, such probation may be imposed until such

5761 child reaches age 19, or age 20 in the case of a child whose case is disposed of after the child has
5762 attained the child's nineteenth birthday, or age 21 in the case of a child whose case is disposed of
5763 after the child attains the child's twentieth`.

5764 SECTION 182. Said section 58 of said chapter 119, as so appearing, is hereby further
5765 amended by inserting after the word "eighteen", in lines 26 and 27, the following words:- in a
5766 case where the offense occurred prior to the child's eighteenth birthday.

5767 SECTION 183. The second paragraph of said section 58 of said chapter 119, as so
5768 appearing, is hereby amended by adding the following sentence:- In a case where the offense
5769 occurred on or after the child's eighteenth birthday, the probationary or commitment period shall
5770 not be for a period longer than until such child attains the age of 19.

5771 SECTION 184. Said section 58 of said chapter 119, as so appearing, is hereby further
5772 amended by striking out, in lines 78 and 79, the words "the Massachusetts Correctional
5773 Institution, Cedar Junction, prior to his eighteenth birthday" and inserting in place thereof the
5774 following words:- any prison owned, operated, administered or subject to the control of the
5775 department of correction prior to the youthful offender's nineteenth birthday.

5776 SECTION 185. Said section 58 of said chapter 119, as so appearing, is hereby further
5777 amended by striking out, in lines 97 to 99, inclusive, the words "his eighteenth birthday or his
5778 nineteenth birthday in the case of a child whose case is disposed of after he has attained his
5779 eighteenth" and inserting in place thereof the following words:- their nineteenth birthday or their
5780 twentieth birthday in the case of a child whose case is disposed of after they have attained their
5781 nineteenth.

5782 SECTION 186. Section 60A of said chapter 119, as so appearing, is hereby amended by
5783 striking out, in line 17, the words “and eighteenth birthdays” and inserting in place thereof the
5784 following words:- birthday and the age of G.

5785 SECTION 187. Said section 60A of said chapter 119, as so appearing, is hereby further
5786 amended by striking out, in line 20, the words, “been age 18 or older” and inserting in place
5787 thereof the following words:- attained the age of criminal majority.

5788 SECTION 188. Said section 60A of said chapter 119, as so appearing, is hereby further
5789 amended by striking out, in line 22, the words “were age 18 or older” and inserting in place
5790 thereof the following words:- had attained the age of criminal majority.

5791 SECTION 189. Section 63A of said chapter 119, as so appearing, is hereby amended by
5792 striking out, in line 1, the words “is 19 years of age or older” and inserting in place thereof the
5793 following words:- has attained the age of criminal majority.

5794 SECTION 190. Said section 63A of said chapter 119, as so appearing, is hereby further
5795 amended by striking out, in line 2, the figure “18” and inserting in place thereof the following
5796 words:- criminal majority.

5797 SECTION 191. Section 65 of said chapter 119, as so appearing, is hereby amended by
5798 striking out, in line 2, the words “18 years of age” and inserting in place thereof the following
5799 words:- “the age of criminal majority”.

5800 SECTION 192. Section 66 of said chapter 119, as so appearing, is hereby amended by
5801 striking out, in lines 3 and 5, the words “18 years of age” and inserting in place thereof, in each
5802 instance, the following words:- the age of criminal majority.

5803 SECTION 193. Section 67 of said chapter 119, as so appearing, is hereby amended by
5804 striking out in, in lines 1, 17 and 29, the words “and 18 years of age” and inserting in place
5805 thereof, in each instance, the following words:- years of age and the age of criminal majority.

5806 SECTION 194. Section 68 of said chapter 119, as so appearing, is hereby amended by
5807 striking out, in line 2, the figure “18” and inserting in place thereof the following words:-
5808 criminal majority.

5809 SECTION 195. Said section 68 of said chapter 119, as so appearing, is hereby further
5810 amended by striking out, in line 34, the words “ and 18 years of age” and inserting in place
5811 thereof the following words:- years of age and the age of criminal majority.

5812 SECTION 196. Section 68A of said chapter 119, as so appearing, is hereby amended by
5813 striking out, in line 1, the words “and 18 years of age” and inserting in place thereof the
5814 following words:- years of age and the age of criminal majority.

5815 SECTION 197. Section 70 of said chapter 119, as so appearing, is hereby amended by
5816 striking out, in line 2, the words “18 years of age” and inserting in place thereof the following
5817 words:- the age of criminal majority.

5818 SECTION 198. Section 72 of said chapter 119, as so appearing, is hereby amended by
5819 striking out, in line 2 and 3, the words “their eighteenth birthday” and inserting in place thereof
5820 the following words:- the age of criminal majority.

5821 SECTION 199. Said section 72 of said chapter 119, as so appearing, is hereby further
5822 amended by striking out, in line 9, the word “his twentieth” and inserting in place thereof the
5823 following words:- their twenty-first.

5824 SECTION 200. Said section 72 of said chapter 119, as so appearing, is hereby further
5825 amended by striking out the second paragraph and inserting in place thereof the following
5826 paragraph:-

5827 If a child commits an offense prior to attaining the age of criminal majority and is not
5828 apprehended until between such child's attainment of the age of criminal majority and the
5829 subsequent birthday, the court shall deal with such child in the same manner as if the child has
5830 not attained the age of criminal majority and all provisions and rights applicable to a child under
5831 the age of 18 shall apply to such child.

5832 SECTION 201. Said section 72 of said chapter 119, as so appearing, is hereby further
5833 amended by striking out, in line 18, the words "their eighteenth birthday" and inserting in place
5834 thereof the following words:- the age of criminal majority.

5835 SECTION 202. Section 72A of said chapter 119, as so appearing, is hereby amended by
5836 striking out, in line 2 and 3, the words "his eighteenth birthday, and is not apprehended until after
5837 his nineteenth " and inserting in place thereof the following words:- attaining the age of criminal
5838 majority and is not apprehended until after their subsequent .

5839 SECTION 203. Section 72B of said chapter 119, as so appearing, is hereby amended by
5840 striking out, in lines 2 and 3, 7 and 8, and 31, the words "his eighteenth birthday" and inserting
5841 in place thereof, in each instance, the following words:- attaining the age of criminal majority.

5842 SECTION 204. Said section 72B of said chapter 119, as so appearing, is hereby further
5843 amended by striking out, in line 25, the words "his eighteenth birthday" and inserting in place
5844 thereof the following words:- the age of criminal majority.

5845 SECTION 205. Section 74 of said chapter 119, as so appearing, is hereby amended by
5846 striking out, in lines 3 and 4, the words “his eighteenth birthday” and inserting in place thereof
5847 the following words:-attaining the age of criminal majority.

5848 SECTION 206. Said section 74 of said chapter 119, as so appearing, is hereby further
5849 amended by striking out, in line 10, the words “and 18 years of age” and inserting in place
5850 thereof the following words:- years of age and +the age of criminal majority.

5851 SECTION 207. Said section 74 of said chapter 119, as so appearing, is hereby further
5852 amended by striking out, in line 14, the figure “18” and inserting in place thereof the following
5853 words:- criminal majority.

5854 SECTION 208. Section 84 of said chapter 119, as so appearing, is hereby amended by
5855 striking out, in line 12 and 13, the words “eighteen (or nineteen) years of age” and inserting in
5856 place thereof the following words:- the age of criminal majority (or 1 year older).

5857 SECTION 209. Section 89 of said chapter 119, as so appearing, is hereby amended by
5858 striking out, in line 25, the figure “18” and inserting in place thereof the following words:-
5859 criminal majority.

5860 SECTION 210. Section 15 of chapter 120 of the General Laws, as so appearing, is hereby
5861 amended by striking out in lines 3 and 4, the figure “18” and inserting in place thereof, in each
5862 instance, the following words:- the age of criminal majority.

5863 SECTION 211. Section 21 of said chapter 120, as so appearing, is hereby amended by
5864 striking out, in lines 7, 9 and 10, the word “conviction” and inserting in place thereof, in each
5865 instance, the following word:- adjudication.

5866 SECTION 212. Said section 21 of said chapter 120, as so appearing, is hereby further
5867 amended by striking out, in line 17, the words “and 18 years of age” and inserting in place
5868 thereof the following words:- years of age and the age of criminal majority.

5869 SECTION 213. Section 3 of chapter 121C of the General Laws, as so appearing, is
5870 hereby amended by striking out, in line 55, the word “MOBD” and inserting in place thereof the
5871 following words:- the secretary.

5872 SECTION 214. Section 4 of said chapter 121C, as so appearing, is hereby amended by
5873 striking out, in line 9, the words “, MOBD and to the director,” and inserting in place thereof the
5874 following words:- and secretary.

5875 SECTION 215. Section 5 of said chapter 121C, as so appearing, is hereby amended by
5876 striking out, in line 21, the words “MOBD and” and inserting in place thereof the following
5877 word:- the.

5878 SECTION 216. Said section 5 of said chapter 121C, as so appearing, is hereby further
5879 amended by striking out, in lines 67 and 68, the words “MOBD and the director” and inserting in
5880 place thereof the following words:- the secretary.

5881 SECTION 217. Said section 5 of said chapter 121C, as so appearing, is hereby further
5882 amended by striking out, in lines 81 and 82, the words “MOBD and director” and inserting in
5883 place thereof the following words:- the secretary.

5884 SECTION 218. Section 6 of said chapter 121C, as so appearing, is hereby amended by
5885 striking out, in line 28, the words “MOBD and director” and inserting in place thereof the
5886 following words:- the secretary.

5887 SECTION 219. Said section 6 of said chapter 121C, as so appearing, is hereby further
5888 amended by striking out, in lines 44 and 45, the words “department of housing and community
5889 development” and inserting in place thereof the following words:- secretary.

5890 SECTION 220. Section 10 of said chapter 121C, as so appearing, is hereby amended by
5891 striking out, in line 5, the words “MOBD and the director” and inserting in place thereof the
5892 following words:- the secretary.

5893 SECTION 221. Section 12 of chapter 138 of the General Laws, as so appearing, is hereby
5894 amended by striking out, in lines 119 to 121, inclusive, the words “and irrespective of any
5895 limitation of number of licenses contained in section seventeen”.

5896 SECTION 222. Said section 12 of said chapter 138, as so appearing, is hereby further
5897 amended by adding the following 3 paragraphs:-

5898 All new licenses issued under this section in response to an application filed on or after
5899 January 1, 2027, pursuant to the municipal plan as required by section 17, shall be
5900 nontransferable and no licensing authority shall approve the transfer of such license.

5901 If a license issued pursuant to this section is cancelled, revoked or no longer in use by the
5902 license holder, the license shall be returned physically, with all of the legal rights, privileges and
5903 restrictions pertaining thereto, to the licensing authority.

5904 If a license holder closes or terminates the license holder’s business or sells or transfers
5905 the license holder’s business, the license holder shall return the license physically, with all of the
5906 legal rights, privileges and restrictions pertaining thereto, to the licensing authority.

5907 SECTION 223. Said chapter 138 is hereby further amended by inserting after section
5908 12D the following new section:

5909 Section 12E. (a) Notwithstanding section 12 or any other general or special law to the
5910 contrary, the holder of a restricted airport license as defined in section 17 may, subject to the
5911 approval of the Massachusetts Port Authority, sell alcoholic beverages to be drunk on the
5912 premises at any time that the airport is open for operations.

5913 (b) Notwithstanding any general or special law to the contrary, the Massachusetts Port
5914 Authority may designate 1 or more areas within a passenger terminal, as defined in section 17, in
5915 which alcoholic beverages sold by a licensee may be consumed off the licensed premises;
5916 provided, however, that the Massachusetts Port Authority shall immediately notify the
5917 commission of any area so designated. A licensee operating within the approved area may,
5918 subject to the approval of the Massachusetts Port Authority, sell alcoholic beverages for
5919 consumption off the licensed premises; provided, however, that alcoholic beverages sold
5920 pursuant to this subsection shall not be carried or consumed outside of the designated area.

5921 (c) This section shall not be construed to permit a licensed establishment to sell any type
5922 or category of alcohol beyond the type or category of alcohol that the licensed establishment is
5923 permitted to sell under the license issued to it by the local licensing authority pursuant to this
5924 chapter.

5925 SECTION 224. The first paragraph of section 14 of said chapter 138, as appearing in the
5926 2024 Official Edition, is hereby amended by striking out the first sentence and inserting in place
5927 thereof the following sentence:- Special licenses for the sale of all alcoholic beverages or wine
5928 and malt beverages only may be issued, as determined by the municipality, by the local licensing

5929 authorities to the responsible manager of any indoor or outdoor activity or enterprise or to the
5930 responsible manager of any nonprofit organization conducting any indoor or outdoor activity or
5931 enterprise.

5932 SECTION 225. Section 16A of said chapter 138, as so appearing, is hereby amended by
5933 striking out, in line 12, the word “so” and inserting in place thereof the following words:- as
5934 determined by a municipality to be.

5935 SECTION 226. Said section 16A of said chapter 138, as so appearing, is hereby further
5936 amended by striking out, in lines 15 and 16, the words “, to the extent that the same are issuable
5937 under section seventeen”.

5938 SECTION 227. Said section 16A of said chapter 138, as so appearing, is hereby further
5939 amended by striking out, in line 19, the words “for the purposes of section seventeen”.

5940 SECTION 228. Section 17 of said chapter 138, as so appearing, is hereby amended by
5941 striking out the first 8 paragraphs and inserting in place thereof the following 3 paragraphs:-

5942 A city or town shall determine the number of all alcoholic beverage or wines and malt
5943 beverage licenses to be issued by its local licensing authority under sections 12, 14 and 15F,
5944 including the number of seasonal licenses; provided, however, that for licenses issued under
5945 section 15, cities and towns may grant 1 such license for each population unit of 5,000 or any
5946 additional fraction thereof but may, regardless of population, grant at least 2 licenses under said
5947 section 15; provided further, that nothing in this section shall limit the city of Boston from
5948 granting at least 250 licenses for the sale of all alcoholic beverages under said section 15.

5949 A city or town shall adopt and may amend a plan that is approved by the mayor and city
5950 council or select board, which shall determine the process for granting additional licenses;
5951 provided, however, that prior to adopting or amending the plan: (i) at least 1 public hearing
5952 regarding the plan shall be conducted by the city council, select board or legislative body of the
5953 city or town; and (ii) the city or town shall notify the alcoholic beverages control commission of
5954 the public hearing.

5955 The mayor and city council or select board of a city or town shall hold a public hearing
5956 regarding a license application within 30 days of the date the application is filed.

5957 SECTION 229. Sections 17A to 17C, inclusive, of said chapter 138 are hereby repealed.

5958 SECTION 230. Section 29 of said chapter 138, as appearing in the 2024 Official Edition,
5959 is hereby amended by striking out, in lines 22 to 24, inclusive, the words “; but a license issued
5960 to a registered pharmacist under said section shall be included in computing the number of
5961 licenses that may be granted in any city or town as provided in section seventeen”.

5962 SECTION 231. Said chapter 138 is hereby further amended by inserting after section 33B
5963 the following 3 sections:-

5964 Section 33C. In a city or town that accepts this section in the manner provided in section
5965 4 of chapter 4, an establishment holding a license to sell alcohol to be drunk on the premises
5966 shall be permitted to sell alcoholic beverages or alcohol at a discounted price, in a manner as
5967 approved by the city or town.

5968 Section 33D. In a city or town that accepts this section in the manner provided in section
5969 4 of chapter 4, a common victualler duly licensed under chapter 140 or any person duly licensed

5970 under section 12, section 19, section 19C or section 19D to sell all alcoholic beverages or only
5971 wines and malt beverages may discount any alcoholic beverages during a specified time period
5972 subject to ordinance, by-law, or other limitations of the city and town and; provided, however,
5973 that: (i) the prices of alcoholic beverages shall not be changed during the time period during
5974 which they are discounted; (ii) alcoholic beverages shall not be discounted between the hours of
5975 10 p.m. and the licensed establishment's closing hour; and (iii) notice of the discount of the
5976 alcoholic beverages during the time period specified shall be posted on the licensed premises and
5977 on the licensee's publicly available website not less than 3 days prior to the specified time.
5978 Authorized persons may advertise events permitted under this statute consistent with local
5979 approval.

5980 Section 33E. (a) For the purposes of this section, "licensed establishment" shall mean an
5981 establishment holding a license for the sale of alcoholic beverages, whether all alcoholic
5982 beverages or wines and malt beverages only, to be drunk on the premises pursuant to this
5983 chapter.

5984 (b) In a city or town that accepts this section in the manner provided in section 4 of
5985 chapter 4, a local licensing authority may designate areas in that city or town in which alcoholic
5986 beverages are permitted to be consumed in public spaces, subject to such restrictions as the city
5987 or town may deem appropriate; provided, however, that the local licensing authority shall
5988 immediately notify the commission about any areas designated for public consumption of
5989 alcoholic beverages after so designating. Alcohol consumed within a designated district shall be
5990 limited to alcoholic beverages sold by participating licensed establishments located within the
5991 designated district.

5992 (c) A local licensing authority in a city or town may allow a licensed establishment to sell
5993 alcoholic beverages for off-premises consumption in districts designated pursuant to this section.
5994 Only licensed establishments located within a district designated pursuant to this section may sell
5995 alcoholic beverages to be consumed off premises within the district.

5996 (d) This section shall not be construed to permit a licensed establishment to sell any type
5997 or category of alcohol beyond the type or category of alcohol that the licensed establishment is
5998 permitted to sell under the license issued to it by the local licensing authority pursuant to this
5999 chapter.

6000 SECTION 232. Section 185A of chapter 140 of the General Laws, as appearing in the
6001 2024 Official Edition, is hereby amended by striking out subsection (a) and inserting in place
6002 thereof the following 2 subsections:-

6003 (a) For the purposes of this section and sections 185B to 185G, inclusive, the following
6004 term shall have the following meaning unless the context clearly requires otherwise:-

6005 “Live event”, a musical performance, sporting event, theatrical production, comedy show
6006 or other entertainment event performed in person to an in-person audience in an arena, concert
6007 venue or other fixed location including, but not limited to, an event licensed under sections 181
6008 and 182 or chapter 128A; provided, however, that “live event” shall not include: (i) a musical
6009 performance, sporting event, theatrical production, comedy show or other entertainment event
6010 performed in an arena, concert venue or other fixed location with a capacity of not more than
6011 1,000 attendees; (ii) the broadcast or transmission of such an entertainment event attended
6012 exclusively via television, internet or other remote means; or (iii) in-person attendance at an
6013 entertainment event that consists of entertainment, whether live or recorded, that is observed by

6014 an audience solely via broadcast or transmission or by the playing of a recording, including, but
6015 not limited to, a showing of a film in a movie theater.

6016 (a1/2) No person shall engage in the business of selling tickets or the business of reselling
6017 or facilitating a mechanism for 2 or more parties to participate in the resale of any ticket of
6018 admission to a live event, whether such business is conducted on or off the premises on which
6019 such ticket is to be used, without being licensed by the commissioner of occupational licensure.

6020 SECTION 233. Said section 185A of said chapter 140, as so appearing, is hereby further
6021 amended by striking out, in line 12, the words “until the first day of January next after its date”
6022 and inserting in place thereof the following words:- for 2 years following its date of issuance.

6023 SECTION 234. Subsection (b) of said section 185A of said chapter 140, as so appearing,
6024 is hereby amended by striking out the fourth sentence and inserting in place thereof the following
6025 sentence:- The sale of a ticket, entitling the holder of said ticket to admission to any such live
6026 event upon payment either of nothing or a sum less than that demanded of the public generally
6027 shall be deemed to be a resale pursuant to subsection (a^{1/2}).

6028 SECTION 235. Section 185B of said chapter 140, as so appearing, is hereby amended by
6029 striking out subsection (a) and inserting in place thereof the following subsection:-

6030 (a) The fee for each license granted under section 185A and for each renewal thereof
6031 shall be determined by the secretary of administration and finance under section 3B of chapter 7
6032 for the filing thereof.

6033 SECTION 236. Section 185D of said chapter 140, as so appearing, is hereby amended by
6034 striking out, in lines 3 and 4, the words “theatrical exhibition, public show or public amusement
6035 or exhibition” and inserting in place thereof the following words:- live event.

6036 SECTION 237. Said section 185D of said chapter 140, as so appearing, is hereby further
6037 amended by striking out, in lines 10 to 12, inclusive, the words “theatrical exhibition, public
6038 show or public amusement or exhibition of any description” and inserting in place thereof the
6039 following words:- live event.

6040 SECTION 238. Said section 185D of said chapter 140, as so appearing, is hereby further
6041 amended by inserting after the word “stated”, in line 27, the following words:- as a per cent and.

6042 SECTION 239. Said chapter 140 is hereby further amended by striking out section 185G,
6043 as so appearing, and inserting in place thereof the following section:-

6044 Section 185G. (a) Section 182A shall not apply to tickets or other evidences of entry to
6045 theatrical exhibitions, public shows or public amusements or exhibitions, all the proceeds of the
6046 sale or resale of which inure exclusively to the benefit of religious, educational or charitable
6047 institutions, societies or organizations or civic leagues or organizations not organized for profit
6048 but operated exclusively for the promotion of social welfare or to associations of veterans of any
6049 wars of the United States, or to tickets or other evidences of entry to agricultural fairs, none of
6050 the profits of the sale or resale of which are distributed to stockholders or members of the
6051 association conducting the same.

6052 (b) Sections 185A to 185F, inclusive, shall not apply to tickets to live events, all the
6053 proceeds of the sale or resale of which inure exclusively to the benefit of religious, educational
6054 or charitable institutions, societies or organizations or civic leagues or organizations not

6055 organized for profit but operated exclusively for the promotion of social welfare or to
6056 associations of veterans of any wars of the United States, or to tickets to agricultural fairs, none
6057 of the profits of the sale or resale of which are distributed to stockholders or members of the
6058 association conducting the same.

6059 SECTION 240. Said chapter 140 is hereby further amended by adding the following
6060 section:-

6061 Section 207. (a) For purposes of this section, the following words shall have the
6062 following meanings unless the context clearly requires otherwise:

6063 “Entertainer”, an individual, group or entity that performs at a live event.

6064 “Live event”, a musical performance, sporting event, theatrical production, comedy show
6065 or other entertainment event performed in person to an in-person audience in an arena, concert
6066 venue, festival or other location where a performance takes place, including, but not limited to,
6067 an event licensed under sections 181 and 182 or chapter 140; provided, however, that “live
6068 event” shall not include: (i) the broadcast or transmission of such an entertainment event
6069 attended exclusively via television, internet or other remote means; or (ii) in-person attendance at
6070 an entertainment event that consists of entertainment, whether live or recorded, that is observed
6071 by an audience solely via broadcast or transmission or by the playing of a recording, including,
6072 but not limited to, a showing of a film in a movie theater.

6073 “Original ticket price”, the price at which a ticket is first sold to the public as disclosed
6074 pursuant to section 185D, inclusive of a service charge, fee or surcharge but excluding taxes.

6075 “Speculative ticket”, a ticket to a live event that is not in the actual or constructive
6076 possession of a ticket business at the time of listing, sale or advertisement, including, but not
6077 limited to, tickets not owned by the ticket business or under contract to be transferred to the
6078 ticket business at the time of sale.

6079 “Ticket business”, a person or entity engaged in advertising, selling, reselling or
6080 facilitating a mechanism for parties to participate in the sale or resale of any ticket to a live
6081 event.

6082 (b) A ticket business shall not sell or resell, offer for sale or resale or market or advertise
6083 for sale or resale a speculative ticket. This subsection shall not be construed to limit the sale of
6084 tickets for contingent future events, such as playoff games or upgrade opportunities offered
6085 directly to buyers on the primary market by venues or teams.

6086 (c) A ticket business shall not resell, offer to resell or market or advertise the resale of
6087 any ticket for a price, exclusive of a service charge, fee or surcharge, greater than 110 per cent of
6088 the original ticket price; provided, however, that this subsection shall not apply to: (i) tickets for
6089 sporting events; or (ii) tickets sold under a written contract with explicit permission from the
6090 entertainer and venue allowing for the resale of tickets at a price, exclusive of a service charge,
6091 fee or surcharge, greater than 110 per cent of the original ticket price. Whenever applicable
6092 under this subsection, a ticket business shall disclose to consumers that the resale price of the
6093 ticket is limited to 110 per cent of the original ticket price.

6094 (d) A ticket business shall neither state nor imply that its exchange, website or reselling
6095 platform is affiliated with or endorsed by a venue, team or entertainer, including by using words
6096 including, but not limited to, “official” in promotional materials, social media promotions, search

6097 engine optimization, paid advertising or website addresses, unless the ticket business has the
6098 express written consent of the venue, team or entertainer.

6099 (e) If a ticket business provides or makes available information about the number or
6100 percentage of available tickets for a live event, such information shall not be presented in a
6101 manner that is false or misleading as to the availability of tickets for sale by the ticket business or
6102 on the platforms of other ticket businesses.

6103 (f) The office of consumer affairs and business regulation, in consultation with the
6104 commissioner of occupational licensure, shall promulgate regulations to implement this section.

6105 (g) A violation of this section shall constitute an unfair or deceptive act or practice under
6106 section 2 of chapter 93A.

6107 SECTION 241. Section 100 of chapter 143 of the General Laws, as appearing in the 2024
6108 Official Edition, is hereby amended by striking out, in lines 9 and 10, the words “other than the
6109 specialized stretch energy code” and inserting in place thereof the following words:- other than
6110 the current and future specialized stretch energy codes.

6111 SECTION 242. Section 52E of chapter 149 of the General Laws, as so appearing, is
6112 hereby amended by inserting after the definition of “Abusive behavior” the following 2
6113 definitions:-

6114 “Client employer”, a business entity that obtains or is provided workers to perform labor
6115 or services within its usual course of business from a third party, including, but not limited to, a
6116 staffing agency as defined in section 159C.

6117 “Contract worker”, an individual who performs labor or services for a client employer but
6118 is not considered an employee under section 148B, including individuals who are contracted for
6119 work by client employers.

6120 SECTION 243. Said section 52E of said chapter 149, as so appearing, is hereby further
6121 amended by striking out, in line 36, the words “shall permit an employee” and inserting in place
6122 thereof the following words:- or a client employer shall permit an employee or a contract
6123 worker.

6124 SECTION 244. Said chapter 149 is hereby further amended by inserting after section 29C
6125 the following section:-

6126 Section 29C1/2. (a) As used in this section, the following words shall have the following
6127 meanings unless the context clearly requires otherwise:

6128 “Service provider”, a person providing services under a snow removal and ice control
6129 services contract.

6130 “Service receiver”, a person receiving services under a snow removal and ice control
6131 services contract.

6132 “Snow removal and ice control services contract”, a contract or agreement for the
6133 performance of: (i) plowing, shoveling or other removal of snow or other mixed precipitation
6134 from a surface; (ii) de-icing services; or (iii) a service incidental to an activity described in
6135 clauses (i) or (ii), including operating or otherwise moving snow removal or de-icing equipment
6136 or materials.

6137 (b) A provision in or in connection with a snow removal and ice control services contract
6138 shall be void and against public policy if it requires, or has the effect of requiring: (i) a service
6139 provider to indemnify or hold harmless a service receiver from tort liability for damages
6140 resulting from the negligent acts or omissions of the service receiver or the service receiver's
6141 agents or employees; or (ii) a service receiver to indemnify or hold harmless a service provider
6142 from tort liability for damages resulting from the negligent acts or omissions of the service
6143 provider or the service provider's agents or employees.

6144 SECTION 245. Section 2 of chapter 150A of the General Laws, as appearing in the 2024
6145 Official Edition, is hereby amended by striking out subsections (2) and (3) and inserting in place
6146 thereof the following 2 subsections:-

6147 (2) The word "employer" shall include a person having at least 1 employee in their
6148 service or otherwise acting as or in the interest of an employer, directly or indirectly, and shall
6149 include, but not be limited to, a health care facility, a nonprofit institution or a vendor who
6150 contracts with or receives funds from the commonwealth or its political subdivisions, or both, to
6151 provide social, protective, legal, medical, custodial, rehabilitative, respite, nutritional,
6152 employment, educational, training and other similar services to the commonwealth or its political
6153 subdivisions; provided, however, that "employer" shall not include the commonwealth or a
6154 political subdivision thereof, except in the case of a health care facility; and provided further,
6155 that no person shall by a special contract with an employee or by any other means exempt
6156 themselves from this chapter.

6157 (3) Except as otherwise provided in section 3A, the word "employee" shall include any
6158 employee and not be limited to the employees of a particular employer, unless this chapter

6159 explicitly states otherwise, and shall include any individual whose work has ceased as a
6160 consequence of, or in connection with, any current labor dispute or because of any unfair labor
6161 practice, and who has not obtained any other regular and substantially equivalent employment;
6162 provided, however, that “employee” shall include, but not be limited to, an employee of a health
6163 care facility or nonprofit institution, except members of religious orders, or an employee of
6164 vendors who contract with or receive funds from the commonwealth or its political subdivisions
6165 to provide social, protective, legal, medical, custodial, rehabilitative, respite, nutritional,
6166 employment, educational, training and other similar services to the commonwealth or its political
6167 subdivisions; and provided further, that “employee” shall not include an individual employed as
6168 an agricultural worker, except as provided in section 5A, in the domestic service of a family or
6169 person at their home or by their parent or spouse.

6170 SECTION 246. Said section 2 of said chapter 150A, as so appearing, is hereby further
6171 amended by striking out subsection (8) and inserting in place thereof the following 2
6172 subsections:-

6173 (8) The word "department" shall mean the department of labor relations established in
6174 section 9O of chapter 23.

6175 (8 1/2) The word “board” shall mean the commonwealth employment relations board
6176 established in section 9R of said chapter 23.

6177 SECTION 247. Section 3 of said chapter 150A, as so appearing, is hereby amended by
6178 inserting after the word “of”, in line 7, the second time it appears, the following word:- agency

6179 SECTION 248. Said section 3 of said chapter 150A, as so appearing, is hereby further
6180 amended by inserting after the word “representative”, in line 8, the following words:- in lieu of
6181 membership dues.

6182 SECTION 249. Section 4 of said chapter 150A, as so appearing, is hereby amended by
6183 inserting after the word “therein”, in line 20, the following words:- , or in lieu of membership,
6184 payment of an agency service fee constituting the full cost of representation on a pro rata basis.

6185 SECTION 250. Said section 4 of said chapter 150A, as so appearing, is hereby further
6186 amended by inserting after the word “therein”, in line 33, the following words:- , or in lieu of
6187 membership, payment of an agency service fee constituting the full cost of representation on a
6188 pro rata basis.

6189 SECTION 251. Clause (A) of paragraph (6) of said section 4 of said chapter 150A, as so
6190 appearing, is hereby amended by inserting after subclause (2) the following subclause:-

6191 (3) Has refused, in lieu of membership, an agency service fee constituting the full cost of
6192 representation on a pro rata basis in the bargaining unit by the exclusive representative.

6193 SECTION 252. Said paragraph (6) of said section 4 of said chapter 150A, as so
6194 appearing, is hereby further amended by striking out clause (B) and inserting in place thereof the
6195 following clause:-

6196 (B) Such employee shall have exhausted the remedies available to the employee under
6197 the labor organization’s constitution and by-laws and sections 6A and 6B.

6198 SECTION 253. Section 4C of said chapter 150A, as so appearing, is hereby amended by
6199 striking out, in line 4, the words “nurse or nonprofessional”.

6200 SECTION 254. Said section 4C of said chapter 150A, as so appearing, is hereby further
6201 amended by striking out paragraph (2).

6202 SECTION 255. Section 5 of said chapter 150A, as so appearing, is hereby amended by
6203 striking out, in line 24, the word “commission” and inserting in place thereof the following
6204 word:- department;

6205 SECTION 256. Said section 5 of said chapter 150A, as so appearing, is hereby further
6206 amended by striking out, in lines 27, 30 and 33, the word “commission” and inserting in place
6207 thereof, in each instance, the following word:- board.

6208 SECTION 257. Subsection (c) of said section 5 of said chapter 150A, as so appearing, is
6209 hereby amended by striking out the last sentence.

6210 SECTION 258. Said section 5 of said chapter 150A, as so appearing, is hereby further
6211 amended by inserting after subsection (c) the following subsection:—

6212 (c1/2) Notwithstanding any other provision of this section or any other general or special
6213 law to the contrary, if the National Labor Relations Act is repealed or amended so that it no
6214 longer applies to an employer, employee, bargaining unit, industry or trade in the
6215 commonwealth, this section shall apply to such employer, employee, bargaining unit, industry or
6216 trade. If a court of competent jurisdiction, by an order or judgment in effect and not stayed,
6217 enjoins the enforcement of the National Labor Relations Act, holds said act or any provision
6218 thereof invalid or unenforceable or holds that said act does not preempt regulation by the
6219 commonwealth of the labor-management relations of an employer, employee, bargaining unit,
6220 industry or trade in the commonwealth, this section shall apply to such employer, employee,
6221 bargaining unit, industry or trade. If an act of Congress expressly authorizes the commonwealth

6222 to regulate the labor-management relations of an employer, employee, bargaining unit, industry
6223 or trade in the commonwealth, this chapter shall apply to such employer, employee, bargaining
6224 unit, industry or trade. Application of this chapter pursuant to this section shall commence on the
6225 date on which the applicable repeal, amendment, order, judgment or act of Congress takes effect
6226 and shall extend only to the extent that such application is not preempted by federal law. A
6227 collective bargaining agreement in effect immediately before such date shall remain in effect
6228 according to its terms and be enforceable under this chapter.

6229 Notwithstanding any other provision of this section or any other general or special law to
6230 the contrary, in the event that the National Labor Relations Board, in its discretion under 29
6231 U.S.C. § 164(c)(1), declines to assert jurisdiction over any labor dispute involving a class or
6232 category of employers, the department shall, pursuant to 29 U.S.C. § 164(c)(2), assert
6233 jurisdiction over the same. In the event that the National Labor Relations Board seeks to cede
6234 jurisdiction to the commonwealth to prevent any person from engaging in any unfair labor
6235 practice, pursuant to 29 U.S.C. § 160(a), the department shall agree to accept such jurisdiction.
6236 In the event that the National Labor Relations Board or a court of law determines that a class or
6237 category of employers is not subject to the National Labor Relations Act, the department shall
6238 assert jurisdiction over such class or category of employers.

6239 For purposes of this section, the transition date applicable to a bargaining unit shall be the
6240 date on which this chapter first applies to the employer of such unit pursuant to the preceding
6241 paragraphs. The department shall, upon application filed not later than 12 months after the
6242 transition date and without an election, certify as the exclusive bargaining representative of such
6243 unit any labor organization that, immediately before the transition date, was certified by the
6244 National Labor Relations Board as the exclusive representative of such unit, or was recognized

6245 in writing by the employer as such representative, where such certification or recognition
6246 remained in effect immediately before the transition date.

6247 The board, or by designation, the department, shall establish rules and procedures for the
6248 prompt verification of evidence of a certification formerly granted by the National Labor
6249 Relations Board, which shall include the procedure for petitioning the department and provide
6250 that, absent exceptional cause, the verification procedure shall last not longer than 30 days after
6251 the petition is filed with the department. All existing terms and conditions of employment
6252 between a formerly National Labor Relations Board-certified exclusive bargaining representative
6253 and an employer shall remain in full force and effect through the department's verification
6254 process.

6255 Notwithstanding any other provision of this section, when no other labor organization has
6256 been and currently is lawfully recognized as the exclusive representative of the employees in an
6257 appropriate bargaining unit, the commission shall certify to the parties, in writing, and the
6258 employer shall recognize as the exclusive representative for the purposes of collective bargaining
6259 of all employees in the bargaining unit, a labor organization which has received a written
6260 majority authorization. Whenever a labor organization proffers evidence that it has received a
6261 written majority authorization for a bargaining unit within a class or category of employers
6262 which, as a result of the events described in this section was, but is no longer, subject to
6263 jurisdiction under the National Labor Relations Act either:

6264 (i) the labor organization and the employer shall agree upon a neutral to conduct a
6265 confidential inspection of the evidence of a written majority authorization; provided, however,
6266 that if within 10 days the labor organization and the employer do not agree upon a neutral, the

6267 commission shall act as the neutral. The neutral shall verify the labor organization's majority
6268 support within the bargaining unit and report the results of its inspection in writing to the parties
6269 and, if the verification was conducted by an agreed neutral, to the commission, which shall in
6270 turn certify the results to the parties in writing; or

6271 (ii) within 7 days after receiving a copy of the labor organization's petition for written
6272 majority authorization, an employer may file a petition with the department requesting an
6273 election by secret ballot to determine whether the labor organization shall be the exclusive
6274 bargaining representative for all employees in the bargaining unit.

6275 SECTION 259. Said chapter 150A is hereby further amended by striking out section 6A,
6276 as so appearing, and inserting in place thereof the following section:-

6277 Section 6A. An employee who is required as a condition of employment to be a member
6278 in good standing of a labor organization may file with the department a charge alleging that: (i)
6279 although eligible for membership, the employee has been unfairly denied admission to, or
6280 unfairly suspended or expelled from membership in, such organization for reasons other than
6281 malfeasance in office or non-payment of regular initiation fees, dues or assessments; and (ii) the
6282 labor organization has requested, or is about to request, their employer to discipline against the
6283 employee because of the employee's failure to maintain membership in good standing in such
6284 organization; provided, however, that such charge shall be filed not more than 15 days after
6285 notice of such request has been given to the employee by the labor organization. Upon filing of
6286 such charge, the department may issue and cause to be served upon the labor organization a
6287 complaint stating the charge in that respect and containing a notice of hearing. The notice shall
6288 be given and the subsequent proceedings shall be conducted in the manner provided in section 6.

6289 If upon reviewing all the evidence the department determines that the employee was unfairly
6290 denied admission to membership in such organization or that such discipline: (i) was imposed by
6291 the labor organization in violation of its constitution and by-laws;

6292 (ii) was imposed without a fair trial, including an adequate hearing and opportunity to
6293 defend; (iii) was not warranted by the offense, if any, committed by the employee against the
6294 labor organization;(iv) is not consistent with the established public policy of the commonwealth;
6295 or(v) was requested, or about to be requested, by the labor organization, notwithstanding the
6296 employee's payment in full of all applicable agency service fees in lieu of membership,then the
6297 department shall state its determinations and issue and cause to be served on the labor
6298 organization an order requiring it to either to admit or restore the employee to membership in
6299 good standing together with full voting rights or refrain from seeking to bring about any
6300 discipline against the employee in their employment because the employee is not a member in
6301 good standing and return to the employee such union dues and assessments as may have been
6302 collected from the employee during the period of the employee's suspension or expulsion from
6303 the union; provided, however, that if the department does make such a determination after
6304 hearing, it shall enter an order dismissing the charge filed by the employee.

6305 Nothing contained in this section or in section 4 shall require a labor organization as a
6306 condition of making or enforcing a contract requiring membership therein as a condition of
6307 employment to accord to non-participants in an insurance plan the right to vote on questions
6308 pertaining thereto or to grant local organizations voting rights in a convention proportionate to
6309 their membership.

6310 SECTION 260. Section 8 of said chapter 150A, as so appearing, is hereby amended by
6311 striking out, in line 2, the word “commission” and inserting in place thereof the following word:-
6312 department;.

6313 SECTION 261. Said section 8 of said chapter 150A, as so appearing, is hereby further
6314 amended by striking out, in line 3, the words “or agencies”.

6315 SECTION 262. Said chapter 150A of the General Laws is hereby further amended by
6316 striking out section 9A, as so appearing, and inserting in place thereof the following section:-

6317 Section 9A. A labor organization shall, before engaging in any strike, picketing or other
6318 concerted refusal to work at any health care institution, not less than 10 days prior to such action,
6319 notify the institution in writing and the director of the department of that intention. The notice
6320 shall state the date and time that such action will commence. The notice, once given, may be
6321 extended by the written agreement of both parties.

6322 SECTION 263. Section 10 of said chapter 150A, as so appearing, is hereby amended by
6323 striking out, in line 11, the word “commission” and inserting in place thereof the following
6324 word:- department.

6325 SECTION 264. Said chapter 150A is hereby further amended by inserting after section
6326 10 the following section:-

6327 Section 10A. The board, or by its designation, the department, may establish rules or
6328 regulations as it deems appropriate to effectuate the policies of this chapter.

SECTION 265. Section 12 of chapter 156C of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out subsection (d) and inserting in place thereof the following 3 subsections:-

(d) The fee for the filing of the certificate of organization required by subsection (a) shall be \$100. The fee for the filing of the annual report required by subsection (c) shall be \$200 for the first annual report; \$300 for the second annual report; \$400 for the third annual report; and \$500 for the fourth annual report and for each annual report filed thereafter. Such fees shall be paid to the state secretary at the time the certificate of organization or the annual report is filed.

(e) Notwithstanding the fees set forth in subsection (d), if a limited liability company (i) is established for the purpose of holding title to real property; (ii) owns assets in excess of \$1,000,000; or (iii) is expected to own assets in excess of \$1,000,000 within the subsequent 12 month period, then the fee for the filing of the certificate of organization required by subsection (a) shall be \$500; and the fee for the filing of each annual report required by subsection (c) shall be \$500 beginning with the annual report that includes an affirmative attestation of any of the conditions set forth in clauses (i) to (iii). Such fees shall be paid to the state secretary at the time the certificate of organization or the annual report is filed.

(f) The person filing the certificate of organization or annual report shall attest at the time of filing as to whether the limited liability company: (i) is established for the sole purpose of holding title to real property; (ii) owns assets in excess of \$1,000,000; or (iii) is expected to own assets in excess of \$1,000,000 within the subsequent 12-month period. A person who makes an inaccurate attestation shall be subject to a civil penalty of \$10,000 for each such inaccurate attestation. Such certification shall be the basis for determining eligibility under subsection (e).

6351 SECTION 266. Said chapter 156C is hereby further amended by adding the following
6352 section:-

6353 Section 73. Upon credible suspicion that a document submitted to the state secretary may
6354 be fraudulent, the state secretary shall initiate an inquiry into the validity of the document. If the
6355 inquiry concludes that a document is fraudulent, the state secretary shall remove such document
6356 from the public record.

6357 SECTION 267. Section 134 of chapter 164 of the General Laws, as appearing in the 2024
6358 Official Edition, is hereby amended by striking out, in lines 103 and 104, the words
6359 “Massachusetts Renewable Energy Trust Fund, established pursuant to section 9” and inserting
6360 in place thereof the following words:- Climatetech Investment Fund established in section 15.

6361 SECTION 268. The General Laws are hereby further amended by inserting after chapter
6362 167D the following chapter:-

6363 CHAPTER 167D 1/2.

6364 FINANCIAL EXPLOITATION OF VULNERABLE ADULTS

6365 Section 1. As used in this section, the following words shall have the following meanings
6366 unless the context clearly requires otherwise:

6367 “Commissioner”, the commissioner of banks.

6368 “Eligible adult”, (i) a person 60 years of age or older; or (ii) a person with a
6369 disability, as defined in section 1 of chapter 19C.

6370 “Financial exploitation”, (i) the wrongful or unauthorized taking, withholding,
6371 appropriation or use of money, assets or property of an eligible adult; or (ii) any act or omission
6372 taken by a person, including through the use of a power of attorney, guardianship or
6373 conservatorship of an eligible adult, to: (A) obtain control, through deception, intimidation
6374 unethical or dishonest conduct or undue influence, over the eligible adult’s money, assets or
6375 property to deprive the eligible adult of the ownership, use, benefit or possession of their money,
6376 assets or property; or (B) convert money, assets or property of the eligible adult to deprive such
6377 eligible adult of the ownership, use, benefit or possession of their money, assets or property.

6378 “Financial institution”, a (i) bank, trust company, co-operative bank or savings bank, if
6379 organized or exists under the laws of the commonwealth or any other state or may transact
6380 business in the commonwealth, national bank, federal savings bank or federal savings and loan
6381 association; or (ii) credit union that is organized or exists under the laws of the commonwealth or
6382 any other state or federal credit union that may transact business in the commonwealth, as
6383 defined in section 1 of chapter 171.

6384 “Qualified individual”, an (i) agent, employee or person who serves in a compliance or
6385 legal capacity for a financial institution; or (ii) employee eligible for immunity in accordance
6386 with 12 U.S.C. § 3423.

6387 “Relevant agency” (i) the commission for the protection of persons with disabilities
6388 established in section 2 of chapter 19C, if the eligible adult is under the age of 60; (ii) the
6389 executive office of aging and independence, if the eligible adult is 60 years or older; or (iii) a
6390 third-party contractor designated by the office of aging and independence.

6391 Section 2. If a financial institution or qualified individual reasonably believes that the
6392 financial exploitation of an eligible adult may have occurred, may have been attempted or is
6393 being attempted, the financial institution or qualified individual shall promptly notify the
6394 relevant agency.

6395 Section 3. A qualified investment individual who, in good faith and exercising reasonable
6396 care, believes that financial exploitation of an eligible adult may have occurred, may have been
6397 attempted or is being attempted, may disclose to any third party previously designated by the
6398 eligible adult or reasonably associated with the adult; provided, however, that a qualified
6399 investment individual shall not notify any designated third party that is suspected of the financial
6400 exploitation or other abuse of the eligible adult; provided, however, that a qualified individual or
6401 financial institution shall not notify any designated third party that is suspected of the financial
6402 exploitation or other abuse of the eligible adult.

6403 Section 4. A qualified individual or financial institution who, in good faith, is exercising
6404 reasonable care, complies with section 3 and did not materially aid the alleged financial
6405 exploitation shall be immune from any administrative or civil liability that might otherwise arise
6406 from such action.

6407 Section 5. A financial institution may delay or stop a disbursement from, or a transaction
6408 in connection with, an account of an eligible adult or an account on which an eligible adult is a
6409 beneficiary if any qualified individual has reasonable cause to believe that, after initiating an
6410 internal review of the requested disbursement or transaction and documenting the suspected
6411 financial exploitation, the requested disbursement or transaction may result in the financial
6412 exploitation of the eligible adult and the financial institution or qualified individual: (i) provides

6413 written or oral notification of the delay or stoppage and the reason for such delay or stoppage to
6414 all parties authorized to transact business on the account not more than 5 business days after the
6415 requested disbursement or transaction, unless any such party is reasonably believed to have
6416 engaged in suspected or attempted financial exploitation of the eligible adult; (ii) provides
6417 notification of such delay or stoppage to the relevant agency not more than 5 business days after
6418 the requested disbursement or transaction; (iii) continues their internal review of the suspected or
6419 attempted financial exploitation of the eligible adult, as necessary; (iv) provides status updates, a
6420 statement of finding and final disposition of an investigation upon request to the relevant agency
6421 and qualified individuals; and (v) reports the investigation's results to the relevant agency not
6422 more than 10 business days after the day the financial institution or qualified individual first
6423 delayed disbursement of the funds or the transaction.

6424 The relevant agency may retain a digital or other record of each notice and report
6425 received under clauses (i), (ii) and (iv) respectively, of this section. A financial institution may
6426 provide a copy to the commissioner for recording purposes.

6427 Section 6. The authorization of any delay or stoppage of a disbursement or transaction
6428 pursuant to section 5 shall expire upon the sooner of the determination by the financial institution
6429 that the disbursement or transaction will not result in the financial exploitation of the eligible
6430 adult or 21 business days after the date on which the financial institution delayed or stopped
6431 disbursement of the funds or a transaction. A relevant agency may request that the financial
6432 institution extend the delay, in which case the delay shall expire not more than 30 business days
6433 after the date on which the financial institution first delayed or stopped disbursement of the funds
6434 or a transaction.

6435 A court of competent jurisdiction may enter an order extending the delay or stoppage of a
6436 disbursement of funds or transaction pursuant to this section or may order other protective relief
6437 upon the petition of a relevant agency.

6438 Section 7. A court of competent jurisdiction may order a financial institution or qualified
6439 individual to provide access to or copies of records that are relevant to the suspected or attempted
6440 financial exploitation of an eligible adult to a relevant agency or law enforcement pursuant to an
6441 open investigation. Such records may include, but not be limited to, historical records and
6442 records pertaining to the most recent disbursement or transactions related to the suspected or
6443 attempted financial exploitation of an eligible adult; provided, however, that such records made
6444 available to the agencies shall not be considered public records pursuant to section 7 of chapter 4
6445 or chapter 66.

6446 Section 8. A financial institution or qualified individual which, in good faith, exercising
6447 reasonable care, complies with this chapter and did not materially aid the alleged financial
6448 exploitation shall be immune from any administrative or civil liability that might otherwise arise
6449 from such action.

6450 SECTION 269. The General Laws are hereby further amended by inserting after chapter
6451 167J the following chapter:-

6452 CHAPTER 167K

6453 REGULATION OF VIRTUAL CURRENCY KIOSKS

6454 Section 1. As used in this chapter, the following words shall have the following meanings
6455 unless the context clearly requires otherwise:

6456 “Person”, an individual, firm, fiduciary, partnership, corporation, trust or association,
6457 however formed, or a club, trustee, agency or receiver.

6458 “Virtual currency kiosk”, an electronic terminal acting as a mechanical agent of the
6459 virtual currency kiosk operator to enable the virtual currency kiosk operator to facilitate the
6460 exchange of virtual currency for money, bank credit or other virtual currency, including, but not
6461 limited to, by: (i) connecting directly to a separate virtual currency exchange that performs the
6462 actual virtual currency transmission; or (ii) drawing upon the virtual currency in the possession
6463 of the electronic terminal's operator.

6464 “Virtual currency kiosk operator”, a person or entity that engages in virtual currency
6465 business activity via a money transmission kiosk located in the commonwealth or a person or
6466 entity that owns, operates or manages a money transmission kiosk located in the commonwealth
6467 through which virtual-currency business activity is offered or the owner or lessee of a premises
6468 who knowingly or intentionally permits the virtual currency kiosk to be operated on the
6469 premises.

6470 Section 2. (a) A virtual currency kiosk operator may not operate a virtual currency kiosk
6471 in the commonwealth.

6472 (b) A violation of subsection (a) shall constitute a violation of section 2 of chapter 93A
6473 and the attorney general may bring a civil action for injunctive or other equitable relief to enforce
6474 this section.

6475 (c) If a court of competent jurisdiction finds that a person has knowingly or intentionally
6476 operated 1 or more virtual currency kiosks in the commonwealth in violation of this chapter, the
6477 court may, in addition to any other penalty imposed under chapter 93A, order that the person: (i)

6478 forfeit the amount of any charges that were collected by the person from users of the virtual
6479 currency kiosk during the period in which the person operated or knowingly leased premises to
6480 permit the operation of the virtual currency kiosk of kiosks in violation of this chapter; (ii) forfeit
6481 any virtual currency kiosk that is owned by the person and located in the commonwealth; and
6482 (iii) pay the reasonable costs of investigation and litigation of such violation, including
6483 reasonable attorneys' fees.

6484 SECTION 270. Section 402 of chapter 203E of the General Laws, as appearing in the
6485 2024 Official Edition, is hereby amended by adding the following subsection:-

6486 (d) Notwithstanding the foregoing, a settlor's power to create a trust may be exercised by:
6487 (1) an agent under a power of attorney to the extent expressly authorized by the power of
6488 attorney; or (2) a conservator as authorized by article 5 of chapter 190B.

6489 SECTION 271. Section 2A of chapter 211D of the General Laws, as so appearing, is
6490 hereby amended by striking out, in line 106, the words "18 years of age" and inserting in place
6491 thereof the following words:- the age of criminal majority.

6492 SECTION 272. Chapter 231 of the General Laws is hereby amended by inserting after
6493 section 85AA the following section:-

6494 Section 85BB. (a) In all actions to recover damages for injury to the person or for the
6495 death of a person arising from an accident or collision between a vulnerable user, as defined in
6496 section 1 of chapter 90, and a motor vehicle, trailer, semi-trailer or semi-trailer unit classified as
6497 a class 3 or above by the federal highway administration, with a gross vehicle weight rating of
6498 10,001 pounds or more, there shall be a rebuttable presumption that a defendant who owned or
6499 leased the vehicle was negligent, unless, at the time of the accident or collision, the vehicle was

6500 equipped with a lateral protective device, convex mirrors, crossover mirrors and backup cameras
6501 meeting any standards or specifications adopted by the Massachusetts Department of
6502 Transportation.

6503 (b) This section shall be applied and interpreted so as not to conflict with federal statutes,
6504 regulations or agency determinations. In any case of conflict, federal law shall prevail.

6505 (c) If any provision of this section is found to be unconstitutional or preempted by federal
6506 law, any remaining provisions shall remain in effect to the fullest extent consistent with federal
6507 law.

6508 SECTION 273. Section 13 of chapter 250 of the General Laws, as appearing in the 2024
6509 Official Edition, is hereby amended by striking out, in line 3. the figure “18” and inserting in
6510 place thereof the following words:- criminal majority.

6511 SECTION 274. Section 2 of chapter 258E of the General Laws, as so appearing, is
6512 hereby amended by striking out, in line 7, the figure “18” and inserting in place thereof the
6513 following words:-criminal majority.

6514 SECTION 275. Section 15A of chapter 265 of the General Laws, as so appearing, is
6515 hereby amended by striking out, in line 24, the words “18 years of age or over” and inserting in
6516 place thereof the following words:- who has attained the age of criminal majority.

6517 SECTION 276. Said section 15A of said chapter 265, as so appearing, is hereby
6518 amended by striking out, in line 46, the words “is 18 years of age or over” and inserting in place
6519 thereof the following words:- has attained the age of criminal majority.

6520 SECTION 277. Section 15B of said chapter 265, as so appearing, is hereby amended by
6521 striking out, in line 24, the words “18 years of age or over” and inserting in place thereof the
6522 following words:- who has attained the age of criminal majority.

6523 SECTION 278. Section 18 of said chapter 265, as so appearing, is hereby amended by
6524 striking out, in line 26 and 27, the words “18 years of age or over” and inserting in place thereof
6525 the following words:- who has attained the age of criminal majority.

6526 SECTION 279. Section 18B of said chapter 265, as so appearing, is hereby amended by
6527 striking out, in line 41 and 42, the words “18 years of age or over” and inserting in place thereof
6528 the following words:- who has attained the age of criminal majority.

6529 SECTION 280. Section 19 of said chapter 265, as so appearing, is hereby amended by
6530 striking out, in line 23 and 24, the words “18 years of age or over” and inserting in place thereof
6531 the following words:- who has attained the age of criminal majority.

6532 SECTION 281. Section 39 of chapter 265 of the General Laws, as appearing in the 2024
6533 Official Edition, is hereby amended by inserting after the word “origin”, in line 4, the following
6534 words:- , sex, gender.

6535 SECTION 282. Section 43 of said chapter 265, as so appearing, is hereby amended by
6536 striking out, in lines 56 and 89, the words “18 years of age or over” and inserting in place
6537 thereof, in each instance, the following words:- who has attained the age of criminal majority.

6538 SECTION 283. Section 59 of said chapter 265, as so appearing, is hereby amended by
6539 striking out, in line 19, the figure “18” and inserting in place thereof the following words:-
6540 criminal majority.

6541 SECTION 284. Section 10 of chapter 269 of the General Laws is hereby amended by
6542 striking out, in line 53, as so appearing, the words “18 years of age or older” and inserting in
6543 place thereof the following words:- who has attained the age of criminal majority.

6544 SECTION 285. Said section 10 of said chapter 269 is hereby further amended by striking
6545 out, in lines 265 and 266, as so appearing, the words “18 years of age or over” and inserting in
6546 place thereof the following words:- who has attained the age of criminal majority.

6547 SECTION 286. Section 10E of said chapter 269, as so appearing, is hereby amended by
6548 striking out, in line 39 and 40, the words “18 years of age or over” and inserting in place thereof
6549 the following words:- who has attained the age of criminal majority.

6550 SECTION 287. Said section 10E of said chapter 269, as so appearing, is hereby further
6551 amended by striking out, in line 41, the figure “and 18” and inserting in place thereof the
6552 following words:- years of age and the age of criminal majority.

6553 SECTION 288. Section 10F of said chapter 269, as so appearing, is hereby amended by
6554 striking out, in lines 4 and 28, the words “18 years of age or over” and inserting in place thereof,
6555 in each instance, the following words:- who has attained the age of criminal majority.

6556 SECTION 289. Said section 10F of said chapter 269, as so appearing, is hereby further
6557 amended by striking out, in line 32, the figure “18” and inserting in place thereof the following
6558 words:- criminal majority.

6559 SECTION 290. Said section 10F of said chapter 269, as so appearing, is hereby further
6560 amended by striking out, in line 50, the words “17 years of age or over” and inserting in place
6561 thereof the following words:- who has attained the age of criminal majority.

6562 SECTION 291. Section 10G of said chapter 269, as so appearing, is hereby amended by
6563 striking out, in lines 34 and 35, the words “18 years of age or over” and inserting in place thereof
6564 the following words:- who has attained the age of criminal majority.

6565 SECTION 292. Said chapter 269 is hereby further amended by adding the following
6566 section:-

6567 Section 20. (a) As used in this section, the following words shall have the following
6568 meanings unless the context clearly requires otherwise:

6569 “Disrupter technology”, a tool, device or system designed to disable, neutralize or
6570 dispose of an explosive device or incendiary device or suspected explosive or incendiary device.

6571 “Robotic device”, a device capable of locomotion, navigation, movement or flight that
6572 operates at a distance from its operator or supervisor based on commands or in response to
6573 sensor data, or a combination of both, including, but not limited to, an uncrewed aerial vehicle.

6574 “Weapon”, a device designed to threaten or cause death, incapacitation or physical injury
6575 to a person, including, but not limited to, firearms, chemical agents or irritants, kinetic impact
6576 projectiles, weaponized lasers and explosive devices; provided, however, that “weapon” shall not
6577 include disrupter technology for purposes of this section.

6578 (b)(1) It shall be unlawful for any person to knowingly manufacture, modify, sell,
6579 transfer, possess or operate a robotic device equipped or mounted with a weapon. Whoever
6580 violates this subsection shall be punished by imprisonment in a state prison for not more than 5
6581 years or in a house of correction for not more than 2 1/2 years.

6582 (2) Whoever, after having been convicted of an offense under paragraph (1), commits a
6583 second offense under this subsection, shall be punished by imprisonment in a state prison for not
6584 more than 7 years, for a third such offense, by imprisonment in a state prison for not more than
6585 10 years and for a fourth or subsequent such offense, by imprisonment in a state prison for not
6586 more than 15 years.

6587 (c) It shall be unlawful for any person, whether or not acting under color of law, to
6588 knowingly use a robotic device to: (i) threaten to commit a crime; (ii) criminally harass another
6589 person in violation of section 43A of chapter 265; or (iii) physically restrain or attempt to
6590 physically restrain another person. Whoever violates this subsection shall be punished by
6591 imprisonment in a house of correction for not more than 2 1/2 years, by a fine of not more than
6592 \$1,000 or by both such fine and imprisonment. Whoever, after having been convicted of an
6593 offense under this subsection, commits a second or subsequent offense under this subsection,
6594 shall be punished by imprisonment in a house of correction for not more than 2 1/2 years or in a
6595 state prison for not more than 10 years, by a fine of not more than \$15,000 or by both such fine
6596 and imprisonment.

6597 (d) This section shall not apply to:

6598 (i) the United States department of defense or any of its departments, agencies or units;

6599 (ii) the Massachusetts National Guard;

6600 (iii) robotic devices within the scope of a defense industrial company's contract with the
6601 United States department of defense or within the scope of a waiver issued pursuant to
6602 subsection (e);

6603 (iv) robotic devices within the scope of a waiver issued pursuant to subsection (e) solely
6604 for the development or testing of technology intended to detect, prevent or mitigate the
6605 unauthorized weaponization of robotic devices; and

6606 (v) robotic devices within the scope of a waiver issued pursuant to subsection (e) solely
6607 for educational, research or entertainment purposes.

6608 (e) (1) The secretary of public safety and security may issue waivers from the
6609 requirements of this section.

6610 (2) A person seeking a waiver under clauses (iii) to (v), inclusive, of subsection (d) shall
6611 apply to secretary in a form prescribed by the secretary. Such application shall include, but not
6612 be limited to: (i) the name and address of the applicant and of each person who will manufacture,
6613 modify, sell, transfer, possess or operate a robotic device pursuant to the waiver; (ii) a
6614 description of each robotic device and each weapon to which the waiver will apply; (iii) the
6615 purpose for which the waiver is sought; and (iv) such other information as the secretary may
6616 require.

6617 (3) The secretary shall not issue a waiver unless the secretary finds that: (i) the activity to
6618 be authorized is limited to a purpose described in clauses (iii) to (v), inclusive, of subsection (d);
6619 and (ii) the issuance of the waiver would not present an unreasonable risk to public safety.

6620 (4) The secretary may suspend or revoke a waiver, after notice and an opportunity to be
6621 heard pursuant to chapter 30A, upon a finding that the holder of the waiver has violated this
6622 section, a term or condition of the waiver, or a regulation promulgated pursuant to this section.
6623 The secretary may summarily suspend a waiver pending a hearing, upon a finding that continued
6624 activity under the waiver presents an immediate threat to public safety.

6625 (f) It shall not be a violation of this section for law enforcement agencies, as defined in
6626 section 1 of chapter 6E, or law enforcement officers as defined in said section 1 of said chapter
6627 6E who are certified pursuant to section 4 of said chapter 6E, acting in the public performance of
6628 their duties, to possess or operate a robotic device equipped or mounted with a weapon or
6629 disrupter technology: (i) to destroy, defuse or dispose of explosives or incendiary devices or
6630 suspected explosives or incendiary devices; (ii) for the destruction of property when there is an
6631 imminent threat of death or serious bodily injury; or (iii) for development, evaluation, testing,
6632 education or training relating to the uses permitted by clauses (i) and (ii); provided, however, that
6633 the officer's certification under section said section 4 of said chapter 6E, is not suspended,
6634 limited or restricted.

6635 (g) A law enforcement agency or law enforcement officer that possesses or operates a
6636 robotic device equipped or mounted with a weapon or disrupter technology for the purposes
6637 described under subsection (f) shall be required to obtain a warrant or other legally required
6638 judicial authorization prior to deploying such robotic device: (i) onto private property in any
6639 situation in which a warrant would be required if the entry onto that property were made by a law
6640 enforcement officer; or (ii) to conduct surveillance or location tracking in any situation in which
6641 a warrant or other legally required judicial authorization would be required if such surveillance
6642 or tracking were conducted by a law enforcement officer or by means of other technology;
6643 provided, however, that law enforcement agencies may deploy a robotic device equipped or
6644 mounted with a weapon or disrupter technology without a warrant or other judicial authorization
6645 in situations where entry on the private property could be otherwise made, or surveillance or
6646 location tracking could otherwise be conducted, by a law enforcement officer or a law
6647 enforcement agency without a warrant or judicial authorization.

(h) On a quarterly basis, each law enforcement agency shall document each time it uses a robotic device equipped or mounted with a weapon or disrupter technology in a report to the executive office of public safety and security. The report shall include: (i) the date and time of the use; (ii) the scope and objective of the use; (iii) whether the robotic device was equipped or mounted with a weapon, disrupter technology or both; (iv) the permitted reason for use; and (v) whether a warrant or other legally required judicial authorization was obtained prior to the use of such robotic device. Annually, not later than March 31, the executive office of public safety and security shall publish the quarterly reports on its website.

(i) The secretary of public safety and security shall promulgate regulations and issue rules to administer this section.

SECTION 293. Section 29B of chapter 272 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

(f) Whoever with lascivious intent disseminates child sexual abuse material, knowing the contents of such material or having sufficient facts in their possession to have knowledge of the contents thereof, or whoever has in their possession any such child sexual abuse material knowing the contents or having sufficient facts in their possession to have knowledge of the contents thereof, with the intent to disseminate the same, shall be punished by imprisonment in a state prison for not more than 10 years or by a fine of not less than \$10,000 nor more than \$50,000 or 3 times the monetary value of any economic gain derived from said dissemination, whichever is greater, or by both such fine and imprisonment.

6668 SECTION 294. Section 29C of said chapter 272, as so appearing, is hereby amended by
6669 inserting after the word “possesses”, in line 1, the following words:- child sexual abuse material
6670 as defined in section 31, or.

6671 SECTION 295. Section 29D of said chapter 272, as so appearing, is hereby amended by
6672 inserting after the figure “29C, in line 4, the following words:- or creates, adapts, modifies or
6673 generates child sexual abuse material in violation of section 29E.

6674 SECTION 296. Said section 29D of said chapter 272, as so appearing, is hereby further
6675 amended by inserting after the figure “29C”, in line 26, the following figure:- , 29E.

6676 SECTION 297. Said chapter 272 is hereby amended by inserting after section 29D the
6677 following section:

6678 Section 29E. Whoever with lascivious intent knowingly creates, adapts, modifies or
6679 generates child sexual abuse material, or knowingly directs, instructs, prompts or otherwise
6680 causes any other person, computer program, model, artificial intelligence system or other
6681 technology to create, adapt, modify or generate child sexual abuse material, shall be punished by
6682 imprisonment in the house of correction for not more than 2 1/2 years, or by imprisonment in a
6683 state prison for not more than 5 years, or by a fine of not less than \$10,000 nor more than
6684 \$50,000, or by both such fine and imprisonment; provided, however, that if the child sexual
6685 abuse material depicts an identifiable minor, such person shall be punished by imprisonment in a
6686 state prison for not more than 10 years, or by a fine of not less than \$10,000 nor more than
6687 \$50,000, or by both such fine and imprisonment.

6688 SECTION 298. Section 31 of said chapter 272, as appearing in the 2024 Official Edition,
6689 is hereby amended by striking out, in lines 1 to 3, inclusive, the words “twenty-eight, twenty-

6690 eight C, twenty-eight D, twenty-eight E, twenty-nine, twenty-nine A, twenty-nine B, thirty and
6691 thirty D” and inserting in place thereof the following words:- “28, 28C, 28D, 28E, 29, 29A, 29B,
6692 29E, 30, 30D and 31”.

6693 SECTION 299. Said section 31 of said chapter 272, as so appearing, is hereby further
6694 amended by inserting before the definition of “Disseminate” the following definition:-

6695 “Child sexual abuse material”, any visual material: (i) the production of which involved
6696 the use of an actual minor engaged in sexual conduct; (ii) that is a digital image, computer image
6697 or computer-generated image that is, or is indistinguishable from, an authentic representation or
6698 reproduction of a minor: (A) engaged in sexual conduct or in a state of nudity; and (B) that is
6699 obscene; or (iii) that has been created, adapted, modified or generated to show or depict an
6700 identifiable minor in a state of nudity or engaged in sexual conduct.

6701 SECTION 300. Said section 31 of said chapter 272, as so appearing, is hereby further
6702 amended by inserting after the definition of “harmful to minors” the following 2 definitions:-

6703 “Identifiable minor”, an actual person who: (i)(A) was a minor at the time the visual
6704 material was created, adapted, modified or generated; or (B) whose image as a minor was used in
6705 creating, adapting, modifying or generating the visual material; and (ii) is recognizable as an
6706 actual person by the person’s face, likeness or other distinguishing characteristics; provided,
6707 however, that the term “identifiable minor” shall not be construed to require proof of the actual
6708 identity of the identifiable minor.

6709 “Indistinguishable”, when used with respect to visual material, means that the depiction is
6710 such that a reasonable person viewing the material would conclude that it depicts an actual minor

6711 engaged in sexual conduct; provided, however, that this definition shall not apply to depictions
6712 that are drawings, cartoons, sculptures or paintings.

6713 SECTION 301. Section 87 of chapter 276 of the General Laws, as so appearing, is hereby
6714 amended by striking out, in line 7, the figure “18” and inserting in place thereof the following
6715 words:- criminal majority.

6716 SECTION 302. Said section 87 of said chapter 276, as so appearing, is hereby further
6717 amended by striking out, in lines 14 and 15, the words “was eighteen years of age or older” and
6718 inserting in place thereof the following words:- had attained the age of criminal majority.

6719 SECTION 303. Section 89A of said chapter 276, as so appearing, is hereby amended by
6720 striking out, in line 3, the figure “18” and inserting in place thereof the following words:-
6721 criminal majority.

6722 SECTION 304. Section 89B of said chapter 276, as so appearing, is hereby amended by
6723 striking out, in line 3, the words “are 18 to 24” and inserting in place thereof the following
6724 words:- have attained the age of criminal majority and are under 25.

6725 SECTION 305. Section 100A of said chapter 276, as so appearing, is hereby amended by
6726 striking out the first paragraph and inserting in place thereof the following 2 paragraphs:-

6727 Except as otherwise provided in this section, records of any criminal court appearances
6728 and dispositions related to a criminal offense or offenses in the commonwealth on file with the
6729 commissioner of probation shall be eligible for automatic sealing by the commissioner if: (i) the
6730 person's court appearance and court disposition records, including any period of incarceration or
6731 custody, for any misdemeanor record to be sealed occurred not less than 3 years prior to the

6732 sealing; (ii) the person's court appearance and court disposition records, including any period of
6733 incarceration or custody, for any felony record to be sealed occurred not less than 7 years prior to
6734 the sealing; (iii) the person has not been found guilty of any criminal offense in the
6735 commonwealth in the case of a misdemeanor, within 3 years prior to the sealing, and in the case
6736 of a felony, 7 years prior to the sealing; (iv) the person has not been convicted of any criminal
6737 offense in any other state, United States possession or in a court of federal jurisdiction, except for
6738 motor vehicle offenses in which the penalty does not exceed a fine of \$50, and has not been
6739 imprisoned in any state or county in the case of a misdemeanor, within the preceding 3 years,
6740 and in the case of a felony, within the preceding 7 years; and (v) the person's record does not
6741 include convictions of offenses other than those to which this section applies. For records that are
6742 otherwise eligible pursuant to clauses (i) to (iii), inclusive, the commissioner shall conduct a
6743 criminal record check in other states and jurisdictions, which may include a review of the Federal
6744 Bureau of Investigation's Interstate Identification Index, to determine whether the record is
6745 eligible under clause (iv); provided, however, that such process shall be automated. This section
6746 shall not apply in the case of convictions for violations of sections 121 to 129D, 130 1/2 to 131C,
6747 inclusive, and 131F and 131F 1/2 of chapter 140 or for violations of chapter 268 or chapter
6748 268A, except for convictions for resisting arrest.

6749 Records that are eligible for sealing under this section shall be sealed automatically by
6750 the commissioner without requiring a petition, unless: (i) the record is of a sex offense, as
6751 defined by section 178C of chapter 6; (ii) the commissioner's criminal record check for records
6752 in other states and jurisdictions produces a result that makes it impossible for the automated
6753 sealing system to determine eligibility under clause (iv) of the first paragraph; or (iii) the record
6754 is of a decriminalized offense, the elements of which continue to be a crime under a different

6755 designation that is not otherwise eligible for sealing or the automatic sealing of which is not
6756 possible due to the nature of the elements of the offense. A person with a record that is eligible
6757 for sealing, but that is excluded from automatic sealing, may file a petition on a form furnished
6758 by the commissioner and signed under the penalties of perjury, requesting that the commissioner
6759 seal their records and the commissioner shall comply with the request, subject to this section;
6760 provided, however, that such petition shall include a statement by the petitioner that the
6761 petitioner has not been convicted of any criminal offense in any other state, United States
6762 possession or in a court of federal jurisdiction and has not been imprisoned in any state or county
6763 in the case of a misdemeanor, within the preceding 3 years, and in the case of a felony, within the
6764 preceding 7 years; and provided further, that sealing shall be automated without the requirement
6765 to file a petition when the commissioner's criminal record check for records in other states and
6766 jurisdictions produces a result that shows no records in other states or jurisdictions or shows only
6767 records that the automated sealing system can determine do not make the person ineligible for
6768 sealing, and the record is otherwise eligible for sealing. The commissioner shall implement an
6769 automated criminal background check process to conduct such checks in other states and
6770 jurisdictions that is as accurate as technologically feasible and limits the need for otherwise
6771 eligible persons to file a petition for record sealing.

6772 SECTION 306. Said section 100A of said chapter 276, as so appearing, is hereby further
6773 amended by inserting after the word "files", in line 60, the following:- within 30 days of such
6774 notification.

6775 SECTION 307. Said chapter 276 is hereby further amended by inserting after section
6776 100A the following section:-

6777 Section 100A 1/2. The commissioner of probation shall seal records subject to automated
6778 sealing under section 100A or 100B within 30 days of the time that the records became eligible
6779 for sealing. The commissioner of probation shall provide individuals at the time of an
6780 adjudication or other final disposition of their juvenile or criminal offense or offenses with a
6781 notice that the offenses may be sealed in the future by an automated process without the
6782 requirement for a petition to seal the records, a brief summary of the sealing law and a list of
6783 resources related to sealing of records. The clerk's office of any division of the trial court, the
6784 commissioner of probation or any other criminal justice agency, upon request of a person whose
6785 offense or offenses are sealed, or the person's legal representative, shall provide access to the
6786 sealed records to the person or the person's legal representative without said person or legal
6787 representative obtaining a court order or having to unseal the record. In the event that records of
6788 any offense eligible to be sealed under section 100A or 100B are not sealed due to an error,
6789 omission or lack of availability of a court record based on the age of said record, a person with
6790 such records shall not be precluded from seeking a sealing of such record, and the commissioner
6791 shall seal such records, if eligible for sealing, forthwith upon receipt of a request to seal said
6792 record on a form furnished by the commissioner and signed under the penalties of perjury.

6793 SECTION 308. Section 100B of said chapter 276, as appearing in the 2024 Official
6794 Edition, is hereby amended by striking out the first 2 sentences and inserting in place thereof the
6795 following 5 sentences:- The commissioner of probation shall automatically, and without
6796 requiring a petition, seal records of juvenile offenses if: (i) any court appearance or disposition,
6797 including court supervision, probation, commitment or parole for the records to be sealed,
6798 terminated not less than 3 years earlier; (ii) said person has not been adjudicated delinquent or as
6799 a youthful offender, found guilty of any criminal offense in the commonwealth or been

6800 committed as a juvenile or imprisoned under sentence within the commonwealth in the preceding
6801 3 years; and (iii) has not been adjudicated delinquent or as a youthful offender or found guilty of
6802 any criminal offense in any other state, United States possession or in a court of federal
6803 jurisdiction, except for motor vehicle offenses in which the penalty does not exceed a fine of
6804 \$50, and has not been committed as a juvenile or imprisoned under sentence in any state or
6805 county within the preceding 3 years. For records that are otherwise eligible pursuant to clauses
6806 (i) and (ii), the commissioner shall conduct a criminal record check in other states and
6807 jurisdictions, which may include a review of the Federal Bureau of Investigation's Interstate
6808 Identification Index, to determine whether the record is eligible under clause (iii); provided,
6809 however, that such process shall be automated. If the commissioner's criminal record check for
6810 records in other states and jurisdictions produces a result that makes it impossible for the
6811 automated sealing system to determine eligibility under clause (iii), the record shall not be sealed
6812 automatically. A person with a record that is eligible for sealing under this section, but that is
6813 excluded from automatic sealing, may file a petition on a form furnished by the commissioner
6814 and signed under the penalties of perjury, requesting that the commissioner seal their records and
6815 the commissioner shall comply with the request; provided, however, that such form shall include
6816 a statement by the petitioner that the petitioner has not been adjudicated delinquent or found
6817 guilty of any criminal offense in any other state, United States possession or in a court of federal
6818 jurisdiction and has not been imprisoned under sentence or committed as a delinquent in any
6819 state or county within the preceding 3 years; and provided further, that sealing shall be
6820 automated without the requirement to file a petition when a person has no records in other states
6821 or jurisdictions or when the commissioner's criminal record check for records in other states and
6822 jurisdictions produces a result that shows no records in other states or jurisdictions or shows only

6823 records that the automated sealing system can determine do not make the person ineligible for
6824 sealing, and the record is otherwise eligible for sealing. The commissioner shall implement an
6825 automated criminal background check process to conduct such checks in other states and
6826 jurisdictions that is as accurate as technologically feasible and limits the need for otherwise
6827 eligible persons to file a petition for record sealing.

6828 SECTION 309. Said section 100B of said chapter 276, as so appearing, is hereby further
6829 amended by inserting after the word “files”, in line 28, the following:- within 30 days of such
6830 notification.

6831 SECTION 310. Section 100D of said chapter 276, as so appearing, is hereby amended by
6832 striking out, in line 8, the figure “17” and inserting in place thereof the following words:-
6833 criminal majority.

6834 SECTION 311. Section 100Q of said chapter 276, as so appearing, is hereby further
6835 amended by striking out the words “or section 100B” and inserting in place thereof the
6836 following:- , section 100B or section 100C.

6837 SECTION 312. Section 6B of chapter 280 of the General Laws, as so appearing, is
6838 hereby amended by striking out, in line 3, the words “18 years” and inserting in place thereof the
6839 following words:- criminal majority.

6840 SECTION 313. Section 2 of chapter 498 of the acts of 1993 is hereby amended by
6841 striking out the definition of “Bank” or “Government land bank” and inserting in place thereof
6842 the following definition:-

6843 “Bank” or “Government land bank”, the Massachusetts Development Finance Agency
6844 established in section 23G of the General Laws as successor to the Government Land Bank
6845 pursuant to section 23 of chapter 289 of the acts of 1998.

6846 SECTION 314. Item 7066-8110 of section 2 of chapter 113 of the acts of 2018 is hereby
6847 amended by inserting after the word “Bedford”, inserted by section 275 of chapter 238 of the
6848 acts of 2024, the following words:- and for its renovation into an arts and culture community
6849 resource hub connecting downtown arts, commerce and entertainment to working waterfront
6850 venues and activities and funds shall be made available through June 30, 2031.

6851 SECTION 315. Item 8000-2025 of section 2C of chapter 151 of the acts of 2020 is
6852 hereby amended by striking out the words “to automate” and inserting in place thereof the
6853 following words:- , which shall include the automation of.

6854 SECTION 316. Item 1599-6080 of section 2A of chapter 268 of the acts of 2022 is
6855 hereby amended by adding the following words:- “and such funds shall be made available until
6856 June 30, 2028.

6857 SECTION 317. Item 7002-1509 of section 2 of chapter 140 of the acts of 2024 is hereby
6858 amended by adding the following words:- or other similar visa programs.

6859 SECTION 318. Item 7002-1522 of section 2 of chapter 238 of the acts of 2024 is hereby
6860 amended by striking out the words “technologies developed with the assistance of” and inserting
6861 in place thereof the following words:- technologies, with preference for companies receiving.

6862 SECTION 319. Item 7002-1523 of said section 2 of said chapter 238 is hereby amended
6863 by striking out the words “proteins developed with the assistance of” and inserting in place
6864 thereof the following words:- proteins, with preference for companies receiving.

6865 SECTION 320. Section 316 of chapter 238 of the acts of 2024 is hereby repealed.

6866 SECTION 321. Section 320 of said chapter 238 is hereby repealed.

6867 SECTION 322. Sections 324 of said chapter 238 is hereby repealed.

6868 SECTION 323. Notwithstanding any general or special law to the contrary, the members
6869 serving on the advisory board on employee ownership appointed by the governor pursuant to
6870 subsection (a) of section 204 of chapter 6 of the General Laws on the effective date of this act
6871 shall continue to serve for the remainder of their remainder of their unexpired terms. Upon the
6872 expiration of the terms of such members, the governor shall appoint 2 members to serve for a
6873 term of 1 year, 3 members to serve for a term of 2 years, 3 members to serve for a term of 3
6874 years and 3 members to serve for a term of 4 years. Upon the expiration of such terms, the
6875 governor shall appoint successor members to serve a term of 4 years.

6876 SECTION 324. Notwithstanding any general or special law to the contrary, any
6877 unexpended funds held in the Massachusetts Alternative and Clean Energy Investment Trust
6878 Fund established in section 35FF of chapter 10 of the General Laws and the Renewable Energy
6879 Trust Fund established in section 9 of chapter 23J of the General Laws on the effective date of
6880 this act shall be transferred to the Climatetech Investment Fund established in section 15 of said
6881 chapter 23J.

6882 SECTION 325. (a) Notwithstanding any general or special law to the contrary, if the
6883 economic assistance coordinating council awards less than the full amount of tax credits
6884 authorized by subsection (c) of section 3D of chapter 23A of the General Laws or if the
6885 Massachusetts Life Science Center awards less than the full amount of tax credits authorized by
6886 subsection (d) of section 5 of chapter 23I of the General Laws or if the Massachusetts Clean
6887 Energy Center awards less than the full amount of tax credits authorized by subsection (d) of
6888 section 16 of said chapter 23J, then in each case, the balance of any unallocated tax credits and
6889 the funds budgeted to finance that balance may be carried forward to the next calendar year with
6890 the approval of the secretary of administration and finance, in consultation with the secretary of
6891 economic development.

6892 (b) Notwithstanding any general or special law to the contrary, the secretary of
6893 administration and finance, in consultation with the secretary of economic development, may
6894 reallocate some or all of the tax credits that are carried forward pursuant to subsection (a) among
6895 the tax credit programs established pursuant to section 3A of chapter 23A of the General Laws,
6896 section 5 of chapter 23I of the General Laws or section 16 of chapter 23J of the General Laws.
6897 Any credits carried forward or reallocated shall increase, for the calendar year in which the carry
6898 forward or reallocation occurs, the annual cap or limitation otherwise applicable to the receiving
6899 program by the amount of such credits carried forward or reallocated.

6900 (c) Annually, not later than March 1, the secretary of administration and finance, in
6901 consultation with the secretary of economic development, shall submit a report to the house and
6902 senate committees on ways and means setting forth the amount of tax credits, if any, carried
6903 forward and reallocated pursuant to subsections (a) and (b) in the prior calendar year. The report
6904 shall state the adjusted cap applicable to each tax credit program for the upcoming calendar year.

6905 SECTION 326. (a) As used in this section, the followings words shall have the following
6906 meanings unless the context clearly requires otherwise:

6907 “Economic development rates”, standardized utility tariffs and discounted rates offered
6908 by a distribution company designed to attract new businesses to the commonwealth and promote
6909 expansion by businesses already located in the commonwealth.

6910 “Special contracts”, discounted utility rates negotiated between distribution companies
6911 and large new businesses locating to the commonwealth or large new businesses expanding in
6912 the commonwealth.

6913 (b) The department of public utilities shall initiate an investigation into electric
6914 distribution tariffs, rates, and interconnection requirements that support economic development
6915 by attracting new businesses to the commonwealth and promoting the expansion of existing
6916 businesses. The investigation shall be initiated more than 90 days after the effective date of this
6917 act.

6918 (c) The department may consider rate design elements, tariff structures and customer
6919 eligibility frameworks, including but not limited to: (i) the establishment of separate customer
6920 classes or categories based on load characteristics; (ii) appropriate rate structures, including
6921 demand based or capacity based charges; (iii) potential economic development rates for
6922 qualifying new businesses; (iv) minimum demand requirements or other mechanisms to provide
6923 revenue certainty; (v) minimum terms of service, including provisions addressing load ramp up
6924 periods; (vi) exit fees, termination provisions or other forms of financial assurance; (vii) cost
6925 allocation methodologies; (viii) requirements for the use of special contracts; and (ix)
6926 mechanisms to ensure that proposed rates do not increase or shift costs to other ratepayers.

6927 (d) The department shall ensure any rate structures developed pursuant to this section
6928 support economic development, maintain just and reasonable rates and avoid shifting costs to
6929 other customers.

6930 (e) The department shall consult with the executive office of economic development to
6931 align regulatory frameworks with statewide economic development objectives. The executive
6932 office of economic development shall establish all necessary requirements and qualification
6933 criteria to ensure economic benefits for the commonwealth prior to the establishment of any
6934 economic development rates.

6935 SECTION 327. Notwithstanding any general or special law to the contrary, the
6936 unexpended and unencumbered balances of the bond-funded authorizations in the following
6937 accounts shall cease to be available for expenditure 180 days after the effective date of this act:

6938 7002-8013

6939 7002-8016

6940 7002-8017

6941 7002-8022

6942 7002-8035

6943 7002-8037

6944 7002-8038

6945 7002-8041

6946 7002-8049

6947 SECTION 328. Notwithstanding any general or special law to the contrary, to meet the
6948 expenditures necessary in carrying out section 3A, the state treasurer shall, upon receipt of a
6949 request by the governor, issue and sell bonds of the commonwealth in an amount to be specified
6950 by the governor from time to time but not exceeding, in the aggregate, \$325,100,000. All bonds
6951 issued by the commonwealth, as aforesaid, shall be designated on their face “An Act Relative to
6952 Massachusetts Winning Global Investment, Talent, and Innovation” and shall be issued for a
6953 maximum term of years, not exceeding 30 years, as the governor may recommend to the general
6954 court pursuant to section 3 of Article LXII of the Amendments to the Constitution All such
6955 bonds shall be payable not later than June 30, 2061. All interest and payments on account of
6956 principal on such obligations shall be payable from the General Fund. Bonds and interest thereon
6957 issued under the authority of this section shall, notwithstanding any other provision of this act, be
6958 general obligations of the commonwealth.

6959 SECTION 329. Notwithstanding any general or special law to the contrary, the annual
6960 report required by subsection (g) of section 17 of chapter 23J of the General Laws shall be due
6961 not later than 1 year after the effective date of this act.

6962 SECTION 330. Notwithstanding section 64 of chapter 90 of the General Laws or any
6963 other special or general law to the contrary, an electric bicycle purchased or acquired before the
6964 effective date of said section 64 of said chapter 90 may continue to be operated in the
6965 commonwealth without meeting the battery or electrical system safety standards required by
6966 subsections (b) and (c) of said section 64 of said chapter 90.

6967 SECTION 331. (a) There shall be a working group on micromobility which shall consist
6968 of: the registrar of motor vehicles or a designee, who shall serve as chair; the administrator of
6969 highways in the Massachusetts Department of Transportation or a designee; the secretary of
6970 public safety and security or a designee; the commissioner of insurance or a designee; the
6971 commissioner of conservation and recreation or a designee; the commissioner of public health or
6972 a designee; 1 representative of the Massachusetts Municipal Association who shall appointed by
6973 the secretary of the of transportation; 2 persons to be appointed by the secretary of transportation,
6974 of whom 1 shall be a representative of the micromobility device industry and 1 shall be a
6975 representative of a citizen advocacy group 1 person who shall be a representative of the
6976 insurance industry who shall be appointed by the commissioner of insurance; and 2 persons to be
6977 appointed by the secretary of public safety and security, of whom 1 shall be a representative of
6978 the Fire Chiefs Association of Massachusetts and 1 hall be a representative of the Massachusetts
6979 Chiefs of Police Association.

6980 (b) The working group shall develop recommendations for a regulatory scheme and
6981 legislation, if necessary, for the operation of micromobility devices as provided in the January
6982 2026 special commission on micromobility report. The working group shall make
6983 recommendations for requirements for micromobility registration or an identification decal,
6984 licensure to operate, clarification of the roles of dealers and manufacturers, education, speed
6985 restrictions, signage, travel allowances, insurance requirements, fines and penalties and
6986 additional operation and safety standards and requirements for micromobility devices.

6987 (c) The working group shall develop a standardized form to report crashes and incidents
6988 involving a motor vehicle, a vulnerable user as defined in section 1 of chapter 90 of the General
6989 Laws or any micromobility device as defined in said section 1 of said chapter 90. The

6990 standardized form shall be used by any municipal, county or state law enforcement official or
6991 emergency medical services provider who responds to a crash or incident involving a motor
6992 vehicle, a vulnerable user or a micromobility device. The corresponding report for each crash or
6993 incident shall be transmitted to the registrar of motor vehicles. The registrar of motor vehicles
6994 shall maintain a publicly accessible database of the standardized form reports; provided,
6995 however, that no personally identifying information shall be published in the database.

6996 (d) Not later than December 31, 2027, the working group shall complete its work and
6997 issue a report of its findings, recommendations and any proposed legislation necessary to carry
6998 those recommendation into effect by filing the same with the clerks of the senate and house of
6999 representatives and the joint committee on transportation and publishing the same on its website.

7000 SECTION 332. (a) There shall be a special commission to conduct a comprehensive
7001 study and provide recommendations regarding the use of territorial and other rating factors
7002 considered by insurance companies that may result in disparities when setting automobile
7003 insurance premiums.

7004 (b) The commission shall consist of: the chairs of the joint committee on financial
7005 services, who shall serve as co-chairs; 2 members appointed by senate president, who shall be
7006 members of the Massachusetts Black and Latino caucus; 2 members appointed by the speaker of
7007 the house of representatives, who shall be members of the Massachusetts Black and Latino
7008 caucus; 1 member appointed by the minority leader of the senate; 1 member appointed by the
7009 minority leader of the house of representatives; the attorney general or a designee; the
7010 commissioner of insurance or a designee; the executive director of the Massachusetts Insurance

7011 Federation, Inc.; the executive director of the National Consumer Law Center, Inc.; and a
7012 representative of the Consumer Federation of America.

7013 (c) The commission shall investigate and study: (i) the use of zip code, garaging location
7014 and geographical area in setting automobile insurance rates or coverage decisions in the
7015 commonwealth; (ii) other factors that may be used in rating that are potentially discriminatory in
7016 nature; (iii) the impact on automobile insurance premiums when zip code, garaging location and
7017 geographical area are used in determining automobile insurance rates; (iv) how automobile
7018 insurance rates are currently calculated by insurance companies providing auto insurance in the
7019 commonwealth; (v) structural changes to the calculation of rates that would narrow disparities in
7020 auto insurance premiums by territory; and (vi) any other relevant information for the legislature's
7021 consideration.

7022 (d) The commission shall submit a report of its findings and recommendations, including
7023 any proposed legislation, to the clerks of the senate and house of representatives not later than
7024 August 1, 2027.

7025 SECTION 333. (a) The department of higher education, in collaboration with the
7026 executive office for administration and finance, shall study and report on adjunct faculty at
7027 public institutions of higher education which shall include, but not be limited to: (i) current data
7028 and practices for utilization of adjunct faculty; (ii) compensation and benefits available to
7029 adjunct faculty members and other professional staff at such public institutions of higher
7030 education including, but not limited to, benefits available through spouses and through other
7031 employment; (iii) best practices in employment and compensation of adjunct faculty in other
7032 states; (iv) recommendations for hiring full-time faculty and for achieving a balanced utilization

7033 of adjunct faculty; and (v) options to provide adjunct faculty members with benefits including,
7034 but not limited to, health insurance and retirement benefits that are available to other benefited
7035 public employees and projected costs for such options; provided, however, that such options
7036 shall include, but not be limited to, cost estimates, potential funding mechanisms and eligibility
7037 criteria.

7038 (b) The department shall hold not less than 3 public hearings including, but not limited to,
7039 opportunities for participation by representatives of the University of Massachusetts, state
7040 universities, community colleges, adjunct faculty, faculty unions, students and campus
7041 administrators.

7042 (c) Not later than September 1, 2028, the department shall file a report of its findings,
7043 recommendations and any proposed legislation necessary to carry those recommendations into
7044 effect with the clerks of the senate and house of representatives and the senate and house
7045 committees on ways and means and shall publish it on its website.

7046 SECTION 334. (a) There shall be a special commission to study and develop a
7047 comprehensive framework for the creation of a municipal and public safety building authority,
7048 an independent state authority dedicated to assisting municipalities with the construction and
7049 rehabilitation of public safety and municipal buildings.

7050 (b) The commission shall consist of: 3 members of the senate, 1 of whom shall be
7051 appointed by the minority leader; 3 members of the house of representatives, 1 of whom shall be
7052 appointed by the minority leader; the secretary of administration and finance or a designee; the
7053 director of rural affairs or a designee; 2 members appointed by the governor with demonstrated
7054 expertise in municipal finance, public facility planning or design or municipal infrastructure; the

7055 state treasurer or a designee; 3 representatives of Massachusetts Municipal Association, Inc.
7056 representing diverse geographic regions and forms of local government in the commonwealth; 1
7057 representative of Massachusetts Taxpayers Foundation, Inc.; 1 representative of Massachusetts
7058 Chiefs of Police Association Incorporated; 1 representative of Fire Chiefs' Association of
7059 Massachusetts, Inc.; 1 representative of Massachusetts Federation of Building Officials, Inc.;
7060 and 1 representative of the New England Chapter of the American Public Works Association
7061 who shall be a resident of the commonwealth. The commission shall elect a chair by a majority
7062 vote of the members.

7063 (c) The commission shall examine the need for an independent authority dedicated to
7064 assisting municipalities with the construction and rehabilitation of public safety and municipal
7065 buildings and related funding mechanisms, technical assistance, priority assessments and
7066 financial impacts. The commission shall review all aspects of municipal building infrastructure,
7067 including, but not limited to, city and town halls, public safety facilities, public works facilities,
7068 emergency operations centers, emergency communications facilities and other municipal
7069 buildings owned or operated by cities and towns. The commission shall examine:

7070 (i) the current status of and mechanisms for funding municipal building infrastructure and
7071 whether the current funding mechanisms adequately meet the needs for municipal building
7072 infrastructure;

7073 (ii) the need and feasibility of designing a governance and operational model for an
7074 independent municipal building authority modeled after successful state building programs,
7075 including, but not limited to, the Massachusetts School Building Authority established in chapter
7076 70B of the General Laws;

7077 (iii) sustainable, long-term revenue sources to support the long-term operations of the
7078 authority;

7079 (iv) protocols for providing municipalities with technical assistance including, but not
7080 limited to, architectural, engineering, procurement, capital planning, project management,
7081 maintenance planning, facility assessment, sustainability and climate resilience planning,
7082 throughout all phases of public building projects;

7083 (v) objective criteria for evaluating and prioritizing municipal projects based upon life
7084 safety, structural condition, code compliance, accessibility, climate resiliency, climate
7085 adaptation, deferred maintenance, operational efficiency, regional significance, public service
7086 impacts and overall community benefit;

7087 (vi) cost-sharing formulas and grant and loan structures to ensure equitable access for all
7088 cities and towns; and

7089 (vii) the feasibility of creating and maintaining a comprehensive statewide inventory of
7090 municipal and public safety buildings.

7091 (d) Not later than September 1, 2028, the commission shall submit a report of its findings
7092 and recommendations, including any legislation necessary to implement those recommendations,
7093 to the clerks of the senate and house of representatives and the senate and house committees on
7094 ways and means.

7095 SECTION 335. The executive office of housing and livable communities shall establish a
7096 pilot program with not more than 5 communities in which cities and towns may apply to
7097 participate to provide opportunities for tenants to collectively purchase their building when it is

7098 up for sale. A community interested in participating in the pilot program shall accept this section
7099 by a local vote under section 4 of chapter 4 of the General Laws and shall submit an application
7100 to the executive office. The executive office shall promulgate regulations and issue guidelines to
7101 implement the program within 180 days of the effective date of this act, which shall consider
7102 regional equity, address the assignability of rights to preserve the long-term affordability of the
7103 program, and be designed to help communities with high rates of displacement to encourage
7104 housing stability while maintaining policies to promote housing access and affordability. The
7105 pilot program shall be in place for not more than 5 years after its creation in a community that
7106 participates in the program. After each year and upon the conclusion of the community's 5-year
7107 pilot program under this section, the executive office shall produce a report indicating the
7108 effectiveness of the program including, but not limited to, the number of housing units
7109 purchased, number of evictions or other displacement avoided, any obstacles to sales and other
7110 recommendations to help housing stability and affordability. Annually, the executive office shall
7111 submit the report to the clerks of the senate and house of representatives and the joint committee
7112 on housing.

7113 SECTION 336. Not less than 270 days after the effective date of this act, each electric
7114 company shall share with the board established in section 17 of chapter 23J the processes they
7115 plan to implement to address gridtech deployment barriers internal to the electric company. Such
7116 processes shall include procedures for addressing barriers identified by the board pursuant to
7117 subsection (g) of section 17 of chapter 23J. Such processes shall be as similar between the
7118 investor-owned electric companies as practicable.

7119 SECTION 337. Not less than 270 days after the effective date of this act, the board
7120 established in section 17 of chapter 23J shall develop and vote to file with the department of

7121 public utilities a process for the department to review, on an expedited basis, requests for limited
7122 waivers of prior department orders that will alleviate gridtech deployment barriers. Such process
7123 shall be limited to reviewing waivers of prior department orders that are time-bound and finite in
7124 scope.

7125 SECTION 338. Not later than 2 years after the effective date of this act, the department
7126 of youth services shall file a report with the clerks of the senate and house of representatives and
7127 the senate and house committees on ways and means detailing the impact of integrating 18 year
7128 olds into the care and custody of the department of youth services. The report shall include, but
7129 not limited to: (i) the number of 18 year olds in the custody of the department of youth services;
7130 and (ii) the offenses committed.

7131 SECTION 339. Sections 63, 64 and 72 shall take effect for all municipalities upon the
7132 effective date of this act; provided, however, that in municipalities that adopted a zoning
7133 ordinance or by-law requiring some form of site plan review prior to the effective date of this act,
7134 the provisions of this section shall not be effective with respect to such zoning ordinance or by-
7135 law until the date that is one year after the effective date of this act.

7136 SECTION 340. No plan by a city or town to change the number of licenses available
7137 under chapter 138 of the General Laws shall take effect prior to January 1, 2027. The number of
7138 licenses authorized under said chapter 138 for each city and town prior to January 1, 2027, shall
7139 remain unchanged unless changed by the mayor and city council or select board pursuant to a
7140 plan adopted under section 17 of said chapter 138.

7141 SECTION 341. Not later than 1 year after the effective date of this act, the commissioner
7142 of public health shall promulgate regulations as required by section 250 of chapter 111 of the
7143 General Laws.

7144 SECTION 342. Not later than January 1, 2028 the attorney general shall complete the
7145 first report required by subsection (a) of section 4 of chapter 93M of the General Laws.

7146 SECTION 343. Not later than January 1, 2029 the attorney general shall complete the
7147 first report required by subsection (g) of section 3 and subsection (d) of section 4 of chapter 93M
7148 of the General Laws.

7149 SECTION 344. Not later than September 1, 2027, the department of transportation shall
7150 promulgate regulations to establish the requirements, standards and processes for a city or town's
7151 participation in the automated road safety enforcement program established under chapter 90L of
7152 the General Laws. The regulations shall include, but not be limited to: (i) establishing
7153 standardized forms for notices of violations and written warnings; (ii) developing uniform
7154 signage and distance requirements for the purpose of complying with subsection (a) of section 5
7155 of said chapter 90L; (iii) establishing guidance for the calibration and verification of automated
7156 road safety camera systems under subsection (b) of section 6 of said chapter 90L; and (iv)
7157 establishing provisions for protecting data collected by an automated road safety camera system
7158 from unauthorized access.

7159 SECTION 345. Not more than 180 days after the effective date of this act or 180 days
7160 after the date on which a frontier developer first qualifies as a large frontier developer, whichever
7161 is later, a large frontier developer shall post its risk report required under subsection (c) of
7162 section 2 of chapter 93M of the General Laws.

7163 SECTION 346. The requirement of an annual audit under subsection (a) of section 3A of
7164 chapter 93M of the General Laws shall take effect on January 1, 2027 or 180 days after the date
7165 on which a frontier developer first qualifies as a large frontier developer, whichever is later.

7166 SECTION 347. The requirement for an independent evaluation of a developer's frontier
7167 models with respect to each category of catastrophic risk under subsection (b) of section 3A of
7168 chapter 93M of the General Laws shall take effect on January 1, 2027 or 180 days after the date
7169 on which a frontier developer first qualifies as a large frontier developer, whichever is later.

7170 SECTION 348. Not later than 1 year after the effective date of this act, the attorney
7171 general shall develop the independent evaluation ecosystem plan required under subsection (d) of
7172 section 3A of chapter 93M of the General Laws.

7173 SECTION 349. Section 9A 1/2 of chapter 40A of the General Laws shall not apply to an
7174 establishment licensed and in operation on the effective date of this act.

7175 SECTION 350. Subsection (ii) of section 6 of chapter 62 of the General Laws, inserted
7176 by section 194 of said chapter 238 of the acts of 2024, shall take effect for taxable years
7177 beginning on or after January 1, 2027.

7178 SECTION 351. Section 38UU of chapter 63 of the General Laws shall take effect for
7179 taxable years beginning on or after January 1, 2027.

7180 SECTION 352. Sections 5, 158, 159 and 163 shall take effect on September 1, 2027.

7181 SECTION 353. Sections 6, 7A, 56, 106 and 176 to 179, inclusive, 271, sections 273 to
7182 279, inclusive, sections 282 to 291, inclusive, sections 301 to 305, inclusive, and section 312
7183 shall take effect 1 year after the effective date of this act.

7184 SECTION 354. Section 11 and sections 305 to 309, inclusive, shall take effect: (i) upon
7185 certification by the commissioner of probation to the governor and the general court that an
7186 automated sealing system is ready for implementation; or (ii) July 1, 2030, whichever comes
7187 first. Within 3 months of the effective date, the commissioner shall seal all records of past
7188 criminal and juvenile court appearances and dispositions and juvenile offenses on file with the
7189 commissioner that are eligible to be automatically sealed pursuant to sections 100A and 100B of
7190 chapter 276 of the General Laws.

7191 SECTION 355. Sections 67, 69, 70, 71, 74, 75, 109, 120, 124, 106 and 265 and chapter
7192 93M of the General Laws shall take effect on July 1, 2027.

7193 SECTION 356. Section 123 shall apply to all taxable years beginning on or after January
7194 1, 2022.

7195 SECTION 357. Section 135 shall take effect on January 1, 2033.

7196 SECTION 358. Sections 140 to 155, inclusive, 157 and sections 160 to 162, inclusive,
7197 shall take effect on January 1, 2028.

7198 SECTION 349. Section 270 shall take effect as of July 8, 2012.